

THE
DIPLOMATIC CORRESPONDENCE
OF THE
AMERICAN REVOLUTION

BY JARED SPARKS

VOL. IV

1829

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DIPLOMATIC CORRESPONDENCE OF THE AMERICAN
REVOLUTION, VOL. 04 ***

**THE
DIPLOMATIC
CORRESPONDENCE
OF THE
AMERICAN REVOLUTION
VOL. IV**

**THE
DIPLOMATIC
CORRESPONDENCE
OF THE
AMERICAN REVOLUTION;**

BEING

THE LETTERS OF BENJAMIN FRANKLIN, SILAS DEANE, JOHN
ADAMS, JOHN JAY, ARTHUR LEE, WILLIAM LEE, RALPH
IZARD, FRANCIS DANA, WILLIAM CARMICHAEL, HENRY
LAURENS, JOHN LAURENS, M. DE LAFAYETTE, M.
DUMAS, AND OTHERS, CONCERNING THE FOREIGN
RELATIONS OF THE UNITED STATES DURING
THE WHOLE REVOLUTION;

TOGETHER WITH

THE LETTERS IN REPLY FROM THE SECRET COMMITTEE OF
CONGRESS, AND THE SECRETARY OF FOREIGN AFFAIRS.

ALSO,

THE ENTIRE CORRESPONDENCE OF THE FRENCH MINISTERS,
GERARD AND LUZERNE, WITH CONGRESS.

Published under the Direction of the President of the United States, from
the original Manuscripts in the Department of State, conformably
to a Resolution of Congress, of March 27th, 1818.

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THE
CORRESPONDENCE
OF
BENJAMIN FRANKLIN,
COMMISSIONER AND MINISTER PLENIPOTENTIARY TO
THE COURT OF FRANCE, AND COMMISSIONER
FOR NEGOTIATING A PEACE.

THE
CORRESPONDENCE
OF
BENJAMIN FRANKLIN.

CORRESPONDENCE CONTINUED.

COUNT DE VERGENNES TO B. FRANKLIN.

Translation.

Versailles, August 23d, 1782.

Sir,

I have received the letter you did me the honor of writing to me on the 9th instant, as well as the memorial enclosed in it. I communicated the paper to the Marquis de Castries, and I make no doubt, but that the Minister will take into consideration its contents, as far as circumstances will permit. We are desirous to adopt every measure, that may tend to the prosperity of the commerce established between France and the United States, and we shall neglect nothing to accomplish this object to the universal satisfaction of the two countries. Congress will greatly facilitate our labor, if they will communicate their ideas and wishes on this subject; and I make the request with greater confidence, as I am convinced that that assembly desires as

much as we do to establish, on an advantageous and solid basis, the commercial concerns between France and America.

I have the honor to be, &c.

DE VERGENNES.

THOMAS TOWNSHEND TO RICHARD OSWALD.

Whitehall, September 1st, 1782.

Sir,

I have received and laid before the King your letters of the 17th, 18th, and 21st ultimo; and I am commanded to signify to you his Majesty's approbation of your conduct in communicating to the American Commissioners the fourth article of your instructions; which could not but convince them, that the negotiation for peace, and the cession of independence to the Thirteen United Colonies, were intended to be carried on and concluded with the Commissioners in Europe.

Those gentlemen having expressed their satisfaction concerning that article, it is hoped they will not entertain a doubt of his Majesty's determination to exercise, in the fullest extent, the powers with which the act of Parliament has invested him, by granting to America, full, complete, and unconditional independence, in the most explicit manner, as an article of treaty.

T. TOWNSHEND.

TO ROBERT R. LIVINGSTON.

Passy, September 3d, 1782.

Sir,

I have just received yours, No. 13, dated the 23d of June. The accounts of the general sentiments of our people, respecting propositions from England, and the rejoicings on the birth of the Dauphin, give pleasure here; and it affords me much satisfaction to find the conduct of Congress approved by all who hear or speak of it, and to see all the marks of a constantly growing regard for us, and confidence in us, among those in whom such sentiments are most to be desired.

I hope the affair of Captain Asgill was settled as it ought to be, by the punishment of Lippincott. Applications have been made here to obtain letters in favor of the young gentleman. Enclosed I send you a copy of the answer I gave to that made to me.

I had before acquainted M. Tousard, that his pension would be paid in America, and there only, it being unreasonable to expect that Congress should open a Pay Office in every part of the world, where pensioners should choose to reside. I shall communicate to him that part of your letter.

You wish to know what allowance I make to my private Secretary. My grandson, William T. Franklin, came over with me, served me as a private Secretary during the time of the Commissioners; and no Secretary to the Commission arriving, though we had been made to expect one, he did business for us all, and this without any allowance for his services, though both Mr Lee and Mr Deane at times mentioned it to me as a thing proper to be done, and in justice due to him. When I became appointed sole Minister here, and the whole business, which the Commissioners had before divided with me, came into my hands, I was obliged to exact more service from him, and he was indeed, by being so long in the business, become capable of doing more. At length, in the beginning of the year 1781 when he became of age, considering his constant close attention to the duties required, and his having thereby missed the opportunity of studying the law, for which he had been intended, I determined to make him some compensation for the time past, and fix some compensation for the time to come, till the pleasure of Congress respecting him should be known. I accordingly settled an account with him, allowing him from the beginning

of December 1776 to the end of 1777, the sum of 3,400 livres, and for the year 1778, the sum of 4,000 livres, for 1779, 4,800 livres, and for 1780, 6,000 livres. Since that time I have allowed him at the rate of three hundred louis per annum, being what I saw had been allowed by Congress to the Secretary of Mr William Lee, who could not have had, I imagine, a fourth part of the business to go through; since my Secretary, besides the writing and copying the papers relative to my common ministerial transactions, has had all those occasioned by my acting in the various employments of Judge of Admiralty, Consul, purchaser of goods for the public, &c. &c. besides that of accepting the Congress bills, a business that requires being always at home, bills coming by post, from different ports and countries, and often requiring immediate answers, whether good or not; and to that end, it being necessary to examine by the books, exactly kept of all preceding acceptances, in order to detect double presentations, which happen very frequently. The great number of these bills makes almost sufficient business for one person, and the confinement they occasion is such, that we cannot allow ourselves a day's excursion into the country, and the want of exercise has hurt our healths in several instances.

The Congress pay much larger salaries to some Secretaries, who, I believe, deserve them; but not more than my grandson does the comparatively small one I have allowed to him, his fidelity, exactitude, and address in transacting business, being really what one could wish in such an officer; and the genteel appearance a young gentleman in his station obliges him to make, requiring at least such an income. I do not mention the extraordinary business that has been imposed upon us in this embassy, as a foundation for demanding higher salaries than others. I never solicited for a public office, either for myself, or any relation, yet I never refused one, that I was capable of executing, when public service was in question, and I never bargained for salary, but contented myself with whatever my constituents were pleased to allow me. The Congress will therefore consider every article charged in my account, distinct from the salary originally voted, not as what I presume to insist upon, but as what I propose only for their consideration, and they will allow what they think proper.

You desire an accurate estimate of those contingent expenses. I enclose copies of two letters,^[1] which passed between Mr Adams and me on the subject, and show the articles of which they consist. Their amount in

different years may be found in my accounts, except the article of house rent, which has never yet been settled; M. de Chaumont, our landlord, having originally proposed to leave it till the end of the war, and then to accept for it a piece of American land from the Congress, such as they might judge equivalent. If the Congress did intend all contingent charges whatever to be included in the salary, and do not think proper to pay on the whole so much, in that case I would humbly suggest, that the saving may be most conveniently made by a diminution of the salary, leaving the contingencies to be charged; because they may necessarily be very different in different years, and at different courts.

I have been more diffuse on this subject, as your letter gave occasion for it, and it is probably the last time I shall mention it. Be pleased to present my dutiful respects to Congress, assure them of my best services, and believe me to be, with sincere esteem, &c.

B. FRANKLIN.

P. S. As you will probably lay this letter before Congress, I take the liberty of joining to it an extract of my letter to the President, of the 12th of March, 1781, and of repeating my request therein contained, relative to my grandson. I enclose, likewise, extracts of letters from Messrs Jay and Laurens, which both show the regard those gentlemen have for him, and their desire of his being noticed by the Congress.^[2]

B. F.

TO JOHN JAY.

Passy, September 4th, 1782.

Dear Sir,

Mr Oswald's courier being returned, with directions to him to make the independence of America the first article in the treaty, I would wait on you

if I could, to discourse on the subject; but as I cannot, I wish to see you here this evening, if not inconvenient to you.

With great esteem, I have the honor to be, dear Sir, your most obedient and most humble servant,

B. FRANKLIN.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, September 5th, 1782.

Sir,

Having written to you lately, I should not again trouble you so soon, were it not necessary to remind you, that your last letter is dated in March, since which there have been frequent arrivals from France; and since which too we have reason to believe, the most interesting events have taken place in Europe.

We learn from private letters and common fame, that Mr Adams was received by the United Provinces in his public character, on the 19th of April. We have yet no account of this interesting event, nor of the measures he has pursued to accomplish our other objects in Holland. Since then Mr Laurens, it is said, has been liberated, has travelled to Holland and to France, has entered upon the execution of his trust, but has left us to gather events so interesting to him and to us from private letters, and the public prints. Mr Jay tells us on the 24th of May, that he is about to set out for Paris, and that he presumes Dr Franklin has assigned the reasons for this step. Doctor Franklin has told us nothing.

As to Mr Dana, if it were not for the necessity of drawing bills in his favor, we should hardly be acquainted with his existence. It is commonly said, that republics are better informed than monarchs of the state of their foreign affairs, and that they insist upon a greater degree of vigilance and

punctuality in their Ministers. We, on the contrary, seem to have adopted a new system. The ignorance, in which we are kept, of every interesting event, renders it impossible for the sovereign to instruct their servants, and of course forms them into an independent privy council for the direction of their affairs, without their advice or concurrence. I can hardly express to you what I feel on this occasion. I blush when I meet a member of Congress, who inquires into what is passing in Europe. When the General applies to me for advice on the same subject, which must regulate his movements, I am compelled to inform him, that we have no intelligence but what he has seen in the papers. The following is an extract of his last letter to me. "But how does it happen, that all our information of what is transacting in Europe should come to hand through indirect channels, or from the enemy; or does this question proceed from my unacquaintedness with facts?"

But let me dismiss a subject, which gives me so much pain, in the hope that we shall in future have no further cause of complaint.

Since the evacuation of Savannah, the enemy have by the general orders contained in the enclosed papers, announced the proposed evacuation of Charleston. We are in daily expectation of hearing, therefore, that tranquillity is restored to the Southern States. Several circumstances lead us to suppose, that they entertain thoughts of abandoning New York sometime this fall. You *only* can inform us, whether this step has been taken in consequence of any expectations they entertain of a general peace; or with a view to pursue the system, which the present administration appears to have adopted, when they so loudly reprobate the American war; and whether, by withdrawing their troops from hence they only mean to collect their force and direct it against our allies. This knowledge would render such an alteration in our system necessary, that it affords us new reasons for regretting our want of information on these important points.

The Marquis de Vaudreuil has unfortunately lost the *Magnifique*, sunk by running on a rock in the harbor of Boston, where he is now, with the remainder of his fleet, except three refitting at Portsmouth, consisting of twelve sail of the line. This has enabled Congress to show their attention to His Most Christian Majesty, and their wish to promote his interests as far as their circumstances will permit, by presenting him the *America*, of

seventyfour guns. Enclosed are their resolves on that subject, and the answer given by the Minister of France. The ship is in such a state, that she may by diligence be refitted for sea in about two months; and from the accounts I hear of her, she will I believe prove a fine ship. The General is collecting the army. The last division of the French troops marched from here this morning. When collected, they will, I presume, repair to their old post, at the White Plains, and perhaps endeavor to accelerate the departure of the enemy.

I am sorry you did not pursue your first design, and enlarge in your letter upon the subjects, which you imagined would be discussed in the negotiations for peace. It might have changed our sentiments, and altered our views on some points. Two things are of great moment to us, one of which at least would meet with no difficulty, if France and England understand their true interests; I mean the West India trade, and the right to cut logwood and mahogany. Without a free admission of all kinds of provisions into the Islands, our agriculture will suffer extremely. This will be severely felt at first, and when it remedies itself, which it will do in time, it must be at the expense of the nations that share our commerce. It will lessen the consumption of foreign sugars, increase the supplies which the poorer people among us draw from the maple, &c. and by reducing the price of provision, and rendering the cultivation of lands less profitable, make proportionable increase of our own manufactures, and lessen our dependence on Europe. This will, I must confess, in some measure check our population, and so far I regard it as an evil. The merchants and farmers, if precluded at a peace from the advantages, which this commerce gave them while connected with England, ——.^[3] Then a variety of arguments on this subject, arising as well from the general interests of France, as from her political connexion with us, might be urged to show the wisdom of adopting the same liberal sentiments on this point, which has of late distinguished her in so many others. But if she should not be able to overcome her ancient prejudices, I believe they will be found to have less influence on the British, whom you will press earnestly on this head. Besides the general interest of the kingdom, there is with them a powerful West India interest, to plead in behalf of a free importation of provisions into their Islands. If I mistake not, the present wishes of the nation, as well as the professions of administration, lead to every measure, which may

wear away our present resentments, and strengthen the connexion between us and them.

The logwood trade we have some claim to, from our continued exercise of the right. Nor can England pretend to exclude us from it, without invalidating her own title, which stands upon the same ground. If Spain admits the right in England, she gains nothing by excluding us, since in proportion as she diminishes our commerce in that article, she increases that of Great Britain. Other manufacturing nations are interested in exciting a competition between us at their markets.

When you write to me, be pleased to be very particular in your relation of every step, which leads to a negotiation. Everything of this kind must be interesting.

I have the honor to be, Sir,

ROBERT R. LIVINGSTON.

RICHARD OSWALD TO B. FRANKLIN.

Paris, September 5th, 1782.

Sir,

In consequence of the notice I have just now had from Mr Jay of your desire of an extract from my last letter from the Secretary of State, regarding the proposed treaty on the subject of American affairs, and my authority in relation thereto, I take the liberty to send the same enclosed, which, together with the powers contained in the commission, which I had the honor of laying before you and Mr Jay, I am hopeful will satisfy you of the willingness and sincere desire of his Majesty to give you entire content on that important subject.

This extract I would have sent before now, if I had thought you wished to have it before I had the honor of waiting on you myself; which was only delayed until I should be informed by Mr Jay, that you were well enough to see me upon business.

I heartily wish you a recovery of your health, and am, with sincere esteem and regard, Sir, your most obedient humble servant,

RICHARD OSWALD.

TO RICHARD OSWALD.

Passy, September 8th, 1782.

Sir,

I have received the honor of yours, dated the 5th instant, enclosing an extract of a letter to your Excellency, from the right honorable Thomas Townshend, one of his Majesty's principal Secretaries of State, wherein your conduct in communicating to us the fourth article of your instructions appears to have been approved by his Majesty. I suppose, therefore, that there is no impropriety in my requesting a copy of that instruction; and if you see none, I wish to receive it from you, hoping it may be of use in removing some of the difficulties that obstruct our proceeding.^[4]

With great and sincere esteem, I am, Sir, your Excellency's most obedient and most humble servant,

B. FRANKLIN.

TO EARL GRANTHAM.

Passy, September 11th, 1782.

My Lord,

A long and severe indisposition has delayed my acknowledging the receipt of the letter your Lordship did me the honor of writing to me by Mr Fitzherbert.

You do me justice in believing, that I agree with you in earnestly wishing the establishment of an honorable and lasting peace; and I am happy to be assured by your Lordship, that it is the system of the Ministers with whom you are co-operating. I know it to be the sincere desire of the United States, and with such dispositions on both sides there is reason to hope, that the good work in its progress will meet with little difficulty. A small one has occurred in the commencement, with which Mr Oswald will acquaint you. I flatter myself that means will be found on your part for removing it; and my best endeavors in removing the subsequent ones (if any should arise) may be relied on.

I had the honor of being known to your Lordship's father. On several occasions he manifested a regard for me, and a confidence in me. I shall be happy if my conduct in the present important business may procure me the same rank in the esteem of his worthy successor.

I am, with sincere respect, my Lord, your Lordship's most obedient and most humble servant,

B. FRANKLIN.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, September 12th, 1782.

Sir,

I have nothing to add to mine of the 5th instant, but to congratulate you on the safe arrival of two vessels from Holland, having on board the goods left by Commodore Gillon, and to present you in the name of Mr Paine, with three copies of a late work of his addressed to the Abbé Raynal, in which he takes notice of some of the many errors with which his work abounds. The Abbé has a fine imagination, and he indulges it. The enclosed resolution contains an important fact, which I am using means to ascertain; but from the ill success I have hitherto met with in every similar attempt, I am fearful that it will be very long before I can effect it.

I have the honor to be, Sir, with great respect and esteem, your most obedient humble servant,

ROBERT R. LIVINGSTON.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, September 12th, 1782.

Sir,

Since writing the above, I have received the enclosed resolutions of Congress. I have already anticipated all that can be said upon the subject of the last; the melancholy tale of our necessities is sufficiently known to you, it has been too often repeated to need recitation.

Mr Morris, who writes from an empty Treasury amidst perpetual duns, will speak more feelingly. In short, money must be obtained for us at any rate, whether we have peace or war. France having already done much for us, and it not being probable that we shall extend our demands beyond the present, she may think it wise not to let us open accounts with a new banker, since the debtor is always more or less under obligations to the creditor.

I have the honor to be, Sir, with respect and esteem,

ROBERT R. LIVINGSTON.

TO DAVID HARTLEY.

Passy, September 17th, 1782.

My dear Friend,

Since those acknowledged in my last, I have received your several favors of August the 16th, 20th, and 26th. I have been a long time afflicted with the gravel and gout, which have much indisposed me for writing. I am even now in pain, but will no longer delay some answer.

I did not perfectly comprehend the nature of your appointment respecting the refugees, and I supposed you would in a subsequent letter explain it. But, as I now find you have declined the service, such explanation is become unnecessary.

I did receive the paper you inquire about, entitled *Preliminaries*, and dated May, 1782, but it was from you, and I know nothing of their having been communicated to this Court. The third proposition, "that in case the negotiation between Great Britain and the allies of America should not succeed, but the war continue between them, America should act and be treated as a neutral nation," appeared at first sight inadmissible, being contrary to our treaty. The truce too seems not to have been desired by any of the parties.

With unalterable esteem and affection, I am, my dear Friend, ever yours,
&c.

B. FRANKLIN.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, September 18th, 1782.

Sir,

Just after closing my despatches, I was favored with yours of the 25th of April, and the 25th and 29th of June. The ships that brought them were so unfortunate as to be chased into the Delaware by a superior force. The Eagle was driven ashore and sunk. The papers and money were however happily saved, and part of the crew. But Captain la Fouché, not having been since heard of, is supposed to be taken. The other frigate has arrived safe, with all the passengers of both ships.

As I am just about to leave town for a short time, I will not touch upon the important subject mentioned in your letters, which will on account of my absence be committed to a special committee.

I would only observe to you, that the resolution in my last shows the sense of Congress on the subject of money matters.

You will see by the annexed resolutions, that Congress have refused to accept Mr Laurens's resignation, and that they have made some alteration in your powers.

I send the papers, which contain the little news we have, and am, Sir,

ROBERT R. LIVINGSTON.

MR SECRETARY TOWNSHEND TO RICHARD OSWALD.

Whitehall, September 20th, 1782.

Sir,

I received, on Saturday last, your packets of the 10th and 11th of this month.

A meeting of the King's confidential servants was held as soon as possible, to consider the contents of them, and it was at once agreed to make the alteration in the commission proposed by Dr Franklin and Mr Jay. I trust that the readiness with which this proposal has been accepted, will be considered as an ample testimony of the openness and sincerity with which the government of this country is disposed to treat with the Americans.

The commission is passing with as much despatch as the forms of office will allow; but I thought it material that no delay should happen, in giving you notice of the determination of his Majesty's Council upon this subject. You will receive the commission very soon after this reaches you.

I am, with great regard, &c.

T. TOWNSHEND.

RICHARD OSWALD TO B. FRANKLIN.

Paris, September 24th, 1782.

Sir,

Having received, by a courier just now arrived, a letter from Mr Secretary Townshend, in answer to mine, which went by the messenger, despatched from hence on the 12th, I take this opportunity of Mr Whiteford to send you a copy of it. I hope he will bring good accounts of your health, which I sincerely wish, and am your Excellency's, &c.

RICHARD OSWALD.

COUNT DE VERGENNES TO B. FRANKLIN.

Translation.

Versailles, September 25th, 1782.

Sir,

I have the honor to send you my despatches for the Chevalier de la Luzerne. The packet is voluminous, but it contains many duplicates.

I should be glad if it were in my power to inform him, that our treaty is in as good progress as yours, but this is far from being the case. I cannot even foresee what will be the issue, for difficulties multiply. It will be well for you to forewarn the Congress to be prepared for whatever event may arise. I do not despair; I the rather hope; but as yet all is uncertainty.

I have the honor to be, Sir,

DE VERGENNES.

TO ROBERT R. LIVINGSTON.

Passy, September 26th, 1782.

Sir,

I have just received your No. 15, dated the 9th of August, which mentions your not having heard from me since March. I have, however, written sundry letters, viz. of April the 8th, and June the 12th, June the 25th and 29th, August the 12th, and September the 3d, and sent copies of the same, which I hope cannot all have miscarried.

The negotiations for peace have hitherto amounted to little more than mutual professions of sincere desires, &c., being obstructed by the want of due form in the English commissions appointing their plenipotentiaries. The objections made to those for treating with France, Spain and Holland were first removed, and by the enclosed^[5] it seems that our objections to that for treating with us will now be removed also, so that we expect to begin in a few days our negotiations. But there are so many interests to be considered and settled, in a peace between five different nations, that it will be well not to flatter ourselves with a very speedy conclusion.

I mentioned, in a former letter, my having communicated to Count de Vergennes the state of American commerce, which you sent me, and my having urged its consideration, &c. Enclosed is a copy of a letter received from that Minister on the subject.

The copy of General Carleton's letter, and the bills of exchange, which you mentioned as enclosed, do not appear. I hope soon to have a better opportunity of writing, when I shall be fuller.

With great esteem, &c.

B. FRANKLIN.

COUNT DE VERGENNES TO B. FRANKLIN.

Translation.

Versailles, October 3d, 1782.

Sir,

I have the honor to return you the commission appointing Thomas Barclay consul of the United States, to reside in France, and I endorse the exequatur, which is requisite for the exercise of his functions. I must inform you, that

the latter of these will require the Admiral's signature previously to its being registered, either by the Secretary of the Admiralty at L'Orient, where Mr Barclay intends to fix his residence, or by those of other ports of the kingdom, where commercial considerations may require his presence.

I have the honor to be, &c.

DE VERGENNES.

DAVID HARTLEY TO B. FRANKLIN.

Bath, October 4th, 1782.

My Dear Friend,

I only write one line to you, to let you know that I am not forgetful of you, or of our common concerns. I have not heard anything from the Ministry yet; I believe it is a kind of vacation with them, before the meeting of Parliament. I have told you of a proposition, which I have had some thoughts to make as a kind of copartnership in commerce. I send you a purposed temporary convention, which I have drawn up. You are to consider it only as one I recommend. The words underlined are grafted upon the proposition of my Memorial, dated May 19th, 1778. You will see the principle, which I have in my thoughts to extend for the purpose of restoring our ancient copartnership generally.

I cannot tell you what event things may take, but my thoughts are always employed in endeavoring to arrange that system upon which the *China Vase*, lately shattered, may be cemented together, upon principles of compact and connexion, instead of dependence.

I have met with a sentiment in this country which gives some alarm, viz. lest the unity of government in America should be uncertain, and the States reject the authority of Congress. Some passages in General Washington's letter have given weight to these doubts. I do not hear of any tendency to

this opinion; *that the American States will break to pieces, and then we may still conquer them.* I believe all that folly is extinguished. But many serious and well disposed persons are alarmed, lest *this should be the ill-fated moment for relaxing the powers of the union, and annihilating the cement of confederation,* (*vide* Washington's letter,) and that Great Britain should thereby lose her best and wisest hope of being reconnected with the American States *unitedly*. I should for one think it the greatest misfortune. Pray give me some opinion upon this.

You see there is likewise another turn, which may be given to this sentiment by intemperate and disappointed people, who may indulge a passionate revenge for their own disappointments, by endeavoring to excite general distrust, discord, and disunion. I wish to be prepared and guarded at all points.

I beg my best compliments to your colleagues; be so good as to show this letter to them. I beg particularly my condolence (and I hope congratulation) to Mr Adams; I hear that he has been very dangerously ill, but that he is again recovered. I hope the latter part is true, and that we shall all survive to set our hands to some future compacts of common interest, and common affection, between our two countries.

Your ever affectionate,

D. HARTLEY.

TO ROBERT R. LIVINGSTON.

Passy, October 14th, 1782.

Sir,

I have but just received information of this opportunity, and have only time allowed to write a few lines.

In my last of the 26th past, I mentioned that the negotiation for peace had been obstructed, by the want of due form in the English commissions appointing their plenipotentiaries. In that for treating with us, the mentioning our States by their public name had been avoided, which we objected to; another is come, of which I send a copy enclosed. We have now made several preliminary propositions, which the English Minister, Mr Oswald, has approved, and sent to his Court. He thinks they will be approved there, but I have some doubts. In a few days, however, the answer expected will determine. By the first of these articles, the King of Great Britain renounces for himself and successors, all claim and pretension to dominion or territory within the Thirteen United States; and the boundaries are described as in our instructions, except that the line between Nova Scotia and New England is to be settled by Commissioners after the peace. By another article, the fishery in the American seas is to be freely exercised by the Americans, wherever they might formerly exercise it while united with Great Britain. By another, the citizens and subjects of each nation are to enjoy the same protection and privileges, in each others' ports and countries, respecting commerce, duties, &c. that are enjoyed by native subjects. The articles are drawn up very fully by Mr Jay, who I suppose sends you a copy; if not, it will go by the next opportunity. If these articles are agreed to, I apprehend little difficulty in the rest. Something has been mentioned about the refugees and English debts, but not insisted on, as we declared at once, that whatever confiscations had been made in America, being in virtue of the laws of particular States, the Congress had no authority to repeal those laws, and therefore could give us none to stipulate for such repeal.

I have been honored with the receipt of your letters, Nos 14 and 15. I have also received two letters from Mr Lewis R. Morris, both dated the 6th of July, and one dated the 10th of August, enclosing bills for

68,290 livres,
71,380
9,756

In all 149,426 livres,

being intended for the payment of Ministers' salaries for the two first quarters of this year. But as these bills came so late, that all those salaries were already paid, I shall make no use of the bills, but lay them by till further orders; and the salaries of different Ministers not having all the same times of falling due, as they had different commencements, I purpose to get all their accounts settled and reduced to the same period, and send you the state of them, that you may be clear in future orders. I see in one of the estimates sent me, that a quarter's salary of a Minister is reckoned at 14,513 livres, in the other it is reckoned 16,667 livres, and the bill for 9,756^[6] livres is mentioned as intended to pay a balance due on the remittance of the 68,290 livres. Being unacquainted with the state of your exchange, I do not well comprehend this, and therefore leave the whole for the present, as I have said above. Permit me only to hint for your consideration, whether it may not be well hereafter to omit mention of sterling, in our appointments, since we have severed from the country to which that denomination of money is peculiar; and also to order the payment of your Ministers in such a manner, that they may know exactly what they are to receive, and not be subject to the fluctuations of exchange. If it is that, which occasions the difference between 14,583 for the first quarter, and the 16,667 for the second, it is considerable. I think we have no right to any advantage by the exchange, nor should we be liable to any loss from it. Hitherto we have taken 15,000 for a quarter, (subject however to the allowance or disallowance of Congress) which is lower than the medium between those two extremes.

The different accounts given of Lord Shelburne's character, with respect to sincerity, induced the Ministry here to send over M. de Rayneval, Secretary to the Council, to converse with him, and endeavor to form by that means a more perfect judgment of what was to be expected from the negotiations. He was five or six days in England, saw all the Ministers, and returned quite satisfied, that they are sincerely desirous of peace, so that the negotiations now go on with some prospect of success. But the Court and people of England are very changeable. A little turn of fortune in their favor sometimes turns their heads; and I shall not think a speedy peace to be depended on, till I see the treaties signed. I am obliged to finish.

With great esteem, &c.

B. FRANKLIN.

TO JOHN ADAMS.

Passy, October 15th, 1782.

Sir,

A long and painful illness has prevented my corresponding with your Excellency regularly.

Mr Jay has, I believe, acquainted you with the obstructions our peace negotiations have met with, and that they are at length removed. By the next courier expected from London, we may be able perhaps to form some judgment of the probability of success, so far as relates to our part of the peace. How likely the other powers are to settle their pretensions, I cannot yet learn. In the mean time, America is gradually growing more easy, by the enemy's evacuation of their posts; as you will see by some intelligence I enclose.

With great respect, I have the honor to be, &c.

B. FRANKLIN.

FROM T. TOWNSHEND TO B. FRANKLIN.

Whitehall, October 23d, 1782.

Sir,

As Mr Strachey is going from hence to Paris, with some particulars for Mr Oswald, which were not easily to be explained in writing, I take the liberty of introducing him to your acquaintance, though I am not sure that he is not a little known to you. The confidential situation in which he stands with me, makes me particularly desirous of presenting him to you.

I believe, Sir, I am enough known to you, for you to believe me, when I say, that there has not been from the beginning a single person more averse to the unhappy war, or who wishes more earnestly than I do, for a return of peace and mutual amity between Great Britain and America.

I am, with great regard, Sir, your most obedient humble servant,

T. TOWNSHEND.

TO THOMAS TOWNSHEND.

Passy, November 4th, 1782.

Sir,

I received the letter you did me the honor of writing to me by Mr Strachey, and was much pleased with the opportunity it gave me of renewing and increasing my acquaintance with a gentleman of so amiable and deserving a character.

I am sensible you have ever been averse to the measures that brought on this unhappy war; I have, therefore, no doubt of the sincerity of your wishes for a return of peace. Mine are equally earnest. Nothing, therefore, except the beginning of the war, has given me more concern than to learn at the conclusion of our conferences, that it is not likely to be soon ended. Be assured, no endeavors on my part would be wanting to remove any difficulties that may have arisen, or even if a peace were made, to procure afterwards any changes in the treaty that might tend to render it more perfect, and the peace more durable. But we, who are here at so great a

distance from our constituents, have not the possibility of obtaining in a few days fresh instructions, as is the case with your negotiators, and are therefore obliged to insist on what is conformable to those we have, and at the same time appears to us just and reasonable.

With great esteem and respect, I have the honor to be, Sir, &c.

B. FRANKLIN.

TO ROBERT R. LIVINGSTON.

Passy, November 7th, 1782.

Sir,

The Baron de Kermelin, a Swedish gentleman of distinction, recommended strongly to me by his Excellency, the Ambassador of that nation to this Court, as a person highly esteemed in his own, purposes a journey through North America, to view its natural productions, acquaint himself with its commerce, and acquire such information as may be useful to his country, in the communication and connexion of interests that seem to be growing, and probably may soon become considerable between the two nations. I therefore beg leave to introduce him to you, and request that you would present him to the President of Congress, and to such other persons as you shall think may be useful to him in his views, and I recommend him earnestly to those civilities, which you have a pleasure in showing to strangers of merit.

I have the honor to be, &c.

B. FRANKLIN.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, November 9th, 1782.

Dear Sir,

Mr Stewart, informing me that he shall set out tomorrow for Paris, will be the bearer of this, and duplicates of my last letters. The want of time will prevent my sending Mr Jay duplicates of the resolutions formerly enclosed to him, which will be the more unnecessary as you will communicate those you receive with this, if my former letters containing them, have not reached him.

We are much flattered by the proposals of Sweden, and feel all the force of its Minister's observations; every new acknowledgment lays the foundation of others, and familiarizes Great Britain with the idea of acknowledging us as sovereign and independent. I feel some pleasure, too, in thinking that you are to be the instrument of procuring us new connexions, and beg leave to remind you of another which calls upon your attention, though it seems to have been forgotten in the hurry of business. I mean that with the States of Barbary. The good dispositions of the Court of France towards us, and the enlarged policy by which their measures are actuated, together with the coolness that at present subsists between the Emperor of Morocco and Great Britain, (if we are well informed) seem to point out this as the favorable moment for making ourselves known to him. As Mr Jay is now with you, I wish you would consult upon the means of bringing this about, so that we may not be shut out of the Mediterranean in future.

I know you will start a very obvious objection. But as this can only be removed by your influence where you now are, we rely upon you for the means as well as for the manner of treating. I have not thought it necessary to say anything to Congress on this subject, nor shall I, till you give me hopes that something may be done in it.

The only political object of a general nature, that has been touched upon in Congress since my last, is the exchange of prisoners, which seems at present to be as far as ever from being effected. The propositions on the side of the enemy were to exchange seamen for soldiers, they having no soldiers in their hands; that the soldiers so exchanged should not serve for

one year against the United States; that the sailors might go into immediate service; that the remainder of the soldiers in our hands should be given up at a stipulated price.

Congress rejected this proposal as unequal; as letting loose a force, which might be employed against our allies in the West Indies; as making no provision for the payment of the large balance due to us for the maintenance of prisoners. They further required, that General Carleton should explicitly declare, that the powers he gives to his Commissioners for negotiating an exchange are derived from the King of Great Britain, so that any engagement for the payment of the debt they have incurred may be considered as binding upon the nation. With respect to Mr Laurens, they have come to no decided opinion. The Committee to whom it was referred, reporting that,

"With respect to the information contained in the extract of Sir Guy Carleton's and Admiral Digby's letter of the 2d of August, '*that after Mr Laurens was discharged, he declared that he considered Lord Cornwallis as freed from his parole,*' your Committee conceive it sufficient to observe, that no intimation having been received of such a fact, except, from the said extract, and Congress having given no directions to that purpose, the consideration thereof would in their opinion be premature, and ought therefore to be deferred." Since which, though letters have been received from Mr Laurens, they have come to no resolution, unless their direction to him to proceed in the business of his mission may be considered as such.

General Carleton has sent out the trial of Lippincott, which admits the murder of Huddy, but justifies Lippincott under an *irregular* order of the Board of Refugees. So paltry a palliation of so black a crime would not have been admitted, and Captain Asgill would certainly have paid the forfeit for the injustice of his countrymen, had not the interposition of their Majesties prevented. The letter from the Count de Vergennes is made the groundwork of the resolution passed on that subject. I shall transmit you the resolve.

I suppose I need not tell you, that the enemy contrived to get off the Eagle and to carry her, to New York. You will find, in the enclosed papers, a very polite letter from Captain Elphinston; it is easier to be so in word than in

deed among the British. Digby has refused to permit him to comply with his engagement, at least so far as his share of the prize is concerned, and insists upon dividing the baggage of the officers, and sharing the eighth pair of breeches, &c.

On the 4th instant, Mr Boudinot was elected President in the room of Mr Hanson, whose term of service had expired. Mr Lewis Morris will enclose bills purchased here at six shillings and three pence, currency, for five livres, to the amount of your last quarter's salary, ending the first of October.

I have the honor to be, &c.

ROBERT R. LIVINGSTON.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, November 21st, 1782.

Sir,

Congress a few days since, passed the enclosed resolution, No. 1, by which they have added Mr Jefferson to the commission for concluding a peace. The established character of this gentleman gives me reason to hope, that his appointment will be very acceptable to you, and the other gentlemen in the commission. I have not yet learned whether he will take the task upon him, but I have reason to believe he will, the death of his wife having lessened, in the opinion of his friends, the reluctance which he has hitherto manifested to going abroad. I think it would be proper to make a formal annunciation of this resolution to the Court of France. You will naturally give such a representation of Mr Jefferson's character, as will secure to him there that esteem and confidence which he justly merits. The resolution, No. 2, needs no comment; or if it does, Mr Morris will prove the able commentator. I resign the task to him.

For what end are the show of negotiations kept up by England, when peace upon the only terms she can possibly expect to obtain it is far from her heart? Her Ministers, like some Ministers of the Gospel, who are unwilling to quit the pulpit when they have tired out their hearers, expect to keep the people together by calling out at every period, "now to conclude," while they continue the same dull tale for want of skill to wind it up.

By accounts from Jamaica, we learn that the British have recovered most of their settlements on the Bay. Some attention will, I hope, be paid in the treaty of peace to secure to us the share we formerly had in the logwood trade; it was a valuable remittance to us, and the low price at which we were enabled to sell renders it important to other nations, that we should not be excluded from furnishing it as usual. You will find by the enclosed paper, that Mr Burgess, an English merchant, was not permitted to settle at Boston and obtain the rights of citizenship, upon principles which must be alarming to England. It shows at the same time the respect that is paid to the resolutions of Congress, notwithstanding all that has been said and written to prove the contrary.

I am, Sir, &c.

ROBERT R. LIVINGSTON.

P. S. I forgot to mention, that I am solicited by Mr Barlow to transmit to you proposals for printing a work of his, which you will find described in the enclosed proposals, as they are accompanied with a specimen of his poetry, which is as much as I have seen of it. You will judge yourself how far it deserves the patronage he wishes you to give it.

TO RICHARD OSWALD.

Passy, November 26th, 1782.

Sir,

You may well remember, that in the beginning of our conferences, before the other Commissioners arrived, on your mentioning to me a retribution for the royalists, whose estates had been confiscated, I acquainted you that nothing of that kind could be stipulated by us, the confiscation being made by virtue of laws of particular States, which the Congress had no power to contravene or dispense with, and therefore could give us no such authority in our commission. And I gave it as my opinion and advice, honestly and cordially, that if a reconciliation was intended, no mention should be made in our negotiations of those people; for they having done infinite mischief to our properties, by wantonly burning and destroying farm-houses, villages, and towns, if compensation for their losses were insisted on, we should certainly exhibit again such an account of all the ravages they had committed, which would necessarily recall to view scenes of barbarity that must inflame, instead of conciliating, and tend to perpetuate an enmity that we all profess a desire of extinguishing. Understanding, however, from you, that this was a point your Ministry had at heart, I wrote concerning it to Congress, and I have lately received the following resolution, viz.

"By the United States, in Congress assembled."

September 10th, 1782.

"RESOLVED, That the Secretary for Foreign Affairs be, and he is hereby directed to obtain, as speedily as possible, authentic returns of the slaves and other property, which have been carried off or destroyed in the course of the war by the enemy, and to transmit the same to the Ministers Plenipotentiary for negotiating peace.

"RESOLVED, That, in the meantime, the Secretary for Foreign Affairs inform the said Ministers, that many thousands of slaves, and other property, to a very great amount, have been carried off, or destroyed by the enemy; and that in the opinion of Congress, the great loss of property, which the citizens of the United States have sustained by the enemy, will be considered by the several States as an insuperable bar to their making restitution or indemnification to the former owner of property, which has been, or may be forfeited to, or confiscated by any of the States."

In consequence of these resolutions and circular letters of the Secretary, the Assembly of Pennsylvania, then sitting, passed the following act, viz.

"State of Pennsylvania, in General Assembly."

Wednesday, September 18th, 1782.

"The bill, entitled 'An Act for procuring an estimate of the damages sustained by the inhabitants of Pennsylvania, from the troops and adherents of the King of Great Britain during the present war,' was read a second time.

"Ordered to be transcribed, and printed for public consideration.

Extract from the minutes.

PETER Z. LLOYD.

Clerk of the General Assembly."

"Whereas great damages, of the most wanton nature, have been committed by the armies of the King of Great Britain, or their adherents within the territory of the United States of North America, unwarranted by the practice of civilized nations, and only to be accounted for from the vindictive spirit of the said King and his officers; and whereas an accurate account and estimate of such damages, more especially the waste and destruction of property, may be very useful to the people of the United States of America, in forming a future treaty of peace, and, in the meantime, may serve to exhibit in a true light to the nations of Europe the conduct of the said King, his Ministers, officers, and adherents; to the end, therefore, that proper measures be taken to ascertain the damages aforesaid, which have been done to the citizens and inhabitants of Pennsylvania, in the course of the present war within this State; Be it enacted by the House of Representatives of the freemen of the commonwealth of Pennsylvania, in General Assembly met, and by the authority of the same, that in every county of this State, which has been invaded by the armies, soldiers, or adherents of the King of Great Britain, the Commissioners of every such county shall immediately meet together,

each within their county, and issue directions to the assessors of the respective townships, districts, and places within such county, to call upon the inhabitants of every township and place, to furnish accounts and estimates of the damages, waste, spoil, and destruction, which have been done and committed as aforesaid, upon the property, real or personal, within the same township or place, since the first day of which was in the year of our Lord 177 , and the same accounts and estimates to be transmitted to the Commissioners without delay. And if any person or persons shall refuse or neglect to make out such accounts and estimates, the said assessors of the township or place shall, from their own knowledge, and by any other reasonable and lawful method, take and render such an account and estimate of all damage done or committed, as aforesaid; Provided always, that all such accounts and estimates to be made out and transmitted as aforesaid, shall contain a narrative of the time and circumstances; and if in the power of the person aggrieved, the names of the General, or other officers or adherents of the enemy by whom the damage in any case was done, or under whose orders the army, detachment, party, or persons, committing the same, acted at that time, and also the name and condition of the person or persons, whose property was so damaged or destroyed, and that all such accounts and estimates be made in current money, upon oath or affirmation of the sufferer, or of others having knowledge concerning the same; and that in every case it be set forth, whether the party injured hath received any satisfaction for his loss, and by whom the same was given.

"And be it further enacted by the authority aforesaid, that the said Commissioners, having obtained the said accounts and estimates from the assessor of the several townships and places, shall proceed to inspect and register the same in a book, to be provided for that purpose, distinguishing the districts and townships, and entering those of each place together; and if any account and estimate be imperfect, or not sufficiently verified and established, the said Commissioners shall have power, and they, or any two of them, are hereby authorised to summon and compel any person, whose evidence they shall think necessary, to appear before them at a day and place appointed, to be summoned upon oath or affirmation, concerning any damage or injury

as aforesaid; and the said Commissioners shall, upon the call and demand of the President, or Vice President of the Supreme Executive Council, deliver, or send to the Secretary of the said council, all or any of the original accounts and estimates aforesaid, and shall also deliver, or send to the said Secretary, copies of the book aforesaid, or any part or parts thereof, upon reasonable notice. And be it further enacted by the authority aforesaid, that all losses of negro or mulatto slaves and servants, who have been deluded and carried away by the enemies of the United States, and who have not been recovered or recompensed, shall be comprehended within the accounts and estimates aforesaid; and that the Commissioners and assessors of any county, which had not been invaded as aforesaid, shall nevertheless inquire after, and procure accounts and estimates of any damages suffered by the loss of such servants and slaves, as is herein before directed as to other property.

"And be it further enacted by the authority aforesaid, that the charges and expenses of executing this act, as to the pay of the said Commissioners and assessors, shall be as in other cases; and that witnesses shall be rewarded for their loss of time and trouble, as witnesses summoned to appear in the courts of quarter sessions of the peace; and the said charges and expenses shall be defrayed by the commonwealth; but paid, in the first instance, out of the hands of the Treasurer of the County, for county rates, and levies upon orders drawn by the Commissioners of the proper county."

We have not yet had time to hear what has been done by the other assemblies; but I have no doubt that similar acts will be made use of by all of them, and that the mass of evidence produced by the execution of those acts, not only of the enormities committed by those people, under the direction of the British Generals, but of those committed by the British troops themselves, will form a record that must render the British name odious in America to the latest generations. In that authentic record will be found the burning of the fine towns of Charlestown, near Boston; of Falmouth, just before winter, when the sick, the aged, the women and children, were driven to seek shelter where they could hardly find it; of Norfolk, in the midst of winter; of New London, of Fairfield, of Esopus, &c. besides near a hundred and fifty miles of well settled country laid

waste; every house and barn burnt, and many hundreds of farmers, with their wives and children, butchered and scalped.

The present British Ministers, when they reflect a little, will certainly be too equitable to suppose, that their nation has a right to make an unjust war, (which they have always allowed this against us to be,) and do all sorts of unnecessary mischief, unjustifiable by the practice of any individual people, which those they make war with are to suffer without claiming any satisfaction; but that if Britons, or their adherents, are in return deprived of any property, it is to be restored to them, or they are to be indemnified. The British troops can never excuse their barbarities. They were unprovoked. The loyalists may say in excuse of theirs, that they were exasperated by the loss of their estates, and it was revenge. They have then had their revenge. *Is it right they should have both?*

Some of those people may have merit in their regard for Britain, and who espoused her cause from affection; these it may become you to reward. But there are many of them who were waverers, and were only determined to engage in it by some occasional circumstance or appearances; these have not much of either merit or demerit; and there are others, who have abundance of demerit respecting your country, having by their falsehoods and misrepresentations brought on and encouraged the continuance of the war; these, instead of being recompensed, should be punished.

It is usual among Christian people at war to profess always a desire of peace; but if the Ministers of one of the parties choose to insist particularly on a certain article, which they have known the others are not and cannot be empowered to agree to, what credit can they expect should be given to such professions?

Your Ministers require that we should receive again into our bosom those who have been our bitterest enemies, and restore their properties who have destroyed ours, and this, while the wounds they have given us are still bleeding! It is many years since your nation expelled the Stuarts and their adherents, and confiscated their estates. Much of your resentment against them may by this time be abated; yet, if we should propose it, and insist on it as an article of our treaty with you, that that family should be recalled and

the forfeited estates of its friends restored, would you think us serious in our progressions of earnestly desiring peace?

I must repeat my opinion, that it is best for you to drop all mention of the refugees. We have proposed, indeed, nothing but what we think best for you as well as ourselves. But if you will have them mentioned, let it be in an article, in which you may provide, that they shall exhibit accounts of their losses to the Commissioners, hereafter to be appointed, who should examine the same, together with the accounts now preparing in America of the damages done by them, and state the account, and that if a balance appears in their favor, it shall be paid by us to you, and by you divided among them as you shall think proper. And if the balance is found due to us, it shall be paid by you.

Give me leave, however, to advise you to prevent the necessity of so dreadful a discussion by dropping the article, that we may write to America and stop the inquiry.

I have the honor to be, &c.

B. FRANKLIN.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, November 27th, 1782.

Sir,

An opportunity offering from this port to write directly to you, I do not choose to hazard anything by the post, which carries this to Boston, particularly as I did not hear till just now, that a frigate was to sail from thence, and it is uncertain whether this will arrive in time to go by her. This then only accompanies the newspapers, which contain all the public information now in circulation.

The Memorials of Messrs la Marque and Fabru are transmitted to South Carolina, as it is a matter in which the United States are not concerned. It is to be hoped, that the State will do justice to the claimants, if, as asserted, Gillon acted under authority from them. He has just left this with his ship, not in the most honorable manner, having, as I am informed, been arrested by order of the proprietor of the ship for his proportion of the prize money. The sheriff stands in the gap.

The Swiss officer mentioned in yours, I have sent to Edenton to get information about. You shall have the result of inquiries in my next.

As your grandson will probably choose to continue in the line he is in, I cannot but think he might find important advantages from opening a correspondence with this office. His diligence and accuracy in collecting and transmitting intelligence would procure him friends here. My attachment to you will render me desirous to place them in the best light.

I am, Sir, &c.

ROBERT R. LIVINGSTON.

TO COUNT DE VERGENNES.

Passy, November 29th, 1782.

Sir,

I have the honor to acquaint your Excellency, that the Commissioners of the United States have agreed with Mr Oswald, on the preliminary articles of the peace between those States and Great Britain. Tomorrow I hope we shall be able to communicate to your Excellency a copy of them.^[7]

With great respect, I have the honor to be, Sir, your Excellency's most obedient and most humble servant,

B. FRANKLIN.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, December 3d, 1782.

Sir,

I have just now received the certificates required by Mr Wallier. The vessel which carries my other despatches having been long detained, I embrace the opportunity to forward them. Nothing new since my last, except that, by a gentleman who left Charleston the 4th instant, we learn that the British had dismounted their cannon, and were certainly on the point of leaving it.

I am, Sir, &c.

ROBERT R. LIVINGSTON.

TO ROBERT R. LIVINGSTON

Passy, December 4th, 1782.

Sir,

We detain the Washington a little longer, expecting an English passport for her in a few days, and as possibly some vessel bound for North America may sail before her, I write this line to inform you, that the French preliminaries with England are not yet signed, though we hope they may be very soon. Of ours I enclose a copy. The Dutch and Spain have yet made but little progress, and as no definitive treaty will be signed till all are

agreed, there may be time for Congress to give us further instructions, if they think proper. We hope the terms we have obtained will be satisfactory, though, to secure our main points, we may have yielded too much in favor of the royalists. The quantity of aid to be afforded us remains undecided. I suppose something depends on the event of the treaty. By the Washington you will be fully informed of everything.

With great regard, I have the honor to be, &c.

B. FRANKLIN.

TO ROBERT R. LIVINGSTON.

Passy, December 5th, 1782.

Sir,

I am honored by your several letters, Nos 16, 17, 18 and 19, dated September 5th, 13th, 15th, and 18th. I believe that the complaints you make in them of my not writing, may ere now have appeared less necessary, as many of my letters written before those complaints must have since come to hand. I will nevertheless mention some of the difficulties your Ministers meet with, in keeping up a regular and punctual correspondence. We are far from the seaports, and not well informed, and often misinformed about the sailing of vessels. Frequently we are told they are to sail in a week or two, and often they lie in the ports for months after, with our letters on board, either waiting for convoy, or for other reasons. The post office here is an unsafe conveyance; many of the letters we received by it have evidently been opened, and doubtless the same happens to those we send; and at this time particularly, there is so violent a curiosity in all kinds of people to know something relating to the negotiations, and whether peace may be expected, or a continuance of the war, that there are few private hands or travellers, that we can trust with carrying our despatches to the seacoast; and I imagine that they may sometimes be opened and destroyed because

they cannot be well sealed. Again, the observation you make, that the Congress Ministers in Europe seem to form themselves into a privy council, transacting affairs without the privity or concurrence of the sovereign, may be in some respects just; but it should be considered, that if they do not write as frequently as other Ministers here do to their respective Courts, or if when they write, their letters are not regularly received, the greater distance of the seat of war, and the extreme irregularity of conveyances may be the causes, and not a desire of acting without the knowledge or orders of their constituents. There is no European Court, to which an express cannot be sent from Paris in ten or fifteen days, and from most of them answers may be obtained in that time. There is, I imagine, no Minister who would not think it safer to act by orders than from his own discretion; and yet, unless you leave more to the discretion of your Ministers in Europe than Courts usually do, your affairs may sometimes suffer extremely from the distance which, in the time of war especially, may make it five or six months before the answer to a letter shall be received. I suppose the Minister from this Court will acquaint Congress with the King's sentiments, respecting their very handsome present of a ship of the line. People in general here are much pleased with it.

I communicated, together with my memoir demanding a supply of money, copies of every paragraph in your late letters, which express so strongly the necessity of it. I have been constant in my solicitations both directly, and through the Marquis de Lafayette, who has employed himself diligently and warmly in the business. The negotiations for peace are, I imagine, one cause of the great delay and indecision on this occasion beyond what has been usual, as the quantum may be different if those negotiations do or do not succeed. We have not yet learnt what we may expect. We have been told that we shall be aided, but it cannot be to the extent demanded; six millions have been mentioned, but not as a sum fixed. The Minister tells me still, that he is working upon the subject, but cannot yet give a determinative answer. I know his good will to do the best for us that is possible.

It is in vain for me to repeat again what I have so often written, and what I find taken so little notice of, that there are bounds to everything, and that the faculties of this nation are limited like those of all other nations. Some of you seem to have established as maxims the suppositions, that France has money enough for all her occasions, and all ours besides; and that if she

does not supply us, it is owing to her want of will, or to my negligence. As to the first, I am sure it is not true, and to the second, I can only say I should rejoice as much as any man in being able to obtain more; and I shall also rejoice in the greater success of those who may take my place. You desire to be very particularly acquainted with "every step which tends to negotiation." I am, therefore, encouraged to send you the first part of the journal, which accidents, and a long severe illness interrupted; but which, from notes I have by me, may be continued if thought proper. In its present state, it is hardly fit for the inspection of Congress, certainly not for public view. I confide it therefore to your prudence.

The arrival of Mr Jay, Mr Adams, and Mr Laurens, has relieved me from much anxiety, which must have continued, if I had been left to finish the treaty alone; and it has given me the more satisfaction, as I am sure the business has profited by their assistance.

Much of the summer has been taken up in objecting against the powers given by Great Britain, and in removing those objections. The not using any expressions, that might imply an acknowledgment of our independence, seemed at first industriously to be avowed. But our refusing otherwise to treat, at length induced them to get over that difficulty, and then we came to the point of making propositions. Those made by Mr Jay and me before the arrival of the other gentlemen, you will find in the paper A, which was sent by the British Plenipotentiary to London for the King's consideration. After some weeks, an under secretary, Mr Strachey, arrived, with whom we had much contestation about the boundaries and other articles which he proposed and we settled; some of which he carried to London, and returned with the propositions, some adopted, others omitted or altered, and new ones added, which you will see in paper B. We spent many days in disputing, and at length agreed on and signed the preliminaries, which you will see by this conveyance. The British Minister struggled hard for two points, that the favors granted to the royalists should be extended, and all our fishery contracted. We silenced them on the first, by threatening to produce an account of the mischief done by those people, and as to the second, when they told us they could not possibly agree to it as we requested it, and must refer it to the Ministry in London, we produced a new article to be referred at the same time, with a note of facts in support of it, which you have, C.^[8] Apparently, it seemed, that to avoid the discussion

of this, they suddenly changed their minds, dropped the design of recurring to London, and agreed to allow the fishery as demanded.

You will find in the preliminaries some inaccurate and ambiguous expressions, that want explanation, and which may be explained in the definitive treaty, and as the British Ministry excluded our proposition relating to commerce, and the American prohibition of that with England may not be understood to cease merely by our concluding a treaty of peace, perhaps we may then, if the Congress shall think fit to direct it, obtain some compensation for the injuries done us as a condition of our opening again the trade. Every one of the present British Ministry has, while in the Ministry, declared the war against us as unjust, and nothing is clearer in reason, than that those who injure others by an unjust war, should make full reparation. They have stipulated too, in these preliminaries, that in evacuating our towns, they shall carry off no plunder, which is a kind of acknowledgment that they ought not to have done it before.

The reason given us for dropping the article relating to commerce, was, that some statutes were in the way, which must be repealed before a treaty of that kind could be well formed, and that this was a matter to be considered in Parliament.

They wanted to bring their boundary down to the Ohio, and to settle their loyalists in the Illinois country. We did not choose such neighbors.

We communicated all the articles, as soon as they were signed, to Count de Vergennes, (except the separate one) who thinks we have managed well, and told me that we had settled what was most apprehended as a difficulty in the work of a general peace, by obtaining the declaration of our independency.

December 14th. I have this day learnt, that the principal preliminaries between France and England are agreed on, to wit.

1st. France is to enjoy the right of fishing and drying on all the west coast of Newfoundland, down to Cape Ray. Miquelon and St Pierre to be restored, and may be fortified.

2d. Senegal remains to France, and Goree to be restored. The Gambia entirely to England.

3d. All the places taken from France in the East Indies to be restored, with a certain quantity of territory round them.

4th. In the West Indies, Grenada and the Grenadines, St Christophers, Nevis and Montserrat, to be restored to England. St Lucia to France. Dominique to remain with France, and St Vincents to be neutralized.

5th. No Commissioner at Dunkirk.

The points not yet quite settled are the territory round the places in the Indies, and neutralization of St Vincents. Apparently these will not create much difficulty.

Holland has yet hardly done anything in her negotiation.

Spain offers for Gibraltar to restore West Florida and the Bahamas. An addition is talked of the island of Guadaloupe, which France will cede to Spain in exchange for the other half of Hispaniola, and Spain to England, but England, it is said, chose rather Porto Rico. Nothing yet concluded.

As soon as I received the commission and instructions for treating with Sweden, I waited on the Ambassador here, who told me he daily expected a courier on that subject. Yesterday he wrote a note to acquaint me, that he would call on me today, having something to communicate to me. Being obliged to go to Paris, I waited on him, when he showed me the full powers he had just received, and I showed him mine. We agreed to meet on Wednesday next, exchange copies, and proceed to business. His commission has some polite expressions in it, to wit; "that his Majesty thought it for the good of his subjects to enter into a treaty of amity and commerce with the United States of America, who had established their independence so justly merited by their courage and constancy;" or to that effect. I imagine this treaty will be soon completed; if any difficulty should arise, I shall take the advice of my colleagues.

I thank you for the copies of Mr Paine's letter to the Abbé Raynal, which I have distributed to good hands. The errors we see in histories of our times and affairs weaken our faith in ancient history. M. Hilliard d'Auberteuil has here written another history of our revolution, which however he modestly calls *an essay*, and fearing that there may be errors, and wishing to have them corrected, that his second edition may be more perfect, he has brought

me six sets, which he desires me to put into such hands in America, as may be good enough to render him and the public that service. I send them to you for that purpose, by Captain Barney, desiring that one set may be given to Mr Paine, and the rest where you please. There is a quarto set in the parcel, which please to accept from me.

I have never learnt whether the box of books I sent to you, and the press to Mr Thompson, were put on board the Eagle or one of the transports. If the former, perhaps you might easily purchase them at New York; if the latter, you may still receive them among the goods for Congress, now shipping by Mr Barclay. If they are quite lost let me know it, that I may replace them.

I have received several letters from your office with bills to pay Ministers' salaries. Nothing has yet been done with those bills, but I have paid Mr Laurens 20,000 livres.

I have this day signed a common letter to you drawn up by my colleagues, which you will receive herewith. We have kept this vessel longer for two things, a passport promised us from England, and a sum to send in her; but she is likely to depart without both, being all of us impatient that Congress should receive early intelligence of our proceedings, and for the money we may probably borrow a frigate.

I am now entering on my 78th year; public business has engrossed fifty of them; I wish now to be, for the little time I have left, my own master. If I live to see this peace concluded, I shall beg leave to remind the Congress of their promise then to dismiss me. I shall be happy to sing with old Simeon, *now lettest thou thy servant depart in peace, for mine eyes have seen thy salvation.*

With great esteem, &c.

B. FRANKLIN.

TO COUNT DE VERGENNES.

Passy, December 15th, 1782.

Sir,

I have the honor to acquaint your Excellency, that our courier is to set out tomorrow at ten o'clock, with the despatches we send to Congress, by the Washington, Captain Barney, for which ship we have got a passport from the King of England.^[9] If you would make any use of this conveyance, the courier shall wait upon you tomorrow at Versailles, and receive your orders.

I hoped I might have been able to send part of the aids we have asked, by this safe vessel. I beg that your Excellency would at least inform me what expectations I may give in my letters. I fear the Congress will be reduced to despair, when they find that nothing is yet obtained.

With the greatest and most sincere respect, I am, Sir, your Excellency's most obedient and most humble servant,

B. FRANKLIN.

COUNT DE VERGENNES TO B. FRANKLIN.

Translation.

Versailles, December 15th, 1782.

Sir,

I cannot but be surprised, Sir, that after the explanation I have had with you, and the promise you gave, that you would not press the application for an English passport for the sailing of the packet Washington, that you now inform me, you have received the passport, and that at ten o'clock tomorrow morning your courier will set out to carry your despatches. I am at a loss, Sir, to explain your conduct and that of your colleagues on this occasion. You have concluded your preliminary articles without any communication

between us, although the instructions from Congress prescribes, that nothing shall be done without the participation of the King. You are about to hold out a certain hope of peace to America, without even informing yourself on the state of the negotiation on our part.

You are wise and discreet, Sir; you perfectly understand what is due to propriety; you have all your life performed your duties. I pray you to consider how you propose to fulfil those, which are due to the King? I am not desirous of enlarging these reflections; I commit them to your own integrity. When you shall be pleased to relieve my uncertainty, I will entreat the King to enable me to answer your demands.

I have the honor to be, Sir, with sincere regard, your very humble and obedient servant,

DE VERGENNES.

TO COUNT DE VERGENNES.

Passy, December 17th, 1782.

Sir,

I received the letter your Excellency did me the honor of writing to me on the 15th instant. The proposal of having a passport from England was agreed to by me the more willingly, as I at that time had hopes of obtaining some money to send in the Washington, and the passport would have made its transportation safer, with that of our despatches, and of yours also, if you had thought fit to make use of the occasion. Your Excellency objected, as I understood it, that the English Ministers by their letters sent in the same ship, might convey inconvenient expectations into America. It was therefore I proposed not to press for the passport, till your preliminaries were also agreed to. They have sent the passport without being pressed to do it, and they have sent no letters to go under it, and ours will prevent the

inconvenience apprehended. In a subsequent conversation your Excellency mentioned your intention of sending some of the King's cutters, whence I imagined, that detaining the Washington was no longer necessary; and it was certainly incumbent on us to give Congress as early an account as possible of our proceedings, who will think it extremely strange to hear of them by other means, without a line from us. I acquainted your Excellency, however, with our intention of despatching that ship, supposing you might possibly have something to send by her.

Nothing has been agreed in the preliminaries contrary to the interests of France; and no peace is to take place between us and England, till you have concluded yours. Your observation is, however, apparently just, that in not consulting you before they were signed, we have been guilty of neglecting a point of *bienséance*. But as this was not from want of respect for the King, whom we all love and honor, we hope it will be excused, and that the great work, which has hitherto been so happily conducted, is so nearly brought to perfection, and is so glorious to his reign, will not be ruined by a single indiscretion of ours. And certainly the whole edifice sinks to the ground immediately, if you refuse on that account to give us any further assistance.

We have not yet despatched the ship, and I beg leave to wait upon you on Friday for your answer.

It is not possible for any one to be more sensible than I am, of what I and every American owe to the King, for the many and great benefits and favors he has bestowed upon us. All my letters to America are proofs of this; all tending to make the same impressions on the minds of my countrymen, that I felt in my own. And I believe, that no Prince was ever more beloved and respected by his own subjects, than the King is by the people of the United States. *The English, I just now learn, flatter themselves they have already divided us.* I hope this little misunderstanding will therefore be kept a secret, and that they will find themselves totally mistaken.

With great and sincere respect, I am, Sir, your Excellency's most obedient and most humble servant,

B. FRANKLIN.

TO ROBERT R. LIVINGSTON.

Passy, December 24th, 1782.

Sir,

Sundry circumstances occurring since mine of the 5th and 14th, have hitherto retarded the departure of our despatches. They will now go under the security of a British passport, be accompanied by a sum of money, and by some further intelligence from England, which shows the still unsettled state of minds there, and, together with the difficulties and small progress in the Dutch and Spanish negotiations, makes the speedy conclusion of peace still uncertain.

The Swedish Ambassador has exchanged full powers with me. I send a copy of his herewith. We have had some conferences on the proposed plan of our treaty, and he has despatched a courier for further instructions respecting some of the articles.

The Commissioners have joined in a letter to you, recommending the consideration of a proposal from Mr Bridgen, relating to copper coin. With this you have a copy of that proposal, and a sample of the copper. If it should be accepted, I conceive the weight and value of the pieces (charge of coinage deducted) should be such that they may be aliquot parts of a Spanish dollar. By the copy enclosed, of an old letter of mine to Mr Bridgen, you will see the ideas I had of the additional utility such a coinage might be of, in communicating instruction. [\[10\]](#)

December 25th. Enclosed is a copy of a letter just received from the Count de Vergennes, upon the present state of negotiation with England. [\[11\]](#)

With great regard, I have the honor to be, &c.

B. FRANKLIN.

Powers of the Swedish Ambassador to treat.

Translation.

Gustavus, by the Grace of God, King of Sweden, of the Goths and Vandals, &c. &c. &c. Heir of Norway, Duke of Sleswick-Holstein, of Stormaria, and of Ditmarsen, Count of Oldenburgh and of Delmenhorst, &c. &c. makes known, that the United States of North America, viz. New Hampshire, Massachusetts Bay, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, the Counties of New Castle, Kent, and Sussex, on the Delaware, Maryland, Virginia, North and South Carolina, and Georgia, having obtained the fruit of their courage and constancy, and their Independence being duly and solidly acknowledged and established; We, in consequence of our desire to concur with them in the establishment of certain fixed rules, by which a reciprocal and advantageous commerce may be carried on between Sweden and North America, which may be permanent between the two nations, have nominated, constituted, and appointed, and by these presents do nominate, constitute, and appoint our very dear and well beloved Count Gustavus Philip de Creutz, our Ambassador Extraordinary at the Court of France, Knight and Commander of our Orders, and we give him full powers to confer with whomsoever the United States shall have furnished with their powers in due form, to agree on, conclude, and sign such Treaty of Amity and Commerce between us and the said United States, as shall be reciprocally advantageous to our subjects, promising, on our word of a King, to agree to everything that our said Ambassador shall stipulate, promise, and sign in virtue of the present power, as likewise to make out the ratifications in proper form, and to deliver them to be exchanged at such time as shall be agreed on by the treaty so to do. In faith of which, we have signed these presents with our own hand, and have caused our royal seal to be thereunto affixed.

GUSTAVUS.
COUNT ULR.
SCHEFFER.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, January 2d, 1783.

Sir,

I was honored with your letters by the Danae. I congratulate you upon the promising state of our negotiations, since peace begins to be no less desirable here than elsewhere.

But I will not enter into that subject at present, as I mean to write very fully both to Mr Jay and you by Mr Jefferson, who will sail in company with this frigate in the Romulus, a ship of fortyfour guns. Lest, however, any accident should happen to prevent his arriving so soon as the Emerald, I enclose a resolution of Congress, which was suggested by the proposition you mention to have been made to Mr Oswald, on the subject of commerce. For my own part, I presume that it is already included in your propositions, but as we have yet been favored only with that short note of them, which has been transmitted by you, we can form no accurate judgment on the subject. You can hardly conceive the embarrassments that the want of more minute details subjects us to.

You will learn from the Count de Rochambeau, that the French army sailed the 24th ult. Perhaps it were to be wished that they had remained here, at least till New York and Charleston were evacuated, or rather till the peace. Congress have, however, given them a good word at parting, as you will see by the enclosed resolves. Not being consulted, they could interpose no objections to their departure, though they were not without many reasons for wishing to detain them.

Our finances are still in great distress. If the war continues, a foreign loan in addition to those already received will be essential. A plan for ascertaining what shall be called contingent expenses, is under the consideration of Congress, as well as the objections you have stated with respect to the mode of paying your salaries, which will, I believe, be altered. The allowance to Mr Franklin has been confirmed, and your moderation and his upon this point have done you both honor in the opinion of Congress.

I have the honor to be, Sir, &c.

ROBERT R. LIVINGSTON.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, January 6th, 1783.

Sir,

I have before me your letters of the 25th and 29th of June, 12th of August, 3d and 26th of September, and 14th of October last. Several matters contained in them have already been answered, and some others I am unable to reply to, till Congress have decided on such propositions as I have submitted to their consideration.

The convention relative to consuls has been objected to by Mr Barclay, on account of its prohibiting the consuls from trading. As the funds of Congress leave them no means of affording an adequate support to persons who are qualified, they fear, that the only inducement to accept the appointment will be taken away by this prohibition. Mr Barclay's letter on that subject is under consideration.

I see the force of your objections to soliciting the additional twelve millions, and I feel very sensibly the weight of our obligations to France, but every sentiment of this kind must give way to our necessities. It is not for the interest of our allies to lose the benefit of all they have done, by refusing to make a small addition to it, or at least to see the return that our commerce will make them suspended by new convulsions in this country. The army have chosen committees; a very respectable one is now with Congress. They demand with importunity their arrears of pay. The treasury is empty, and no adequate means of filling it presents itself. The people pant for peace; should contributions be exacted, as they have heretofore been, at the point of the sword, the consequences may be more dreadful than is at present apprehended. I do not pretend to justify the negligence of the States in not providing greater supplies. Some of them might do more than they

have done; none of them all that is required. It is my duty to confide to you, that if the war is continued in this country, it must be in a great measure at the expense of France. If peace is made, a loan will be absolutely necessary to enable us to discharge the army, that will not easily separate without pay. I am sorry that neither Mr Jay nor you sent the propositions at large, as you have made them, since we differ in opinion about the construction to be put on your commercial article, as you will find by a resolution enclosed in my letter.

I wish the concession made of our trade may be on conditions of similar privileges on the part of Great Britain. You will see that without this precaution, every ally that we have, that is to be treated as the most favored nation, may be entitled to the same privileges, even though they do not purchase them by a reciprocal grant.

As to confiscated property, it is at present in such a state, that the restoration of it is impossible. English debts have not, that I know of, been forfeited, unless it be in one State, and I should be extremely sorry to see so little integrity in my countrymen, as to render the idea of withholding them a general one; however, it would be well to say nothing about them, if it can conveniently be done.

I am more and more convinced, that every means in your power must be used to secure the fisheries. They are essential to some States, and we cannot but hate the nation, that keeps us from using this common favor of Providence. It was one of the direct objects for carrying on the war. While I am upon this subject, I cannot but express my hope, that every means will be used to guard against any mistrusts or jealousies between you and France. The United States have shown their confidence in her by their instructions. She has repeatedly promised to procure for us *all we ask*, as far as it lies in her power. Let our conduct leave her without apology, if she acts otherwise, which I am far from suspecting.

With respect to the seamen you mention, I wish if any further order is necessary, than that which Mr Barclay already has, that you would give it so far as to enable him to state their accounts, and transmit them to Mr Morris. As the treaty with Holland is concluded, I hope you have made some

progress in that with Sweden, a plan of which has been transmitted; another copy will go by Mr Jefferson.

I am glad to find you have some prospect of obtaining what is due on the Bon Homme Richard's prize money. That matter has been much spoken of, and occasioned some reflection, as it is alleged that M. Chaumont was imposed on the officers as their agent by the Court, and of course that they should be answerable for his conduct, which certainly has been very exceptionable.

Congress have come to no determination, as to the size or expense of the pillar they propose to erect at Yorktown. What I wished of you was to send me one or two plans, with estimates of the expense, in order to take their sense thereon.

As to the designs of Spain, they are pretty well known, and Mr Jay and Congress concur so exactly in sentiment with respect to them, that I hope we have now nothing to fear from that quarter.

Congress have it now under consideration to determine what should be allowed as contingent expenses. I believe house-rent will not be allowed as such. I mentioned in my last what respected your grandson, to which I have nothing to add. I agree with you in sentiment, that your salaries should not depend on the fluctuations of the exchange, and have submitted that part of your letter to Congress. I believe they will direct a stated sum to be paid. Waiting for this determination, I am prevented from drawing bills at this time. As to the money received from me, you will be pleased to replace with it the two quarters' salary you had drawn before it came to hand. You will have bills for a third quarter, which have been sent on some time since.

Several important political events have taken place here lately. The evacuation of Charleston, the sailing of the French fleet and the army, the decision of the great cause between Connecticut and Pennsylvania, in favor of the latter, the state of the army, &c., all of which I should enlarge upon, if this was not to be delivered by Mr Jefferson, who will be able to inform you fully on these points and many others, that you will deem important to a right knowledge of the present state of this country.^[12]

I enclose a state of the trade between these States and the West Indies, as brought in by a Committee of Congress, and referred to me. It may possibly afford you some hints, and will serve to show how earnestly we wish to have this market opened to us.

I have the honor to be, &c.

ROBERT R. LIVINGSTON.

TO RICHARD OSWALD.

Passy, January 14th, 1783.

Sir,

I am much obliged by your information of your intended trip to England; I heartily wish you a good journey, and a speedy return, and request your kind care of a packet for Mr Hodgson.

I enclose two papers, that were read at different times by me to the Commissioners; they may serve to show, if you should have occasion, what was urged on the part of America on certain points; or may help to refresh your memory. I send you also another paper, which I once read to you separately. It contains a proposition for improving the law of nations, by prohibiting the plundering of unarmed and usefully employed people. I rather wish than expect, that it will be adopted. But I think it may be offered with a better grace by a country, that is likely to suffer least and gain most by continuing the ancient practice; which is our case, as the American ships, laden only with the gross productions of the earth, cannot be so valuable as yours, filled with sugars or with manufactures. It has not yet been considered by my colleagues, but if you should think or find that it might be acceptable on your side, I would try to get it inserted in the general treaty. I think it will do honor to the nations that establish it.

With great and sincere esteem, I am, Sir, your most obedient and most humble servant,

B. FRANKLIN.

Propositions relative to Privateering, communicated to Mr Oswald.

It is for the interest of humanity in general, that the occasions of war, and the inducements to it should be diminished.

If rapine is abolished, one of the encouragements to war is taken away, and peace therefore more likely to continue and be lasting.

The practice of robbing merchants on the high seas, a remnant of the ancient piracy, though it may be accidentally beneficial to particular persons, is far from being profitable to all engaged in it, or to the nation that authorises it. In the beginning of a war, some rich ships, not upon their guard, are surprised and taken. This encourages the first adventurers to fit out more armed vessels, and many others to do the same. But the enemy at the same time become more careful, arm their merchant ships better, and render them not so easy to be taken; they go also more under protection of convoys; thus while the privateers to take them are multiplied, the vessels subject to be taken, and the chances of profit, are diminished, so that many cruises are made, wherein the expenses overgo the gains; and as is the case in other lotteries, though particulars have got prizes, the mass of adventurers are losers, the whole expense of fitting out all the privateers, during a war, being much greater than the whole amount of goods taken. Then there is the national loss of all the labor of so many men during the time they have been employed in robbing; who besides spend what they get in riot, drunkenness, and debauchery, lose their habits of industry, are rarely fit for any sober business after a peace, and serve only to increase the number of highwaymen and housebreakers. Even the undertakers, who have been fortunate, are by sudden wealth led into expensive living, the habit of which continues when the means of supporting it ceases, and finally ruins them; a just punishment for their having wantonly and unfeelingly ruined many honest innocent traders and their families, whose subsistence was employed in serving the common interests of mankind.

Should it be agreed and become a part of the law of nations, that the cultivators of the earth are not to be molested or interrupted in their peaceable and useful employment, the inhabitants of the sugar islands would perhaps come under the protection of such a regulation, which would be a great advantage to the nations who at present hold those islands, since the cost of sugar to the consumer in those nations, consists not merely in the price he pays for it by the pound, but in the accumulated charge of all the taxes he pays in every war, to fit out fleets and maintain troops for the defence of the islands that raise the sugar, and the ships that bring it home. But the expense of treasure is not all. A celebrated philosophical writer

remarks, that when he considered the wars made in Africa, for prisoners to raise sugars in America, the numbers slain in those wars, the numbers that, being crowded in ships, perish in the transportation, and the numbers that die under the severities of slavery, he could scarce look on a morsel of sugar without conceiving it spotted with human blood. If he had considered also the blood of one another, which the white nations shed in fighting for those islands, he would have imagined his sugar not as spotted only, but as thoroughly dyed red. On these accounts I am persuaded, that the subjects of the Emperor of Germany, and the Empress of Russia, who have no sugar islands, consume sugar cheaper at Vienna, and Moscow, with all the charge of transporting it after its arrival in Europe, than the citizens of London or of Paris. And I sincerely believe, that if France and England were to decide, by throwing dice, which should have the whole of their sugar islands, the loser in the throw would be the gainer. The future expense of defending them would be saved; the sugars would be bought cheaper by all Europe, if the inhabitants might make it without interruption, and whoever imported the sugar, the same revenue might be raised by duties at the custom houses of the nation that consumed it. And, on the whole, I conceive it would be better for the nations now possessing sugar colonies to give up their claim to them, let them govern themselves, and put them under the protection of all the powers of Europe as neutral countries, open to the commerce of all, the profits of the present monopolies being by no means equivalent to the expense of maintaining them.

COUNT DE VERGENNES TO B. FRANKLIN.

Translation.

Versailles, January 18th, 1783.

Sir,

It is essential that I should have the honor of conferring with you, Mr Adams, and your other colleagues, who are in Paris. I therefore pray you to invite these gentlemen to come out to Versailles with you on Monday, before ten o'clock in the morning. It will be well, also, if you will bring your grandson. It will be necessary for much writing and translating from English into French to be done. The object for which I ask this interview is very interesting to the United States.

I have the honor to be, Sir,

DE VERGENNES.

TO COUNT DE VERGENNES.

Passy, January 18th, 1783.

Sir,

Agreeably to the notice just received from your Excellency, I shall acquaint Mr Adams with your desire to see us on Monday before ten o'clock, at Versailles; and we shall endeavor to be punctual. My other colleagues are absent; Mr Laurens being gone to Bath, in England, to recover his health, and Mr Jay into Normandy. I shall bring my grandson, as you direct.

With great respect, I have the honor to be, &c.

B. FRANKLIN.

BENJAMIN VAUGHAN TO B. FRANKLIN.

Paris, January 18th, 1783.

My Dearest Sir,

I cannot but in the most earnest manner, and from recent circumstances, press your going early to Versailles tomorrow; and I have considerable reason to think, that your appearance there will not displease the person whom you address. I am of opinion, that it is very likely that you will have the glory of having concluded the peace by this visit; at least I am sure, if the deliberations of tomorrow evening end unfavorably, that there is the strongest appearance of war; if they end favorably, perhaps little difficulty may attend the rest.

After all, the peace will have as much that is conceded in it, as England can in any shape be made just now to relish, owing to the stubborn demands, principally of Spain, who would not, I believe, upon any motive recede from her conquests. What I wrote about Gibraltar arrived after the subject, as I understand, was canvassed, and when it of course must have appeared impolitic eagerly and immediately to revive it.

You reproved me, or rather reproved a political scheme yesterday, of which I have heard more said favorably by your friends at Paris, than by any persons whatever in London. But do you, my dear Sir, make this peace, and trust our common sense respecting another war. England, said a man of sense to me the other day, will come out of the war like a convalescent out of disease, and must be re-established by some physic and much regimen. I cannot easily tell in what shape a bankruptcy would come upon England, and still less easily in what mode and degree it would affect us; but if your confederacy mean to bankrupt us now, I am sure we shall lose the great fear that would deter us from another war. Your allies, therefore, for policy and for humanity's sake, will, I hope, stop short of this extremity; especially as we should do some mischief to others, as well as to ourselves.

I am, my dearest Sir, your devoted, ever affectionate, and ever obliged,

B. VAUGHAN.

TO JOHN ADAMS.

Passy, January 19th, 1783.

Sir,

Late last night I received a note from Count de Vergennes, acquainting me that it is very essential he should have a conference with us, and requesting that I would inform my colleagues. He desires that we may be with him before ten on Monday morning. If it will suit you to call here, we may go together in my carriage. We should be on the road by eight o'clock.

With great regard, I have the honor to be, &c.

B. FRANKLIN.

TO ROBERT R. LIVINGSTON.

Passy, January 21st, 1783.

Sir,

I have just received your letters of November 9th and December 3d. This is to inform you, and to request you to inform the Congress, that the preliminaries of peace between France, Spain, and England, were yesterday signed, and a cessation of arms agreed to by the Ministers of those powers, and by us in behalf of the United States, of which act, so far as relates to us, I enclose a copy. I have not yet obtained a copy of the preliminaries agreed to by the three Crowns, but hear, in general, that they are very advantageous to France and Spain. I shall be able, in a day or two, to write more fully and perfectly. Holland was not ready to sign preliminaries, but their principal points are settled. Mr Laurens is absent at Bath, and Mr Jay in Normandy, for their healths, but will both be here to assist in forming the Definitive Treaty. I congratulate you and our country on the happy prospects afforded

us by the finishing so speedily this glorious Revolution, and am, with great esteem, Sir, &c.

B. FRANKLIN.

JOHN JAY TO B. FRANKLIN.

Paris, January 26th, 1783.

Sir,

It having been suspected, that I concurred in the appointment of your grandson to the place of Secretary to the American commission for peace *at your instance*, I think it right, thus unsolicited, to put it in your power to correct the mistake.

Your general character, the opinion I had long entertained of your services to our country, and the friendly attention and aid with which you had constantly favored me after my arrival in Spain, impressed me with a desire of manifesting both my esteem and attachment by stronger evidence than professions. That desire extended my regard for you to your grandson. He was then indeed a stranger to me, but the terms in which you expressed to Congress your opinion of his being qualified for another place of equal importance, were so full and satisfactory, as to leave me no room to doubt of his being qualified for the one above mentioned. I was, therefore, happy to assure you, in one of the first letters I afterwards wrote you from Spain, that in case a Secretary to our commission for peace should become necessary, and the appointment be left to us, I should take that opportunity of evincing my regard for you, by nominating him, or words to that effect. What I then wrote, was the spontaneous suggestion of my own mind, unsolicited, and I believe unexpected by you.

When I came here on the business of that commission, I brought with me the same intentions, and should always have considered myself engaged by

honor, as well as inclination, to fulfil them, unless I had found myself mistaken in the opinion I had imbibed of that young gentleman's character and qualifications; but that not being the case, I found myself at liberty to indulge my wishes, and be as good as my word. For I expressly declare, that your grandson is, in my opinion, qualified for the place in question, and that, if he had not been, no consideration would have prevailed upon me to propose, or join in his appointment.

This explicit and unreserved statement of facts is due to you, to him, and to justice, and you have my consent to make any use of it that you may think proper.

I have the honor to be, Sir, with great respect,

JOHN JAY.

**FROM M. ROSENCRONE, MINISTER OF FOREIGN
AFFAIRS IN DENMARK, TO M. DE WALTERSTORFF.**

Translation.

Copenhagen, February 22d, 1783.

Sir,

As I know you are on the point of making a tour to France, I cannot omit warmly recommending to you to endeavor, during your stay at Paris, to gain as much as possible, the confidence and esteem of Mr Franklin.

You will recollect, Sir, what I said to you in our conversations, of the high respect which all the King's Ministry have for that Minister. You have witnessed the satisfaction with which we have learned the glorious issue of this war for the United States of America, and how fully we are persuaded, that it will be for the general interest of the two States to form, as soon as

possible, reciprocal connexions of friendship and commerce. Nothing, certainly, would be more agreeable to us, than to learn by your letters, that you find the same dispositions in Mr Franklin, and in that case it seems to me the shortest way of accelerating these new connexions would be to take the treaty between the Congress and the States-General for the basis, and that Mr Franklin should communicate to us his ideas on the changes or additions which he might think reciprocally useful in the treaty of commerce, which Congress might conclude with us.

We should eagerly and frankly reply to such overtures; and, as soon as the changes thus agreed on shall have met the approbation of Congress, one of the persons commissioned by that body, then in Europe, might, in order to gain time, come here with full powers to conclude, leaving on both sides the most particular stipulations for the negotiations of the Ministers which those States shall, in the sequel, send to reside with each other.

I shall finish, Sir, with hoping that you may happily terminate the visits you have proposed to make to the different parts of France; and it is with sentiments of the most distinguished respect, that

I have the honor to be, &c.

ROSENCRONE.

TO ROBERT R. LIVINGSTON.

Passy, March 7th, 1783.

Sir,

I but this moment hear of this opportunity, by which I can only send you a line to acquaint you, that I have concluded the treaty with Sweden, which was signed on Wednesday last. You will have a copy by the first good opportunity. It differs very little from the plan sent me; in nothing material.

[\[13\]](#) The English Court is in confusion by another change of Ministry, Lord

Shelburne and his friends having resigned; but it is not yet certainly known who will succeed, though Lord North and Mr Fox are talked of as two, they being reconciled!! I cannot add, but that I am, with great esteem, Sir, &c.

B. FRANKLIN.

P. S. The change in the Ministry is not supposed of any importance respecting our definitive treaty, which must conform to the preliminaries; but we shall see.

DAVID HARTLEY TO B. FRANKLIN.

London, March 12th, 1783.

My Dear Friend,

It is a long while since I have heard from you, or indeed since I wrote to you. I heartily congratulate you on those pacific events, which have already happened, and I wish to see all other final steps of conciliation succeed speedily. I send you copies of two papers, which I have already communicated to Mr Laurens; the one called *Conciliatory Propositions, in March, 1783*; the other *A Sketch of a Provisional Treaty of Commerce for opening the Ports between Great Britain and the United States of America without Delay*; to each of which is prefixed a short state of the argument on each head.

As for the news of this country, you have doubtless heard, that Lord Shelburne's administration has for some time been considered as at an end; although no other has been as yet substituted in the place of it. It was understood yesterday, and I believe with good foundation, that what is now called the Portland party have been applied to, and they are now considered as the party most likely to succeed. As far as my wishes go, such an event would be most satisfactory to me. I have known the Duke of Portland for many years, and by experience I know him to be a nobleman of the strictest

honor, and of the soundest whig principles, sincere and explicit in every thought and transaction, manly in his judgment, and firm in his conduct. The kingdom of Ireland, of which he was lately Lord Lieutenant, bears unanimous testimony to this character of him. The Cavendish family, (a good whig name) Mr Fox, Lord Fitzwilliam, &c. &c. form the core of his system and connexions. I most earnestly wish to see a firm administration upon a whig foundation, which I should consider as a solid basis, on the part of this country, for a perpetual correspondence of amity and conciliation with America. I am very anxious to hear of your health. God bless you.

Ever your most affectionate,

D. HARTLEY.

Conciliatory Propositions, March, 1783.

Terms of peace having been agreed upon between Great Britain and France, on the 20th of January, 1783, there need not be any further delay in proceeding to conclude the proposed treaty between Great Britain and the United States of America, upon the basis of the provisional articles of the 30th of November, 1782.

It is to be observed, that none of the articles of the provisional treaty are to take effect, until the conclusion of the definitive treaty with America, at which time likewise all places in the American States, in possession of the British arms, are to be evacuated, and the British army withdrawn from the United States (by article 7.) If therefore it should be wished on the part of Great Britain to bring forward the fifth article respecting the loyalists, before the conclusion of the definitive treaty with America, the bayonet should be withdrawn from the American breast, by the voluntary removal of the British troops with all convenient despatch. This condition of the removal of the troops is likewise necessary, before any provisional terms of commerce with America can take place.

By the 6th article of the provisional treaty, all future confiscations in America are precluded, although the prosecutions at present subsisting are not to be stopped before the definitive treaty. But if the substantial pledge of returning amity on the part of Great Britain, viz. the removal of the troops should be voluntarily anticipated, it would be but reasonable that all prosecutions should be immediately abated on the part of America; and to facilitate the removal of the troops, the loyalists may be permitted to remain in safety and unmolested, (if they choose to remain) from the period of removing the troops, until twelve months after the definitive treaty.

There is another article of the provisional treaty, the delay of which is much to be lamented, viz. the mutual release of prisoners of war on both sides. As this is an article of reciprocity, both sides from principles of humanity are equally interested to bring it forward into effect speedily, that those unhappy captives may not alone suffer the miseries of war in the time of peace.

Upon these considerations, the following supplemental terms of a treaty between Great Britain and the United States are proposed.

1. That the British troops shall be withdrawn with all convenient speed.
2. That the commissioners on both sides do proceed to the conclusion of the definitive treaty.
3. That the commissioners do speedily negotiate a provisional convention of commerce (hereunto annexed) to take place immediately. The terms of this temporary convention, not to be pleaded on either side in the negotiation of final and perpetual treaty of commerce, between Great Britain and the United States.
4. That the commissioners do negotiate a perpetual treaty of commerce.
5. That all prosecutions of the loyalists in America be immediately abated, and that they be permitted to remain until twelve months after the definitive treaty, unmolested in their endeavors to obtain restitution of their estates.
6. That all prisoners on both sides be immediately released.

7. That intercourse of amity and commerce do immediately take place between Great Britain and the United States of America.

Sketch of a Provisional Treaty of Commerce.

As soon as preliminaries of peace are signed with any independent States, such as Spain, France, and Holland, the course of mutual commerce emerges upon the same terms and conditions as were existing antecedent to the war, the new duties imposed during the war excepted. The case between Great Britain and America is different, because America, from a dependent nation before the war, emerges an independent nation after the war. The basis, therefore, of a provisional treaty between Great Britain and the United States would be simply to arrange such points as would emerge after the war, impracticable and discordant to the newly established independence of the American States, and to leave all others, as much as possible, untouched. For instance, that all instrumental regulations, such as papers, bonds, certificates, oaths, and all other documents should be, between Great Britain and the United States, upon the same footing, and no other than as between Great Britain and any other independent nation, but that all duties, drawbacks, bounties, rights, privileges, and all pecuniary considerations, should emerge into action and effect as before. I say emerge as before, not stipulated for any fixed term, because I am speaking of a provisional *treaty*, not of a provisional *bill* of commerce, for a specified period. By this means, all difficulties, which otherwise would be accumulated, and obstruct a temporary and provisional act are avoided *in limine*. The ports will be immediately opened, upon specified and known conditions. If the legislature of either country thinks proper to introduce on its own part any new conditions or regulations, even previous to the intended treaty of commerce, that will not shut the ports again generally but only operate *pro tanto* according to the case; on which side soever any novel condition should arise, the other will likewise be at liberty to make any corresponding regulations as between independent nations. The great object is to open the ports between Great Britain and the United States,

immediately on the signature of preliminaries of peace, as between France and Great Britain. By the proposition above stated, Great Britain and France, and Great Britain and the United States respectively, on the subject of intercourse of commerce, would emerge again after the war into situations relatively similar to their situation before the war.

The Crown of Great Britain is enabled by the Conciliatory Act of 1782 to repeal, annul, make void, or suspend, for any time or times, the operation and effect of any act of Parliament, or any clause, provision, matter, or thing therein contained, relating to the colonies or plantations now become the United States of America; and, therefore, the crown is not only competent to conclude, but likewise to carry into effect any provisional treaty of commerce with America. The first foundation must be laid in the total repeal of the Prohibitory Act of December, 1775, not only as prohibiting commerce between Great Britain and the United States, but as the corner stone of the war; by giving up universally all American property at sea to military plunder, without any redress to be obtained by law in any British Court of Admiralty. After this, all obstructions from the act of navigation and other acts regulating the commerce of the States of America (formerly dependent upon Great Britain,) may be removed. Instructions may be sent to the Commissioners of the customs to dispense with bonds, certificates, &c. which by the old laws are required to be discharged or attested by supposed governors, naval or customhouse officers in America. The questions of drawbacks, bounties, &c. after opening the ports, may remain free points of discussion and regulation, as between States having no commercial treaty subsisting between them. As the Crown is competent to open an intercourse of commerce with America by treaty, this mode is preferable to any act of Parliament, which may be only a jealous and suspicious convention *ex parte*. This mode by treaty avoids the accumulated difficulties, which might otherwise obstruct the first opening of the ports by act of Parliament, and above all, it secures an alternate binding part of the bargain, which no act of Parliament can do.

Breviate of the treaty, viz. Provisional for intercourse and commerce between Great Britain and the United States of America.

1. That all ports shall be mutually open for intercourse and commerce.

2. And therefore the King of Great Britain agrees to the repeal of the prohibitory acts, viz. 16 Geo. 3, chap. 5, &c. The King of Great Britain likewise agrees by instructions, according to the laws of Great Britain, to his Commissioners of customs and other officers, to remove all obstructions to American ships either entering inwards or clearing outwards, which may arise from any acts of Parliament heretofore regulating the commerce of the American States, under the description of British colonies or plantations, so as to accommodate every circumstance to the reception of their ships, as the ships of independent States.

3. All duties, drawbacks, bounties, rights, privileges, and all other money considerations shall remain, respecting the United States of America, upon the same footing as they now remain respecting the province of Nova Scotia in America, or as if the aforesaid States had remained dependent upon Great Britain. All this subject to regulations or alterations by any future acts of the Parliament of Great Britain.

4. On the part of the States of America, it is agreed that all laws prohibiting the commerce of Great Britain shall be repealed.

5. Agreed upon the same part, that all ships, and merchandise of the British dominions shall be admitted upon the same terms as before the war, except any imposts laid during the war. All this subject to future regulations or alterations by the legislatures of the American States respectively.

6. The principles and spirit of this treaty to be supported on either side by any necessary supplemental arrangements. No tacit compliance on the part of America in any subordinate points to be argued at any time hereafter to the prejudice of their independence.

TO DAVID HARTLEY.

Passy, March 23d, 1783.

Dear Sir,

I received the letter you did me the honor of writing to me, requesting a recommendation to America, of Mr Joshua Grigby. I have accordingly written one, and having an opportunity the other day, I sent it under cover to Mr Benjamin Vaughan. The general proclamations you wished for suspending, or rather putting an end to hostilities, are now published; so that your "heart is at rest," and mine with it. You may depend on my joining my hearty endeavors with yours, in "cultivating conciliatory principles between our two countries;" and I may venture to assure you, that if your bill for a provisional establishment of the commerce had passed as at first proposed, a stipulation on our part in the definitive treaty, to allow reciprocal and equal advantages and privileges to your subjects, would have been readily agreed to.

With great and sincere esteem, I am ever, &c.

B. FRANKLIN.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, March 26th, 1783.

Sir,

I need hardly tell you, that the intelligence brought by the Washington diffused a general pleasure. We had long been in suspense with respect to the negotiations, and had received no other lights on that subject, than those the speech of his Britannic Majesty and Mr Townshend's letters threw upon it. These were by no means sufficient to dissipate all our apprehensions.

The terms you have obtained for us comprise most of the objects we wish for. I am sorry, however, that you found it necessary to act with reserve, and to conceal your measures from the Court of France. I am fearful that you will not be able to produce such facts, as will justify this conduct to the

world, or free us from the charge of ingratitude to a friend, who has treated us not only justly but generously.

But this is a disagreeable subject, and I refer you for my sentiments, and those of Congress, to my letter, in answer to the joint letter from our Ministers. I am sorry that the commercial article is stricken out; it would have been very important to us to have got footing at least in the British West Indies, as a means of compelling France to pursue her true interest and ours, by opening her ports also to us.

We have just learned by a vessel from Cadiz, that the preliminary articles for a general peace were signed the 20th. The abstract of the treaty sent me by the Marquis de Lafayette, does the highest honor to the moderation and wisdom of France. Never has she terminated a war with more glory, and in gaining nothing but that trophy of victory, Tobago, she has established a character, which confirms her friends, disarms her enemies, and obtains a reputation that is of more value than any territorial acquisitions she could make.

We have been in great distress with respect to our army. Pains were taken to inflame their minds, and make them uneasy at the idea of a peace, which left them without support. Inflammatory papers were dispersed in camp, calling them together to determine upon some mad action. The general interposed, postponed the meeting to a future day, on which he met them, and made them an address, that will do him more honor than his victories. After which they passed several resolves, becoming a patriot army. Congress are seriously engaged in endeavoring to do them justice. I am in great hopes, that we shall shortly be brought back to such a situation, as to be enabled to enjoy the blessings you have laid the foundation of.

I received from Mr Franklin the papers relative to the Portuguese vessel, which I have caused to be laid before the Court of Appeals, where the cause is now depending. The cargo having been condemned, and the yacht acquitted at Boston, I doubt not but full justice will be done to the proprietors on the rehearing. You know so much of our constitution as to see, that it is impossible to interfere further in these matters, than by putting the evidence in a proper train to be examined. I have had the proceedings in the case of the brig Providentia transmitted to me from Boston, with a full

state of the evidence, which I have examined. The cargo is condemned and the vessel acquitted, an allowance for freight having been made by the court. The evidence does not admit a doubt of the justice of this decree. Should the Court of Denmark not be satisfied with this account, I will cause a copy of the proceedings to be transmitted to you for their satisfaction. I hope this mark of attention to them will induce them to acknowledge the injustice they have done us, in the detention of our prizes. This object should not be lost sight of.

I thank you for your present of M. d'Auberteuil's Essay, and shall dispose of the copies he has sent in the way you recommend. I could hardly have believed it possible, that so many errors and falsehoods, that would shock the strongest faith on this side of the water, could be received as orthodox on the other.

I remit bills for the salaries of our Ministers. It is impossible, that I can adjust their accounts here; you must settle with them, and they repay you out of the drafts I have made in their favor when they have been overpaid. Congress have, in pursuance of your sentiment, in your letter of October, passed the enclosed resolution.^[14] So that on the quarter's salary due in April, there will be a deduction of all you gained by the course of exchange; and the payments will be reduced to par, at which rate they will always be paid in future. This deduction amounts on your salary to eight thousand three hundred and thirtysix livres, as will appear from the account that will be stated by Mr Morris. I shall pay your bills into the hands of Mr Robert Morris, whom you have constituted your agent. The bills for the other gentlemen, who may not be with you, are committed to your care. As the bills are drawn in their favor, they can only be paid on their endorsement.

Congress will, I believe, agree very reluctantly to let you quit their service. The subject, together with Mr Adams's and Mr Laurens's resignation, is under the consideration of a committee. If they report before this vessel sails, you shall know their determination.

On the arrival of the Triumph from Cadiz, which brought orders for recalling the cruisers of his Britannic Majesty, Congress passed the enclosed resolution, which I transmitted with the intelligence we had received to Carleton and Digby. I sent my Secretary with my letters, and

expect him back this evening. I am anxious to know how the first messenger of peace has been received by them, as well as to discover through him what steps they propose to take for the evacuation.

I ought to thank you for your journal before I conclude. The perusal of it afforded me great pleasure. I must pray you to continue it. I much wish to have every step, which led to so interesting an event as the treaty, which established our Independence. And though both Mr Jay and Mr Adams are minute in their journals, for which I am much obliged to them, yet new light may be thrown on the subject by you, who, having been longer acquainted with the Courts both of London and Versailles, have the means of more information relative to their principles and measures.

I have the honor to be, Sir, &c.

ROBERT R. LIVINGSTON.

FROM THE CITY OF HAMBURG TO CONGRESS. [\[15\]](#)

Translation.

March 29th, 1783.

Right Noble, High, Mighty, Most Honorable Lords,

Since, by the preliminary articles of peace, concluded lately between the high belligerent powers, the illustrious United States of North America have been acknowledged free, sovereign, and independent, and now since European powers are courting in rivalry the friendship of your High Mightinesses,

We, impressed with the most lively sensations on the illustrious event, the wonder of this, and the most remote future ages, and desirous fully to testify

the part which we take therein, do hereby offer your High Mightinesses our service and attachment to the cause.

And in the most sincere disposition of heart, we take the honor to wish, so as from Omnipotent Providence we do pray, that the most illustrious republic of the United States of America may, during the remotest centuries, enjoy all imaginable advantages to be derived from that sovereignty, which they gained by prudence and courage.

That, by the wisdom and active patriotism of your illustrious Congress, it may forever flourish and increase, and that the High and Mighty Regents of those free United States may, with ease and in abundance, enjoy all manner of temporal happiness; and at the same time we most obsequiously recommend our city to a perpetual friendly intelligence, and her trade and navigation in matters reciprocally advantageous to your favor and countenance.

In order to show that such mutual commerce with the merchant houses of this place may undoubtedly be of common benefit, your High Mightinesses will be pleased to give us leave to mark out some advantages of this trading city.

Here reigns a free unrestrained republican commerce, charged with but few duties.

Hamburg's situation upon the river Elbe is, as if it were in the centre of the Baltic and the North Sea, and as canals are cut from the river through the city, goods may be brought in ships to the magazines in town, and from thence again to all parts of the world.

Hamburg carries on its trade with economy. It is the mart of goods of all countries, where they can be purchased not only of good quality, but sometimes cheaper than at first hand.

Here linen, woollen goods, calicoes, glass, copper and all other numerous produce of manufactured wares of the whole German Empire, are brought in by Portuguese, Spaniards, the English, Dutch, French, and other nations, and from hence further transported. In exchange whereof, considerable quantities of North American goods, much wanted in Germany, may be taken.

M. Penet, who in your country is honored with several offices, has sojourned here for some time, and with all who had the honor of his acquaintance, borne the character of an intelligent, skilful, and for reciprocally advantageous commerce, a well disposed and zealous man, will certainly have the complaisance to give your High Mightinesses further explanation of the advantages of this trading place, which we have but briefly touched upon.

We now intercessionally and most obsequiously request your High Mightinesses to favor and countenance the trade of our merchants, and to suffer them to enjoy all such rights and liberties as you allow to merchants of nations in amity; which in gratitude and with zeal we will in our place endeavor to retribute, not doubting that such mutual intercourse may be effected, since a good beginning thereof is already made on both sides, by the friendly reception of the vessels that have arrived in either country.

In further testimony of our most attentive obsequiousness and sincere attachment, we have deputed our citizen, John Abraham de Boor, who is charged with the concerns of a considerable merchant house, which, like several other merchant houses of good report and solidity in this city, is desirous of entering with merchants of your country into reciprocal commerce. He is to have the honor to present to your High Mightinesses this our most obsequious missive; wherefore we most earnestly recommend him to your favorable reception. He has it from us in express charge, most respectfully to give your High Mightinesses, if required, such upright and accurate accounts of our situation and constitutions, as may be depended upon, and at the same time in person to testify the assurance of the most perfect respect and attachment, with which attentively we remain, Right Noble, High, Mighty, and most honorable Lords, your most obsequious and devoted Burgomaster and Senate of the Imperial free City of Hamburg.

Given under our City Seal, the 29th of March, 1783.

London, March 31st, 1783.

My dear Friend,

I send you a paper entitled *Supplemental Treaty*, the substance of which I sent you some time ago, as I read it in part of a speech in the House of Commons. I have given a copy of it to Mr L., as the grounds upon which my friend, the Duke of Portland, would have wished that any administration, in which he might have taken a part, should have treated with the American Ministers. All negotiations for the formation of a Ministry in concert with the Duke of Portland are at an end.

The tenth article, which is supposed to be referred to the definitive treaty, is a renewal of the same proposition, which I moved in Parliament some years ago, viz. on the 9th of April, 1778. I see nothing inconsistent with that proposition, either in the declaration of independence or in the treaty with France. Let it therefore remain, and emerge after the war, as a point untouched by the war. I assure you my consent should not be wanting to extend this principle between all the nations upon earth. I know full well, that those nations to which you and I are bound by birth and consanguinity, would reap the earliest fruits from it. *Owing no man hate, and envying no man's happiness*, I should rejoice in the lot of my own country, and on her part say to America, *Nos duo turba sumus*. I send you, likewise, enclosed with this, some sentiments respecting the principles of some late negotiations, drawn up in the shape of Parliamentary motions by my brother, who joins with me in the sincerest good wishes to you for health and happiness, and for the peace of our respective countries, and of mankind.

Your ever affectionate,

D. HARTLEY.

Supplemental Treaty between Great Britain and the United States of North America.

1. That the British troops be withdrawn from the United States with all convenient speed.
2. That all further prosecutions of loyalists in America be immediately abated, and that they be permitted to remain until twelve months after the definitive treaty with America in safety and unmolested, in their endeavors to obtain restitution of their estates.
3. That all ports shall be mutually opened for intercourse and commerce, between Great Britain and the United States.
4. Agreed on the part of Great Britain, that all Prohibitory Acts shall be repealed, and that all obstructions to American ships, either entering inwards or clearing outwards, shall be removed, which may arise from any acts of Parliament, heretofore regulating the commerce of the American States, under the description of British Colonies and Plantations, so as to accommodate every circumstance to the reception of their ships, as the ships of independent States.
5. Agreed on the part of Great Britain, that all duties, rights, privileges, and all pecuniary considerations shall remain, respecting the United States of America, upon the same footing as they now remain respecting the Province of Nova Scotia, or as if the said States had remained dependent upon Great Britain. All this subject to regulations and alterations by any future acts of the Parliament of Great Britain.
6. On the part of the American States it is agreed, that all laws prohibiting commerce with Great Britain shall be repealed.
7. Agreed on the part of the American States, that all ships and merchandise of the British dominions shall be admitted upon the same terms as before the war. All this subject to future regulations or alterations by the Legislatures of the American States respectively.
8. That all prisoners on both sides be immediately released.
9. The spirit and principles of this treaty to be supported on either side by any necessary supplemental arrangements. No tacit compliance on the part of the American States in any subordinate points to be urged at any time hereafter in derogation of their independence.

Separate Article to be referred to the Definitive Treaty.

10. Neither shall the independence of the United States be construed any further than as independence, absolute and unlimited in matters of government, as well as commerce. Not into alienation, and therefore the subjects of his Britannic Majesty and the citizens of the United States shall mutually be considered as natural born subjects, and enjoy all rights and privileges as such in the respective dominions and territories, in the manner heretofore accustomed.

Paper mentioned in the Close of Mr Hartley's Letter.

1. That it is the opinion of this House, that whenever Great Britain thought proper to acknowledge the independence of America, the mode of putting it into effect most honorably for this country, would have been, to have made the declaration of independence previous to the commencement of any treaty with any other power.
2. That a deviation from that line of conduct, has the effect of appearing to grant the independence of America solely to the demands of the House of Bourbon, and not, as was the real state of the case, from a change in the sentiments of this country, as to the object and continuance of the American war.
3. That when this House, by its vote against the further prosecution of offensive war in America, had given up the point of contest, and adopted a conciliatory disposition, the pursuing those principles by an immediate and liberal negotiation upon the basis of independence, at the same time expressing a readiness to conclude a general peace with the allies of America upon honorable terms, would have been the most likely way to promote a mutual and beneficial intercourse between the two countries; to establish peace upon a firm foundation; and would have prevented the

House of Bourbon from having a right to claim any further obligations from America, as the assertors of their independence.

4. That the Minister, who advised the late negotiations for peace, has neglected to make use of those advantages, which the determination of the House put him in possession of; that, by his delay in authorising persons properly to negotiate with the American Commissioners, he has shown a reluctance to acting upon the liberal principles of granting independence to America, as the determination of Great Britain upon mature consideration of the question; and has by such methods given advantage to the enemies of this country to promote and confirm that commerce and connexion between the United States of America and themselves, which during the contest have been turned from their natural channel with this country, and which this peace so concluded has not yet contributed to restore.

M. SALVA TO B. FRANKLIN.

Translation.

Algiers, April 1st, 1783.

Sir,

The imminent danger to which the vessels of your nation were exposed, which sailed in March last from Marseilles, and which owed their safety to the god of the seas alone, emboldens me to call your attention to this point.

Some secret enemies, (whom I know) having giving information to this regency of their departure, nine armed ships immediately sailed to wait for them at Cape Palos. It is to be presumed that the Americans had passed the Straits.

Algiers has many ships, and the politics of certain European powers do not restrain them from paying tribute to enjoy peace; they make use of these

human harpies as a terror to the belligerent nations, whose commerce they chain to the car of Algerine piracy. We saw an example of this, when his Imperial Majesty, to protect his flag, made use of the Firman of the Sublime Porte. It was attacked, and five prizes were brought into this port in 1781, four of which with ballast were restored in February, 1782, at the claim of a Capapigi Bashaw of the Porte, and of M. Timone, the Imperial Agent, who was expelled, and whose correspondent I am, having been his Secretary on this occasion, and having revealed to his Highness, Prince Kaunitz Rietberg, Minister at the Court of Vienna, horrors and crimes which would have remained unpunished but for my pen.

Humanity alone, Sir, has engaged me to give you this advice. I request you will be pleased to keep it secret; your prudence will effect what may be necessary on this occasion.

I have the honor to offer you every information respecting this port, and flatter myself that I shall succeed therein. I think to depart from this in May or June next for Marseilles, and to leave these barbarian pirates.

I have the honor to be, &c.

SALVA.

TO THE GRAND MASTER OF MALTA.

Passy, April 6th, 1783.

My Lord,

I have the honor to address to your Eminent Highness the medal, which I have lately had struck. It is a homage of gratitude, my Lord, which is due to the interest you have taken in our cause, and we no less owe it to your virtues, and to your Eminent Highness's wise administration of government.

Permit me, my Lord, to demand your protection for such of our citizens as circumstances may lead to your ports. I hope that your Eminent Highness will be pleased to grant it to them, and kindly receive the assurances of the profound respect with which I am, my Lord, &c.

B. FRANKLIN.

TO M. ROSENCRONE.

Passy, April 13th, 1783.

Sir,

Monsieur de Walterstorff has communicated to me a letter from your Excellency, which affords me great pleasure, as it expresses in clear and strong terms the good disposition of your Court^[16] to form connexions of friendship and commerce with the United States of America. I am confident that the same good disposition will be found in the Congress; and having acquainted that respectable body with the purport of your letter, I expect a commission will soon be sent, appointing some person in Europe to enter into a treaty with his Majesty the King of Denmark for the purpose desired.

In the meantime, to prepare and forward the business as much as may be, I send, for your Excellency's consideration, such a sketch as you mention, formed on the basis of our treaty with Holland, on which I shall be glad to receive your Excellency's sentiments. And I hope that this transaction when completed, may be the means of producing and securing a long and happy friendship between our two nations.

To smooth the way for obtaining this desirable end, as well as to comply with my duty, it becomes necessary for me on this occasion to mention to your Excellency the affair of our three prizes, which, having during the war entered Bergen as a neutral and friendly port, where they might repair the damages they had suffered, and procure provisions, were, by an order of

your predecessor in the office you so honorably fill, violently seized and delivered to our enemies. I am inclined to think it was a hasty act, procured by the importunities and misrepresentations of the British Minister, and that your government could not, on reflection, approve of it. But the injury was done, and I flatter myself your Excellency will think with me, that it ought to be repaired. The means and manner I beg leave to recommend to your consideration, and am, with great respect, Sir, &c.

B. FRANKLIN.

TO ROBERT R. LIVINGSTON.

Passy, April 16th, 1783.

Sir,

You complain sometimes of not hearing from us. It is now near three months since any of us have heard from America. I think our last letters came with General de Rochambeau. There is now a project under consideration for establishing monthly packet boats between France and New York, which I hope will be carried into execution; our correspondence then may be more regular and frequent.

I send herewith another copy of the treaty concluded with Sweden. I hope, however, that you will have received the former, and that the ratification is forwarded. The King, as the Ambassador informs me, is now employed in examining the duties payable in his ports, with a view of lowering them in favor of America, and thereby encouraging and facilitating our mutual commerce.

M. de Walterstorff, Chamberlain of the King of Denmark, formerly Chief Justice of the Danish West India Islands, was last year at Paris, where I had some acquaintance with him, and he is now returned hither. The newspapers have mentioned him as intended to be sent Minister from his Court to

Congress, but he tells me no such appointment has yet been made. He assures me, however, that the King has a strong desire to have a treaty of friendship and commerce with the United States, and he has communicated to me a letter, which he received from M. Rosenchrone, the Minister for Foreign Affairs, expressing that disposition. I enclose a copy of the letter, and if Congress shall approve of entering into such a treaty with the King of Denmark, of which I told M. de Walterstorff I made no doubt, they will send to me, or whom else they shall think proper, the necessary instructions and powers for that purpose. In the meantime, to keep the business in train, I have sent to that Minister for his consideration, a translation of the plan, *mutatis mutandis*, which I received from Congress for a treaty with Sweden, accompanied by a letter, of which likewise I enclose a copy. I think it would be well to make it one of the instructions to whoever is commissioned for the treaty, that he previously procure satisfaction for the prizes mentioned in my letter.

The definitive treaties have met with great delays, partly by the tardiness of the Dutch, but principally from the distractions in the Court of England, where for six or seven weeks there was properly no Ministry, nor any business effected. They have at last settled a Ministry, but of such a composition as does not promise to be lasting. The papers will inform you who they are. It is now said, that Mr Oswald, who signed the preliminaries, is not to return here, but that Mr David Hartley comes in his stead to settle the definitive. A Congress is also talked of, and that some use is to be made therein of the mediation formerly proposed of the Imperial Courts. Mr Hartley is an old friend of mine, and a strong lover of peace, so that I hope we shall not have much difficult discussion with him; but I could have been content to have finished with Mr Oswald, whom we always found very reasonable.

Mr Laurens, having left Bath, mended in his health, is daily expected at Paris, where Messieurs Jay and Adams still continue. Mr Jefferson has not yet arrived, nor the Romulus, in which ship I am told he was to have taken his passage. I have been the more impatient of this delay, from the expectation given me of full letters by him. It is extraordinary, that we should be so long without any arrivals from America in any part of Europe. We have as yet heard nothing of the reception of the preliminary articles in America, though it is now nearly five months since they were signed.

Barney, indeed, did not get away from hence before the middle of January, but copies went by other ships long before him; he waited some time for the money he carried, and afterwards was detained by violent contrary winds. He had a passport from England, and I hope arrived safe; though we have been in some pain for him, on account of a storm soon after he sailed.

The English merchants have shown great eagerness to reassume their commerce with America, but apprehending that our laws prohibiting that commerce, would not be repealed till England had set the example by repealing theirs, a number of vessels they had loaded with goods, have been detained in port, while the Parliament have been debating on the repealing bill, which has been altered two or three times, and is not agreed upon yet. It was at first proposed to give us equal privileges in trade with their own subjects, repealing thereby with respect to us, so much of their navigation act, as regards foreign nations. But that plan seems to be laid aside, and what will finally be done in the affair is uncertain. There is not a port in France, and few in Europe, from which I have not received several applications of persons desiring to be appointed consuls for America. They generally offer to execute the office for the honor of it, without salary. I suppose the Congress will wait to see what course commerce will take, and in what places it will fix itself, in order to find where consuls will be necessary, before any appointments are made, and perhaps it will then be thought best to send some of our own people. If they are not allowed to trade, there must be a great expense for salaries. If they may trade, and are Americans, the fortunes they make will mostly settle in our own country at last. The agreement I was to make here respecting consuls, has not yet been concluded. The article of trading is important. I think it would be well to reconsider it.

I have caused to be struck here the medal, which I formerly mentioned to you, the design of which you seemed to approve. I enclose one of them in silver, for the President of Congress, and one in copper for yourself; the impression on copper is thought to appear best, and you will soon receive a number for the members. I have presented one to the King, and another to the Queen, both in gold, and one in silver to each of the Ministers, as a monumental acknowledgment, which may go down to future ages, of the obligations we are under to this nation. It is mightily well received, and gives general pleasure. If the Congress approve of it, as I hope they will, I may

add something on the die (for those to be struck hereafter) to show that it was done by their order, which I could not venture to do till I had authority for it.

A multitude of people are continually applying to me personally, and by letters, for information respecting the means of transporting themselves, families, and fortunes to America. I give no encouragement to any of the King's subjects, as I think it would not be right in me to do it, without their sovereign's approbation; and, indeed, few offer from France but persons of irregular conduct and desperate circumstances, whom we had better be without; but I think there will be great emigrations from England, Ireland, and Germany. There is a great contest among the ports, which of them shall be of those to be declared *free* for the *American trade*. Many applications are made to me to interest myself in the behalf of all of them, but having no instructions on that head, and thinking it a matter more properly belonging to the consul, I have done nothing in it.

I have continued to send you the English papers. You will often see falsehoods in them respecting what I say and do, &c. You know those papers too well to make any contradiction of such stuff necessary from me.

Mr Barclay is often ill, and I am afraid the settlement of our accounts will be, in his hands, a long operation. I shall be impatient at being detained here on that score, after the arrival of my successor. Would it not be well to join Mr Ridley with Mr Barclay for that service? He resides in Paris, and seems active in business. I know not indeed whether he would undertake it, but wish he may.

The finances here are embarrassed, and a new loan is proposed by way of lottery, in which it is said by some calculators, the King will pay at the rate of seven per cent. I mention this to furnish you with a fresh convincing proof against cavillers of the King's generosity towards us, in lending us six millions this year at five per cent, and of his concern for our credit, in saving by that sum the honor of Mr Morris's bills, while those drawn by his own officers abroad have their payment suspended for a year after they become due. You have been told that France might help us more liberally if she would. This last transaction is a demonstration of the contrary.

Please to show these last paragraphs to Mr Morris, to whom I cannot now write, the notice of this ship being short, but it is less necessary, as Mr Grand writes him fully.

With great esteem, &c.

B. FRANKLIN.

P. S. Mr Laurens is just arrived.

CHARLES J. FOX TO B. FRANKLIN.

St James's, April 19th, 1783.

Sir,

Although it is unnecessary for me to introduce to your acquaintance a gentlemen so well known to you as Mr Hartley, who will have the honor of delivering to you this letter, yet it may be proper for me to inform you, that he has the full and entire confidence of his Majesty's Ministers upon the subject of his mission.

Permit me, Sir, to take this opportunity of assuring you how happy I should esteem myself, if it were to prove my lot to be the instrument of completing a real and substantial reconciliation between two countries, formed by nature to be in a state of friendship one with the other, and thereby to put the finishing hand to a building, in laying the first stone of which I may fairly boast that I had some share.

I have the honor to be, with every sentiment of regard and esteem, Sir, your most obedient humble servant,

C. J. FOX.

TO ROBERT R. LIVINGSTON.

Passy, April 27th, 1783.

Sir,

The Count del Veome, an Italian nobleman of great distinction, does me the honor to be the bearer of this. I have not the satisfaction to be personally acquainted with this gentleman, but am much solicited by some of my particular friends, to whom his merits and character are known, to afford him this introduction to you. He is, I understand, a great traveller, and his view in going to America is merely to see the country and its great men. I pray you will show him every civility, and afford him that counsel, which as a stranger he may stand in need of.

With great respect, I am, &c.

B. FRANKLIN.

COUNT DE VERGENNES TO B. FRANKLIN.

Translation.

Versailles, May 5th, 1783.

Sir,

I have received the two letters of yesterday and today, which you have done me the honor to write to me, and a copy of the three articles discussed between the Commissioners of the United States and Mr Hartley. You are aware that I shall want a sufficient time to examine them, before submitting to you the observations, which may relate to our reciprocal interests. Receive, in the meantime, my sincere thanks for this communication.

I hope to have the honor of seeing you tomorrow at Versailles. I trust you will be able to be present with the foreign Ministers. It is observed, that the Commissioners from the United States rarely show themselves here, and inferences are drawn from it, which I am sure their constituents would disavow, if they had a knowledge of them.

I have the honor to be, &c.

DE VERGENNES.

TO COUNT DE VERGENNES.

Passy, May 5th, 1783.

Sir,

It was my intention to pay my devoirs at Versailles tomorrow. I thank your Excellency, nevertheless, for your kind admonition. I omitted two of the last three days from a mistaken apprehension, that being holidays there would be no Court. Mr Laurens and Mr Jay are both invalids; and since my last severe fit of the gout, my legs have continued so weak, that I am hardly able to keep pace with the Ministers who walk fast, especially in going up and down stairs.

I beg you to be assured, that whatever deficiency there may be of strength, there is none of respect in, Sir, your Excellency's most obedient and most humble servant,

B. FRANKLIN.

TO DAVID HARTLEY.

Passy, May 8th, 1783.

Dear Friend,

I send you enclosed the copies you desired of the papers I read to you yesterday.^[17] I should be happy if I could see, before I die, the proposed improvement of the law of nations established. The miseries of mankind would be diminished by it, and the happiness of millions secured and promoted. If the practice of privateering could be profitable to any civilized nation, it might be so to us Americans, since we are so situated on the globe, as that the rich commerce of Europe with the West Indies, consisting of manufactures, sugars, &c. is obliged to pass before our doors, which enables us to make short and cheap cruises, while our own commerce is in such bulky, low priced articles as that ten of our ships taken by you are not equal in value to one of yours, and you must come far from home at a great expense to look for them. I hope therefore that this proposition, if made by us, will appear in its true light, as having humanity only for its motive. I do not wish to see a new Barbary rising in America, and our long extended coast occupied by piratical States. I fear lest our privateering success in the two last wars, should already have given our people too strong a relish for that most mischievous kind of gaming, mixed blood; and if a stop is not now put to the practice, mankind may hereafter be more plagued with American corsairs, than they have been and are with the Turkish. Try, my friend, what you can do, in procuring for your nation the glory of being, though the greatest naval power, the first who voluntarily relinquished the advantage that power seems to give them, of plundering others, and thereby impeding the mutual communications among men of the gifts of God, and rendering miserable multitudes of merchants and their families, artizans, and cultivators of the earth, the most peaceable and innocent part of the human species.

With great esteem and affection, I am ever, my dear friend, yours most sincerely,

B. FRANKLIN.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, May 9th, 1783.

Dear Sir,

We have yet had no information from you subsequent to the signature of preliminary articles by France, Spain, and Great Britain; though we have seen a declaration for the cessation of hostilities signed by you, Mr Adams, and Mr Jay.

We grow every day more anxious for the definitive treaty, since we have as yet discovered no inclination in the enemy to evacuate their ports; and in sending off the slaves, they have directly infringed the provisional treaty, though we on our part have paid the strictest regard to it. This will be more fully explained by the enclosed copy of a letter from General Washington, containing a relation of what passed between him and General Carleton at a late interview. Let me again entreat, that no doubt may be left in the treaty relative to the time and manner of evacuating their ports here. Without more precision and accuracy in this than we find in the provisional articles, we shall soon be involved in new disputes with Great Britain.

Our finances are still greatly embarrassed. You may in part see our distress, and the means Congress are using to relieve themselves, by the enclosed pamphlet, which I wish you and your colleagues to read, but not to publish.

The enclosed resolution imposes a new task upon you. I hope you will find no great difficulty in procuring the small augmentation to the loan which it requires. Be assured that it is extremely necessary to set us down in peace.

None of the States, though frequently called upon, have sent me the estimates of their losses by the ravages of the British, except Connecticut and Rhode Island, and their accounts are extremely imperfect. Such as they are I enclose them. For my own part, I have no great expectation that any compensation for these losses will be procured; however, if possible it

should be attempted. Commissioners might be appointed to ascertain them here.

Great part of the prisoners are on their way to New York, and the whole will be sent in a few days. They will amount to about six thousand men.

Our ports begin to be crowded with vessels. There is reason to fear that a superabundance of foreign articles will, in the end, produce as much distress as the want of them has heretofore occasioned.

I have the honor to be, &c.

ROBERT R. LIVINGSTON.

ROBERT R. LIVINGSTON TO B. FRANKLIN.

Philadelphia, May 31st, 1783.

Sir,

I informed you sometime since, that I had written to the Court of Appeals on the subject of the Nossa Senhora da Soledado San Miguel e Almas, and laid before them the papers you sent me. The cause has since been determined in such a way as will, I hope, be satisfactory to her Portuguese Majesty. I enclose the copy of a letter from the first Judge of the Court of Appeals on that subject.

Nothing has yet been done as to the acceptance of your resignation, nor will, as I believe, anything be done very hastily. Many think your task will not be very burdensome now, and that you may enjoy in peace the fruit of your past labors.

As this will probably be the last letter, which I shall have the pleasure of writing to you in my public character, I beg leave to remind you of the affairs of the Alliance and the Bon Homme Richard, which are still

unsettled. I must also pray you not to lose sight of the vessels detained by his Danish Majesty. This will be a favorable opportunity to press for their restitution. I do not see how they can decently refuse to pay for them. Great Britain is bound in honor to make them whole again.

Preparations for the evacuation of New York still go on very slowly, while the distress of our finances has compelled us to grant furloughs to the greater part of our army.

If it were possible to procure any addition to the last six millions, it would be extremely useful to us at present.

An entire new arrangement with respect to our foreign department is under consideration. What its fate will be, I know not.

I am, &c.

ROBERT R. LIVINGSTON.

TO ROBERT R. LIVINGSTON.

Passy, June 12th, 1783.

Sir,

I wrote to you fully by a vessel from Nantes, which I hope will reach you before this. If not, this may inform you that the ratification of the treaty with Sweden is come, and ready to be exchanged when I shall receive that from Congress; that the treaty with Denmark is going on, and will probably, be ready before the commission for signing it arrives from Congress. It is on the plan of that proposed by Congress for Sweden.

Portugal has likewise proposed to treat with us, and the Ambassador has earnestly urged me to give him a plan for the consideration of his Court, which I have accordingly done, and he has forwarded it. The Congress will

send commissions and instructions for concluding these treaties to whom they may think proper; it is only upon the old authority, given, by a resolution, to myself with Messrs Deane and Lee, to treat with any European powers, that I have ventured to begin these treaties in consequence of overtures from those Crowns.

The definitive treaty with England is not yet concluded, their Ministry being unsettled in their minds as to the terms of the commercial part; nor is any other definitive treaty yet completed here, nor even the preliminaries signed of one between England and Holland. It is now five months since we have had a line from you, the last being dated the 13th of January; of course we know nothing of the reception of the preliminary articles, or the opinion of Congress respecting them. We hoped to receive before this time such instructions as might have been thought proper to be sent to us for rendering more perfect the definitive treaty. We know nothing of what has been approved or disapproved. We are totally in the dark, and therefore, less pressing to conclude, being still (as we have long been) in daily expectation of hearing from you. By chance only, we learn that Barney is arrived, by whom went the despatches of the Commissioners, and a considerable sum of money. No acknowledgment of the receipt of that money is yet come to hand, either to me or M. Gerard. I make no doubt that both you and Mr Morris have written, and cannot imagine what has become of your letters.

With great esteem, &c.

B. FRANKLIN.

P. S. I beg leave to recommend to your civilities the bearer of this, Dr Bancroft, whom you will find a very intelligent, sensible man, well acquainted with the state of affairs here, and who has heretofore been employed in the service of Congress. I have long known him, and esteem him highly.

B. F.

THE AMBASSADOR FROM SWEDEN TO B. FRANKLIN.

Translation.

Paris, June 13th, 1783.

Sir,

I have just received his Majesty's ratification of the treaty of commerce concluded with the United States, which I will have the honor to send you as soon as it can be exchanged for the one from Congress.

Permit me, Sir, on this occasion to repeat the request which the Ambassador has made you respecting Mr Franklin, your grandson. He had the honor to tell you, that it would afford the King a pleasure to have a person residing with him, in the capacity of the Minister of Congress, who bears your name in conjunction with such estimable qualifications as young Mr Franklin possesses. He charged me before he departed, to repeat to you the same assurances, and you will allow me to add, on my part, my best wishes for the success of this matter.

I have the honor to be, &c.

LE BARON DE STAEL.

FROM THE GRAND MASTER OF MALTA TO B. FRANKLIN.

Translation.

Malta, June 21st, 1783.

Sir,

I received with the most lively sensibility the medal, which your Excellency sent me, and the value I set upon this acquisition leaves my gratitude unbounded. This monument of American liberty has a distinguished place in my cabinet.

Whenever chance or commerce shall lead any of your fellow citizens or their vessels into the ports of my Island, I shall receive them with the greatest welcome. They shall experience from me every assistance they may claim, and I shall observe with infinite pleasure any growing connexion between that interesting nation and my subjects, especially if it will tend to convince your Excellency of the distinguished sentiments with which I am, Sir, &c.

The Grand Master,

ROHAN.

TO HENRY LAURENS.

Passy, July 6th, 1783.

Dear Sir,

We have been honored with several of your letters, and we have talked of writing to you, but it has been delayed. I will therefore write a few lines in my private capacity.

Our negotiations go on slowly, every proposition being sent to England, and answers not returning very speedily.

Captain Barney arrived here last Wednesday, and brought despatches for us as late as the first of June. The preliminary articles are ratified. But General Carleton, in violation of those articles, has sent away a great number of negroes, alleging, that freedom having been promised them by a proclamation, the honor of the nation was concerned, &c. Probably another

reason may be, that if they had been restored to their masters, Britain could not have hoped anything from such another proclamation hereafter.

Mr Hartley called yesterday to tell us, that he had received a letter from Mr Fox, assuring him that our suspicions of affected delays or change of system on their side were groundless; and that they were sincerely desirous to finish as soon as possible. If this be so, and your health will permit the journey, I could wish your return as soon as possible. I want you here on many accounts, and should be glad of your assistance in considering and answering our public letters. There are matters in them of which I cannot conveniently give you an account at present.

Nothing could be more seasonable than success in the project you proposed, but we have now very little expectation.

Please to give my love to your valuable and amiable son and daughter, and believe me, with sincere esteem, &c.

B. FRANKLIN.

**FROM M. ROSENCRONE, MINISTER OF DENMARK, TO
B. FRANKLIN.**

Translation.

Copenhagen, July 8th, 1783.

Sir,

It was with the greatest alacrity, that I laid before his Majesty the letter you did me the honor to write to me, as also the project of a treaty of amity and commerce that accompanied it. The King observed, with the greatest satisfaction, the assurances contained in that letter, of the good disposition of Congress to form connexions of amity and commerce with his kingdoms,

such connexions being equally conformable to the interests of the two States, and to his Majesty's sincere desire to cement, by every possible means, that harmony, union, and confidence, which he wishes to establish forever between his Crown and the United States.

The enclosed *Counter Project* differs in nothing essential from the project sent by you, being drawn up entirely conformable to the same principles, which you will be certainly convinced of, Sir, by the note explaining the reasons for adding some articles, and only giving a different turn to others, so that I flatter myself, that I shall soon hear that you are perfectly satisfied with them, having observed the most perfect reciprocity carefully established throughout.

As to the object mentioned in the letter with which you have honored me, you already know, Sir, his Majesty's generous intentions towards the individuals in question, and his Majesty is the more induced to avail himself of the first opportunity to manifest these intentions, as he thinks he may reasonably hope that Congress will also consider them as a distinguished proof of his friendship and esteem for that respectable body.

There remains nothing further for me to add, but that the King will adopt with great pleasure the most proper means to accelerate the conclusion of the treaty, which we have begun. For myself, it will be the most agreeable part of my office, Sir, to assist in perfecting such happy connexions with a minister of such universal reputation as yourself; and it is with sentiments of the most distinguished regard, that I have the honor to be &c.

ROSENCRONE.

Counter Project of a Treaty with Denmark.

Translation.

Counter Project of a Treaty of Amity and Commerce between his Majesty, the King of Denmark and Norway, and the United States of America.

His Majesty, the King of Denmark and Norway, and the United States of America, wishing to fix in an equitable and permanent manner the regulations necessary in the commerce, which they are desirous to establish between their respective countries, conceive that they cannot accomplish this object better, than by taking as the basis for their conventions, the most perfect equality and reciprocity, leaving to each party the liberty of making such interior regulations, with respect to commerce and navigation, as shall appear suitable, and founding the advantages of commerce on reciprocal utility, and the just laws of free competition. It is in consequence of these principles, and of mature deliberation, that the contracting parties have agreed upon the following articles.

ARTICLE I.

There shall be a firm, inviolable, and universal peace, and a true and sincere friendship, between his Majesty, the King of Denmark and Norway, his heirs and successors, on the one part, and the United States of America on the other, and between the citizens and subjects of the said powers, and likewise between the countries, islands, cities, and places situated within their respective jurisdictions, and the people and inhabitants thereof, of whatever rank or condition they may be, without exception of persons or places.

ARTICLE II.

The subjects of his Majesty, the King of Denmark and Norway, may frequent the countries and latitudes of the United States, reside and traffic there in all kinds of merchandise and effects, the importation or exportation whereof is not, or shall not be prohibited, and in all places where the navigation or commerce are not, or shall not be reserved solely for the citizens and inhabitants of the United States; and they shall not pay in the ports, harbors, roads, countries, islands, cities, and places of the United States, other or greater duties or imposts of any kind or denomination whatever, than such as the most favored nations pay, or shall pay. They

shall, moreover, enjoy all the rights, liberties, privileges, and exemptions, with respect to trade, navigation, and commerce, which the most favored nations do or shall enjoy, and they shall also conform to the laws and ordinances, which the said nations are, or shall be bound to observe, whether in passing from one port to another of the dominions of the said States, or in returning from any part, or to any part of the world whatever.

ARTICLE III.

In like manner, the citizens and inhabitants of the United States of America may frequent the States of his Majesty, the King of Denmark and Norway, reside and traffic there in all kinds of merchandise and effects, the importation or exportation whereof is not, or shall not be prohibited, and in all places where the navigation and commerce are not, or shall not be reserved solely to his Danish Majesty's subjects, and they shall not pay in the ports, harbors, roads, countries, islands, cities, and places belonging to his said Majesty, other or greater duties and imposts of any kind or denomination whatever, than such as the most favored nations do, or shall pay. They shall, moreover, enjoy all the rights, liberties, privileges, and exemptions, which the most favored nations do, or shall enjoy, and they shall also conform to the laws and ordinances which the said nations are, or shall be bound to observe, whether in passing from one port to another of his Danish Majesty's dominions, or in going to, or returning from any part of the world whatever. And the United States of America, with their subjects and inhabitants, shall allow his Danish Majesty's subjects peaceably to enjoy their rights in the countries, islands, establishments, and seas, in the East and West Indies, without molestation or opposition.

ARTICLE IV.

His Majesty, the King of Denmark and Norway, shall use every means in his power to protect and defend all the vessels and effects belonging to the citizens or inhabitants of the said United States of America, as shall be in his ports, harbors, or roads, or in the vicinity of his territories, countries, islands, cities, and places, as far as his jurisdiction extends, as to the sea, and shall use his efforts to recover and cause to be restored to the lawful

proprietors, the vessels and effects which shall be taken from them within the extent of his said jurisdiction, and his ships of war, or any other convoys whatever, sailing under his authority, shall, on all occasions where there may be a common enemy, take under their protection all the vessels belonging to the citizens or inhabitants of the United States, or any of them which may be holding the same course, or going the same route, and they shall defend the said ships as long as they shall hold the same course, or follow the same route, against every attack, force, or violence of the common enemy, in the same manner as they are bound to defend and protect the vessels belonging to his said Majesty's subjects.

ARTICLE V.

In like manner, the said United States and their ships of war, sailing under their authority, shall protect and defend, in conformity with the preceding article, all the vessels and effects belonging to the subjects of his Danish Majesty, and shall use all their efforts to recover and cause to be restored the said vessels and effects, which shall have been taken within the extent of the jurisdiction of the said States, and each of them.

ARTICLE VI.

It is agreed and determined that every merchant, captains of merchant vessels, or others, his Danish Majesty's subjects, shall have entire liberty in all places within the dominions and jurisdiction of the United States of America, to manage themselves, their own affairs, and to employ whomsoever they please to manage them, and they shall not be obliged to make use of any interpreter or broker, nor to pay them any fee, unless they make use of them; and with respect to the time and manner of loading or unloading their ships and whatever belongs to them, they shall always be considered and treated as the most favored nations, and shall pay no fee or salary, which the said nations are not bound to pay in similar cases. The citizens, inhabitants, and subjects of the United States of America shall reciprocally have and enjoy the same privileges and liberties in all the places belonging to his Majesty, the King of Denmark and Norway.

ARTICLE VII.

Whenever one of the contracting parties shall be at war with other powers, the communication and free commerce of the subjects of the other party with the States of the said powers, shall not on that account be interrupted. On the contrary, in this case it is agreed and stipulated, that every ship and vessel of the neutral party may freely navigate from port to port, and on the coasts of the States at enmity with the other party, and that the vessels and ships being free, shall likewise secure the liberty of merchandise; so that everything shall be judged free which shall be found on board of the vessels belonging to the subjects of one of the contracting parties, although the loading, or part of it, should belong to the enemies of one of them; it being, nevertheless, well understood, that contraband goods shall be always excepted; and it is also agreed, that this same liberty shall extend to the persons of such as shall be found on board of the free vessel, even though they should be enemies of one of the two contracting parties, and they shall not be taken from on board the said vessels, unless they are military characters, and actually in the service of the enemy.

ARTICLE VIII.

The merchant vessels of one of the two contracting parties, coming either from a port belonging to the enemy, or from their own, or a neutral port, and navigating towards a port of an enemy of the other, shall be bound every time they shall be required, to exhibit, as well on the high seas as in port, their passports, or sea letters, and other public documents, which shall expressly prove that their loading is not of that kind, which is prohibited as contraband; it being well understood, nevertheless, that in all cases, where such merchant vessels shall be escorted by one or more vessels of war, the simple declaration of the officer commanding the convoy, that these vessels do not carry any contraband goods, shall be considered as fully sufficient, and they shall not require to examine the papers of the escorted vessels.

ARTICLE IX.

It shall no sooner be found by the sea letters, passports, or other public documents, or by the verbal declaration of the commanding officer of the convoy, that the merchant vessels are not laden with contraband goods, than they shall be at liberty to continue their voyage without any hinderance; but if, on the contrary, the exhibition of the said passports or other documents, in case the vessels are not escorted, tends to discover that the said vessels carry merchandise reputed contraband, consigned to an enemy's port, it shall not, however, be permitted to break open the hatches of the said vessels, nor to open any chest, case, trunk, bale, package, or cask, which shall be found on board, or to displace or overturn the least part of the merchandise, whether the vessel belongs to his Danish Majesty's subjects, or to the citizens or inhabitants of the United States, until the cargo has been landed in presence of the officers of the Courts of Admiralty, and that the inventory has been made of it. And it shall not be permitted to sell, exchange, or alienate the merchandise reputed contraband, in any manner whatever, before trial has been held and legally finished, to declare them contraband, and that the Courts of Admiralty shall have pronounced them confiscated, without any prejudice, nevertheless, to the vessels or to the merchandise, which by virtue of the treaty shall be considered free. It shall not be permitted to retain these merchandises under pretence, that they have been intermixed with the contraband merchandise, and still less confiscate them as legal prizes. In case where a part only, and not the whole of the loading, shall consist of contraband merchandises, and that the commander of the vessel consents to deliver them up to the privateer, which shall have discovered them, then the captain, who shall have made the prize, after having received the merchandise, must immediately release the vessel, and shall not in any wise prevent the continuation of his voyage; but in case the contraband merchandise cannot all be taken on board the captor, then the captain of the said vessel shall be at liberty, notwithstanding the offer to deliver the contraband goods, to conduct the master to the nearest port, in conformity to what is prescribed above.

ARTICLE X.

In order to obviate entirely every disorder and violence, it is stipulated, that whenever the merchant vessels and ships of the subjects and inhabitants of one of the two parties, navigating alone, shall be met by any vessel of war,

privateer, or armed vessel of the other party, the said vessels of war, privateers, or armed vessels, shall remain on their part constantly out of cannonshot, and shall not send above two or three men in their boats on board the merchant vessels or ships, to examine the passports or other documents, which shall prove the property and cargoes of the said vessels or ships. Such of the vessels of war, privateers, or armed vessels of the one party, as shall molest or damage in any manner whatever the ships or vessels of the other, shall be obliged to answer for it in their persons and property, and consequently, to render satisfaction for all damage and interest over and above the reparation due for the insult shown the flag.

ARTICLE XI.

It is agreed that everything that is found laden by the respective subjects or inhabitants on board of vessels belonging to the enemies of the other party, or to their subjects, shall be confiscated without distinction of prohibited merchandise, in like manner as though it belonged to the enemy, excepting always such effects and merchandise as shall have been put on board of said vessels, before the declaration of war, or even after said declaration, if, at the time of lading, it was unknown, so that the merchandises of the subjects of the two contracting parties, whether they are of the number termed contraband or otherwise, which, as has just been said, shall have been laden on board of a vessel belonging to the enemy before the war, or even after the declaration, when it was not known, shall in no wise be subject to confiscation, but shall be faithfully and *bona fide* returned without delay to their proprietors who shall claim them, it being well understood, nevertheless, that it shall not be permitted to carry into the enemy's ports merchandise of a contraband nature. And in order that every dissension may be avoided, it is agreed, that after the term of six months being elapsed from the declaration of war, the respective subjects, from whatever part of the world they may come, shall not allege the ignorance mentioned in the present article.

ARTICLE XII.

All vessels and merchandise of whatever nature soever, whenever they shall have been recovered from the hands of pirates on the high seas, shall be brought into some port of one of the two States, and shall be delivered to the care of the officers of the said port, in order to be restored entire to their true proprietor, as soon as he shall have duly and sufficiently proved his property.

ARTICLE XIII.

The ships of war belonging to the two parties, as also those of their subjects which are armed, shall conduct at full liberty wheresoever they please, the prizes they shall have made from their enemies, without being obliged to pay any other duties than such as the most favored nations; the said vessels or the said prizes, on entering into the ports of his Danish Majesty, or of the said United States, shall not be subject to be stopped or seized, nor shall the officers of the places have any power to take cognizance of the validity of the said prizes, which shall go out, and be freely conducted in full liberty, to the places mentioned in the commissions, which the captains of the said vessels shall be obliged to produce.

ARTICLE XIV.

In order to favor as much as possible the commerce on both sides, it is agreed, that if a war should happen between his Majesty, the King of Denmark and Norway, and the United States of America, (which God forbid) nine months after the declaration of war shall be granted to the subjects on both sides to collect, sell, and transport freely, the merchandise and effects belonging to them, and to withdraw themselves; and if anything is taken from them, or if any injury is done to them during the above prescribed time, by one of the two parties, full and entire satisfaction shall be given them in this respect.

ARTICLE XV.

No subject of his Majesty, the King of Denmark and Norway, shall take a commission or letter of marque (to arm any vessel or vessels, for the

purpose of acting as a privateer against the said United States, or any of them, or against their subjects, people, or inhabitants, or against their property, or that of any among them) from any Prince whatever, with whom the said United States shall be at war. In like manner no citizen, subject, or inhabitant of the said United States, or of any of them, shall demand or accept of any commission or letter of marque (to arm any vessel or vessels, to cruise against the subjects of his said Majesty, or any of them, or their property) from any Prince or State whatever, with whom his Majesty shall be at war; and if any one of either nation should take such commissions or letter of marque, he shall be punished as a pirate.

ARTICLE XVI.

In case the vessels of the subjects and inhabitants of one of the two contracting parties should approach the coasts of the other, without however designing to enter into the port, or to discharge the cargo, or to break bulk after having entered, they shall be at liberty to depart, or to pursue their voyage without molestation, in the same manner as is practiced by the vessels belonging to the most favored nations.

ARTICLE XVII.

The liberty of navigation and commerce, mentioned in the 7th article of this treaty, shall extend to all kinds of merchandises, excepting those which are designated by the name of contraband. Under this name of contraband, or prohibited merchandise, are only to be comprehended, arms, cannon, powder, matches, pikes, swords, lances, spears, halberts, mortars, petards, grenades, saltpetre, fusils, balls, bucklers, helmets, drums, coats of mail, and other arms of that kind fit to arm soldiers, swivels, shoulder belts, horses with their equipages, and all other instruments of war whatever, excepting always the quantity that may be necessary for the defence of the vessel and such as compose the crew. All other effects and merchandise not expressly designated above, of whatever kind or denomination they may be, and however fit they may be, even for the building, the repairing, and equipment of vessels, or for the making of any machine or warlike instrument by land or by sea, shall not be considered as contraband, and

they may consequently be transported and conducted in the freest manner by the subjects of the two contracting parties to places belonging to the enemy, excepting, nevertheless, such as shall be actually besieged, blocked up or invested, and such shall only be considered so, where the vessels of the power that attacks shall be so near, and posted in such a manner, as that there shall be evident danger to enter.

ARTICLE XVIII.

The passports or sea letters, which shall prove the property of the neutral vessels, according to the tenor of the 8th Article of the present treaty, shall be prepared and distributed according to the model which shall be agreed on. Every time that the vessel shall have returned to its own country, it shall be furnished with new passports of the like kind; at least, these passports must not be of an older date than two years after the time the vessel has returned last to its own country. Moreover, the vessels being loaded, must be provided with such certificates, or manifests, or other public documents, as are commonly given to vessels which depart from the ports from whence they have last sailed, containing a specification of the cargo, of the place from whence the vessel has departed, and that of her destination, in order that it may be known whether there are any contraband effects on board of the vessels, and whether they are destined to carry them to an enemy's country, or not. If the names of the persons to whom the effects on board belong, are not expressed in the said documents, this omission shall not, however, give cause for confiscation, as the freedom of the vessel secures the freedom of the effects.

ARTICLE XIX.

Should it happen that the ships or vessels of one of the two contracting parties, or of their subjects, should strike against the rocks, or strand, or be shipwrecked on the coast of the other, the respective subjects shall enjoy both for their persons and their ships and vessels, effects and merchandise, all the aid and assistance possible, as the inhabitants of the country, and shall only pay the same expenses and duties, which the proper subjects of

the State on whose coasts they shall have stranded or have been shipwrecked, are subject to in similar cases.

ARTICLE XX.

If the subjects or inhabitants of one of the two parties, compelled by storm, or by the pursuit of pirates, or of the enemy, or by any other accident, find themselves constrained to take refuge with their ships in the rivers, bays, ports, and roads belonging to the other, they shall be received and treated with every humanity and kindness, and they shall be permitted likewise to refresh and to furnish themselves at a just price with every kind of provisions, and everything necessary for the maintenance and support of their persons, and for the reparation of their ships, provided they carry on no commerce contrary to the laws and ordinances of the place or port into which they have entered.

ARTICLE XXI.

It is agreed, that the subjects of each of the contracting parties, and their ships, vessels, merchandise, and effects, shall not be subject to an embargo or detention in any of the countries, islands, towns, places, ports, or domains whatever of the other party, for any military expedition, public or private use, in any manner whatever, and in cases of seizure, detentions, or arrests for debts contracted, or faults committed by any subject of one of the parties in the States of the other, the said seizures, detentions, or arrests shall be made only by order and authority of the justice, and according to the ordinary means; and with regard to debts and faults, process ought to be made by way of equity, and agreeably to the forms of the justice of the place.

ARTICLE XXII.

The two contracting parties have mutually granted permission to have in their respective ports, consuls, vice consuls, agents, and commissaries, which they shall appoint themselves, and whose functions shall be regulated

by a particular convention whenever either of the parties wish to establish it.

ARTICLE XXIII.

The subjects of his Majesty, the King of Denmark and Norway, may in the country of the United States of America dispose of their effects by testament, donation, or otherwise; and their heirs, subjects of his said Majesty, shall succeed them, without any impediment in all their effects, moveable and immoveable, either by testament or ab intestat; so that they may take possession of the inheritance, either by themselves, or by attorney, and dispose of it as they please, after having discharged the different duties established by the laws of the State where the said succession shall have been left; and in case that the heirs of the said dead subjects should be absent or minors, and that the deceased shall not have appointed guardians or executors, the property left shall then be inventoried by the Notary Public, or by the magistrate of the place, and disposed of in such manner that they may be kept and preserved for the legal proprietors; and, supposing that there should arise a dispute about such inheritance among several pretenders, then the Judges of the places where the effects of the deceased shall be found, shall decide the process by a definitive sentence agreeably to the laws of the country. The contents of the present article shall be reciprocally observed, with respect to the subjects of the United States of America, in the States of his Danish Majesty.

ARTICLE XXIV.

A perfect liberty of conscience shall be granted to the subjects and inhabitants of each party within the respective States, and they may, consequently, freely attend the worship of their religion without being disturbed or molested, provided that they submit, as to the public demonstration, to the ordinances and laws of the country.

ARTICLE XXV.

His Majesty, the King of Denmark and Norway, and the United States of North America, have agreed, that the present treaty shall be in full effect during the space of fifteen successive years, reckoning from the day of its ratification; and the two contracting parties reserve to themselves the power of renewing it at the expiration of that time.

ARTICLE XXVI.

The present treaty shall be ratified on both sides, and the ratifications shall be exchanged within the space of eight months from the date of the signature.

EXPLANATION OF THE COUNTER PROJECT

Of a Treaty of Amity and Commerce received from Denmark.

Translation.

Although the simple comparison of the enclosed Counter Project, with the Project proposed by Mr Franklin, evidently proves the attention that has been shown on our part here to the negotiation set on foot, and which, in the main, has been agreed upon as to the principles, which have been adopted for the basis of a treaty, as well as the most essential stipulations, we could not avoid, however, explaining more distinctly certain points of the Counter Project; and the eclaircissemens that will be given of them will at the same time prove the amicable intentions, with which it has been endeavored to facilitate the consequences of an affair too important to the welfare of the two nations, not to merit the attention and cares of the powers which govern them.

The second and third articles will regulate the conduct of the reciprocal subjects in the respective States. Taking things as they now are, it is easily perceived that the stipulations of the said articles, although apparently reciprocal, give however superior advantages to the United States. For, according to the system of commerce, which subsists in Denmark and Norway, the most favored nations pay there no greater imposts or other duties than the proper subjects of the State, and the proper subjects of the

State enjoy considerable diminutions with respect to unprivileged nations, as well for their vessels as their merchandise. It is evident, therefore, that the subjects of the United States of America being received among the most favored nations in Denmark and Norway, would not only gain by that means a competition with the said most favored, but also a preference over several other nations, even in the neighborhood of Denmark, with whom no treaties of commerce have been concluded, and who, therefore, are still in the number of unprivileged, as to navigation and commerce, in the States of his Danish Majesty.

On the other hand, if the advantages, which would result from these articles, as to the commerce of the subjects of Denmark in the territories of the United States, are considered, the said advantages would be confined to the simple competition with every other foreign nation; but, as there is no nation that we know of, which actually pays in the territories of the United States other or greater duties, than what the privileged or most favored nations are bound to pay, the Danish subjects would not find in the territories of the United States the same preference, which the subjects of the United States would obtain in Denmark and Norway. The preceding considerations are not advanced for the purpose of taking any advantage, but they are pointed out only to show the impartiality and good will, with which we desire to contribute to the mutual connexions of amity and commerce between the two nations, who will, it is to be hoped, more and more unite. As to the periods inserted in these articles, they do not essentially change the stipulations projected by the Minister of the United States; they only add therein some proper determination to prevent every misunderstanding on the subject of the reciprocal liberties and privileges, and to guaranty some rights, which the subjects of his Danish Majesty enjoy with respect to certain countries and colonies, as Iceland, Greenland, Finmarson, Faro, the establishment of Tranquibar, and, in certain respects, the Islands of St Croix, St Thomas, and St John; and if, at any time, it should please the United States to reserve for its own subjects similar rights, with respect to certain places, or certain kinds of merchandise, and to exclude therefrom every foreign nation, the same stipulations shall then suit their intentions. In like manner the same mark of reciprocity has been given to every change, excepting only the last clause of the third article, which has not been susceptible of the same turn, considering the local position of

the United States, and which, undoubtedly for the same reason, has been inserted in the treaty of the United States with Holland, in the same manner as it is here in the Counter Project.

After having pointed out the privileges, which the subjects of his Danish Majesty enjoy in the islands of St Croix, St Thomas, and St John, it will not be useless to observe, that it is only the commerce and navigation between the said islands and Europe, which Denmark has appropriated to itself in any manner; but the commerce, which is conducted between those islands and North America, although always subject to the same interior regulations on both sides, has been for a long while authorised by his Danish Majesty's commercial laws, and his said Majesty has, moreover, granted to the islands of St Thomas and St John privileges, which will give the commerce of these islands, with America in particular, a freer course, and very different from that of the commerce of the colony. The advantages, which the United States may derive from a more close commercial connexion with the said privileged islands, and whose ports, distinguished by the security they insure to vessels, appear to invite the commercial subjects of America, are too evident to need any circumstantial detail. There shall only be added, therefore, to what has been said, this single observation, that his Danish Majesty, having it very much at heart to open every possible road to industry and commerce, finds himself much disposed to favor the connexion in question, and that, if for this purpose the United States, after the conclusion of the present treaty, which shall fix the general commercial points between the contracting parties, should desire a particular convention to agree upon the reciprocal and local advantages proper to accomplish this object, his said Majesty would willingly come into it, provided that the United States were equally disposed on their part to facilitate the affair.

The fourth and fifth articles have only been modified in order to remove the doubts, which might arise with respect to the defence and protection due to the vessels belonging to the respective subjects. It is only in cases of attack from the common enemy, against whom it was conceived possible to confine each other by these articles; for in case that one of the parties was at war and the other at peace, the vessels belonging to the neutral party could not protect the vessels belonging to the belligerent party, without taking a part and quitting its neutrality.

The privileges of the most favored nations undoubtedly guaranty to the respective subjects the favors mentioned in the sixth, eleventh, fourteenth, and seventeenth articles of the Project. For this reason it has appeared, that it would be better to reduce the points detailed in these articles to the number of general liberties of the most favored nations, and this is what has been done in the sixth, thirteenth, sixteenth, and twentyfirst articles of the Counter Project, contenting ourselves here with the assurance, that the subjects of his Danish Majesty in the cases mentioned here, as well as in any other, shall be regarded and treated in the territories within the dominions of the United States as the most favored nations, and in expectation that the United States will not demand anything more in these respects.

The seventh, eighth, and ninth articles of the Counter Project only contain the spirit and ideas of the fifteenth, seventh, and eighth articles of the Project, to which has been added some further stipulations, conformable to the principles, which have been established and acknowledged with respect to the commerce of neutral nations in time of war.

The term of two months, which has been proposed in the ninth article, and that of six months named in the twelfth article of the Project, did not appear to correspond with the extent of commerce, which is carried on, particularly with the East Indies, nor with difficulties, which the merchants or inhabitants sometimes find in arranging their affairs to change their abode. It is for this reason, that instead of two and six months, the terms six and nine months have been substituted, it being nevertheless well understood, that from the friendship and good understanding, which is about being strengthened between the two nations, the subjects of neither party will ever have cause to take refuge on account of a rupture.

Although no fault has been found as to the merchandise, which the Project has called contraband, or not contraband in time of war, there is however reason to think, that it would still be better for the conveniency of the contracting parties, only to name in express terms the contraband, without detailing the free merchandise, with respect to which no better explanation could be given, as it appears, than by agreeing that everything that is not called contraband shall be comprehended in the number of free merchandise; consequently, on this principle, the seventeenth article of the

Counter Project has been arranged, and at the end of the article has been added the definition of a port that is blocked up.

The new articles that have been proposed on this side principally turn on reciprocal points and favors, which justice and equity demand, and which humanity and the rights of nations ordinarily grant, even without stipulation by express conventions; but it is usage that has introduced them into treaties, and it is conceived that it is no less necessary to conform thereto.

As to the passports mentioned in the eighteenth article of the Counter Project, there is nothing easier than to agree about them after the conclusion of the treaty, or at the time when it is concluded, and the models that shall be agreed on can then be officially exchanged and published in case of necessity.

GIACOMO F. CROCCO TO B. FRANKLIN.

Cadiz, July 15th, 1783.

Sir,

His Imperial Majesty, the Emperor of Morocco, did me the honor to appoint me to be the bearer of his answer to the United Provinces of North America, with which he is willing to sign a treaty of peace and commerce, and in consequence has already given orders to his Captains of men of war not to molest on the open seas the American vessels, which agreeable news I have already given to Mr Richard Harrison. According to my instructions, I am to accompany to the Court of Morocco the Ambassador, that will be appointed to conclude the treaty of peace. I presume, that your Excellency is already acquainted, that the travelling expenses and other charges of ambassadors, or envoys, sent to Europe by the Emperor of Morocco, are to be paid by the Court, or Republic, that demands his friendship. In a few days I intend to set out for Madrid, where I will remain till I receive your Excellency's answer to this letter, directed to William Carmichael, the

United States Chargé d'Affaires at the Court of Spain, who, I make no doubt, will receive orders to supply me with the money I may want on the occasion.

As soon as I arrive at Paris I shall have the satisfaction to entertain at large your Excellency on the present negotiation, not doubting it will soon be concluded to the advantage of both Courts.

In the meantime I remain, most truly, Sir, &c.

GIACOMO FRANCISCO CROCCO.

P. S. I was obliged to call on a friend to write you this letter in English, otherwise I could only do it in the Italian language.

G. F. C.

TO ROBERT R. LIVINGSTON.

Passy, July 22d, 1783.

Sir,

You have complained, sometimes with reason, of not hearing from your Foreign Ministers; we have had cause to make the same complaint, six full months having intervened between the latest date of your preceding letters and the receipt of those by Captain Barney. During all this time we were ignorant of the reception of the Provisional Treaty, and the sentiments of Congress upon it, which, if we had received sooner, might have forwarded the proceedings on the Definitive Treaty, and, perhaps, brought them to a conclusion, at a time more favorable than the present. But these occasional interruptions of correspondence are the inevitable consequences of a state of war, and of such remote situations. Barney had a short passage, and arrived some days before Colonel Ogden, who also brought despatches

from you, all of which are come safe to hand. We, the Commissioners, have in our joint capacity written a letter to you, which you will receive with this.

I shall now answer yours of March the 26th, May the 9th, and May the 31st.

It gave me great pleasure to learn by the first, that the news of peace diffused general satisfaction. I will not now take it upon me to justify the apparent reserve, respecting this Court, at the signature, which you disapprove. We have touched upon it in our general letter. I do not see, however, that they have much reason to complain of that transaction. Nothing was stipulated to their prejudice, and none of the stipulations were to have force, but by a subsequent act of their own. I suppose, indeed, that they have not complained of it, or you would have sent us a copy of the complaint, that we might have answered it. I long since satisfied Count de Vergennes about it here. We did what appeared to all of us best at the time, and if we have done wrong, the Congress will do right, after hearing us, to censure us. Their nomination of five persons to the service seems to mark, that they had some dependence on our joint judgment, since one alone could have made a treaty by direction of the French Ministry as well as twenty.

I will only add, that with respect to myself, neither the letter from M. Marbois, handed us through the British negotiators, (a suspicious channel) nor the conversations respecting the fishery, the boundaries, the royalists, &c. recommending moderation in our demands, are of weight sufficient in my mind to fix an opinion, that this Court wished to restrain us, in obtaining any degree of advantage we could prevail on our enemies to accord, since those discourses are fairly resolvable, by supposing a very natural apprehension, that we, relying too much on the ability of France to continue the war in our favor, and supply us constantly with money, might insist on more advantages than the English would be willing to grant, and thereby lose the opportunity of making peace, so necessary to all our friends.

I ought not, however, to conceal from you, that one of my colleagues is of a very different opinion from me in these matters. He thinks the French Minister one of the greatest enemies of our country, that he would have straitened our boundaries, to prevent the growth of our people; contracted our fishery, to obstruct the increase of our seamen; and retained the royalists

among us, to keep us divided; that he privately opposes all our negotiations with foreign Courts, and afforded us, during the war, the assistance we received only to keep it alive, that we might be so much the more weakened by it; that to think of gratitude to France is the greatest of follies, and that to be influenced by it would ruin us. He makes no secret of his having these opinions, expresses them publicly, sometimes in presence of the English Ministers, and speaks of hundreds of instances which he could produce in proof of them. None, however, have yet appeared to me, unless the conversations and letter abovementioned are reckoned such.

If I were not convinced of the real inability of this Court to furnish the further supplies we asked, I should suspect these discourses of a person in his station might have influenced the refusal, but I think they have gone no further than to occasion a suspicion, that we have a considerable party of antigallicans in America, who are not tories, and consequently, to produce some doubts of the continuance of our friendship. As such doubts may hereafter have a bad effect, I think we cannot take too much care to remove them; and it is, therefore, I write this to put you on your guard, (believing it my duty, though I know that I hazard by it a mortal enmity) and to caution you respecting the insinuations of this gentleman against this Court, and the instances he supposes of their ill will to us, which I take to be as imaginary as I know his fancies to be, that Count de Vergennes and myself are continually plotting against him, and employing the newswriters of Europe to depreciate his character, &c. But as Shakspeare says, "Trifles light as air," &c. I am persuaded, however, that he means well for his country, is always an honest man, often a wise one, but sometimes, and in some things, absolutely out of his senses.

When the commercial article, mentioned in yours of the 26th, was struck out of our proposed preliminaries by the British Ministry, the reason given was, that sundry acts of Parliament still in force were against it, and must be first repealed, which I believe was really their intention, and sundry bills were accordingly brought in for that purpose; but new Ministers with different principles succeeding, a commercial proclamation totally different from those bills has lately appeared. I send enclosed a copy of it. We shall try what can be done in the Definitive Treaty towards setting aside that proclamation, but if it should be persisted in, it will then be a matter worthy the attentive discussion of Congress, whether it will be most prudent to

retort with a similar regulation in order to force its repeal, (which may possibly tend to bring on another quarrel) or to let it pass without notice, and leave it to its own inconvenience, or rather impracticability in the execution, and to the complaints of the West India planters, who must all pay much dearer for our produce under those restrictions.

I am not enough master of the course of our commerce to give an opinion on this particular question, and it does not behove me to do it; yet I have seen so much embarrassment and so little advantage in all the restraining and compulsive systems, that I feel myself strongly inclined to believe, that a State, which leaves all her ports open to all the world upon equal terms, will, by that means, have foreign commodities cheaper, sell its own productions dearer, and be on the whole the most prosperous. I have heard some merchants say, that there is ten per cent difference between *Will you buy?* and *Will you sell?* When foreigners bring us their goods, they want to part with them speedily, that they may purchase their cargoes and despatch their ships, which are at constant charges in our ports; we have then the advantage of their *Will you buy?* And when they demand our produce, we have the advantage of their *Will you sell?* And the concurring demands of a number also contribute to raise our prices. Thus both those questions are in our favor at home, against us abroad.

The employing, however, of our own ships and raising a breed of seamen among us, though it should not be a matter of so much private profit as some imagine, is nevertheless of political importance, and must have weight in considering this subject.

The judgment you make of the conduct of France in the peace, and the greater glory acquired by her moderation than even by her arms, appears to me perfectly just. The character of this Court and nation seems, of late years, to be considerably changed. The ideas of aggrandisement by conquest are out of fashion, and those of commerce are more enlightened and more generous than heretofore. We shall soon, I believe, feel something of this in our being admitted to a greater freedom of trade with their Islands. The wise here think France great enough; and its ambition at present seems to be only that of justice and magnanimity towards other nations, fidelity and utility to its allies.

The Ambassador of Portugal was much pleased with the proceedings relating to their vessel, which you sent me, and assures me they will have a good effect at his Court. He appears extremely desirous of a treaty with our States; I have accordingly proposed to him the plan of one (nearly the same with that sent me for Sweden) and after my agreeing to some alterations, he has sent it to his Court for approbation. He told me at Versailles, last Tuesday, that he expected its return to him on Saturday next, and anxiously desired that I would not despatch our packet without it, that Congress might consider it, and, if approved, send a commission to me or some other Minister to sign it.

I venture to go thus far in treating, on the authority only of a kind of general power, given formerly by a resolution of Congress to Messrs Franklin, Deane, and Lee; but a special commission seems more proper to complete a treaty, and more agreeable to the usual forms of such business.

I am in just the same situation with Denmark; that Court by its Minister here has desired a treaty with us. I have proposed a plan formed on that sent me for Sweden; it has been under consideration some time at Copenhagen, and is expected here this week, so that I may possibly send that also by this conveyance. You will have seen by my letter to the Danish Prime Minister, that I did not forget the affair of the prizes. What I then wrote, produced a verbal offer made me here, of £10,000 sterling, proposed to be given by his Majesty to the captors, if I would accept it as a full discharge of our demand. I could not do this, I said, because it was not more than a fifth part of the estimated value. In answer, I was told that the estimation was probably extravagant, that it would be difficult to come at the knowledge of their true value, and that whatever they might be worth in themselves, they should not be estimated as of such value to us when at Bergen, since the English probably watched them, and might have retaken them in their way to America; at least, they were at the common risk of the seas and enemies, and the insurance was a considerable drawback; that this sum might be considered as so much saved for us by the King's interference; for that if the English claimants had been suffered to carry the cause into the common courts, they must have recovered the prizes by the laws of Denmark; it was added, that the King's honor was concerned, that he sincerely desired our friendship, but he would avoid, by giving this sum in the form of a present to the captors, the appearance of its being exacted from him as the

reparation of an injury, when it was really intended rather as a proof of his strong disposition to cultivate a good understanding with us.

I replied, that the value might possibly be exaggerated; but that we did not desire more than should be found just on inquiry, and that it was not difficult to learn from London what sums were insured upon the ships and cargoes, which would be some guide; and that a reasonable abatement might be made for the risk; but that the Congress could not, in justice to their mariners, deprive them of any part that was truly due to those brave men, whatever abatement they might think fit to make (as a mark of their regard for the King's friendship) of the part belonging to the public; that I had, however, no instructions or authority to make any abatement of any kind, and could, therefore, only acquaint Congress with the offer, and the reasons that accompanied it, which I promised to state fully and candidly (as I have now done) and attend their orders, desiring only that it might be observed, we had presented our complaint with decency, that we had charged no fault on the Danish government, but what might arise from inattention or precipitancy, and that we had intimated no resentment, but had waited with patience and respect the King's determination, confiding, that he would follow the equitable disposition of his own breast, by doing us justice as soon as he could do it with conveniency; that the best and wisest Princes sometimes erred, that it belonged to the condition of man, and was, therefore, inevitable, and that the true honor in such cases consisted not in disowning or hiding the error, but in making ample reparation; that, though I could not accept what was offered on the terms proposed, our treaty might go on, and its articles be prepared and considered, and, in the mean time, I hoped his Danish Majesty would reconsider the offer, and make it more adequate to the loss we had sustained. Thus that matter rests; but I hourly expect to hear further, and perhaps may have more to say on it before the ship's departure.

I shall be glad to have the proceedings you mention respecting the brig *Providentia*. I hope the equity and justice of our Admiralty Courts, respecting the property of strangers, will always maintain their reputation, and I wish particularly to cultivate the disposition of friendship towards us, apparent in the late proceedings of Denmark, as the Danish Islands may be of use to our West India commerce, while the English impolitic restraints continue.

The Elector of Saxony, as I understand from his Minister here, has thoughts of sending one to Congress, and proposing a treaty of commerce and amity with us. Prussia has likewise an inclination to share in a trade with America, and the Minister of that Court, though he has not directly proposed a treaty, has given me a packet of lists of the several sorts of merchandise they can furnish us with, which he requests me to send to America for the information of our merchants.

I have received no answer yet from Congress to my request of being dismissed from their service. They should, methinks, reflect, that if they continue me here, the faults I may henceforth commit, through the infirmities of age, will be rather theirs than mine. I am glad my journal afforded you any pleasure. I will, as you desire, endeavor to continue it. I thank you for the pamphlet; it contains a great deal of information respecting our finances. We shall, as you advise, avoid publishing it. But I see they are publishing it in the English papers. I was glad I had a copy authenticated by the signature of Secretary Thompson, by which I could assure Count de Vergennes, that the money contract I had made with him was ratified by Congress, he having just before expressed some uneasiness to me at its being so long neglected. I find it was ratified soon after it was received, but the ratification, except in that pamphlet, has not yet come to hand. I have done my best to procure the further loan directed by the resolution of Congress. It was not possible. I have written on that matter to Mr Morris. I wish the rest of the estimates of losses and mischiefs were come to hand; they would still be of use.

Mr Barclay has in his hands the affair of the Alliance and Bon Homme Richard. I will afford him all the assistance in my power, but it is a very perplexed business. That expedition, though for particular reasons under American commissions and colors, was carried on at the King's expense, and under his orders. M. de Chaumont was the agent appointed by the Minister of Marine to make the outfit. He was also chosen by all the captains of the squadron, as appears by an instrument under their hands, to be their agent, receive, sell, and divide prizes, &c. The Crown bought two of them at public sale, and the money I understand is lodged in the hands of a responsible person at L'Orient. M. de Chaumont says he has given in his accounts to the Marine, and that he has no more to do with the affair, except to receive a balance due to him. That account, however, is I believe

unsettled, and the absence of some of the captains is said to make another difficulty, which retards the completion of the business. I never paid or received anything relating to that expedition, nor had any other concern in it, than barely ordering the Alliance to join the squadron at M. de Sartine's request. I know not whether the other captains will not claim a share in what we may obtain from Denmark, though the prizes were made by the Alliance, when separate from the squadron. If so, that is another difficulty in the way of making abatement in our demand, without their consent.

I am sorry to find, that you have thoughts of quitting the service. I do not think your place can be easily well supplied. You mention, that an entire new arrangement, with respect to foreign affairs, is under consideration. I wish to know whether any notice is likely to be taken in it of my grandson. He has now gone through an apprenticeship of near seven years in the Ministerial business, and is very capable of serving the States in that line, as possessing all the requisites of knowledge, zeal, activity, language, and address. He is well liked here, and Count de Vergennes has expressed to me in warm terms his very good opinion of him. The late Swedish Ambassador, Count de Creutz, who has gone home to be Prime Minister, desired I would endeavor to procure his being sent to Sweden, with a public character, assuring me, that he should be glad to receive him there as our Minister, and that he knew it would be pleasing to the King.^[18] The present Swedish Ambassador has also proposed the same thing to me, as you will see by a letter of his, which I enclose.^[19] One of the Danish Ministers, M. Walterstorff, who will probably be sent in a public character to Congress, has also expressed his wish, that my grandson may be sent to Denmark. But it is not my custom to solicit employments for myself, or any of my family, and I shall not do it in this case. I only hope, that if he is not to be employed in your new arrangement, I may be informed of it as soon as possible, that while I have strength left for it, I may accompany him in a tour to Italy, returning through Germany, which I think he may make to more advantage with me than alone, and which I have long promised to afford him, as a reward for his faithful service, and his tender filial attachment to me.

July 25th. While I was writing the above M. Walterstorff came in, and delivered me a packet from M. Rosencrone, the Danish Prime Minister, containing the project of the treaty with some proposed alterations, and a

paper of reasons in support of them.^[20] Fearing that we should not have time to copy them, I send herewith the originals, relying on his promise to furnish me with copies in a few days. He seemed to think, that the interest of the merchants is concerned in the immediate conclusion of the treaty, that they may form their plans of commerce, and wished to know whether I did not think my general power, above mentioned, sufficient for that purpose. I told him I thought a particular commission more agreeable to the forms, but if his Danish Majesty would be content for the present with the general authority, formerly given to me, I believed I might venture to act upon it, reserving by a separate article to Congress the power of shortening the term in case any part of the treaty should not be to their mind, unless the alteration of such part should hereafter be agreed on.

The Prince de Deuxponts was lately at Paris, and applied to me for information, respecting a commerce which is desired between the Electorate of Bavaria and America. I have it also from a good hand at the Court of Vienna, that the Emperor is desirous of establishing a commerce with us from Trieste, as well as Flanders, and would make a treaty with us if proposed to him. Since our trade is laid open, and no longer a monopoly to England, all Europe seems desirous of sharing in it, and for that purpose to cultivate our friendship. That it may be better known everywhere, what sort of people, and what kind of government they will have to treat with, I prevailed with our friend, the Duc de la Rochefoucault, to translate our book of Constitutions into French, and I presented copies to all the Foreign Ministers. I send you one herewith. They are much admired by the politicians here, and it is thought will induce considerable emigrations of substantial people from different parts of Europe to America. It is particularly a matter of wonder, that in the midst of a cruel war, raging in the bowels of our country, our sages should have the firmness of mind to sit down calmly and form such complete plans of government. They add considerably to the reputation of the United States.

I have mentioned above the port of Trieste, with which we may possibly have a commerce, and I am told that many useful productions and manufactures of Hungary may be had extremely cheap there. But it becomes necessary first to consider how our Mediterranean trade is to be protected from the corsairs of Barbary. You will see by the enclosed copy of a letter^[21] I received from Algiers, the danger two of our ships escaped last

winter. I think it not improbable, that those rovers may be privately encouraged by the English to fall upon us, and to prevent our interference in the carrying trade; for I have in London heard it is a maxim among the merchants, that if *there were no Algiers, it would be worth England's while to build one*. I wonder, however, that the rest of Europe do not combine to destroy those nests, and secure commerce from their future piracies.

I made the Grand Master of Malta a present of one of our medals in silver, writing to him a letter, of which I enclose a copy;^[22] and I believe our people will be kindly received in his ports; but that is not sufficient; and perhaps now we have peace, it will be proper to send Ministers, with suitable presents, to establish a friendship with the Emperor of Morocco, and the other Barbary States, if possible. Mr Jay will inform you of some steps, that have been taken by a person at Alicant, without authority, towards a treaty with that Emperor. I send you herewith a few more of the abovementioned medals, which have given great satisfaction to this Court and nation. I should be glad to know how they are liked with you.

Our people, who were prisoners in England, are now all discharged. During the whole war, those who were in Forton prison, near Portsmouth, were much befriended by the constant charitable care of Mr Wren, a Presbyterian minister there, who spared no pains to assist them in their sickness and distress, by procuring and distributing among them the contributions of good Christians, and prudently dispensing the allowance I made them, which gave him a great deal of trouble, but he went through it cheerfully. I think some public notice should be taken of this good man. I wish the Congress would enable me to make him a present, and that some of our universities would confer upon him the degree of Doctor.

The Duke of Manchester, who has always been our friend in the House of Lords, is now here as Ambassador from England. I dine with him today, 26th, and if anything of importance occurs, I will add it in a postscript. Be pleased to present my dutiful respects to the Congress, assure them of my most faithful services, and believe me to be, with great and sincere esteem, Sir, &c.

B. FRANKLIN.

PLAN OF A TREATY WITH PORTUGAL.

Plan of a Treaty of Amity and Commerce between Her Most Faithful Majesty, the Queen of Portugal and Algarva, and the United States of North America.

Her Most Faithful Majesty, the Queen of Portugal and Algarva, and the United States of North America, anxious to fix in an equitable and permanent manner the regulation, which ought to be observed with regard to the commerce they wish to establish between their respective countries, conceive that they cannot more effectually attain this end than by observing as the basis of their arrangement the most perfect equality and reciprocity, allowing each party the liberty of making such interior regulations respecting their commerce and navigation as may best suit them, resting the advantages of commerce on its reciprocal utility and the laws of a just concurrence. In consequence of these principles, and of a mature deliberation, Her Most Faithful Majesty and the United States have agreed on the following articles.

ARTICLE I.

There shall be a firm, inviolable, and universal peace, and a sincere amity between Her Most Faithful Majesty, the Queen of Portugal, her heirs and successors, and the United States of North America, as well with respect to the citizens and subjects of the said two parties as their people, islands, cities, and places situated within their respective jurisdictions, and between their people and inhabitants of all classes, without exception of persons and places, similar to what has been already established with the most favorite powers.

ARTICLE II.

The subjects of Her Most Faithful Majesty may freely frequent and reside in the United States, and traffic in all kinds of effects and merchandises,

whose importation or exportation is not or shall not be prohibited, and they shall not pay in the ports, harbors, roads, countries, islands, cities, and places within the United States, other or greater duties or imposts of any kind whatever, than such as the most favored nations are, or shall be, obliged to pay. And they shall enjoy all the rights, liberties, privileges, immunities, and exemptions with respect to trade, navigation, and commerce, whether in going from one port of the said States to another, or in going there, or returning from any part or to any part of the world whatever, which the said nations do or shall enjoy.

ARTICLE III.

In the like manner the citizens and inhabitants of the United States of North America shall freely frequent and reside in the States of Her Most Faithful Majesty in Europe; also in Madeira and the Azores, and trade there in all kinds of effects and merchandises, the importation and exportation of which is not, or shall not be prohibited, and they shall not pay in the ports, harbors, roads, countries, islands, cities, and places of the Queen of Portugal, other or greater duties of any kind whatsoever than such as the most favored nations are, or shall be, bound to pay; and they shall enjoy all the rights, liberties, privileges, immunities, and exemptions as to trade, navigation, and commerce, whether in going from one port of Her Most Faithful Majesty's States to another, or in going there, or returning from any part of the world whatever, which the said nations do or shall enjoy.

ARTICLE IV.

Her Most Faithful Majesty shall use every means in her power to protect and defend all the vessels and property belonging to the subjects, people, and inhabitants of the said United States, which shall be in her ports, harbors, or roads, against any violence whatever that may be committed by the subjects of her said Majesty, by punishing such as shall violate these principles.

ARTICLE V.

The preceding article, shall be in like manner reciprocally and exactly observed on the part of the United States, with respect to the vessels and property belonging to the subjects of her said Majesty, which shall be found in their ports, harbors, or roads, against any violence that may be committed by the subjects of the United States.

ARTICLE VI.

If any squadrons or vessels of war touch at the ports, or enter into the seas in the neighborhood of Her Most Faithful Majesty's States, they shall conform to the regulations already established with respect to the other most favored maritime powers.

ARTICLE VII.

The United States of America likewise oblige themselves reciprocally to observe with exactitude the stipulations contained in the above article.

ARTICLE VIII.

It is likewise agreed and determined that every merchant, captains of merchant vessels, or other subjects of Her Most Faithful Majesty, shall have entire liberty in all places within the dominion or jurisdiction of the United States of America, to manage themselves their own affairs, and to employ therein whomsoever they please, and that they shall not be obliged to make use of any interpreter or broker, nor to pay them any fee, unless they do employ them. Moreover, the masters of the vessels shall not be obliged, in loading or discharging their vessels, to employ workmen, appointed for that purpose by public authority, but they shall be entirely free to discharge or load themselves their vessels, and to employ, in loading or discharging, such persons as they shall think proper for the purpose, without paying any fee, under the title of salary, to any other person whatever, and they shall not be obliged to put any kind of merchandise in other vessels, or to receive them on board, and wait to be loaded any longer time than what they please, and all and every of the citizens, people, and inhabitants of the United States of America shall have, and shall reciprocally enjoy, the same

privileges and liberties in all the aforesaid places within Her Most Faithful Majesty's jurisdiction in Europe. And, as to what concerns contraband goods, which may be introduced in merchant vessels belonging to either nation, they shall be obliged to submit to the visit of the officers appointed in the two States, to prevent the said contraband, and, for that purpose to conform to the established regulations, or such as shall be established within the respective States.

ARTICLE IX.

Full and entire liberty of conscience shall be granted to the inhabitants and subjects of each party, and no one shall be molested with respect to his worship, provided he submits, as far as respects the public demonstration, to the laws of the country. The inhabitants and subjects of either party, who shall die in the territory of the other party, shall be permitted to be buried in suitable and decent places, which shall be assigned for that purpose, and the two contracting powers shall provide, each within its own jurisdiction, that the respective subjects and inhabitants may obtain certificates of death, in case they shall be required to deliver them.

ARTICLE X.

The subjects of the contracting parties may, within the respective States, freely dispose of their property, moveable and immoveable, either by testament, donation, or otherwise, in favor of such persons as they may think proper, and their heirs, wherever they may dwell, shall receive these successions, even ab intestato, either in person or by attorney, without the necessity of obtaining letters of naturalization. These inheritances, as well as the capitals and effects, which the subjects of the two parties, in changing their residence, would carry from the place of their abode, shall be exempted from any duties on the part of the government of the two respective States. The contents of this article shall in no wise derogate from the ordinances published against emigrations, or which shall hereafter be promulgated within the dominions of the two powers, the exercise of which they reserve to themselves.

ARTICLE XI.

If, hereafter, a war should happen between Portugal and the United States, which God forbid, the space of nine months shall be granted to the merchants of either country residing at that time in the other, to collect their debts and put their affairs in order, and they may depart with all their effects without let or molestation. All fishermen, farmers, artisans, or manufacturers, unarmed and residing in cities, places, and villages not fortified, who work for the subsistence and welfare of mankind, and who peaceably exercise their respective employments, shall be allowed to continue their occupations without molestation from the armed forces of the enemy, in whose power they may fall through the events of war; but should it be necessary to take anything from them for the use of the army, they shall be paid for them at a reasonable price. All traders and merchants, whose vessels shall not be armed for war, but employed in the commerce of exchanging the productions of different countries, and thereby rendering the wants, conveniences, and comforts of life easier to be obtained and more universal, shall be permitted to pass freely, and without molestation. Neither of the contracting powers shall grant a commission to any privateer, authorising it to take or destroy such merchant vessels, or to interrupt such commerce.

ARTICLE XII.

In order to remove and prevent on both sides every difficulty and misunderstanding, that commonly happen respecting merchandise heretofore denominated contraband, and which shall be judged such by the powers of Europe in their respective treaties, that is to say, arms and warlike stores, it has been agreed, that in case where one of the contracting parties shall be engaged in a war against any other nation, none of these articles carried in the vessels, or by the subjects of one of the parties to the enemies of the other, shall be considered contraband under any pretext whatever, nor be confiscated or taken away as such from any individual. It shall, nevertheless, be lawful to stop such vessels, and to detain them as long as the captors shall think necessary to prevent the inconveniencies or damages that may result from the continuation of their voyage, by paying, however, to the proprietors a reasonable compensation for the loss, which such

detention may occasion; moreover, the captors shall be permitted to use, in whole or in part, the warlike stores thus detained, provided that they pay the full value thereof to the proprietors.

ARTICLE XIII.

All vessels and merchandise of whatsoever kind, that shall be recovered from pirates of the high seas, shall be brought into some port of one of the two States and delivered to the care of the officers of the said port, in order that they may be completely restored to their true proprietor, as soon as he shall have duly and sufficiently proved his property.

ARTICLE XIV.

None of Her Most Faithful Majesty's subjects shall take a commission or letter of marque to arm any vessel or vessels for the purpose of acting as privateers against the United States, or any of them, or against their subjects, people, or inhabitants, or against their property, or that of the inhabitants of either of them, from any prince whatever, with whom the said States shall be at war. In like manner, no citizen, or subject, or inhabitant of the aforesaid United States, or any of them, shall demand any commission or letter of marque to arm any vessel or vessels to cruise against the subjects of Her Most Faithful Majesty, or any of them, or their property, from any prince or State whatever with whom the said Queen shall be at war; and if any one belonging to either nation takes such commission or letter of marque, he shall be punished as a pirate.

ARTICLE XV.

In case the vessels, subjects, and inhabitants of one of the two contracting parties shall approach the coasts of the other, without designing, however, to enter into the port, or, after having entered, without intention to discharge their cargo, or to break bulk, they shall be at liberty to depart or to pursue their voyage without molestation.

ARTICLE XVI.

It is stipulated by the present treaty, that free vessels shall secure the liberty of the persons who shall be on board, even should they be the enemies of one of the two contracting parties, and they shall not be taken out of the said vessels unless they are military characters, and actually in the enemy's service.

ARTICLE XVII.

The two contracting parties mutually grant permission to maintain in their respective ports, consuls, vice consuls, agents, and commissaries, whose functions shall be regulated by a particular convention, whenever either party may be pleased to establish it.

ARTICLE XVIII.

The present treaty shall be ratified on both sides, and the ratifications shall be exchanged in the space of eight months, or sooner if possible, reckoning from the date of the signature.

ARTICLE XIX.

Her Most Faithful Majesty, the Queen of Portugal and Algarva, and the United States of North America, agree that the present treaty shall be in full force, reckoning from the date of its ratification, and the two contracting parties reciprocally promise to observe it exactly.

FROM THE POPE'S NUNCIO TO B. FRANKLIN.

Translation.

The Apostolical Nuncio has the honor to send Mr Franklin the enclosed note, which he requests he will be pleased to forward to the Congress of the United States of North America, and support it with his credit.

July 28th, 1783.

NOTE.

Before the revolution, which has just been completed in North America, the Catholics and missionaries of those provinces depended, as to their spiritual concerns, on the Apostolical Vicar, resident in London. It is well known that this arrangement can no longer exist; but as it is essential that the Catholic subjects of the United States should have an ecclesiastic to govern them in their religious concerns, the congregation *de Propagandâ Fide* existing at Rome for the establishment and conservation of missions, has come to the determination of proposing to Congress to establish, in some city of the United States of North America, one of their Catholic subjects, with the powers of Apostolical Vicar, and in the character of Bishop, or simply in quality of Apostolical Prefect.

The establishment of an Apostolical Vicar Bishop appears the most eligible, the more so as the Catholic subjects of the United States would find themselves in a situation to receive confirmation and orders in their own country, without being obliged to go for that purpose to the country of a foreign power. And as it might sometimes happen, that among the subjects of the United States, there might be no person in a situation to be charged with the spiritual government, either as Bishop or Apostolical Prefect, it would be necessary, in such circumstances, that Congress should consent to choose him from among the subjects of a foreign nation the most friendly with the United States.

TO COUNT DE VERGENNES.

Passy, August 16th, 1783.

Sir,

I have the honor to inform your Excellency, that the English Ministry do not agree to any of the propositions that have been made, either by us or by their Minister here; and they have sent over a plan for the definitive treaty, which consists merely of the preliminaries formerly signed, with a short introductory paragraph, and another at the conclusion, confirming and establishing the said preliminary articles. My colleagues seem inclined to sign this with Mr Hartley, and so to finish the affair.

I am, with respect, Sir, your Excellency's, &c.

B. FRANKLIN.

M. DE RAYNEVAL TO B. FRANKLIN.

Translation.

Versailles, August 29th, 1783.

Sir,

I have informed the Count de Vergennes of the difficulty, which Mr Hartley has made to signing at Versailles, and this Minister has directed me to say, that nothing ought to prevent your signing at Paris on Wednesday next, the day proposed for the signature of the other treaties; but I request you to fix the hour with Mr Hartley at nine o'clock in the morning, and to send here an express immediately after your signature is completed.

M. de Vergennes is desirous of being informed of the completion of your labors at the same time with his own. You receive for Wednesday a note of invitation, as well as for your colleagues and Mr Hartley; I presume that the latter will make no difficulty.

I have the honor to be, Sir, with perfect consideration, your most obedient
humble servant,

DE RAYNEVAL.

TO THE PRESIDENT OF CONGRESS.

Passy, August 31st, 1783.

Sir,

After a continued course of treating for nine months, the English Ministry have at length come to a resolution to lay aside, for the present, all the new propositions, that have been made and agreed to, their own as well as ours; and they offer to sign again as a Definitive Treaty, the articles of November the 30th, 1782, the ratifications of which have already been exchanged. We have agreed to this, and on Wednesday next, the third of September, it will be signed, with all the definitive treaties, establishing a general peace, which may God long continue.

I am, with great respect, &c.

B. FRANKLIN.

TO DAVID HARTLEY.

Passy, September 6th, 1783.

My Dear Friend,

Enclosed is my letter to Mr Fox. I beg you would assure him, that my expressions of esteem for him are not mere professions. I really think him a *great* man, and I would not think so if I did not believe he was at bottom, and would prove himself a *good* one. Guard him against mistaken notions of the American people. You have deceived yourselves too long with vain expectations of reaping advantage from our little discontents. We are more thoroughly an enlightened people, with respect to our political interests, than perhaps any other under Heaven. Every man among us reads, and is so easy in his circumstances as to have leisure for conversations of improvement, and for acquiring information. Our domestic misunderstandings, when we have them, are of small extent, though monstrously magnified by your microscopic newspapers. He who judges from them, that we are on the point of falling into anarchy, or returning to the obedience of Britain, is like one who being shown some spots in the sun should fancy, that the whole disk would soon be overspread with them, and that there would be an end of daylight. The great body of intelligence among our people, surrounds and overpowers our petty dissensions, as the sun's great mass of fire diminishes and destroys his spots. Do not, therefore, any longer delay the evacuation of New York, in the vain hope of a new revolution in your favor, if such a hope has indeed had any effect in occasioning the delay. It is now nine months since the evacuations were promised. You expect with reason, that the people of New York should do your merchants justice in the payment of their old debts; consider the injustice you do them in keeping them so long out of their habitations, and out of their business, by which they might have been enabled to make payment. There is no truth more clear to me than this, that the great interests of our two countries is a thorough reconciliation. Restraints on the freedom of commerce and intercourse between us, can afford no advantage equivalent to the mischief they will do, by keeping up ill humor and promoting a total alienation. Let you and me, my dear friend, do our best towards advancing and securing that reconciliation. We can do nothing, that will in a dying hour afford us more solid satisfaction.

I wish you a prosperous journey, and a happy sight of your friends. Present my best respects to your good brother and sister, and believe me ever, with sincere and great esteem, yours affectionately,

B. FRANKLIN.

TO JOHN JAY.

Passy, September 10th, 1783.

Sir,

I have received a letter from a very respectable person in America, containing the following words, viz.

"It is confidently reported, propagated, and believed by some among us, that the Court of France was at the bottom against our obtaining the fishery and territory in that great extent, in which both are secured to us by the treaty; that our Minister at that Court favored, or did not oppose this design against us, and that it was entirely owing to the firmness, sagacity, and disinterestedness of Mr Adams, with whom Mr Jay united, that we have obtained these important advantages."

It is not my purpose to dispute any share of the honor of that treaty, which the friends of my colleagues may be disposed to give them, but having now spent fifty years of my life in public offices and trusts, and having still one ambition left, that of carrying the character of fidelity at least to the grave with me, I cannot allow that I was behind any of them in zeal and faithfulness. I therefore think, that I ought not to suffer an accusation, which falls little short of treason to my country, to pass without notice, when the means of effectual vindication are at hand. You, Sir, were a witness of my conduct in that affair. To you and my other colleagues I appeal, by sending to each a similar letter with this, and I have no doubt of your readiness to do a brother Commissioner justice, by certificates, that will entirely destroy the effect of that accusation.

I have the honor to be, with much esteem, &c.

B. FRANKLIN.

JOHN JAY TO B. FRANKLIN.

Passy, September 11th, 1783.

Sir,

I have been favored with your letter of yesterday, and will answer it explicitly. I have no reason whatever to believe, that you were averse to our obtaining the full extent of boundary and fishery secured to us by the treaty. Your conduct respecting them throughout the negotiation indicated a strong, a steady attachment to both those objects, and in my opinion promoted the attainment of them.

I remember, that in a conversation, which M. de Rayneval, the first Secretary of Count de Vergennes, had with you and me, in the summer of 1782, you contended for our full right to the fishery, and argued it on various principles.

Your letters to me, when in Spain, considered our territory as extending to the Mississippi, and expressed your opinion against ceding the navigation of that river, in very strong and pointed terms.

In short, Sir, I do not recollect the least difference in sentiment between us respecting the boundaries or fisheries. On the contrary, we were unanimous and united in adhering to, and insisting on them. Nor did I perceive the least disposition in either of us to recede from our claims, or be satisfied with less than we obtained.

I have the honor to be, with great respect and esteem, &c. [\[23\]](#)

JOHN JAY.

JOHN ADAMS TO B. FRANKLIN.

Paris, September 13th, 1783.

Sir,

I have received the letter, which you did me the honor to write me on the 10th of this month, in which you say you have received a letter from a very respectable person in America, containing the following words, viz. "It is confidently reported, propagated, and believed by some among us, that the Court of France was at the bottom against our obtaining the fishery and territory in that great extent, in which both are secured to us by the treaty; that our Minister at that Court favored, or did not oppose this design against us, and that it was entirely owing to the firmness, sagacity, and disinterestedness of Mr Adams, with whom Mr Jay united, that we have obtained those important advantages."

It is unnecessary for me to say anything upon this subject, more than to quote the words which I wrote in the evening of the 30th of November, 1782, and which have been received and read in Congress, viz; "As soon as I arrived in Paris, I waited on Mr Jay, and learned from him the rise and progress of the negotiation. Nothing that has happened, since the beginning of the controversy in 1761, has ever struck me more forcibly or affected me more intimately, than that entire coincidence of principles and opinion between him and me. In about three days I went out to Passy, and spent the evening with Dr Franklin, and entered largely into conversation with him upon the course and present state of our foreign affairs. I told him my opinion without reserve of the policy of this Court, and of the principles, wisdom, and firmness with which Mr Jay had conducted the negotiation in his sickness and my absence, and that I was determined to support Mr Jay to the utmost of my power in pursuit of the same system. The Doctor heard me patiently and said nothing."

"The first conference we had afterwards with Mr Oswald in considering one point and another, Dr Franklin turned to Mr Jay and said, 'I am of your opinion, and will go on with these gentlemen without consulting this Court.' He has accordingly met us in most of our conferences, and has gone on with us in entire harmony and unanimity throughout, and has been able and useful, both by his sagacity and reputation, in the whole negotiation."^[24]

I have the honor to be, very respectfully, Sir,

JOHN ADAMS.

Passy, September 13th, 1783.

Sir,

I received a few days since, the private letter your Excellency did me the honor of writing to me of the 13th of June. I regret with you the resignation of the late Secretary. Your present cares are increased by it, and it will be difficult to find a successor of equal abilities.

We found no difficulty in deciphering the resolution of Congress. The Commissioners have taken no notice of it in our public letter.

I am happy to hear that both the device and workmanship of the medal are approved with you, as they have the good fortune to be by the best judges on this side of the water. It has been esteemed a well-timed, as well as a well-merited compliment here, and has its good effects. Since the two first, which you mention as received, I have sent by different opportunities so many, as that every member of Congress might have one. I hope they are come safe to hand by this time.

I wrote a long letter to Mr Livingston by Mr Barney, to which I beg leave to refer, enclosing a copy.

We had, before signing the definitive treaty, received the ratification of the preliminary articles by his Britannic Majesty, exchanged with us by Mr Hartley for that of the Congress. I send herewith a copy of the first and last clauses.

In a former letter I mentioned the volunteer proceedings of a merchant at Alicant, towards obtaining a treaty between us and the Emperor of Morocco. We have since received a letter from a person who says, as you will see by the copy enclosed, that he is sent by the Emperor to be the bearer of his answer to the United States, and that he is arrived in Spain on his way to Paris. He has not yet appeared here, and we hardly know what answer to give him. I hope the sending a Minister to that Court, as recommended in my last, has been taken into consideration, or at least that

some instructions respecting that nation have been sent to your Minister in Spain, who is better situated than we are for such a negotiation.^[25]

The Minister from Denmark often speaks to me about the proposed treaty, of which a copy went by Mr Barney. No commission to sign it, nor any instructions from Congress relating to it are yet arrived; and though pressed, I have not ventured to do anything further in the affair.

I forward herewith a letter to the Congress from the city of Hamburg.^[26] I understand that a good disposition towards us prevails there, which it may be well to encourage.

No answer has yet been given me from the Court of Portugal, respecting the plan of a treaty concerted between its Ambassador here and me. He has been unwell and much in the country, so that I have not seen him lately. I suspect that the false or exaggerated reports of the distracted situation of our government, industriously propagated throughout Europe by our enemies, have made an impression in that kingdom to our disadvantage, and inclined them to hesitate in forming a connexion with us. Questions asked me, and observations made by several of the foreign Ministers here, convince me that the idle stories of our disunion, contempt of authority, refusal to pay taxes, &c. have been too much credited, and been very injurious to our reputation.

I sent before a copy of the letter I wrote to the Grand Master of Malta, with a present of our medal. With this you will have a copy of his answer.^[27] I send also a copy of a note I received from the Pope's Nuncio.^[28] He is very civil on all occasions, and has mentioned the possibility of an advantageous trade America might have with the Ecclesiastical State, which he says has two good ports, Civita Vecchia, and ——.

This Court continues favorable to us. Count de Vergennes was resolute in refusing to sign the definitive treaty with England before ours was signed. The English Ministers were offended, but complied. I am convinced that Court will never cease endeavoring to disunite us. We shall, I hope, be constantly on our guard against those machinations, for our safety consists in a steady adherence to our friends, and our reputation in a faithful regard to treaties, and in a grateful conduct towards our benefactors.

I send herewith sundry memorials recommended to my care by Count de Vergennes, viz. one respecting a claim of Messieurs Fosters, of Bordeaux, one of M. Pequet, and one of M. Bayard. The Congress will take such notice of them as they shall think proper.

With great esteem and respect, I have the honor to be, &c.

B. FRANKLIN.

TO LEWIS R. MORRIS. [\[29\]](#)

Passy, September 14th, 1783.

Sir,

I received by the Washington the bills and accounts mentioned in yours of the 5th of June, and shall soon send you an account of the disposition of the money.

My account as stated by you appears to be correct.

With much esteem, I have the honor to be, &c.

B. FRANKLIN.

DAVID HARTLEY TO B. FRANKLIN.

Bath, September 24th, 1783.

My Dear Friend,

I am at present at Bath with my dearest sister, whom I have found as well as I could have expected, and I hope with reasonable prospect of recovery in time. I have seen my friends in the ministry, and hope things will go on well; with them I am sure all is right and firm. The chief part of the Cabinet Ministers are out of town, but there will be a full cabinet held in a few days, in which a specific proposition, in the nature of a temporary convention, will be given in instructions to me. I imagine nearly upon the ground of my memorial of May 19th, 1783, which I delivered to the American Ministers, viz. "American ships not to bring foreign manufactures into Great Britain, nor to trade directly between the British West Indies and Great Britain;" all the rest to be as before the war. I expect that something to this effect will be their determination in the affair, and if it should be so, I shall hope not to meet with difficulty on your parts. I want to see some specific beginning. As to any further proposition respecting the trade between Great Britain and the British West Indies, I doubt whether any such can be discussed before the meeting of Parliament. I wish to look forward not only to the continuation of peace between our two countries, but to the improvement of reconciliation into alliance, and therefore I wish the two parties to be disposed to accommodate each other, without the strict account by weights and scales, as between aliens and strangers, actuated towards each other by no other principle than cold and equalizing indifference. Friendly dispositions presumed have their fairest chance of being realized, but if we should set out presuming against them, the good which might have happened may be prevented. Pray remember me to your three colleagues, and to all friends.

Yours, ever most affectionately,

D. HARTLEY.

P. S. I have put in a word for our Quaker article, and I hope with some impression.

TO THE PRESIDENT OF CONGRESS.

Passy, September 27th, 1783.

Sir,

Mr Thaxter, late Secretary of Mr Adams, who is charged with all our despatches, that were intended to go by the French packet boat, writes from L'Orient, that though he arrived there two days before the time appointed for her sailing, he missed reaching her by four hours; but another light vessel was fitting, and would sail the 21st instant, in which he hoped to arrive at New York, nearly as soon as the packet. We shall send duplicates by the next from hence.

In the meantime I enclose a printed copy of the Definitive Treaty, which I hear is ratified. Indeed we have the ratification of the preliminaries.

Mr Hartley, when he left us, expected to return in three weeks, in order to proceed with us in forming a treaty of commerce. The new commission, that was intended for us, is not yet come to hand.

With great respect, I have the honor to be, Sir, &c.

B. FRANKLIN

TO DAVID HARTLEY.

Passy, October 16th, 1783.

My Dear Friend,

I have nothing material to write to you respecting public affairs, but I cannot let Mr Adams, who will see you, go without a line to inquire after your welfare, to inform you of mine, and assure you of my constant respect and attachment.

I think with you, that your Quaker article is a good one, and that men will in time have sense enough to adopt it, but I fear that time is not yet come.

What would you think of a proposition, if I should make it, of a compact between England, France, and America? America would be as happy as the Sabine girls, if she could be the means of uniting in perpetual peace her father and her husband. What repeated follies are those repeated wars! You do not want to conquer and govern one another. Why then should you be continually employed in injuring and destroying one another? How many excellent things might have been done to promote the internal welfare of each country; what bridges, roads, canals, and other useful public works and institutions, tending to the common felicity, might have been made and established with the money and men foolishly spent, during the last seven centuries by our mad wars in doing one another mischief! You are near neighbors and each have very respectable qualities. Learn to be quiet and to respect each other's rights. You are all Christians. One is *The Most Christian King*, and the other *Defender of the Faith*. Manifest the propriety of these titles by your future conduct. "By this," says Christ, "shall all men know that ye are my disciples, if ye love one another." Seek peace, and insure it.

Adieu, yours, &c.

B. FRANKLIN.

TO DAVID HARTLEY.

Passy, October 22d, 1783.

I received my dear friend's kind letter of the 4th instant from Bath, with your proposed temporary convention, which you desire me to show to my colleagues. They are both by this time in London, where you will undoubtedly see and converse with them on the subject. The apprehension you mention, that the cement of the confederation may be annihilated, &c. has not, I think, any foundation. There is sense enough in America to take care of their own china vase. I see much in your papers about our divisions and distractions, but I hear little of them from America; and I know that

most of the letters, said to come from there with such accounts, are mere London fictions. I will consider attentively the proposition abovementioned, against the return of my colleagues, when I hope our commission will have arrived.

I rejoice to hear that your dear sister's recovery advances, and that your brother is well. Please to present my affectionate respects to them, and believe me ever yours, &c.

B. FRANKLIN.

TO THE PRESIDENT OF CONGRESS.

Passy, November 1st, 1783.

Sir,

Enclosed is a copy of my last, which went by the English packet. I heard after I wrote it, that the French packet putting back by contrary winds, Mr Thaxter had an opportunity of getting on board her, and that she sailed the 26th of September.

The mentioned new commission is not yet come to hand. Mr Hartley is not returned, and I hear will stay for the meeting of Parliament, which is to be the 11th instant, and he will not come hither till the recess for the Christmas holidays. Mr Jay went to England about three weeks since on some personal affairs; and Mr Adams followed last week to see that country, and take some exercise during this vacancy of business.

This Court is now at Fontainbleau, but will return to Versailles in a few days. Its good disposition towards us continues. The late failure of payment in the Caisse d'Escompte, an institution similar to the Bank of England, occasioned partly by its having gone too far in assisting the government with money, and the inability of the government to support their credit, though extremely desirous of doing it, is a fresh proof that our not obtaining

a further loan was not occasioned by want of good will to assist us, as some have unjustly supposed, but by a real want of the means. Money is at present unaccountably scarce here; what is arrived and expected in Spain since the peace it is thought will set things right. The government has proposed a second lottery for this year, by which they borrow twentyfour millions, and it is filled readily. This helps, and the Caisse d'Escompte goes on again with its operations, but it is said the interest paid by the lottery plan is nearly seven per cent.

I have received the duplicates of your Excellency's letter, of the 15th of July, to the Commissioners, which is very satisfactory, though it came to hand but lately. The first sent, via New York, has not yet appeared. I have sent copies of it to the Hague and Madrid. The substance is published in several papers.

I have acquainted the Minister of Sweden, that I have received the ratification of the treaty, and he has written to me that he shall be in town in a few days, when he will make the exchange. The conclusion of the Danish treaty waits only for the commission and instructions from Congress. The Ambassador of Portugal informed me lately, that his Court had our proposed plan under consideration, and that we should soon hear from them. I sent it to Congress by Barney, and hear the ship is arrived. A commission and instructions will be wanting for that also, should the Congress be disposed to conclude a treaty with that nation.

I see by the public prints, that the Congress have ratified the contract I made with the Minister here, respecting the loans and aids we had received, but the ratification itself, though directed to be sent me, has never come to hand, and I am often asked for it. I beg it may be forwarded by the first opportunity.

There has been with me lately M. Pierre du Calvet, a merchant of Montreal, who, when our army was in Canada, furnished our generals and officers with many things they wanted, taking their receipts and promissory notes for payment; and when the English repossessed the country, he was imprisoned, and his estate seized, on account of the services he had rendered us. He has shown me the originals of his papers, which I think are genuine. He produced also a quantity of Congress paper, which he says he

received in payment for some of the supplies, and which appeared to me of our first emissions, and yet all fresh and clean, as having passed through no other hands. When he was discharged from prison, he could not obtain permission to go into the United States to claim the debt, but was allowed to go to England; and from thence he came hither to solicit payment from me. Having no authority to meddle with such debts, and the sum being considerable, I refused, and advised him to take passage for America, and make his application to Congress. He said he was grown old, much broken and weakened by near three years' imprisonment, and that the voyage from Canada to London had like to have been too much for him, he being sick all the way; so that he could not think of another, though distressed for want of his money. He appears an honest man, and his case a hard one. I have therefore undertaken to forward his papers, and I beg leave to recommend them to the speedy consideration of Congress, to whom I request you would be pleased to present my dutiful respects, and assure them of my most faithful services.

With great esteem and regard, &c.

B. FRANKLIN.

GIACOMO FRANCISCO CROCCO TO B. FRANKLIN.

Cadiz, November 25th, 1783.

Sir,

On the 15th of July last, I had the honor to acquaint your Excellency of my arrival in Europe, and that I was appointed by his Majesty, the Emperor of Morocco, bearer of the answer to the Congress, Sovereign of the Thirteen United States of North America, and that according to my instructions, I was to meet at Paris the Ambassador, that would be appointed by the Congress, to sign at the Court of Morocco the treaty of peace and commerce, agreeably to the proposals made to his Imperial Majesty, by

Robert Montgomery, in his letter dated at Alicant, the 4th of January, 1783. Since I have been at the Court of Madrid, where I had some commissions from the Emperor, and to see the execution of them, I came to this place, from whence I intend to embark in three or four months for Barbary, unless in the meantime I should receive an answer from your Excellency, with orders, that Mr Richard Harrison should give me for my travelling charges fifteen hundred hard dollars, although the Courts of Europe are accustomed to allow the Ministers of my master at the rate of ten pounds sterling per day, while they are in Europe, to defray their expenses, besides presents for their good offices in those important affairs.

His Imperial Majesty was graciously pleased at my solicitation to agree at the request of Congress, to grant them a treaty of peace, (which other powers in Europe could not obtain but after many years) and my return, without the full execution of his commands, I apprehend may forever indispose him against the United Provinces.

I remain most truly, Sir, &c.

GIACOMO FRANCISCO CROCCO.

TO WILLIAM CARMICHAEL.

Passy, December 15th, 1783.

My Dear Friend,

I am much concerned to find by your letter to my grandson, that you are hurt by my long silence, and that you ascribe it to a supposed diminution of my friendship. Believe me, that is by no means the case, but I am too much harassed by a variety of correspondence, together with gout and gravel, which induce me to postpone doing what I often fully intend to do, and particularly writing, where the urgent necessity of business does not seem to require its being done immediately, my sitting too much at the desk having

already almost killed me, besides, since Mr Jay's residence here, I imagined he might keep you fully informed of what was material for you to know, and I beg you to be assured of my constant and sincere esteem and affection.

I do not know whether you have been informed, that a Mr Montgomery, who lives at Alicant, took upon himself, (for I think he had no authority,) to make overtures last winter in behalf of our States, towards a treaty with the Emperor of Morocco. In consequence of his proceedings I received a letter in August, from a person who acquainted me, that he was arrived in Spain by the Emperor's order, and was to come to Paris, there to receive and conduct to Morocco the Minister of Congress appointed to make that treaty, intimating at the same time an expectation of money to defray his expenses. I communicated the letter to Mr Jay. The conduct of Mr Montgomery appeared to us very extraordinary and irregular, and the idea of a messenger from Morocco coming to Paris to meet and conduct a Minister of Congress appearing absurd and extravagant, as well as the demand of money by a person unknown, I made no answer to the letter, and I know not whether Mr Jay made any to Mr Montgomery, who wrote about the same time. But I have lately received another letter from the same person, a copy of which I enclose, together with my answer open for your perusal, and it is submitted to your discretion whether to forward it or not. The Mr Crocco, who writes to me, having been, as he says, at Madrid, you possibly may know more of him than I can, and judge whether he is really a person in credit with the Emperor, and sent as he pretends to be, or not rather an *Escroc*, as the French call cheats and impostors.

I would not be wanting in anything proper for me to do towards keeping that Prince in good humor with us, till the pleasure of Congress is known, and therefore would answer Mr Crocco if he be in his employ; but am loth to commit myself in correspondence with a *Fripon*. It will be strange if, being at Madrid, he did not address himself to you.

With great and unalterable regard, I am ever, my dear friend, yours most affectionately,

B. FRANKLIN.

TO GIACOMO FRANCISCO CROCCO.

Passy, December 15th, 1783.

Sir,

I have just received the letter you did me the honor of writing to me the 25th past. I did indeed receive your former letter of July, but being totally a stranger to the mentioned proceedings of Mr Montgomery, and having no orders from Congress on the subject, I knew not how to give you any satisfactory answer, till I should receive further information; and I communicated your letter to Mr Jay, Minister of the United States for Spain, in whose district Mr Montgomery is, and who is more at hand than I am for commencing that negotiation.

Mr Jay, who is at present in England, has possibly written to you, though his letter may have miscarried, to acquaint you, that Mr Montgomery had probably no authority from Congress to take the step he has done, and that it was not likely that they, desiring to make a treaty with the Emperor, would think of putting his Majesty to the trouble of sending a person to Paris to receive and conduct their Minister, since they have ships, and could easily land him at Cadiz, or present him at one of the Emperor's ports. We have, however, written to Congress, acquainting them with what we had been informed, of the good and favorable disposition of his Imperial Majesty, to enter into a treaty of amity and commerce with the United States, and we have no doubt but that, as soon as their affairs are a little settled, which, by so severe a war carried on in the bowels of their country, by one of the most powerful nations of Europe, have necessarily been much deranged, they will readily manifest equally good dispositions, and take all the proper steps to cultivate and secure the friendship of a monarch, whose character I know they have long esteemed and respected.

I am, Sir, &c.

B. FRANKLIN.

TO THE PRESIDENT OF CONGRESS.

Passy, December 25th, 1783.

Sir,

Not having heard of the appointment of a new Secretary for Foreign Affairs, I take the liberty of addressing this despatch directly to your Excellency. I received by Captain Barney a letter from the late President, directed to the Commissioners, dated November the 1st, with a set of instructions, dated the 29th of October, a resolution of the same date respecting Hamburg, and another of the 1st of November, relating to Captain Paul Jones, all which will be duly regarded.

Captain Jones, in passing through England, communicated these papers to Mr Adams then at London. Mr Adams, disappointed in not finding among them the commission we had been made to expect, empowering us to make a treaty of commerce with England, wrote to me, that he imagined it might be contained in a packet that was directed to me, and requested to be immediately informed, adding, that in case no such commission was come he should depart directly for Holland; so I suppose he is now there. Mr Laurens is gone to England, with an intention of embarking soon for America. Mr Jay is at Bath, but expected here daily. The English Ministers, the Duke of Manchester and Mr Hartley, are both at present in Parliament. As soon as either of them returns, we shall endeavor to obtain an additional article to the treaty, explaining that mentioned in the instructions.

The affairs of Ireland are still unsettled. The Parliament and volunteers are at variance; the latter are uneasy, that in the late negotiations for a treaty of commerce between England and America, the British Ministers had made no mention of Ireland, and they seem to desire a separate treaty of commerce between America and that kingdom.

It was certainly disagreeable to the English Ministers, that all their treaties for peace were carried on under the eye of the French Court. This began to appear towards the conclusion, when Mr Hartley refused going to Versailles, to sign there with the other powers our definitive treaty, and insisted on its being done at Paris, which we in good humor complied with,

but at an earlier hour, that we might have time to acquaint Count de Vergennes before he was to sign with the Duke of Manchester.

The Dutch definitive treaty was not then ready, and the British Court now insists on finishing it either at London or the Hague. If, therefore, the commission to us, which has been so long delayed, is still intended, perhaps it will be well to instruct us to treat either here or at London, as we may find most convenient.

The treaty may be conducted, even there, in concert and in the confidence of communication with the Ministers of our friends, whose advice may be of use to us.

With respect to the British Court, we should, I think, be constantly upon our guard, and impress strongly upon our minds, that though it has made peace with us, it is not in truth reconciled either to us, or to its loss of us, but still flatters itself with hopes, that some change in the affairs of Europe, or some disunion among ourselves, may afford them an opportunity of recovering their dominion, punishing those who have most offended, and securing our future dependence. It is easy to see by the general turn of the ministerial newspapers, (light things, indeed, as straws and feathers, but like them they show which way the wind blows) and by the malignant improvement their Ministers make, in all the foreign Courts, of every little accident or dissension among us, the riot of a few soldiers at Philadelphia, the resolves of some town meetings, the reluctance to pay taxes, &c. all which are exaggerated, to represent our government as so many anarchies, of which the people themselves are weary, and the Congress as having lost its influence, being no longer respected. I say it is easy to see from this conduct, that they bear us no good will, and that they wish the reality of what they are pleased to imagine. They have, too, a numerous royal progeny to provide for, some of whom are educated in the military line. In these circumstances we cannot be too careful to preserve the friendships we have acquired abroad, and the union we have established at home, to secure our credit by a punctual discharge of our obligations of every kind, and our reputation by the wisdom of our councils; since we know not how soon we may have a fresh occasion for friends, for credit, and for reputation.

The extravagant misrepresentations of our political state in foreign countries, made it appear necessary to give them better information, which I thought could not be more effectually and authentically done, than by publishing a translation into French, now the most general language in Europe, of the Book of Constitutions, which had been printed by order of Congress. This I accordingly got well done, and presented two copies handsomely bound to every foreign Minister here, the one for himself, the other more elegant for his Sovereign. It has been well taken, and has afforded matter of surprise to many, who had conceived mean ideas of the state of civilization in America, and could not have expected so much political knowledge and sagacity had existed in our wilderness. And from all parts I have the satisfaction to hear, that our constitutions in general are much admired. I am persuaded, that this step will not only tend to promote the emigration to our country of substantial people from all parts of Europe, by the numerous copies I shall disperse, but will facilitate our future treaties with foreign Courts, who could not before know what kind of government and people they had to treat with. As, in doing this, I have endeavored to further the apparent views of Congress in the first publication, I hope it may be approved, and the expense allowed. I send herewith one of the copies.

Our treaties with Denmark and Portugal remain unfinished, for want of instructions respecting them from Congress, and a commission empowering some Minister or Ministers to conclude them. The Emperor of Morocco, we understand, has expressed a disposition to make a treaty of amity and commerce with the United States. A Mr Montgomery, who is a merchant settled at Alicant, has been, it seems, rather forward in proposing a negotiation, without authority for so doing, and has embarrassed us a little, as may be seen by some letters I enclose.^[30] Perhaps it would be well for the Congress to send a message to that Prince, expressing their respect and regard for him, till such time as they may judge it convenient to appoint an Ambassador in form, furnished with proper presents to make a treaty with him. The other Barbary States, too, seem to require consideration, if we propose to carry on any trade in the Mediterranean, but whether the security of that trade is of sufficient importance to be worth purchasing, at the rate of the tributes usually exacted by those piratical States, is a matter of doubt, on which I cannot at present form a judgment.

I shall immediately proceed, in pursuance of the first instruction, to take the proper steps for acquainting his Imperial Majesty of Germany with the dispositions of Congress, having some reason to believe the overture may be acceptable. His Minister here is of late extremely civil to me, and we are on very good terms. I have likewise an intimate friend at that Court.

With respect to other powers, it seems best not to make advances at present, but to meet and encourage them when made, which I shall not fail to do, as I have already done those of Sweden, Denmark, and Portugal. Possibly Hamburg, to whom I have forwarded the letter of Congress, may send a Minister to America if they wish for a treaty to conclude it there. They have no Minister here.

I have lately received a memorial from the Minister of Denmark, respecting a ship of that nation, the *Providentia*, taken by one of our privateers and carried into Boston. I enclose a copy of it, and request to be furnished with directions and informations for the answer. It may be well to send me a copy of the proceedings in the Courts. From a perusal of the papers communicated with it, I am satisfied that the cargo was clearly British property.

We have hitherto entered into no engagements respecting the armed neutrality, and, in obedience to the fifth instruction, we shall take care to avoid them hereafter. The treaty between this Court and the United States for regulating the powers, privileges, &c. of consuls, is at length completed, and is transcribing in order to be signed. I hope to transmit a copy by the next packet. I have received the Congress ratification of the two money treaties, which will be soon exchanged, when I shall send copies of them with that of Sweden.

I have given, and shall continue to give, Captain Paul Jones all the assistance in my power, towards recovering the prize money; and I hope it may soon be accomplished.

When Mr Jay returns, I shall desire him to make the inquiry directed in the fourth instruction, respecting the expedition under that Commodore, and report thereon to Congress. In the meantime I can answer respecting one of the questions, that the King paid the whole expense, and that no part of it has ever been placed to the account of Congress. There exists indeed a

demand of one Puchelberg, a person in the employ of M. Schweighauser, of about thirty-thousand livres, for provisions and other things furnished to Captain Landais, after he took the Alliance out of the hands of Captain Jones; but as the ship was at that time under the King's supply, who having borrowed her for the expedition when fitted for sea, and just ready to sail with Mr Adams, had ordered her to be delivered in the same condition, free of all charges accrued, or accruing, by her being in Holland and in L'Orient, and as M. Puchelberg had not only no orders from me to furnish Captain Landais, but acted contrary to my orders given to M. Schweighauser, and contrary to the orders of M. Schweighauser himself, I refused to pay his account, which besides appeared extravagant, and it has never yet been paid.

I shall do my best in executing the third instruction, respecting our claim upon Denmark. I have written to London to obtain if possible an account of the sums insured upon the ships delivered up, as such an account may be some guide in the valuation of the prizes.

A Captain Williams, formerly in the British service, and employed upon the lakes, has given me a paper containing information of the state of the back country. As those informations may possibly be of some use, I send herewith the paper. Mr Carmichael has sent me the accounts of the money transactions at Madrid. As soon as Mr Jay returns they will be examined.

Be pleased to present my dutiful respects to Congress, and assure them of my most faithful services.

With great esteem and regard I have the honor to be, &c.

B. FRANKLIN.

TO ROBERT MORRIS.

Passy, December 25th, 1783.

Sir,

The remissness of our people in paying taxes is highly blameable, the unwillingness to pay them is still more so. I see in some resolutions of town meetings, a remonstrance against giving Congress a power to take, as they call it, *the people's money* out of their pockets, though only to pay the interest and principal of debts duly contracted. They seem to mistake the point. Money justly due from the people is their creditor's money, and no longer the money of the people, who if they withhold it should be compelled to pay by some law. All property indeed, except the savage's temporary cabin, his bow, his matchuat, and other little acquisitions absolutely necessary for his subsistence, seems to me to be the creature of public convention. Hence the public has the right of regulating descents, and all other conveyances of property, and even of limiting the quantity and uses of it. All the property that is necessary to a man for the conservation of the individual, and the propagation of the species, is his natural right, which none can justly deprive him of; but all property superfluous to such purposes is the property of the public, who by their laws have created it, and who may therefore by other laws dispose of it whenever the welfare of the public shall desire such disposition. He that does not like civil society on these terms, let him retire and live among the savages. He can have no right to the benefits of society, who will not pay his club towards the support of it.

The Marquis de Lafayette, who loves to be employed in our affairs, and is often very useful, has lately had several conversations with the Ministers and persons concerned in forming new regulations, respecting the commerce between our two countries, which are not yet concluded. I thought it therefore well to communicate to him a copy of your letter, which contains so many sensible and just observations on that subject. He will make a proper use of them, and perhaps they may have more weight, as appearing to come from a Frenchman, than they would have if it were known, that they were the observations of an American. I perfectly agree with you in all the sentiments you have expressed on this occasion.

I am sorry for the public's sake, that you are about to quit your office, but on personal considerations, I shall congratulate you; for I cannot conceive of a more happy man, than he who having been long loaded with public

cares finds himself relieved from them, and enjoying private repose in the bosom of his friends and family.

With sincere regard and attachment, I am ever, dear Sir, yours, &c.

B. FRANKLIN.

TO THE PRESIDENT OF CONGRESS.

Passy, December 26th, 1783.

Sir,

If the Congress should think it fit to have a consul for the United States in London, and do not appoint one of our own countrymen to that office, I beg leave to mention the merits of Mr William Hodgson, a merchant of that city, who has always been a zealous friend of America, was a principal promoter of the subscription for the relief of American prisoners, and chairman of the committee for dispensing the money raised by that subscription. He also took the trouble of applying the monies I furnished him with, when the subscription was exhausted, and constantly assisted me in all the negotiations I had with the British Ministers, in their favor, wherein he generally succeeded, being a man of weight and credit, very active, and much esteemed for his probity and integrity. These his services, continued steadily during the whole war, seem to entitle him to the favorable notice of Congress, when any occasion offers of doing him service or pleasure.

With great respect, I have the honor to be, &c.

B. FRANKLIN.

DAVID HARTLEY TO B. FRANKLIN.

London, March 2d, 1784.

My Dear Friend,

Will you be so good as to transmit the enclosed to Mr Jay? I am sorry that we are going to lose him from this side of the Atlantic. If your American ratification should arrive speedily, I might hope to have the pleasure of seeing him again before his departure. As soon as I hear from you of the arrival of your ratification I will immediately apply for the despatch of the British ratification. I wish very much to have the pleasure of conversing with you again. In hopes that that time may come soon, I have nothing further to say at present. Believe me always to be, what you have always known me to have been, a friend of general philanthropy, and particularly your ever, most affectionate

D. HARTLEY.

TO CHARLES THOMPSON.

Passy, March 9th, 1784.

Sir,

I received a few days since a letter from Annapolis, dated June the 5th, in your hand writing, but not signed, acquainting the Commissioners with the causes of delay in sending the ratification of the Definitive Treaty. The term was expired before that letter came to hand, but I hope no difficulty will arise from a failure in a point not essential, and which was occasioned by accidents. I have just received from Mr Hartley a letter on the subject, of which I enclose a copy.

We have had a terrible winter, too, here, such as the oldest men do not remember, and indeed it has been very severe all over Europe.

I have exchanged ratifications with the Ambassador of Sweden, and enclose a copy of that I received from him.

Mr Jay is lately returned from England. Mr Laurens is still there, but proposes departing for America next month, as does also Mr Jay, with his family. Mr Adams is in Holland, where he has been detained by business and bad weather. These absences have occasioned some delays in our business, but not of much importance.

The war long expected between the Turks and Russians is prevented by a treaty, and it is thought an accommodation will likewise take place between them and the Emperor. Everything here continues friendly and favorable to the United States. I am pestered continually with numbers of letters from people in different parts of Europe, who would go to settle in America, but who manifest very extravagant expectations, such as I can by no means encourage, and who appear otherwise to be very improper persons. To save myself trouble, I have just printed some copies of the enclosed little piece, which I purpose to send hereafter in answer to such letters.

Be pleased to present my dutiful respects to Congress, and believe me to be, with sincere esteem, dear Sir, &c.

B. FRANKLIN.

TO THE PRESIDENT OF CONGRESS.

Passy, May 12th, 1784.

Sir,

In my last I acquainted your Excellency, that Mr Hartley was soon expected here to exchange ratifications of the Definitive Treaty. He is now arrived, and proposes to make the exchange this afternoon. I shall then be enabled to send a copy. Enclosed is the new British Proclamation respecting our trade with their Colonies. It is said to be a temporary provision, till Parliament

can assemble and make some proper regulating law, or till a commercial treaty shall be framed and agreed to. Mr Hartley expects instructions for planning with us such a treaty. The Ministry are supposed to have been too busy with the new elections, when he left London, to think of those matters.

This Court has not completed its intended new system for the trade of their Colonies, so that I cannot yet give a certain account of the advantages that will in fine be allowed us. At present it is said we are to have two free ports, Tobago and the Mole, and that we may carry lumber and all sorts of provisions to the rest, except flour, which is reserved in favor of Bordeaux, and that we shall be permitted to export coffee, rum, molasses, and some sugar, for our own consumption.

We have had under consideration a commercial treaty proposed to us by the King of Prussia, and have sent it back with our remarks to Mr Adams, who will I suppose transmit it immediately to Congress. Those planned with Denmark and Portugal wait its determination,

Be pleased to present my dutiful respects to the Congress, and believe me to be, with sincere and great esteem, Sir, &c.

B. FRANKLIN.

May 13th. I now enclose a copy of the ratification of the Definitive Treaty, on the part of his Britannic Majesty.

DAVID HARTLEY TO B. FRANKLIN.

Paris, June 1st, 1784.

Sir,

I have the honor to inform you, that I have transmitted to London the ratification on the part of Congress of the Definitive Treaty of peace, between Great Britain and the United States of America, and I am ordered

to represent to you, that a want of form appears in the first paragraph of that instrument, wherein the United States are mentioned before his Majesty, contrary to the established custom in every treaty in which a crowned head and a republic are parties. It is likewise to be observed, that the term definitive *articles* is used instead of definitive *treaty*, and the conclusion appears likewise deficient, as it is neither signed by the President, nor is it dated, and consequently, is wanting in some of the most essential points of form necessary towards authenticating the validity of the instrument.

I am ordered to propose to you, Sir, that these defects in the ratification should be corrected, which might very easily be done, either by signing a declaration in the name of Congress for preventing the particular mode of expression, so far as it relates to precedency in the first paragraph, being considered as a precedent to be adopted on any future occasion, or else by having a new copy made out in America, in which these mistakes should be corrected, and which might be done without any prejudice arising to either of the parties from the delay.

I am, Sir, with great respect and consideration, &c.

DAVID HARTLEY.

TO DAVID HARTLEY.

Passy, June 2d, 1784.

Sir,

I have considered the observations you did me the honor of communicating to me, concerning certain inaccuracies of expression, and supposed defects of formality, in the instrument of ratification, some of which are said to be of such a nature as to affect the validity of the instrument.

The first is, "that the United States are named before his Majesty, contrary to the established custom observed in every treaty in which a crowned head

and a republic are the contracting parties." With respect to this, it seems to me we should distinguish between that act in which both join, to wit, the treaty, and that which is the act of each separately, the ratification. It is necessary, that all the modes of expression in the joint act should be agreed to by both parties, though in their separate acts each party is master of, and alone unaccountable for its own mode. And, on inspecting the treaty, it will be found that his Majesty is always regularly named before the United States. Thus, "the established custom *in treaties* between crowned heads and republics," contended for on your part, is strictly observed; and the ratification following the treaty contains these words. "Now know ye, that we, the United States in Congress assembled, having seen and considered the definitive articles aforesaid, have *approved, ratified, and confirmed*, and by these presents do *approve, ratify, and confirm* the said articles, AND EVERY PART AND CLAUSE THEREOF," &c. Hereby all those articles, parts, and clauses, wherein the King is named before the United States, are *approved, ratified, and confirmed*, and this solemnly under the signature of the President of Congress, with the public seal affixed by their order, and countersigned by their Secretary.

No declaration on the subject more determinate or more authentic can possibly be made or given, which, when considered, may probably induce his Majesty's Ministers to waive the proposition of our signing a similar declaration, or of sending back the ratification to be corrected in this point, neither appearing to be really necessary. I will, however, if it be still desired, transmit to Congress the observation, and the difficulty occasioned by it, and request their orders upon it. In the meantime I may venture to say, that I am confident there was no intention of affronting his Majesty by their order of nomination, but that it resulted merely from that sort of complaisance, which every nation seems to have for itself, and of that respect for its own government, customarily so expressed in its own acts, of which the English among the rest afford an instance, when in the title of the King they always name Great Britain before France.

The second objection is, "that the term definitive *articles* is used instead of definitive *treaty*" If the words *definitive treaty* had been used in the ratification instead of *definitive articles*, it might have been more correct, though the difference seems not great nor of much importance, as in the treaty itself it is called the present *Definitive Treaty*.

The other objections are, "that the conclusion likewise appears deficient, as if is neither signed by the President, nor is it dated, and consequently is wanting in some of the most essential points of form necessary towards authenticating the validity of the instrument." The situation of seals and signatures, in public instruments, differs in different countries, though all equally valid; for when all the parts of an instrument are connected by a ribband, whose ends are secured under the impression of the seal, the signature and seal wherever placed are understood as relating to and authenticating the whole. Our usage is, to place them both together in the broad margin near the beginning of the piece, and so they stand in the present ratification, the concluding words of which declare the intention of such signing and sealing to be giving authenticity to the whole instrument, viz. "*In testimony* whereof, We have *caused* the seal of the United States to be hereunto affixed; Witness his Excellency Thomas Mifflin, Esquire, President;" and the date supposed to be omitted, perhaps from its not appearing in figures, is nevertheless to be found written in words at length, viz. "this fourteenth day of January, in the year of our Lord one thousand seven hundred eightyfour," which made the figures unnecessary.

With great esteem and respect, I have the honor to be, &c.

B. FRANKLIN.

TO THE PRESIDENT OF CONGRESS.

Passy, June 16th, 1784.

Sir,

My letter by Mr Jay acquainted your Excellency, that the ratifications of the Definitive Treaty were exchanged. A copy of the British part was also sent by him.

Mr Hartley remained here expecting instructions to treat with us on the subject of commerce. The bustle attending a new election and meeting of Parliament, he imagined might occasion the long delay of those instructions. He now thinks that the affair of the American trade, being under the consideration of Parliament, it is probable no treaty will be proposed till the result is known. Mr Jay, who sailed for America the first instant from Dover, and who saw there several of our friends from London before his departure, and Mr Laurens who left London the 6th to go on in the Falmouth packet, will be able to give you more perfect informations than I can, of what may be expected as the determination of the British government respecting our intercourse with their Islands; and, therefore, I omit my conjectures, only mentioning, that from various circumstances there seems to be some lurking remains of ill humor there, and of resentment against us, which only wants a favorable opportunity to manifest itself.

This makes it more necessary for us to be upon our guard, and prepared for events, that a change in the affairs of Europe may produce; its tranquillity depending, perhaps, on the life of one man, and it being impossible to foresee in what situation a new arrangement of its various interests may place us. Ours will be respected in proportion to the apparent solidity of our government, the support of our credit, the maintenance of a good understanding with our friends, and our readiness for defence. All which I persuade myself will be taken care of.

Enclosed I send a copy of a letter from Mr Hartley to me, respecting some supposed defects in the ratification, together with my answer, which he has transmitted to London. The objections appeared to me trivial and absurd, but I thought it prudent to treat them with as much decency as I could, lest the ill temper should be augmented, which might be particularly inconvenient, while the commerce was under consideration. There has not yet been time for Mr Hartley to hear whether my answer has been satisfactory, or whether the Ministers will still insist on my sending for an amended copy from America, as they proposed.

I do not perceive the least diminution in the good disposition of this Court towards us, and I hope care will be taken to preserve it.

The Marquis de Lafayette, who will have the honor of delivering this to you, has, ever since his arrival in Europe, been very industrious in his endeavors to serve us and promote our interests, and has been of great use on several occasions. I should wish the Congress might think fit to express in some proper manner their sense of his merit.

My malady prevents my going to Versailles, as I cannot bear a carriage upon pavement, but my grandson goes regularly on Court days to supply my place, and is well received there. The last letters I have had the honor of receiving from you, are of the 14th of January.

With great respect, I am, Sir, &c.

B. FRANKLIN.

CONSULAR CONVENTION.

Convention between His Most Christian Majesty and the Thirteen United States of North America, for the purpose of determining and fixing the functions and prerogatives of their respective consuls, vice consuls, agents, and commissaries.

His Majesty, The Most Christian King, and the Thirteen United States of North America, having, by the 29th article of the Treaty of Amity and Commerce concluded between them, mutually granted the liberty of having in their respective States and ports, consuls, vice consuls, agents, and commissaries, and being willing in consequence thereof, to determine and fix in a reciprocal and permanent manner the functions and prerogatives of the said consuls, vice consuls, agents, and commissaries, His Most Christian Majesty has nominated the Sieur Charles Gravier, Count of Vergennes, Baron of Welfording, &c. Counsellor of the King in all his Councils, Commander of his Orders, Head of the Royal Council of Finances, Counsellor of the State of the Sword, Minister and Secretary of State, and of his Commands and Finances; and the United States, Mr

Benjamin Franklin, their Minister Plenipotentiary to His Most Christian Majesty, who, after having communicated to each other their respective full powers, agreed upon what follows.

ARTICLE I.

The consuls and vice consuls, nominated by His Most Christian Majesty and the United States, shall be bound to present their commissions on their arrival in their respective States, according to the form which shall be there established. There shall be delivered to them without any charges the *Exequatur* necessary for the exercise of their functions; and, on the exhibition they shall make of the said *Exequatur*, the governors, commanders, heads of justice, public bodies, tribunals, and other officers, having authority in the ports and places of their consulates, shall cause them to enjoy, as soon as possible, and without difficulty, the pre-eminences, authority, and privileges, reciprocally granted, without exacting from said consuls and vice consuls, any duty under any pretext whatever.

ARTICLE II.

The respective consuls shall have power to establish vice consuls in the different ports and places of their departments, where necessity shall require. There shall be delivered to them likewise the *Exequatur* necessary to the exercise of their functions, in the form pointed out in the preceding article, and on the exhibition, which they shall make of the said *Exequatur*, they shall be admitted and acknowledged in the terms and according to the powers, authority, and privileges, stipulated by the 1st, 4th and 5th articles of the present convention.

ARTICLE III.

The respective consuls and vice consuls may establish agents in the different ports and places of their departments, where necessity shall require; these agents may be chosen among the merchants, either national or foreign, and furnished with a commission from one of the said consuls. It shall be their business, respectively, to render to their respective merchants,

navigators, and vessels, all possible service, and to inform the nearest consul or vice consul of the wants of the said merchants, navigators, and vessels, without the said agents otherwise participating in the immunities, rights, and privileges, attributed to the consuls and vice consuls, and without power to exact from the said merchants any duty or emolument whatever, under any pretext whatever.

ARTICLE IV.

The consuls and vice consuls, officers of the consulate, and in general, all persons attached to the consular functions, shall enjoy respectively a full and entire immunity for their persons, their papers, and their houses. The list of the said persons shall be approved and inspected by the executive power of the place of their residence.

They shall be exempt from all personal service and public offices, from soldier's billets, militia, watch guard, guardianship and trusteeship, as well as from all duties, taxes, impositions, and charges whatsoever, except the real estates of which they may be proprietors, which shall be subject to the taxes imposed on the estates of all other individuals.

They shall place over the outward door of their house the arms of their sovereign, without this mark of distinction giving to the said house the right of asylum for any malefactor or criminal, so that in case it should happen that any malefactor or criminal take refuge there, he shall be instantly delivered up on the first requisition, and without difficulty.

ARTICLE V.

Generally, in all cases whatever, which concern the police or administration of justice, where it may be necessary to have a juridical declaration from the said consuls and vice consuls respectively, the governors, commandants, chief justice, public bodies, tribunals, or other officers whatever of their respective residence there, having authority, shall be bound to inform them of it, by writing to them, or sending to them a military or civil officer to let them know, either the object which is proposed, or the necessity there is for going to them to demand from them this declaration, and the said consuls

end vice consuls shall be bound on their part to comply faithfully with what shall be desired of them on these occasions.

ARTICLE VI.

The consuls and vice consuls respectively may establish a chancery, where shall be deposited the consular acts and deliberations, all effects left by deceased persons, or saved from shipwreck, as well as testaments, obligations, contracts, and, in general, all the acts and proceedings done between, or by, persons of their nations.

They may, in consequence, appoint for the *business* of the said chancery capable persons, receive them, administer an oath to them, give to them the keeping of the seal, and the right of seal, commissions, judgments, and other acts of the consulate, as well as there to discharge the functions of notaries and registers.

ARTICLE VII.

The consuls and vice consuls respectively shall have the exclusive right of receiving in their chancery, or on board of vessels, the declarations and all other acts, which the captains, masters, seamen, passengers, and merchants of their nation would make there, even their testaments and other dispositions of last will, and the copies of the said acts duly authenticated by the said consuls, or vice consuls, and under the seal of their consulate shall receive faith in law in all the tribunals of France and the United States.

They shall have also, and exclusively, the right to inventory, liquidate, and proceed to the sale of the moveable effects of the estates left by subjects of their nation who shall die within the extent of the consulate. They shall proceed therein with the assistance of two merchants of their said nation, of their own choosing, and shall deposit in their chancery the effects and papers of the said estates, and no officer, military or civil, or of the police of the country, shall trouble them or interfere therein, in any manner whatsoever; but the said consuls and vice consuls shall not deliver up the same and their product to the lawful heirs, or *their attornies*, until they shall have discharged all the debts, which the deceased shall have contracted in

the country, by judgment, by acts, or by notes, the writing and signing of which shall be known and certified by two principal merchants of the nation of the said deceased, and in all other cases the payment of debts cannot be ordered but on the creditor's giving sufficient and local security to repay the sums unduly received, principal, interest, and costs, which securities, however, shall remain duly discharged after a year in time of peace, and two years in time of war, if the demand in discharge cannot be formed before these delays, against the heirs who shall present themselves.

ARTICLE VIII.

The respective consuls and vice consuls shall receive the declarations, "*consulats*," and other consular acts from all captains and masters of their respective nations on account of average losses sustained at sea by leakage, or throwing merchandises overboard, and these captains and masters shall leave in the chancery of the said consuls and vice consuls, the "*consulats*," and other consular acts, which they may have had made in other ports on account of the accidents, that may have happened to them on their voyage. If a subject of His Most Christian Majesty and a citizen of the United States are interested in the said cargo, the average shall be fixed by the tribunals of the country, and not by the consuls or vice consuls; and the tribunals shall admit the acts and declarations; if any should have been passed before the said consuls and vice consuls; but when only the subjects of their own nation, or foreigners, shall be interested, the respective consuls or vice consuls, and in case of their absence or distance, their agents furnished with their commission, shall officially nominate skilful persons of their said nation to regulate the damages and averages.

ARTICLE IX.

In case, by storms or other accidents, French ships or vessels shall run ashore on the coasts of the United States, or the ships and vessels of the United States shall run ashore on the coasts of France, the consul or vice consul nearest to the place of shipwreck shall do whatever he may judge proper, as well for the purpose of saving the said ship or vessel, its cargo and appurtenances, as for the storing and security of the effects and

merchandise saved. He may take an inventory, without any officers military, of the custom house, justices, or the police of the country interfering, otherwise than to facilitate to the consuls, vice consuls, captain and crew of the vessel shipwrecked, or run ashore, all the assistance and favor, which they shall ask, either for the celerity and security of the salvage and effects saved, or to prevent all disturbances.

To prevent even any kind of dispute and discussion in the said cases of shipwreck, it has been agreed that where no consul or vice consul shall be found to attend to the salvage, or that the residence of the said consul or vice consul, (he not being at the place of shipwreck) shall be further distant from the said place than that of the competent territorial judge, the latter shall immediately there proceed therein with all the celerity, safety, and precautions prescribed by the respective laws; but the said territorial judge shall retire on the coming of the consul or vice consul, and shall resign to him the procedures by him done, the expenses of which the consul or vice consul shall cause to be reimbursed to him.

The merchandise and effects saved shall be deposited in the custom house, or other nearest place of safety, with the inventory of them, which shall be made by the consul or vice consul, or in their absence by the judge who shall have had cognizance thereof, and the said merchandises and effects shall be afterwards delivered, after levying therefrom the costs, and without form of process to the proprietors, who being furnished with a *replevy* from the nearest consul or vice consul, shall reclaim them by themselves, or their attornies, either for the purpose of re-exporting the merchandises, and in that case they shall pay no kind of duties of exportation, or for the purpose of selling them in the country if they are not prohibited; and in this latter case, the said merchandises being averaged, there shall be granted them an abatement of the entrance duties proportioned to the damages sustained, which shall be ascertained by the *verbal process* formed at the time of the shipwreck, or of the vessels running ashore.

ARTICLE X.

The consuls and vice consuls shall have, on board of the vessels of their respective nations, full power and jurisdiction in matters civil. They shall

cause to be executed the respective laws, ordinances, and rules concerning navigation, on board the said vessels, and for this purpose, they shall go there without being interrupted by any officer or other person whatsoever.

They may cause to be arrested every vessel carrying the flag of their respective nation. They may sequester them, and even send them back respectively, from the United States to France, or from France to the United States. They may cause to be arrested without difficulty, every captain, master, sailor, or passenger of their said respective nation.

They may cause to be arrested or detained in the country the sailors and deserters of their respective nations, or send them back, or transport them out of the country.

It shall be sufficient proof, that the sailors and deserters belong to one of the respective nations, that their names be written in the ships' registers, or inserted in the roll of the crew.

One and the other of these proofs concerning sailors and deserters being thus given, no tribunals, judges, and officers whatsoever shall in any manner whatever take cognizance of the complaints, which the said sailors and deserters may make, but they shall, on the contrary, be delivered up on an order signed by the consul, or vice consul, without its being in any one's power in any manner to detain, engage, or withdraw them. And to attain to the complete execution of the arrangements contained in this article, all persons having authority shall be bound to assist the said consuls or vice consuls, and, on a simple requisition signed by them, they shall cause to be detained and guarded in prison at the disposal and expense of the said consuls and vice consuls the said sailors and deserters, until they shall have an opportunity to send them out of the country.

ARTICLE XI.

In cases where the respective subjects shall have committed any crime, they shall be amenable to the judges of the country.

ARTICLE XII.

All differences and suits between the subjects of His Most Christian Majesty settled in the United States, or between the citizens and subjects of the United States settled in France, and all differences and suits concerning commerce between the subjects of His Most Christian Majesty, and one of the parties residing in France or elsewhere, and the other in the United States, or between the citizens and subjects of the United States, one of the parties residing in the United States, or elsewhere, and the other in France, shall be determined by the respective consuls, either by a reference to arbitration, or by a summary judgment, and without costs.

No officer, civil or military, shall interfere or take any part whatever in the affair. Appeals shall be carried before the tribunals of France, or the United States, to whom it may appertain to take cognizance thereof. The consuls or vice consuls shall not take cognizance of disputes or differences, which shall arise betwixt a subject of His Most Christian Majesty and a citizen of the United States. But the said disputes shall be brought before the tribunals, to which the defendant shall be amenable.

ARTICLE XIII.

The general utility of commerce having caused to be established in France tribunals and particular forms to accelerate the decision of commercial affairs, the merchants of the United States shall enjoy the benefit of these establishments in France, and the Congress of the United States shall recommend to the Legislatures of the different States to provide equivalent advantages, in favor of the French merchants, for the prompt despatch and decision of affairs of the same nature.

ARTICLE XIV.

The subjects of His Most Christian Majesty and those of the United States, who shall prove that they belong to the body of the respective nations, by the certificate of the consul or vice consul of the district, mentioning their names, surnames, and place of their settlement, as inscribed in the register of the consulate, shall not lose, for any cause whatever in the respective domains and States, the quality of subjects of the country of which they originally were, conformably to the eleventh article of the treaty of amity

and commerce, of the 6th of February, 1778, of which the present article shall serve as an interpretation in case of necessity, and the said subjects respectively shall enjoy in consequence exemption from all personal service in the place of their settlement.

ARTICLE XV.

If any other nation acquires, by virtue of any convention whatever, either in France or in the United States, a treatment more favorable with respect to the consular pre-eminences, powers, authority, and privileges, the consuls, vice consuls, and agents of His Most Christian Majesty, or the United States, reciprocally shall participate therein, agreeably to the terms stipulated by the second, third, and fourth articles of the treaty of amity and commerce, concluded between His Most Christian Majesty and the United States.

ARTICLE XVI.

The ratification of the present convention shall be given in proper form and exchanged on both sides, within the space of six months, or sooner if possible.

In faith whereof, we, the underwritten, Ministers Plenipotentiaries of His Most Christian Majesty, and the United States of North America, have signed the present convention, and have thereto affixed the seal of our arms.

Done at Versailles, the 29th of July, one thousand seven hundred and eightyfour.

GRAVIER DE
VERGENNES.
B. FRANKLIN.

TO COUNT DE MERCY ARGENTEAU.

Passy, July 30th, 1784.

Sir,

I have the honor to communicate to your Excellency an extract from the instructions of Congress to their late Commissioners for treating of peace, expressing their desire to cultivate the friendship of his Imperial Majesty, and to enter into a treaty of commerce for the mutual advantage of his subjects and the citizens of the United States, which I request you will be pleased to lay before his Majesty. The appointing and instructing Commissioners for treaties of commerce with the powers of Europe generally has, by various circumstances, been long delayed, but is now done, and I have just received advice, that Mr Jefferson, late Governor of Virginia, commissioned with Mr Adams, our Minister in Holland, and myself, for that service, is on his way hither, and may be expected by the end of August, when we shall be ready to enter into a treaty with his Imperial Majesty for the above purpose, if such should be his pleasure.

With great and sincere respect, &c.

B. FRANKLIN.

COUNT DE MERCY ARGENTEAU TO B. FRANKLIN.

Translation.

Paris, July 30th, 1784.

Sir,

I have received the letter you did me the honor to write to me this morning, and I shall lose no time to transmit the contents to my Court.

The sentiments of the Emperor towards the United States of America make me foresee the satisfaction, which his Majesty will have to enter into reciprocal, suitable, and advantageous connexions with them. I have not the least doubt but that measures will be instantly taken on this subject to concert with you, Sir, and with the appointed Ministers Plenipotentiary, and as soon as the answer from my Court shall come, I shall instantly communicate it to you.

I have the honor to be, &c.

DE MERCY ARGENTEAU.

COUNT DE VERGENNES TO B. FRANKLIN.

Translation.

Versailles, August 27th, 1784.

Sir,

You have communicated to me an extract from the instructions, which Congress addressed to you on the 11th of May last, which imports that the United States will in no case treat any other nation with respect to commerce more advantageously than the French. This disposition is much the wisest, as it will prevent those misunderstandings, which might arise from the equivocal terms in which the 2d article of the Treaty of Amity and Commerce, signed February 6th, 1778, is conceived. But that the resolution of Congress on this subject may be clearly stated, it would be best, Sir, that you furnish me with it in the form of a declaration, or at least in an official note, signed by yourself. I have no doubt that you will adopt one of these two forms.

I have the honor to be, &c.

DE VERGENNES.

TO COUNT DE VERGENNES.

Passy, September 3d, 1784.

Sir,

I have the honor to transmit to your Excellency, by order of Congress, a resolution of theirs, dated the 11th of May last, which is in the words following, viz.

"Resolved, That Doctor Franklin be instructed to express to the Court of France, the constant desire of Congress to meet their wishes; that these States are about to form a general system of commerce, by treaties with other nations; that, at this time, they cannot foresee what claim might be given to those nations by the explanatory propositions from the Count de Vergennes, on the 2d and 3d articles of our Treaty of Amity and Commerce with His Most Christian Majesty, but that he may be assured it will be our constant care to place no people on more advantageous ground than the subjects of his Majesty."

With great respect, I am, &c.

B. FRANKLIN.

COUNT DE VERGENNES TO B. FRANKLIN.

Translation.

Versailles, September 9th, 1784.

Sir,

I have received the letter, which you did me the honor to write me the 3d instant. You there declare in the name of Congress, that the United States will be careful not to treat any other nation, in matters of commerce, more advantageously than the French nation. This declaration, founded on the treaty of the 6th of February, 1778, has been very agreeable to the King; and you, Sir, can assure Congress, that the United States shall constantly experience a perfect reciprocity in France.

I have the honor to be, very sincerely, Sir, &c.

DE VERGENNES.

COUNT DE MERCY ARGENTEAU TO B. FRANKLIN.

Translation.

Paris, September 28th, 1784.

Sir,

With respect to the proposition of the United States of America, that I forwarded to my Court, concerning the arrangements of commerce to be adopted by the respective dominions, I have received the order, Sir, which I have the honor to communicate to you, that his Majesty, the Emperor, has agreed to the said proposition, and that he has directed the Government General of the Low Countries to adopt measures to put it in execution.

When the particulars respecting this matter shall be sent to me, I shall instantly communicate them.

I avail myself of this opportunity to renew the assurances of the most perfect attachment, with which I have the honor to be, &c.

DE MERCY ARGENTEAU.

TO CHARLES THOMPSON.

Passy, October 16th, 1784.

Dear Sir,

It was intended by the Commissioners to write a joint letter to Congress, but I am afraid the opportunity may be missed. This may serve to inform you, that propositions of treating have been made by us to all the powers of Europe according to our instructions, and we are waiting for their answers. There are apprehensions here of a war between the Emperor and Holland, but, as the season is not proper for opening a campaign, I hope the winter will give time for mediators to accommodate matters. We have not yet heard that Mr Jay has accepted the Secretaryship of Foreign Affairs.

I am ever, my dear friend, yours most affectionately,

B. FRANKLIN.

TO CHARLES THOMPSON.

Passy, November 11th, 1784.

Dear Friend,

I received your kind letter of August 13th, with the papers annexed, relative to the affair of Longchamps. I hope satisfaction will be given to M. Marbois. The Commissioners have written a joint letter to Congress. This serves to cover a few papers relative to matters with which I was particularly charged in the instructions. I shall write to you fully by the next opportunity, having now only time to add, that I am, as ever,

Yours most affectionately,

B. FRANKLIN.

P. S. I executed the instructions of October 29th, 1783, as soon as I knew the commissions for treating with the Emperor, &c. were issued, which was not till July, 1784. The three letters between the Emperor's Minister and me are what passed on that occasion.

B. F.

TO THE PRESIDENT OF CONGRESS.

Passy, February 8th, 1785.

Sir,

I received by the Marquis de Lafayette the two letters you did me the honor of writing to me the 11th and 14th of December, the one enclosing a letter from Congress to the King, the other a resolve of Congress respecting the convention for establishing consuls. The letter was immediately delivered and well received. The resolve came too late to suspend signing the convention, it having been done July last, and a copy sent so long since, that we now expected the ratification. As that copy seems to have miscarried I now send another.

I am not informed what objection has arisen in Congress to the plan sent me. Mr Jefferson thinks it may have been to the part, which restrained the

consuls from all concern in commerce. That article was omitted, being thought unnecessary to be stipulated, since either party would always have the power of imposing such restraints on its own officers, whenever it should think fit. I am, however, of opinion that this or any other reasonable article or alteration may be obtained at the desire of Congress, and established by a supplement.

Permit me, Sir, to congratulate you on your being called to the high honor of presiding in our national councils, and to wish you every felicity, being with the most perfect esteem, &c.

B. FRANKLIN.

TO THE PRESIDENT OF CONGRESS.

Passy, April 12th, 1785.

Sir,

M. de Chaumont, who will have the honor of presenting this line to your Excellency, is a young gentleman of excellent character, whose father was one of our most early friends in this country, which he manifested by crediting us with a thousand barrels of gunpowder and other military stores in 1776, before we had provided any apparent means of payment. He has, as I understand, some demands to make on Congress, the nature of which I am unacquainted with; but my regard for the family makes me wish, that they may obtain a speedy consideration, and such favorable issue as they may appear to merit.

To this end, I beg leave to recommend him to your countenance and protection, and am, with great respect, &c.

B. FRANKLIN.

TO COUNT DE VERGENNES.

Passy, May 3d, 1785.

Sir,

I have the honor to acquaint your Excellency, that I have at length obtained, and yesterday received, the permission of Congress to return to America. As my malady makes it impracticable for me to pay my devoirs at Versailles personally, may I beg the favor of you, Sir, to express respectfully for me to his Majesty, the deep sense I have of all the inestimable benefits his goodness has conferred on my country; a sentiment that it will be the business of the little remainder of life now left me, to impress equally on the minds of all my countrymen. My sincere prayers are, that God may shower down his blessings on the King, the Queen, their children, and all the royal family, to the latest generations!

Permit me, at the same time, to offer you my thankful acknowledgments for the protection and countenance you afforded me at my arrival, and your many favors during my residence here, of which I shall always retain the most grateful remembrance.

My grandson would have had the honor of waiting on you with this letter, but he has been some time ill of a fever.

With the greatest esteem and respect, and best wishes for the constant prosperity of yourself, and all your amiable family, I am, Sir, your Excellency's most obedient and most humble servant,

B. FRANKLIN.

M. DE RAYNEVAL TO B. FRANKLIN.

Translation.

Versailles, May 8th, 1785.

Sir,

I have learned with the greatest concern, that you are soon to leave us. You will carry with you the affections of all France, for nobody has been more esteemed than you. I shall call on you at Passy, to desire you to retain for me a share in your remembrance, and renew to you personally the assurances of the most perfect attachment, with which I have the honor to be, Sir, &c.

DE RAYNEVAL.

TO JOHN JAY, SECRETARY OF FOREIGN AFFAIRS.

Passy, May 10th, 1785.

Dear Sir,

I received your kind letter of the 8th of March, enclosing the resolution of Congress, permitting my return to America, for which I am very thankful, and am now preparing to depart the first good opportunity. Next to the pleasure of rejoining my own family will be that of seeing you and yours well and happy, and embracing once more my little friend, whose singular attachment to me I shall always remember.

I shall be glad to render any acceptable service to Mr Randall. I conveyed the bayberry wax to Abbé de Chalut, with your compliments, as you desired. He returns his with many thanks. Be pleased to make my respectful compliments acceptable to Mrs Jay, and believe me ever, with sincere and great respect and esteem, &c.

B. FRANKLIN.

P. S. The striking of the medals being now in agitation here, I send the enclosed for consideration.

B. F.

TO CHARLES THOMPSON.

Passy, May 10th, 1785.

Dear Sir,

An old gentleman in Switzerland, long of the Magistracy there, having written a book entitled *Du Gouvernement des Mœurs*, which is thought to contain many matters, that may be useful in America, desired to know of me how he could convey a number of the printed copies, to be distributed gratis among the members of Congress. I advised his addressing the package to you by way of Amsterdam, whence a friend of mine would forward it. It is accordingly shipped there on board the Van Berckel, Captain W. Campbell. There are good things in the work, but his chapter on the liberty of the press appears to me to contain more rhetoric than reason.

With great esteem I am, ever, &c.

B. FRANKLIN.

COUNT DE VERGENNES TO B. FRANKLIN.

Translation.

Versailles, May 22d, 1785.

Sir,

I have learnt with much concern of your retiring, and of your approaching departure for America. You cannot doubt but that the regrets, which you will leave, will be proportionate to the consideration you so justly enjoy.

I can assure you, Sir, that the esteem the King entertains for you, does not leave you anything to wish, and that his Majesty will learn with real satisfaction, that your fellow citizens have rewarded, in a manner worthy of you, the important services that you have rendered them.

I beg, Sir, that you will preserve for me a share in your remembrance, and never doubt the sincerity of the interest I take in your happiness. It is founded on the sentiments of attachment of which I have assured you, and with which I have the honor to be, &c.

DE VERGENNES.

TO THOMAS BARCLAY.

Passy, June 19th, 1785.

Sir,

With respect to my continuing to charge £2500 sterling per annum as my salary, of which you desire some explanation, I send you, in support of that charge, the resolution of Congress, which is in these words.

"In Congress, October 5th, 1779. Resolved, that each of the Ministers Plenipotentiary be allowed at the rate of two thousand five hundred pounds sterling per annum, and each of their Secretaries at the rate of one thousand pounds sterling per annum, in full for their services and expenses respectively. That the salary of each of the said officers be computed from the time of his leaving his place of abode, to enter on the duties of his office, and be continued three months after the notice of his recall."

The several bills I afterwards received, drawn on the Congress banker, Mr Grand, for my salary, were all calculated on that sum, as my salary; and neither the banker nor myself has received notice of any change respecting me. He has accordingly, since the drawing ceased, continued to pay me at the same rate. I have, indeed, heard that a resolution was passed last year, that the salaries of Plenipotentiaries should be no more than £2000 sterling per annum. But the resolution, I suppose, can relate only to such Plenipotentiaries as should be afterwards appointed; for I cannot conceive that the Congress, after promising a Minister £2500 a year, and when he has thereby been encouraged to engage in a way of living for their honor, which only that salary can support, would think it just to diminish it a fifth, and leave him under the difficulty of reducing his expenses proportionably; a thing scarce practicable; the necessity of which he might have avoided, if he had not confided in their original promise.

But the article of salary, with all the rest of my accounts, will be submitted to the judgment of Congress, together with some other considerable articles I have not charged, but on which I shall expect, from their equity, some consideration. If, for want of knowing precisely the intention of Congress, what expenses should be deemed public, and what private, I have charged any article to the public, which should be defrayed by me, their banker has my order, as soon as the pleasure of Congress shall be made known to him, to rectify the error, by transferring the amount to my private account, and discharging by so much that of the public.

I have the honor to be, &c.

B. FRANKLIN.

M. DE CASTRIES TO B. FRANKLIN.

Translation.

Versailles, July 10th, 1785.

Sir,

I was not apprized, until within a few hours, of the arrangements which you have made for your departure. Had I been informed of it sooner, I should have proposed to the King to order a frigate to convey you to your own country, in a manner suitable to the known importance of the services you have been engaged in, to the esteem you have acquired in France, and the particular esteem which his Majesty entertains for you.

I pray you, Sir, to accept my regrets, and a renewed assurance of the most entire consideration, with which I have the honor to be, Sir, your very humble and very obedient servant,

DE CASTRIES.

TO JOHN JAY, SECRETARY OF FOREIGN AFFAIRS.

Philadelphia, September 19th, 1785.

Sir,

I have the honor to acquaint you, that I left Paris the 12th of July, and, agreeable to the permission of Congress, am returned to my own country. Mr Jefferson had recovered his health, and was much esteemed and respected there. Our joint letters have already informed you of our late proceedings, to which I have nothing to add, except that the last act I did, as Minister Plenipotentiary for making treaties, was to sign with him, two days before I came away, the treaty of friendship and commerce that had been agreed on with Prussia, ^[31] and which was to be carried to the Hague, by Mr Short, there to be signed by Baron Thulemeyer on the part of the King, who, without the least hesitation, had approved and conceded to the new humane articles proposed by Congress. Mr Short was also to call at London

for the signature of Mr Adams, who I learnt, when at Southampton, was well received at the British Court.

The Captain Lamb, who, in a letter of yours to Mr Adams, was said to be coming to us with instructions respecting Morocco, had not appeared, nor had we heard anything of him; so nothing had been done by us in that treaty.

I left the Court of France in the same friendly disposition towards the United States, that we have all along experienced, though concerned to find that our credit is not better supported in the payment of the interest money due on our loans, which, in case of another war, must be, they think, extremely prejudicial to us, and indeed may contribute to draw on a war the sooner, by affording our enemies the encouraging confidence, that those who take so little care to pay, will not again find it easy to borrow. I received from the King, at my departure, the present of his picture set round with diamonds, usually given to Ministers Plenipotentiary, who have signed any treaties with that Court; and it is at the disposition of Congress, to whom be pleased to present my dutiful respects.

I am, with great esteem and regard, &c.

B FRANKLIN.

P. S. Not caring to trust them to a common conveyance, I send by my late Secretary, who will have the honor of delivering them to you, all the original treaties I have been concerned in negotiating, that were completed. Those with Portugal and Denmark continue in suspense.

B. F.

TO MR GRAND, BANKER AT PARIS.

Philadelphia, July 11th, 1786.

Sir,

I send you enclosed some letters, that have passed between the Secretary of Congress and me, respecting three millions of livres, acknowledged to have been received, before the treaty of February, 1778, as *don gratuit* from the King, of which only two millions are found in your accounts; unless the million from the Farmers-General be one of the three. I have been assured, that all the money received from the King, whether as loan or gift, went through your hands; and as I always looked on the million we had of the Farmers-General to be distinct from what we had of the Crown, I wonder how I came to sign the contract, acknowledging three millions of gift, when, in reality, there was only two, exclusive of that from the Farmers; and, as both you and I examined the project of the contract before I signed it, I am surprised, that neither of us took notice of the error.

It is possible, that the million furnished ostensibly by the Farmers, was in fact a gift of the Crown, in which case, as Mr Thompson observes, they owe us for the two ship loads of tobacco, which they received on account of it. I must earnestly request of you to get this matter explained, that it may stand clear before I die, lest some enemy should afterwards accuse me of having received a million not accounted for.

I am, &c.

B. FRANKLIN.

M. DURIVAL TO MR GRAND.

Translation.

Versailles, August 30th, 1786.

Sir,

I have received the letter, which you did me the honor to write on the 28th of this month, touching the advance of a million, which you say was made by the Farmers-General to the United States of America, the 3d of June, 1777. I have no knowledge of that advance. What I have verified is, that the King, by the contract of the 25th of February, 1783, has confirmed the gratuitous gift, which his Majesty had previously made, of the three millions hereafter mentioned, viz. one million delivered by the Royal Treasury, the 10th of June, 1776, and two other millions advanced also by the Royal Treasury, in 1777, on four receipts of the Deputies of Congress, of the 17th of January, 3d of April, 10th of June, and 15th of October, of the same year. This explanation will, Sir, I hope, resolve your doubt, touching the advance of the 3d of June, 1777. I further recommend to you, Sir, to confer on this subject with M. Gojard, who ought to be better informed than we, who had no knowledge of any advances, but those made by the Royal Treasury.

I have the honor to be, &c.

DURIVAL.

M. DURIVAL TO MR GRAND.

Translation.

Versailles, September 5th, 1786.

Sir,

I laid before the Count de Vergennes the two letters, which you did me the honor to write, touching the three millions, the free gift of which the King has confirmed in favor of the United States of America. The Minister, Sir, observed that this gift has nothing to do with the million, which the Congress may have received from the Farmers-General in 1777; consequently he thinks, that the receipt, which you desire may be

communicated to you, cannot satisfy the object of your view, and that it would be useless to give you the copy which you desire.

I have the honor to be, with perfect attachment, &c.

DURIVAL.

MR GRAND TO B. FRANKLIN.

Paris, September 9th, 1786.

My Dear Sir,

The letter you honored me with, covered the copies of three letters, which Mr Thompson wrote you to obtain an explanation of a million, which is not to be found in my accounts. I should have been very much embarrassed in satisfying and proving to him, that I had not put that million in my pocket, had I not applied to M. Durival, who, as you will see by the answer enclosed, informs me, that there was a million paid by the Royal Treasury, on the 10th of June, 1776. This is the very million about which Mr Thompson inquires, as I have kept an account of the other two millions, which were also furnished by the Royal Treasury, viz. the one million in January and April, 1777, the other in July and October of the same year, as well as that furnished by the Farmers-General in June, 1777.

Here then are the three millions exactly, which were given by the King before the treaty of 1778, and that furnished by the Farmers-General. Nothing then remains to be known, but who received the first million in June, 1776. It could not be myself, as I was not charged with the business of Congress until January, 1777. I therefore requested of M. Durival a copy of the receipt for the one million. You have the answer, which he returned to me. I wrote to him again, renewing my request, but as the courier is just setting off, I cannot wait to give you his answer, but you will receive it in my next, if I obtain one.

In the meanwhile, I beg you will receive the assurances of the sentiments of respect, with which I have the honor to be, my dear Sir, &c.

GRAND.

M. DURIVAL, TO MR. GRAND.

Translation.

Versailles, September 10th, 1786.

Sir,

I have laid before the Count de Vergennes, as you seemed to desire, the letter which you did me the honor to write yesterday. The Minister persists in the opinion, that the receipt, the copy of which you request, has no relation to the business with which you were intrusted on behalf of Congress, and that this piece would be useless in the new point of view in which you have placed it. Indeed, Sir, it is easy for you to prove, that the money in question was not delivered by the Royal Treasury into your hands, as you did not begin to be charged with the business of Congress until January, 1777, and the receipt for that money is of the 10th of June, 1776.

I have the honor to be, with perfect attachment, Sir, &c.

DURIVAL.

MR GRAND TO B. FRANKLIN.

Translation.

Paris, September 12th, 1786.

Sir,

I hazard a letter in hopes it may be able to join that of the 9th at L'Orient, in order to forward to you the answer I have just received from M. Durival. You will there see, that notwithstanding my entreaty, the Minister himself refuses to give me a copy of the receipt which I asked for. I cannot conceive the reason for this reserve, more especially since, if there has been a million paid, he who has received it has kept the account, and it must in time be known. I shall hear with pleasure, that you have been more fortunate in this respect in America than I have been in France; and I repeat to you the assurance of the sentiments of regard, with which I have the honor to be, &c.

GRAND.

TO CHARLES THOMPSON.

Philadelphia, January 27th, 1787.

Dear Friend,

You may remember, that in the correspondence between us in June last, on the subject of a million *free gift* of the King of France, acknowledged in our contract to have been received, but which did not appear to be accounted for in our banker's accounts, unless it should be the same with the million said to be received from the Farmers-General, I mentioned, that an explanation might doubtless be easily obtained by writing to Mr Grand, or Mr Jefferson. I know not whether you have accordingly written to either of them, but being desirous that the matter should speedily be cleared up, I wrote myself to Mr Grand a letter upon it, of which I now enclose a copy,

with his answers, and several letters from M. Durival,^[32] who is *Chef du Bureau des Fonds* (and has under his care the finance) *des Affaires Etrangères*.

You will see by these letters, that the million in question was delivered to somebody, on the 10th of June, 1776, but it does not appear to whom. It is clear, however, that it could not be to Mr Grand, nor to the Commissioners from Congress, for we did not meet in France till the end of December, 1776, or beginning of January, 1777, and that banker was not charged before with our affairs.

By the Minister's reserve in refusing him a copy of the receipt, I conjecture it must be money advanced for our use, to M. de Beaumarchais, and that it is a *Mystère du Cabinet*, which perhaps should not be further inquired into, unless necessary to guard against more demands than may be just from that agent; for it may well be supposed, that if the Court furnished him with the means of supplying us, they may not be willing to furnish authentic proofs of such a transaction, so early in our dispute with Britain. Pray tell me, has he dropped his demands, or does he still continue to worry you with them?

I should like to have these original letters returned to me, but you may if you please keep copies of them. It is true the million in question makes no difference in your accounts with the King of France, it not being mentioned or charged, as so much lent and to be repaid, but stated as freely given. Yet, if it was put into the hands of any of your agents, or ministers, they ought certainly to account for it. I do not recollect whether Mr Deane had arrived in France before the 10th of June, 1776;^[33] but from his great want of money, when I joined him a few months after, I hardly think it could have been paid to him. Possibly Mr Jefferson may obtain the information, though Mr Grand could not, and I wish he may be directed to make the inquiry, as I know he would do it directly; I mean if, by Hortalez and Co's further demands, or for any other reason, such an inquiry should be thought necessary.^[34]

I am, &c.

B. FRANKLIN.

TO THE PRESIDENT OF CONGRESS.

Philadelphia, November 29th, 1788.

Sir,

When I had the honor of being the Minister of the United States at the Court of France, Mr Barclay arriving there, brought me the following resolution of Congress.

"Resolved, that a commissioner be appointed by Congress, with full power and authority to liquidate, and *finally to settle*, the accounts of all the servants of the United States, who have been intrusted with the expenditure of public money in Europe, and to commence and prosecute such suits, causes, and actions, as may be necessary for that purpose, or for the recovery of any property of the said United States in the hands of any person, or persons, whatsoever.

"That the said commissioner be authorised to appoint one or more clerks, with such allowance as he may think reasonable.

"That the said commissioner and clerks, respectively, take an oath before some person duly authorised to administer an oath, faithfully to execute the trust reposed in them respectively.

"Congress proceeded to the election of a commissioner, and ballots being taken, Mr T. Barclay was elected."

In pursuance of this resolution, and as soon as Mr Barclay was at leisure from more pressing business, I rendered to him all my accounts, which he examined, and stated methodically. By his statement he found a balance due me on the 4th of May, 1785, of 7,533 livres, 19 sols, 3 den. which I accordingly received of the Congress banker; the difference between my statement and his being only seven sols, which by mistake I had overcharged; about three pence halfpenny sterling.

At my request, however, the accounts were left open for the consideration of Congress, and not finally settled, there being some articles on which I desired their judgment, and having some equitable demands, as I thought them, for extra services, which he had not conceived himself empowered to allow, and therefore I did not put them in my account. He transmitted the accounts to Congress, and had advice of their being received. On my arrival at Philadelphia, one of the first things I did was to despatch my grandson, William T. Franklin, to New York, to obtain a final settlement of those accounts; he having long acted as my secretary, and being well acquainted with the transactions, was able to give an explanation of the articles, that might seem to require explaining, if any such there were. He returned without effecting the settlement, being told that it could not be made till the arrival of some documents expected from France. What those documents were, I have not been informed, nor can I readily conceive, as all the vouchers existing there had been examined by Mr Barclay. And I, having been immediately after my arrival engaged in the public business of this State, waited in expectation of hearing from Congress, in case any part of my accounts had been objected to.

It is now more than three years that those accounts have been before that honorable body, and, to this day, no notice of any such objection has been communicated to me. But reports have, for some time past, been circulated here, and propagated in the newspapers, that I am greatly indebted to the United States for large sums, that had been put into my hands, and that I avoid a settlement. This, together with the little time one of my age may expect to live, makes it necessary for me to request earnestly, which I hereby do, that the Congress would be pleased, without further delay, to examine those accounts, and if they find therein any article or articles, which they do not understand or approve, that they would cause me to be acquainted with the same, that I may have an opportunity of offering such explanations or reasons in support of them as may be in my power, and then that the accounts may be finally closed.

I hope the Congress will soon be able to attend to this business for the satisfaction of the public, as well as in condescension to my request. In the meantime, if there be no impropriety in it, I would desire that this letter, together with another^[35] relating to the same subject, the copy of which is hereto annexed, may be put upon their minutes.

With every sentiment of respect and duty to Congress, I am, Sir, &c.

B. FRANKLIN.

THE

CORRESPONDENCE

OF

JOHN ADAMS,

ONE OF THE COMMISSIONERS TO FRANCE, MINISTER
PLENIPOTENTIARY TO HOLLAND, AND ONE OF THE
COMMISSIONERS FOR NEGOTIATING THE
TREATY OF PEACE

JOHN ADAMS was a delegate in the first Continental Congress, and one of the most active, zealous, and efficient members of that body. For three years his labors in Congress were incessant, and of the most valuable kind. It is said

of him, that he belonged to more committees than any other individual, and he discharged the duties of each with remarkable promptness and energy.

The foreign affairs of the United States having assumed an important aspect, Mr Adams was appointed a Commissioner to France in the place of Silas Deane, who had been recalled. This appointment took place on the 28th of November, 1777, and in the following February he embarked from Boston. After a long and disagreeable passage of fortyfive days he arrived in France. Here he devoted himself to the duties of his mission, in conjunction with his colleagues, till Dr Franklin was appointed Minister Plenipotentiary to the Court of France, and the commission was dissolved. Having no longer any charge to execute in Europe, Mr Adams left Paris on the 8th of March, 1779, for Nantes, where he proposed to embark for his own country. Various accidents and unexpected causes of delay kept him there till the 14th of June, when he sailed in the French frigate, the *Sensible*, in company with M. de la Luzerne, who was coming to the United States in the character of Minister Plenipotentiary, as successor to M. Gerard. The French government had voluntarily proffered to Mr Adams a passage in this vessel, after his disappointment in not sailing in the American frigate *Alliance*, as he at first expected. The *Sensible* arrived in Boston on the 3d of August.

But he was not long allowed to remain a spectator only of public events. On the 27th of September he was again chosen by Congress to represent his country abroad, as Minister Plenipotentiary for negotiating a treaty of peace and a treaty of commerce with Great Britain, when that nation should be found in a humor to recognise the independence of the United States, and enter into bonds of friendship. A task more honorable, momentous, and difficult could not have awaited him, nor one bearing more emphatical testimony of the confidence of his countrymen in his wisdom, abilities, integrity, and patriotism. On this second mission he sailed in the same frigate, which had brought him from France; accommodations for this purpose having been offered to Congress by the French Minister in Philadelphia. The vessel sprang a leak on the passage, and the captain was obliged to put into Ferrol, in Spain, where he arrived on the 8th of December. From this place, that he might avoid further hazards and uncertainty of a sea voyage in the depth of winter, Mr Adams resolved to proceed by land to the point of his destination. He reached Paris on the 9th

of February, 1780. The extreme badness of the travelling at this season had detained him nearly two months on the road.

By the terms of his commission, the place of his residence was not prescribed, but for the present he chose to fix himself in Paris, as amicable relations already subsisted between the French Court and Congress, and he was instructed to consult the French Ministry in regard to any movements, that might be made in effecting a treaty with England. He held a correspondence with Count de Vergennes, respecting the time and manner of carrying his instructions into execution, and on other topics; in all of which, however, his opinions and those of the French Minister were somewhat at variance. There seeming no prospect that Great Britain would soon be inclined to peace, and Mr Adams having no special reasons for remaining at the French Court, he made a tour to Holland in the beginning of August, leaving his Secretary, Mr Dana, in Paris.

Meantime Congress had assigned to him another duty. Mr Henry Laurens had been appointed, as early as November, 1779, to negotiate a loan of ten millions abroad, but having been prevented by various causes from departing on this service, Congress, on the 20th of June following, authorised Mr Adams to engage in the undertaking, and prosecute it till Mr Laurens, or some other person in his stead, should arrive in Europe. This commission reached Paris four weeks after he had left that city, and Mr Dana proceeded with it to Holland. Efforts were immediately made to procure a loan in that country, which were for a long time ineffectual, but which at last succeeded.

Mr Laurens sailed for Holland in August, 1780, but was captured a few days afterwards by a British frigate, which conveyed him to Newfoundland, whence he was sent to England and imprisoned in the Tower. When this intelligence reached Congress, it was resolved to transfer his appointment to another person, and on the 29th of December Mr Adams was commissioned to negotiate a treaty of amity and commerce with the United Provinces, and he was furnished with separate letters of credence as Minister Plenipotentiary to the States-General and to the Prince of Orange. The state of parties in Holland, and particularly the influence of England there, rendered unavailing all advances of the American Minister towards a treaty.

It having been intimated to Mr Adams, by the Duc de la Vauguyon, French Ambassador in Holland, that a treaty of peace was in prospect through the mediation of Russia and Austria, and that Count de Vergennes would be glad to see him on the subject at Versailles, he set off for Paris on the 6th of July, 1781. He had several interviews with the Count de Vergennes, and a correspondence of some length. After remaining three weeks at Paris and Versailles, without perceiving any apparent indications, that this project for a negotiation would come to maturity, he returned again to Holland.

On the 14th of June Congress appointed four other Commissioners, in conjunction with Mr Adams, to negotiate a treaty of peace, namely, Benjamin Franklin, John Jay, Henry Laurens, and Thomas Jefferson, and the first commission of Mr Adams for this purpose was annulled.

A misunderstanding having grown up between England and the United Provinces, chiefly on account of the part taken by the latter in joining the northern powers to carry into operation the plan of the armed neutrality, the French Court thought it a good opportunity for the United States to seek a treaty of alliance with Holland. This step was accordingly recommended to Congress through the French Minister at Philadelphia, and, in consequence of this suggestion, new powers were conferred on Mr Adams, dated August the 16th, by which he was commissioned to negotiate a treaty of alliance with Holland, limited in duration to the continuance of the war with England, and conformable to the treaties then subsisting with France.

The political relations between the several Provinces of Holland were such, however, that the process of negotiation went on heavily and slowly. The English interest still continued strong, even after the war had begun, and embarrassments of various kinds were thrown in the way, which required no common share of sagacity, firmness, and perseverance to overcome. All these at length yielded, and on the 8th of October, 1782, a treaty of commerce between the United States and Holland, and a convention concerning recaptures, were signed at the Hague.

Dr Franklin and Mr Jay had now been for three or four months actively engaged in the negotiation of peace at Paris. Having thus brought affairs to a happy issue in Holland, Mr Adams hastened to join the Commissioners, and arrived in Paris before the end of October. From that time till the

Preliminary Articles were signed, November the 30th, he applied himself unremittingly with his colleagues to the details of the negotiation. He also took part in the discussions respecting the Definitive Treaty, which followed from time to time, and was one of the signers of that instrument.

In the winter of 1784 he was in Holland. In January, 1785, he was appointed the first American Minister Plenipotentiary to the Court of St James's. While in England, he wrote his Defence of the American Constitutions. In the year 1788 permission was granted him to return home, where he arrived after an absence of almost nine years, during the whole of which period he had been employed in services of the highest responsibility and importance. He was shortly afterwards elected Vice President of the United States, under the first Presidency of Washington.

THE CORRESPONDENCE OF JOHN ADAMS.

COMMITTEE OF FOREIGN AFFAIRS TO JOHN ADAMS.

York, in Pennsylvania, December 3d, 1777.

Dear Sir,

With great pleasure to ourselves we discharge our duty, by enclosing to you your commission for representing these United States at the Court of France. We are by no means willing to admit a thought of your declining this important service, and therefore we send duplicates of the commission, and the late resolves, in order that you may take one set with you, and send the other by another vessel.

These are important papers, and therefore we wish they may be put into the hands of a particular and careful person, with directions to deliver them himself into the hands of the Commissioners. Mr Hancock, before he left this place, said that he intended to send a gentleman to France on some particular business. Cannot we prevail to get this gentleman to undertake the delivery of our packet to the Commissioners, they paying the expense of travel to Paris, and back again to his place of business?

It is unnecessary to mention the propriety of directing these despatches to be bagged with weight proper for sinking them, on any immediate prospect of their otherwise falling into the enemy's hands.

We sincerely wish you a quick and pleasant voyage, being truly your affectionate friends,

R. H. LEE,
JAMES LOVELL.

TO HENRY LAURENS, PRESIDENT OF CONGRESS.

Braintree, December 23d, 1777.

Sir,

Having been absent on a journey, I had not the honor of receiving your letters until yesterday, when one, of the 28th of November, enclosing a resolution of Congress of the same day, and another of the 3d of December, enclosing a commission for Dr Franklin, Dr Lee, and myself, to represent the United States at the Court of France, were delivered to me in Boston.

As I am deeply penetrated with a sense of the high honor, which has been done me in this appointment, I cannot but wish I were better qualified for the important trust, but as Congress are perfectly acquainted with all my deficiencies, I conclude it is their determination to make the necessary allowances; in the humble hope of which, I shall submit my own judgment to theirs, and devote all the faculties I have, and all that I can acquire, to their service.

You will be pleased to accept of my sincere thanks, for the polite manner in which you have communicated to me the commands of Congress, and believe me to be, with the most perfect respect and esteem, &c.

JOHN ADAMS.

TO THE COMMITTEE OF FOREIGN AFFAIRS.

Braintree, December 24th, 1777.

Gentlemen,

Having been absent from this State, I had not the honor of your favor of December 3d, until the 22d, when it was delivered to me with its enclosures, viz. a letter from the President to the Navy Board at Boston, and a private letter of December 8th, from Mr Lovell. At the same time, I received a packet directed to Benjamin Franklin, Arthur Lee, and John Adams, Commissioners of the United States of America, in France, under seal. I also received a packet unsealed, containing

1. Copy of a letter dated the 2d of December, from the Committee of Foreign Affairs to the Commissioners.
2. A duplicate of a commission of the 27th of November, to the Commissioners.
3. A duplicate of a resolve of December 3d; duplicates of resolves of November 20th and 21st, and duplicates of resolves of November 10th and 22d.
4. Two letters unsealed, to Silas Deane, Paris.
5. Two printed handbills, one containing messages, &c. between the Generals Bourgoyne and Gates; the other, a copy of a letter, &c. from Mr Strickland. The packet under seal, I shall do myself the honor to forward by the first conveyance, and the other shall be conveyed, God willing, with my own hand.

I have the honor to be, with the greatest esteem, &c.

JOHN ADAMS.

TO SAMUEL ADAMS.

Passy, May 21st, 1778.

Dear Sir,

I have never yet paid my respects to you since my arrival in Europe, for which seeming neglect of duty, the total novelty of the scenes about me, and the incessant avocations of business, and ceremony, and pleasure, (for this last, I find in Europe, makes an essential part of both the other two,) must plead my excuse.

The situation of the general affairs of Europe is still critical and of dubious tendency. It is still uncertain whether there will be war between the Turks and the Russians, between the Emperor and the King of Prussia, and indeed between England and France, in the opinion of many people. My own conjecture, however, is that a war will commence, and that soon.

Before this reaches you, you will be informed that a strong squadron of thirteen capital ships and several frigates has sailed from Toulon, and that another squadron is ordered to sail from Spithead. Whatever I may have heard of the destination of the first, I am not at liberty to mention it. We have no intelligence that the latter has sailed.

Chatham the great is no more, but there is so much of his wild spirit in his last speech yet left in the nation, that I have no doubt but the administration will put all to the hazard.

We are happy to hear by the frigate, La Sensible, which has returned to Brest, that the treaty arrived safe at Casco Bay. We hope to have the earliest intelligence of the ratification of it. The Commissioners from England, of the 22d of April, will meet, as we suppose, with nothing but ridicule. The King of Prussia is yet upon the reserve concerning America, or rather forgetting his promise, has determined not to acknowledge our independence at present. His reason is obvious; he wants the aid of those very German princes, who are most subservient to Great Britain, who have furnished her with troops to carry on the war against us, and, therefore, he does not choose to offend them by an alliance with us at present. Spain is on the reserve too, but there is not the least doubt entertained here of her

intention to support America. In Holland there is more friendship for us than I was aware of before I came here; at least, they will take no part against us.

Our affairs in this kingdom I find in a state of confusion and darkness, that surprises me. Prodigious sums of money have been expended, and large sums are yet due; but there are no books of account, nor any documents from whence I have been able to learn what the United States have received as an equivalent.

There is one subject which lies heavily on my mind, and that is the expense of the Commissioners. You have three Commissioners at this Court, each of whom lives at an expense of at least three thousand pounds sterling a year, I fear at a greater expense; few men in the world are capable of living at a less expense than I am. But I find the other gentlemen have expended from three to four thousand a year each, and one of them from five to six. And by all the inquiries I have been able to make, I cannot find any article of expense which can be retrenched.^[36]

The truth is, in my humble opinion, our system is wrong in many particulars.

1. In having three Commissioners at this Court; one in the character of Envoy is enough. At present, each of the three is considered in the character of a public Minister Plenipotentiary, which lays him under an absolute necessity of living up to this character, whereas, one alone would be obliged to incur no greater expense, and would be quite sufficient for all the business of a public Minister.

2. In leaving the salaries of these Ministers at an uncertainty, you will never be able to obtain a satisfactory account of the public monies while this system continues; it is a temptation to live at too great an expense, and gentlemen will feel an aversion to demanding a vigorous account.

3. In blending the business of a public Minister with that of a commercial agent. The business of various departments is by this means so blended, and the public and private expenses so confounded with each other, that I am sure no satisfaction can ever be given to the public of the disposition of their interests, and I am very confident, that jealousies and suspicions will

hereafter arise against the characters of gentlemen, who may, perhaps, have acted with perfect integrity and the fairest intentions for the public good.

My idea is this; separate the offices of public Ministers from those of commercial agents;^[37] recall, or send to some other Court, all the public Ministers but one at this Court; determine with precision the sum that shall be allowed to the remaining one for his expenses, for his salary, and for his time, risk, trouble, &c.; and when this is done, see that he receives no more than his allowance. The inconveniences arising from the multiplicity of Ministers and the complication of business are infinite.

Remember me with the most tender affection to my worthy colleagues, and to all others to whom you know they are due.

I am your friend and servant,

JOHN ADAMS.

TO THE COMMERCIAL COMMITTEE.

Passy, May 24th, 1778.

Gentlemen,

I find that the American affairs on this side of the Atlantic are in a state of disorder, very much resembling that which is so much to be regretted on the other, and arising, as I suppose, from the same general causes, the novelty of the scenes, the inexperience of the actors, and the rapidity with which great events have succeeded each other. Our resources are very inadequate to the demands made upon us, which are perhaps unnecessarily increased by several irregularities of proceeding.

We have in some places two or three persons, who claim the character of American agents, agent for commercial affairs, and continental agent, for they are called by all these different appellations. In one quarter, one

gentleman claims the character from the appointment of Mr William Lee, another claims it from the appointment of the Commissioners at Passy, and a third from the appointment of the Commercial Committee of Congress. This introduces a triple expense, and much confusion and delay. These evils have been accidental, I believe, and unavoidable, but they are evils still, and ought to be removed.

One person at Bordeaux, another at Nantes, and a third perhaps at Havre de Grace, or Dunkirk, would be amply sufficient for all public purposes, and to these persons all orders from Congress, or the Commercial Committee, or the Commissioners at Paris, ought to be addressed. To the same persons all public ships of war, and all other ships belonging to the United States, and their prizes, ought to be addressed; and all orders for the supplies of provisions, clothing, repairs of vessels, &c. as well as all orders for shipping of merchandises, or warlike stores for the United States, ought to go through their hands. We have such abuses and irregularities every day occurring, as are very alarming. Agents of various sorts are drawing bills upon us, and the commanders of vessels of war are drawing upon us for expenses and supplies, which we never ordered, so that our resources will soon fail, if a speedy stop is not put to this career.

And we find it so difficult to obtain accounts from agents of the expenditure of monies, and of the goods and merchandises shipped by them, that we can never know the true state of our finances, or when and in what degree we have executed the orders of Congress for sending them arms, clothes, medicines, or other things.

In order to correct some of the abuses, and to bring our affairs into a little better order, I have constantly given my voice against paying for things we never ordered, against paying persons who have never been authorised, and against throwing our affairs into a multiplicity of hands in the same place. But the consequence has been so many refusals of demands and requests, that I expect much discontent will arise from it, and many clamors. Whether the appointment by Congress of one or more consuls for this kingdom would remedy these inconveniences, I must submit to their wisdom.

I have the honor to be, &c.

JOHN ADAMS

TO JAMES LOVELL.

Passy, July 9th, 1778.

My Dear Friend,

I had yesterday the honor of receiving the despatches from Congress, which were sent by the *Saratoga* from Baltimore, arrived at Nantes, convoyed in by the *Boston*, Captain Tucker, (who was returning from a short cruise, and who has sent in four prizes,) and those by the *Spy*, from New London, arrived at Brest, and the inexpressible pleasure of your private letters by the same vessels. You acquaint me, that you had written to me eight or nine times, which has given me some anxiety, as these letters are the first I have received from you or from any member of Congress, since my arrival in France.

The ratification of the treaty gives universal joy to this Court and nation, who seem to be sincerely and deeply rejoiced at this connexion between the two countries.

There is no declaration of war as yet at London or Versailles, but the ships of the two nations are often fighting at sea, and there is not the smallest doubt but war will be declared, unless Britain should miraculously have wisdom given her to make a treaty with the Congress like that which France has made. Spain has not made a treaty, but be not deceived nor intimidated, all is safe in that quarter.

The unforeseen dispute in Bavaria has made the Empress Queen and King of Prussia cautious of quarrelling with Great Britain, because her connexion with a number of the German Princes, whose aid each of those potentates is soliciting, makes her friendship, or at least her neutrality in the German war, of importance to each. But this will do no hurt to America.

You have drawn so many bills of exchange upon us, and sent us so many frigates, every one of which costs us a large sum of money, so many merchandises and munitions of war have been sent, whether arrived or not,

and we expect so many more drafts upon us, that I assure you I am very uneasy concerning our finances here. We are laboring to hire money, and have some prospect of success, but I am afraid not for such sums as will be wanted.

Let me entreat you to omit no opportunity of writing me; send me all the newspapers, journals, &c. and believe me your friend and servant,

JOHN ADAMS.

TO JAMES LOVELL.

Passy, July 26th, 1778.

My Dear Friend,

Your favors of May 16th and 25th, by Captain Barnes reached me yesterday. These, with those by Niles from Connecticut, and those by the Saratoga from Baltimore, are all that I have received from you, or from anybody at Congress; which gives me pain, because your other letters must have miscarried, and I hold your letters in so high esteem, that I cannot be willing to lose one.

The robbery of Folger's packet, by all that I can learn, must have been committed by a traitor, who made his escape to England. But Dr Franklin and Mr Lee, who were acquainted with this transaction, will, I suppose, develope the mystery as far as they are able. One of these gentlemen has some other suspicions, but I believe the fugitive to England was the only thief.

Mr Deane, whom you mention, is no doubt with you before now, but if the Count d'Estaing has not been able to strike a decisive blow before the arrival of Byron, I should fear that some misfortune has befallen him since the junction of Byron and Howe. We are, however, anxious to know the naval manœuvres in America, as well as those of the armies. Mr Deane

complains of ill treatment, and claims great merit for his services. I shall not add to the ill treatment, nor depreciate the merit, but it will never do for Congress to dread the resentment of their servants. I have heard a great deal in this country concerning his conduct; great panegyrics and harsh censures. But I believe he has neither the extravagant merit that some persons ascribe to him, nor the gross faults to answer for, which some others impute or suspect. I believe he was a diligent servant of the public, and rendered it useful service. His living was expensive, but whether he made the vast profit to himself that some persons suspect, I know not, or whether any profit at all. One thing I know, that my family will feel that I shall not imitate him in this faculty, if it really was his; for which reason I wish Congress would determine, what allowance we shall have for our time, that I might know whether my family can live upon it or not.

Extravagant claims to merit are always to be suspected. General Gates was the ablest negotiator you ever had in Europe,^[38] and next to him, General Washington's attack upon the enemy at Germantown. I do not know, indeed, whether this last affair had not more influence upon the European mind than that of Saratoga. Although the attempt was unsuccessful, the military gentlemen in Europe considered it as the most decisive proof that America would finally succeed.

And you may depend upon it, although your agents in Europe were to plead with the tongues of men and angels, although they had the talents and the experience of Mazarin, or the integrity of d'Asset, your army in America will have more success than they.

I foresee there will be diversities of sentiment concerning this gentleman, (Deane,) and perhaps warm debates. Perhaps there will be as much as there has been about a General in the northern department. All that I request is, that I may not be drawn into the dispute. Europe has not charms enough for me to wish to stay here to the exclusion of abler negotiators, much less at the expense of heat and divisions in Congress. How well united you were in the choice of me I never was informed, and how soon attempts may be made to displace me I know not. But one thing I beg of my friends, and one only, that if any attempt of that kind should be made, they would give me up, rather than continue my residence at the expense of debates in Congress, and by the favor of small majorities.

If I were capable of speculating in English funds, or of conducting private trade, I might find opportunities here to make a private profit, and might have inducements from private considerations to continue here; but this will never be my case, and I am very well persuaded that Congress will never grant me so much for my services here, as I could earn by my profession in Boston, to which I will return with submission to old ocean, old Boreas, and British men of war, the moment I am released from this station. I wish however that Congress would determine what allowance they will grant, that honest men may not be made or suspected otherwise. As to the public, I am fully persuaded that its interests are not at all concerned in my residence here, as there is a great plenty of persons quite as well qualified.

I am, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Passy, July 27th, 1778.

Sir,

I thank you for your kind congratulations on the favorable appearances in our American concerns, and for so politely particularizing one of the most inconsiderable of them, my safe arrival in France, which was after a very inconvenient passage of fortyfive days.

Your letter to Mr Izard I had the pleasure to send to him immediately in Paris, where he resides, the Court of Tuscany being so connected with that of Vienna, as to discourage hitherto his departure for Italy. He did me the honor of a visit yesterday, when we had much conversation upon American affairs.

Your other letter to your daughter-in-law, I have forwarded by a safe opportunity. You may depend upon my conveying your letters to any of

your friends by the best opportunities, and with despatch. The more of your commands you send me, the more pleasure you will give me.

War is not declared, that is, no manifesto has been published, but each nation is daily manufacturing materials for the other's manifesto, by open hostilities. In short, Sir, the two nations have been at war ever since the recall of the Ambassadors. The King of France has given orders to all his ships to attack the English, and has given vast encouragement to privateers.

The King of Great Britain and his council have determined to send instructions to their Commissioners in America to offer us independency, provided we will make peace with them, separate from France. This appears to me to be the last effort to seduce, deceive, and divide. They know that every man of honor in America must receive this proposition with indignation. But they think they can get the men of no honor to join them by such a proposal, and they think the men of honor are not a majority. What has America done to give occasion to that King and council to think so unworthily of her.

The proposition is in other words this; "America, you have fought me until I despair of beating you, you have made an alliance with the first power of Europe, which is a great honor to your country and a great stability to your cause, so great that it has excited my highest resentment, and has determined me to go to war with France. Do you break your faith with that power and forfeit her confidence, as well as that of all the rest of mankind forever, and join me to beat her, or stand by neuter and see me do it, and for all this I will acknowledge your independency, because I think in that case you cannot maintain it, but will be an easy prey to me afterwards, who am determined to break my faith with you, as I wish you to do yours with France."

My dear countrymen, I hope you will not be allured upon the rocks, by the syren song of peace. They are now playing a sure game. They have run all hazards, but now they hazard nothing.

I know your application is incessant and your moments precious, and, therefore, that I ask a great favor in requesting your correspondence, but the interests of the public, as well as private friendship, induce me to do it.

I am, &c.

JOHN ADAMS.

TO SAMUEL ADAMS.

Passy, July 28th, 1778.

My Dear Sir,

The Sovereign of Britain and his Council have determined to instruct their Commissioners to offer you independence, provided you will disconnect yourselves from France.

The question arises, how came the King and Council by authority to offer this? It is certain that they have it not.

In the next place, is the treaty of alliance between us and France now binding upon us? I think there is not room to doubt it; for declarations and manifestos do not make the state of war, they are only publications of the reasons of war. Yet the message of the King of Great Britain to both houses of Parliament, and their answers to that message were as full a declaration of war as ever was made, and accordingly hostilities have been frequent ever since. This proposal, then, is a modest invitation to a gross act of infidelity and breach of faith. It is an observation that I have often heard you make, that "France is the natural ally of the United States." This observation is, in my opinion, both just and important. The reasons are plain. As long as Great Britain shall have Canada, Nova Scotia, and the Floridas, or any of them, so long will Great Britain be the enemy of the United States, let her disguise it as much as she will.

It is not much to the honor of human nature, but the fact is certain, that neighboring nations are never friends in reality. In the times of the most perfect peace between them, their hearts and their passions are hostile, and this will certainly be the case forever between the thirteen United States and

the English colonies. France and England, as neighbors and rivals, never have been and never will be friends. The hatred and jealousy between the nations are eternal and irradicable. As we, therefore, on the one hand, have the surest ground to expect the jealousy and hatred of Great Britain, so on the other we have the strongest reasons to depend upon the friendship and alliance of France, and no one reason in the world to expect her enmity or her jealousy, as she has given up every pretension to any spot of ground on the Continent. The United States, therefore, will be for ages the natural bulwark of France against the hostile designs of England against her, and France is the natural defence of the United States against the rapacious spirit of Great Britain against them. France is a nation so vastly eminent, having been for so many centuries what they call the dominant power of Europe, being incomparably the most powerful at land, that united in a close alliance with our States, and enjoying the benefit of our trade, there is not the smallest reason to doubt, but both will be a sufficient curb upon the naval power of Great Britain.

This connexion, therefore, will forever secure a respect for our States in Spain, Portugal, and Holland too, who will always choose to be upon friendly terms with powers, who have numerous cruisers at sea, and indeed in all the rest, of Europe. I presume, therefore, that sound policy as well as good faith will induce us never to renounce our alliance with France, even although it should continue us for some time in war. The French are as sensible of the benefits of this alliance to them as we are, and they are determined as much as we to cultivate it.

In order to continue the war, or at least that we may do any good in the common cause, the credit of our currency must be supported. But how? Taxes, my dear Sir, taxes. Pray let our countrymen consider and be wise; every farthing they pay in taxes is a farthing's worth of wealth and good policy. If it were possible to hire money in Europe to discharge the bills, it would be a dreadful drain to the country to pay the interest of it. But I fear it will not be. The house of Austria has sent orders to Amsterdam to hire a very great sum, England is borrowing great sums, and France is borrowing largely. Amidst such demands for money, and by powers who offer better terms, I fear we shall not be able to succeed.

Pray write me as often as you can, and believe me your friend and servant,

JOHN ADAMS.

TO JAMES WARREN.

Passy, August 4th, 1778.

My Dear Sir,

Your kind favor of July the 1st was brought here yesterday from Bordeaux, where Captain Ayres has arrived, but was not delivered to me till this day. This is the second only received from you. I have infinite satisfaction in learning from all parts of America the prosperous train of our affairs, and the unanimity and spirit of the people. Every vessel brings us fresh accessions of ardor to the French, and of depression to the English, in the war that is now begun in earnest.

The resolutions of Congress upon the Conciliatory Bills, the address to the people, the ratification of the treaty, the answer to the Commissioners, the President's letter, the message of G. Livingston, and the letter of Mr Drayton, are read here with an avidity that would surprise you. It is not one of the least misfortunes of Great Britain, that she has to contend with so much eloquence; that there are such painters to exhibit her atrocious actions to the world, and transmit them to posterity. Every publication of this kind seems to excite the ardor of the French nation, and of their fleets and armies, as much as if they were Americans.

While American orators are thus employed in perpetuating the remembrance of the injustice and cruelty of Great Britain towards us, the French fleet has been giving such a check to her naval pride, as she has not experienced before for many ages. The vessel, which is to carry this, will carry information of a general engagement between d'Orvilliers and Keppel, which terminated in a disgraceful flight of the English fleet. We hope soon to hear of d'Estaing's success, which would demonstrate to the universe, that Britain is no longer mistress of the ocean. But the events of war are

always uncertain, and a misfortune may have happened to the French fleet in America. But even if this should be the case, which I do not believe, still Britain is not mistress of the sea, and every day will bring fresh proofs that she is not. The springs of her naval power are dried away.

I have hitherto had the happiness to find that my pulse beat in exact unison with those of my countrymen. I have ventured with some freedom to give my opinion, as to what Congress would do with the Conciliatory Bills, with the Commissioners, with the treaty, &c. &c. and every packet brings us proceedings of Congress, according in substance, but executed in a manner infinitely exceeding my abilities. Nothing has given me more joy, than the universal disdain that is expressed both in public and private letters, at the idea of departing from the treaty and violating the public faith. This faith is our American glory, and it is our bulwark. It is the only foundation on which our union can rest securely, it is the only support of our credit both in finance and commerce; it is our sole security for the assistance of foreign powers. If the British Court with their arts could shake it, or the confidence in it, we should be undone forever. They would triumph over us, after all our toil and danger. They would subjugate us more entirely than they ever intended. The idea of infidelity cannot be treated with too much resentment or too much horror. The man who can think of it with patience is a traitor in his heart, and ought be execrated as one, who adds the deepest hypocrisy to the blackest treason.

Is there a sensible hypocrite in America, who can start a jealousy, that religion may be in danger? From whence can this danger arise? Not from France, she claims no inch of ground upon your continent. She claims no legislative authority over you, no negative upon your laws, no right of appointing you bishops, nor of sending you missionaries. Besides, the spirit of crusading for religion is not in France. The rage for making proselytes, which has existed in former centuries, is no more. There is a spirit more liberal here in this respect, than I expected to find. Where has been the danger to the religion of the Protestant cantons of Switzerland, from an alliance with France, which has subsisted with entire harmony for one hundred and fifty years, or thereabouts? But this subject is fitter for ridicule than serious argument, as nothing can be clearer than that in this enlightened tolerant age, at this vast distance, without a claim or color of

authority, with an express acknowledgment and warranty of sovereignty, this, I had almost said tolerant nation, can never endanger our religion.

The longer I live in Europe, and the more I consider our affairs, the more important our alliance with France appears to me. It is a rock upon which we may safely build. Narrow and illiberal prejudices, peculiar to John Bull, with which I might perhaps have been in some degree infected when I was John Bull, have now no influence over me. I never was, however, much of John Bull. I was John Yankee, and such I shall live and die. Is Great Britain to be annihilated? No such thing. A revolution in her government may possibly take place. But whether in favor of despotism or republicanism, is the question. The scarcity of virtue, and even the semblance of it, seems an invincible obstacle to the latter. But the annihilation of a nation never takes place. It depends wholly on herself to determine whether she shall sink down into the rank of the middling powers of Europe, or whether she shall maintain the second place in the scale. If she continues this war, the first will be her fate, if she stops short in her mad career and makes peace, she may still be in the second predicament. America will grow with astonishing rapidity, and England, France, and every other nation in Europe will be the better for her prosperity. Peace, which is her dear delight, will be her wealth and her glory, for I cannot see the seed of a war with any part of the world in future, but with Great Britain, and such States as may be weak enough, if any such there should be, to become her allies. That such a peace may be speedily concluded, and that you and I may return to our farms to enjoy the fruits of it, spending our old age in recounting to our children the toils and dangers we have encountered for their benefit, is the wish of your friend,

JOHN ADAMS.

TO RICHARD HENRY LEE.

Passy, August 5th, 1778.

My Dear Sir,

Your letter of the 20th of June, by Captain Ayres, from Boston, had a quick passage. He sailed on the 4th of July, and your letters were brought to Passy from Bordeaux, where she arrived the 3d of August.

I thank you, Sir, for the kind expressions of your obliging anxiety for me. The uncertainty in which you remain so long, concerning the fate of the Boston, must have been occasioned by the capture of many vessels by which the news was sent, together with many bundles of English newspapers and pamphlets. The prompt ratification of the treaties, as well as the dignity with which you have received the letters from the British Commissioners, has given great satisfaction here. The two articles, the Count de Vergennes agreed, when we presented your instructions to him on that head, should be given up.

The confederation is an important object, and nothing is more wished for in Europe than its completion, and the finishing of the separate governments. The eagerness to complete the American code, and the strains of panegyric in which they speak and write of those parts of it, which have been published in Europe, are very remarkable, and seem to indicate a general revolution in the sentiments of mankind upon the subject of government. Our currency cannot engage our attention too much. And the more we think of it, the more we shall be convinced, that taxation, deep and broad taxation, is the only sure and lasting remedy. Loans in Europe will be very difficult to obtain. The powers at war, or at the eve of war, have such vast demands, and offer terms so much better than ours, that nothing but sheer benevolence to our cause can induce any person to lend us. Besides a large foreign debt would be a greater evil, for what I know, than a paper currency. Moreover, your large drafts upon the Commissioners here, from various quarters, are like to consume more money than we can borrow. We shall do however all we can.

I have hitherto had the good fortune to preserve a good understanding with the gentleman you mention, and shall endeavor to continue it. I have long known him to be employed very ably and usefully for our country, and his merits and services, his integrity and abilities, will induce me to cultivate his friendship, as far as I can, consistently with the public service. I wish I could converse with you freely upon this subject, but it would lead me into too long a detail. It has given me much grief, since my arrival here, to find

so little harmony among many respectable characters; so many mutual jealousies, and so much distrust of one another. As soon as I perceived it, I determined neither to quarrel with any man here, because he had quarrelled with another, or because another had quarrelled with him; nor to make any man my bosom friend, because he was the bosom friend of any other; but to attend solely to the public service, and give my voice upon all occasions, as I should think that justice and policy required, whether it agreed with the opinion of one man or another. I cannot be more particular. If I were to take every man's word, I should think there was not one disinterested American here, because it is very certain, that there is nobody here, that everybody speaks well of. There is no doubt to be made, that private interest has some influence here upon some minds, and that our mercantile affairs and competitions have occasioned some altercation. But there is, I think, rather more of mutual reproaches of interested views and designs, rather more of animosity among the Americans here, than I remember to have seen anywhere else. I will have nothing to do with any of these things. I will have nothing to do with designs and endeavors to run down characters, to paint in odious colors indifferent actions, to excite or propagate suspicions without evidence, or to foment or entertain prejudices of any kind, if I can possibly avoid it. I am really ashamed to write to you in this enigmatical manner, which is not natural to me; but I know not how to write clearer at present. I sometimes differ in sentiment from each of my colleagues, and sometimes agree with each; yet I do not trim, or at least I think I do not. It has been and shall be my endeavor to heal and reconcile, to the utmost of my power, Yet I fear, that some gentlemen are gone over to America, heated with altercation and inflamed with prejudice. Others still remain here, it is to be feared, in the same temper of mind, and probably many letters are gone over loaded. These things will probably make you uncomfortable, as they have and will make us. I really wish, however, that you would remove the cause of this, and appoint consuls to do the mercantile business. If you do not, however, I am determined to go on, giving my voice clearly and without equivocation, and at the same time without wrangling or ill will.

We expect on Sunday, the 9th, the English accounts of the sea fight between d'Orvilliers and Keppel, which happened on the 27th ult. in which the former obtained the laurels, whatever representation the latter may make of it. There are so many facts, attested by so many respectable witnesses, that

there is no room to doubt, but that the Britons lost the day; a terrible loss indeed to a nation, who have the empire of the sea to maintain, in order almost to preserve their existence. It is not being equal to France at sea; they must support a clear and decided superiority, not only to France, but to France and Spain in conjunction, not to mention our States, in order to preserve their rank among the powers of Europe. My tenderest respects to all good men.

I am, dear Sir, affectionately yours,

JOHN ADAMS.

TO HENRY LAURENS, PRESIDENT OF CONGRESS.

Passy, August 27th, 1778.

Sir,

I have the honor to enclose the last gazettes, by which Congress will see the dearth of news in Europe at present. We expect an abundance of it at once soon, as we have nothing from America since the 4th of July.

The French fleet went out again from Brest the 17th, but we have not yet heard that the English fleet is out. While the two fleets were in the harbor, the British East India fleet, and another small West India fleet, got in; a misfortune of no small moment, as the British finances will receive by means of it a fresh supply of money for the present, and their fleet a considerable reinforcement of seamen.

I have the honor to be, with the highest respect, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Passy, September 7th, 1778.

Sir,

I have the honor to enclose to Congress all the newspapers I have by me, enough to show that we have nothing very important here at present. The French and British fleets are again at sea, and we hourly expect intelligence of a second battle; but our expectations from America are still more interesting and anxious, having nothing from them since the 3d of July, except what is contained in the English gazettes.

Events have probably already passed in America, although not known in Europe, which will determine the great question, whether we shall have a long war or a short one. The eyes of all Europe are fixed upon Spain, whose armaments by sea and land are vastly expensive and extremely formidable, but whose designs are a profound, impenetrable secret; time, however, will discover them. In the meantime, we have the satisfaction to be sure, that they are not inimical to America. For this, we have the word of a King, signified by his Ministers, a King, who they say never breaks his word, but, on the contrary, has given many striking proofs of his sacred regard to it.

I have the honor to be, with the greatest esteem, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Passy, September 11th, 1778.

Sir,

I have the honor to enclose to Congress the latest gazettes. We have no other intelligence, than is contained in them.

Since the 11th of July, the date of Lord Howe's announcing the arrival of the Count d'Estaing off Sandy Hook, we have not a syllable from America, by the way of England. In France, we have nothing from America since July 3d. This long interval leaves a vast scope for imagination to play, and, accordingly, there is no end to the speculations prompted by the hopes and fears of the nations of Europe. We are weary of conjectures, and must patiently wait for time to end them.

I have the honor to be, with great respect, &c.

JOHN ADAMS.

TO M. RAY DE CHAUMONT.

Passy, September 15th, 1778.

Sir,

As our finances are, at present, in a situation seriously critical, and as I hold myself accountable to Congress for every part of my conduct, even to the smallest article of my expenses, I must beg the favor of you to consider what rent we ought to pay you for this house and furniture, both for the time past and to come. Every part of your conduct towards me, and towards our Americans in general, and in all our affairs, has been polite and obliging, as far as I have had an opportunity of observing, and I have no doubt it will continue so; yet it is not reasonable, that the United States should be under so great an obligation to a private gentleman, as that two of their representatives should occupy, for so long a time, so elegant a seat, with so much furniture and so fine accommodations without any compensation; and in order to avoid the danger of the disapprobation of our constituents on the one hand, for living here at too great or at too uncertain an expense, and on the other, the censure of the world for not making sufficient compensation to a gentleman, who has done so much for our convenience, it seems to me necessary that we should come to an *eclaircissement* upon this head.

As you have an account against the Commissioners, or against the United States, for several other matters, I should also be obliged to you, if you would send it in as soon as possible, as every day renders it more and more necessary for us to look into our affairs with the utmost precision.

I am, Sir, with much esteem and respect, your most obedient, humble servant,

JOHN ADAMS.

M. RAY DE CHAUMONT TO JOHN ADAMS.

Translation.

Passy, September 18th, 1778.

Sir,

I have received the letter, which you did me the honor to write to me on the 15th inst, making inquiry as to the rent of my house, in which you live, for the past and the future. When I consecrated my house to Dr Franklin, and his associates, who might live with him, I made it fully understood that I should expect no compensation, because I perceived that you had need of all your means to send to the succor of your country, or to relieve the distresses of your countrymen escaping from the chains of their enemies. I pray you, Sir, to permit this arrangement to remain, which I made when the fate of your country was doubtful. When she shall enjoy all her splendor, such sacrifices on my part will be superfluous, or unworthy of her, but, at present, they may be useful, and I am most happy in offering them to you.

There is no occasion for strangers to be informed of my proceeding in this respect. It is so much the worse for those, who would not do the same if they had the opportunity, and so much the better for me, to have immortalized my house by receiving into it Dr Franklin and his associates.

I have the honor to be, Sir, with the most perfect respect, &c.

LE RAY DE CHAUMONT.

TO THE PRESIDENT OF CONGRESS.

Passy, September 20th, 1778.

Sir,

I have the honor to enclose the latest gazettes, which contain all the news of Europe. The news from America by the way of London, which are contained in the *Courier de l'Europe* of the 15th instant, have raised our expectations and increased our anxiety. We are not without apprehensions, that the Count d'Estaing may fall in with the combined fleets of Howe and Byron.

The English are beginning to elevate their heads a little, and to renew their old insolent language, both in coffee houses and in daily papers. The refugees from America, unable to bear the thought of being excluded forever from that country, and still less that of soliciting for pardon from their injured countrymen, and returning to see established principles, which they detest, and forms of government, against which they have ever combated, are said to be indefatigable in instilling hopes into the King and Ministers, that by persevering another campaign, and sending twenty thousand more men to America, the people will be worn out, and glad to petition for dependence upon them.

They flatter themselves and others with hopes, that Spain will remain neuter, and that by intriguing in France, they can get the French Ministry changed, and then that they shall have little trouble from this quarter. Nothing can be more whimsical, more groundless or ridiculous, than all this. Yet it is said to amuse and please the credulous multitude in that devoted island. Those, who pretend to know the bosoms of the persons

highest in power in that kingdom, say, that they delight themselves with the thought, that if it is not in their power to reduce America once more to their yoke, yet they are able to harass, to distress, and to render miserable those whom they cannot subdue. That they have some little compunction at the thought, that they shall be ranked in history with the Philips and Alvas, the Alberts and Gislens of this world; but this, instead of producing repentance and reformation as it ought, engenders nothing but rage, envy, and revenge. This revenge, however, is impotent. Their marine and their finances are in so bad a condition, that it is with infinite difficulty they can cope with France alone, even at sea; and it seems to be the intention of Providence, that they shall be permitted to go on with their cruelties, just long enough to wean the affection of every American heart, and make room for connexions between us and other nations, who have not the ties of language, of acquaintance, and of custom to bind us.

I am, with the most perfect respect, Sir, your most obedient, humble servant,

JOHN ADAMS.

TO RALPH IZARD.

Passy, September 25th, 1778.

Sir,

I have received with much pleasure your favor of yesterday's date. No apology was necessary for the delay of so few days to answer a letter, the contents of which did not, from any public consideration, require haste. My most fervent wishes mingle themselves with yours, that the happy time may soon arrive when we may enjoy the blessings of peace, uninterrupted by disputes with any power whatever. But alas! my apprehensions are very strong, that we are yet at a distance from so great a felicity.

You will readily acknowledge the impropriety of my entering into the question concerning the duty of the Commissioners here, to have made the communications of the treaty, which you mention. But of this you may be assured, that I shall at all times hold myself obliged to you for the communication of your sentiments upon any public affair. I am therefore sorry, that in your letter you have confined yourself to that part of the treaty, upon which I particularly requested your sentiments. And I now take the liberty to request your sentiments upon every part of the treaty, which you conceive liable to doubtful construction, or capable of producing discontent or dispute, for I have the honor to be fully of your opinion, that it is of very great importance to be upon our guard, and avoid every cause of controversy with France as much as possible. She is, and will be, in spite of the obstacles of language, of customs, religion, and government, our natural ally against Great Britain as long as she shall continue our enemy, and that will be at least as long as she shall hold a foot of ground in America, however she may disguise it, and whatever peace or truce she may make.

Your sentiments of the fishery, as a source of wealth, of commerce and naval power, are perfectly just, and therefore this object will and ought to be attended to with precision, and cherished with care. Nevertheless, agriculture is the most essential interest of America, and even of the Massachusetts Bay, and it is very possible to injure both, by diverting too much of the thoughts and labor of the people from the cultivation of the earth to adventures upon the sea. And this, in the opinion of some persons, has been a fault in the Massachusetts Bay. Experience has taught us in the course of this war, that the fishery was not so essential to our welfare as it was once thought. Necessity has taught us to dig in the ground instead of fishing in the sea for our bread, and we have found that the resource did not fail us.

The fishery was a source of luxury and vanity, that did us much injury; yet this was the fault of the management, not of the fishery. One part of our fish went to the West India Islands for rum, and molasses to be distilled into rum, which injured our health and our morals; the other part went to Spain and Portugal for gold and silver, almost the whole of which went to London, sometimes for valuable articles of clothing, but too often for lace and ribands. If, therefore, the cessation of the fishery for twenty years to come was to introduce the culture of flax and wool, which it certainly

would do as far as would be necessary for the purposes of decency and comfort, if a loss of wealth should be the consequence of it, the acquisition of morals and of wisdom would perhaps make us gainers in the end.

These are vain speculations I know. The taste for rum and ribands will continue, and there are no means for the New England people to obtain them so convenient as the fishery, and therefore the first opportunity will be eagerly embraced to revive it. As a nursery of seamen, and a source of naval power, it has been, and is an object of serious importance, and perhaps indispensably necessary to the accomplishment and the preservation of our independence. I shall therefore always think it my duty to defend and secure our rights to it with all industry and zeal, and shall ever be obliged to you for your advice and co-operation.

Pardon the length of this letter, and believe me, with much esteem, your friend and servant,

JOHN ADAMS.

TO RALPH IZARD.

Passy, October 2d, 1778.

Sir,

I have the pleasure of yours of the 28th, and agree with you in sentiment, that if the money, which has heretofore been squandered upon articles of luxury, could for the future be applied to discharge our national debt, it would be a great felicity. But is it certain that it will? Will not the national debt itself be the means, at least a temptation to continue, if not increase the luxury? It is with great pleasure that I see you mention sumptuary laws. But is there room to hope that our Legislatures will pass such laws? Or that the people have, or can be persuaded to acquire those qualities, that are necessary to execute such laws? I wish your answer may be in the

affirmative, and that it may be found true in fact and experience. But much prudence and delicacy will be necessary, I think, to bring all our countrymen to this just way of thinking upon this head. There is such a charm to the human heart in elegance, it is so flattering to our self-love to be distinguished from the world in general by extraordinary degrees of splendor, in dress, in furniture, equipage, buildings, &c. and our countrymen, by their connexion with Europe, are so much infected with the habit of this taste and these passions, that I fear it will be a work of time and difficulty, if not quite impracticable, to introduce an alteration; to which the late condition of our trade and currency, besides the great inequality of fortune, and the late enterprises introduced by privateers, are dangerous enemies.

You ask my opinion, whether the reasons in your last letter are well founded. It is observable, that the French Court were not content with the treaty proposed by Congress, which contained all, in my opinion, which is contained in the article as it now stands in the treaty of the 6th of February. What motive they had for inserting the words, "indefinite and exclusive," is left to conjecture.^[39] The suspicion, that they meant more than the treaty proposed by Congress expressed, arises from a fact, which you remember, viz. that the French at the time of the last peace claimed more. I wish to know if there is any letter or memorial extant, in which such a claim is contained, or whether it was only a verbal claim made by their Ambassadors. Whether any of the magazines of that time mention and discuss any such claim. If the fact is incontestible, that they made such a claim, it is possible that it may be revived under the words "indefinite and exclusive." But I hope it will not, and I hope it was not intended when these words were inserted. Yet I confess I cannot think of any other reason for inserting them. The word indefinite is not amiss, for it is a right of catching fish and drying them on land, which is a right indefinite enough. But the word exclusive is more mysterious. It cannot mean that Americans and all other nations shall be "excluded" from the same right of fishing and drying on land, between the same limits of Bonavista and Riche. It would be much easier to suppose, that the following words, "in that part only, and in no other besides that," gave rise to the word "exclusive;" that is, that right of fishing and drying within those limits, for which we have excluded ourselves from all others. I will undertake to show better reasons, or at least

as good, for this sense of the word exclusive, as the most subtle interpreter of treaties can offer for the other, although I think them both untenable.

My opinion further is this, that as contemporaneous exposition is allowed by all writers on the law of nations to be the best interpreter of treaties, as well as of all other writings, and as neither the treaty of Utrecht, or the treaty of Paris in 1763, ever received such an interpretation as you are apprehensive may hereafter be contended for, and as the uninterrupted practice has been against such a construction, so I think that the treaty of Paris of the 6th of February, 1778, is not justly liable to such a construction, and that it cannot be attempted with any prospect of success. I agree with you, however, that as we are young States, and not practised in the art of negotiation, it becomes us to look into all these things with as much caution and exactness as possible, and furnish ourselves with the best historical light, and every other honest means of securing our rights. For which reason I requested your sentiments upon this subject in writing, and continue to desire in the same way your observations on other parts of the treaty. Reduced to writing, such things remain in letters and letter books, as well as more distinctly in the memory, and the same men or other men may recur to them at future opportunities, whereas transient conversations, especially among men who have many things to do and to think of, slip away and are forgotten. I shall make use of all the prudence I can, that these letters may not come to the knowledge of improper persons, or be used to the disadvantage of our country, or to you or me in our present capacity.

I am, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Passy, October 2d, 1778.

Sir,

I have the honor to enclose the latest gazettes, by which Congress will perceive, that we have no intelligence from America since the departure of the Count d'Estaing from Sandy Hook; our anxiety is very great, but we hope that a few hours will relieve it. In the midst of a war in Germany, and between France and England, there was scarcely ever a greater dearth of news in a profound peace.

Captain Mc Neil, the bearer of this, makes the most conversation, having taken and destroyed, I think, thirteen vessels in the course of his last cruise, six of which have safely arrived in France, the others, not destroyed, he sent to America. His cruise will prove a great disappointment to the enemy, having deprived them of a great quantity of naval stores, upon which they depended.

I have the honor to be, with the greatest respect, &c.

JOHN ADAMS.

COMMITTEE OF FOREIGN AFFAIRS TO JOHN ADAMS.

Philadelphia, October 28th, 1778.

Sir,

While we officially communicate to you the enclosed resolve, the foundation of which you cannot remain a stranger to, we must entreat you to be assiduous in sending to those Commissioners who have left France, and gone to the Courts for which, they were respectively appointed, all the American intelligence, which you have greater opportunity than they of receiving from hence, particularly to Mr Izard and Mr William Lee. We do not often send more than one set of gazettes by one opportunity; and we hear of several vessels which have miscarried.

Congress must and will speedily determine upon the general arrangement of their foreign affairs. This is become, so far as regards you, peculiarly

necessary, upon a new commission being sent to Dr Franklin. In the meantime we hope you will exercise your whole extensive abilities on the subject of our finances. The Doctor will communicate to you our situation in that regard.

To the gazettes, and to conversation with the Marquis de Lafayette, we must refer you for what relates to our enemies, and close with our most cordial wishes for your happiness.

Your affectionate friends,

R. H. LEE,
JAMES LOVELL.

TO THE PRESIDENT OF CONGRESS.

Passy, December 3d, 1778.

Sir,

I have the honor to enclose to Congress the latest newspapers. As they contain the speech at the opening of Parliament, and some of the debates in both Houses, upon the addresses in answer to it, they are of very great importance. I learn by some newspapers and private letters, that an opinion has been prevalent in America, that the enemy intended to withdraw from the United States; and considering the cruel devastations of the war, and the unfortunate situation of our finances, nothing would give me so much joy, as to see reasons to concur in that opinion, and to furnish Congress with intelligence in support of it. But I am sorry to say the reverse is too apparent. We may call it obstinacy or blindness, if we will, but such is the state of parties in England, so deep would be the disgrace, and perhaps so great the personal danger to those who have commenced and prosecuted this war, that they cannot but persevere in it at every hazard, and nothing is clearer in my mind, than that they never will quit the United States until

they are either driven or starved out of them. I hope, therefore, Congress will excuse me for suggesting, that there is but one course for us to take, which is to concert every measure, and exert every nerve, for the total destruction of the British power within the United States.

I have the honor to be, &c.

JOHN ADAMS.

TO ELBRIDGE GERRY.

Passy, December 5th, 1778.

Dear Sir,

It is necessary that you should be minutely informed of the minutest and most secret springs of action here, if it is possible. Yet the danger is so great of our letters being taken, and getting into English newspapers, that it is very discouraging to a free correspondence. I will, however, take all the precaution in my power to have the letters sunk, but if all these fail, and my letters become public, the world must take them as they find them, and I hope they will do more good upon the whole than harm.

This Court and nation appear to me, to be well convinced of the utility to their interests of the American alliance. But notwithstanding this, they appear to me to have too much diffidence of us, too much diffidence of the people of America, and too much reserve towards the Commissioners here. I am not satisfied in the cause of this. Whether they think, that the obstacles of language, religion, laws, customs and manners, are obstacles in the way of a perfect friendship, which cannot be removed, and therefore that they shall lose our connexion as soon as Britain comes to her senses; or whether they are embarrassed by the conduct of Spain, and are acting in this reserved manner, and with an appearance of irresolution in hopes of her coming in; or whether they have any prejudices against the personal

characters of the Commissioners, and are loth to be unreserved with them, for fear they shall communicate either indiscreetly or by design anything to the English, or to anybody here, who might convey it to England; or whether all these motives together have a share in it, I know not. Thus much is certain, that ever since I have been here, I have never seen any disposition in any Minister of State to talk with any of the Commissioners, either upon intelligence from Spain or England, upon the designs or negotiations of either, or any other Court in Europe, or upon the conduct of the war by sea or land, or upon their own plans or designs of policy or war. If this reserve was ever thrown off to any one, I should think, that putting it on to others had some personal motive. But it is exactly equal and alike to all three.

Each Commissioner here, before I came, had his own set of friends, admirers, and dependents, both among the French and Americans. Two households united in some degree against one, very unjustly, I fear, and very impolitically. But this set the friends of the two to injuring the third in conversation, and they cannot forbear to do it, to this day. This dissension, I suspect, has made the Ministry cautious, lest in the course of altercations, improper use should be made of free communications. For my own part, however odd you may think it in me to say it, I have no friends, much less dependents, here, and am determined to have none, for I am convinced, that competitions among these have done the evil; but I am determined, if I am continued here, to have free communication with the Ministry upon these subjects and to search them to the bottom. The Ministry are candid men and sensible, and I am sure, that some eclairsissements would do good.

However, I am reckoning without my host, for by the bruits, which Mr Deane's letters have scattered, I may expect, that the first vessel will bring my recall or removal to some other Court. But wherever I am, my heart will ever be anxious for the good of our country, and warm with friendship for her friends, among whom you will ever be reckoned in the foremost rank, by your most obedient,

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Passy, December 6th, 1778.

Sir,

I have had the honor to enclose to Congress the speech at the opening of the British Parliament by several opportunities, but as it opens the intention of the enemy, and warns us to be prepared for all the evils, which are in their power to inflict, and not in our power to prevent, I enclose it again in another form.

I have the honor to be, with the greatest respect,

JOHN ADAMS.

TO ROGER SHERMAN.

Passy, December 6th, 1778.

Dear Sir,

From the long series of arduous services in which we have acted together, I have had experience enough of your accurate judgment, in cases of difficulty, to wish very often that I could have the benefit of it here. To me it appears, that there will be no more cordial friendship, nor for many years to come any long peace between Great Britain and America, and therefore the French alliance is and will be an important barrier to us, and ought to be cultivated with perfect faith and much tenderness. But still it is a delicate and dangerous connexion. There is danger to the simplicity of our manners, and to the principles of our constitution, and there may be danger that too much will be demanded of us. There is danger, that the people and their representatives may have too much timidity in their conduct towards this power, and that your ministers here may have too much diffidence of themselves, and too much complaisance for the Court. There is danger, that

French councils, and emissaries, and correspondents may have too much influence in our deliberations.

I hope that this Court will not interfere, by attaching themselves to persons, parties, or measures in America. It would be ill policy, but no Court is always directed by sound policy, and we cannot be too much upon our guard. Some Americans will naturally endeavor to avail themselves of the aid of the French influence, to raise their reputation, to extend their influence, to strengthen their parties, and in short to promote the purposes of private ambition and interest. But these things must be guarded against.

I wish for a letter from you as often as you can, and that you would believe me your friend,

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Passy, December 8th, 1778.

Sir,

I have the honor to enclose to Congress one other copy of the speech at the opening of Parliament, together with the debates in consequence of it.

The hints in those debates, especially those given out by Lord Suffolk, are confirmed by the general strain of intelligence from London. Letters from persons, who are supposed to know, announce the determination of the cabinet to be, that Clinton and Byron, with their fleet and army, shall ravage the coast, and bombard and pillage the towns, that their army in Canada shall be reinforced, and that parties of regulars, with such tories and Indians as they can persuade to join them, shall ravage, burn, and massacre on the frontiers of Massachusetts Bay, New York, New Jersey, Pennsylvania, Virginia and the Carolinas.

Their magnificent menaces we know it is not in their power to execute entirely, yet we may depend they will do as much as they can. They will neither acknowledge our independence, nor withdraw their fleets and armies, nor shall we get rid of them, but by destroying them, or making them prisoners, until the nation is so exhausted, and their credit so sunk, that the Minister can raise no more money.

It has been usual to consider this as a ministerial war, but I have ever thought, they would some time or other discover it to be a national war; the few men of the nation, who think seriously of the business, see clearly in the long train of consequences of American independence the loss of their West India Islands, a great part of their East India trade, the total loss of Canada, Nova Scotia, the Floridas, all the American fisheries, a diminution of their naval power, as well as national bankruptcy, and a revolution in their government in favor of arbitrary power. And the nation in general has a confused dread of all these things upon its spirits.

The inference they draw from all this is to go on with the war, and make it more cruel, which is the way in the opinion of impartial persons to make all their gloomy visions realities, whereas the only way to prevent them is to make peace now, before a total alteration takes place on both sides. However, all we can do is to be prepared for the worst they can do.

I have the honor to be, with the greatest respect, &c.

JOHN ADAMS.

THE COMMISSIONERS TO JOHN PAUL JONES.

Passy, May 25th, 1778.

Sir,

Your favors of May 9th and 16th from Brest, we duly received. We congratulate you on your success, and safe arrival at Brest, as well as on the

honor you have acquired by your conduct and bravery in taking one of the King's ships.

As we have some expectation of obtaining an exchange of prisoners from England, we would advise you to keep those you have made securely confined, though in a manner most consistent with humanity, till we have an answer from thence. For if we can get an equal number of our own seamen to man the Drake, she will be an additional strength to you in a future expedition. Whereas sending her with the prisoners to America, will not only weaken you by the hands you must spare to navigate her, and to keep the prisoners in subjection, but will also hazard their being retaken. We should have been happy to have been early informed of the particulars of your cruise, and of the prizes you have made, of which we have no authentic advice to this hour.

Your bill of exchange in favor of M. Bussolle for twentyfour thousand livres, which you inform us you mean to distribute among the brave officers and men to whom you owe your late success has been presented to us by M. Chaumont. We are sorry to inform you, that we have been under the disagreeable necessity of refusing payment, and that for several reasons; first, because your application should have been made to M. Schweighauser, who is the person regularly authorised to act as Continental Agent at Brest, and we are determined that all American concerns, within our department, shall go through his hands, as long as he shall continue in the character of American Agent, or at least until we shall find it necessary to order otherwise. Secondly, because the bill is drawn for an expense, which we have no right or authority to defray. We have no authority to make presents of the public money to officers or men, however gallant and deserving, for the purpose of providing their families with clothing, or for any other purpose, nor to advance them money upon the credit of their share of prizes, nor have we authority to advance them any part of their pay or bounties; all these things belong to Congress alone, and must be done by the proper Boards in America. Our authority extends no further than to order the necessary repairs to be made to your ship, to order her to be furnished with necessary victuals, which we are ready to order M. Schweighauser to do as soon as we shall be informed by you what repairs and victuals are wanted, with an estimate of the amount of the expenses.

There is one thing further, which we should venture to do for the benefit of your men. Upon a representation from you of the quantity of slops necessary for them, we should order M. Schweighauser to furnish your ship with them; not more however than one suit of clothes for each man, that you may take them on board of your ship, and deliver them out to the men as they shall be wanted, charging each man upon the ship's books with what he shall receive, that it may be deducted out of his pay.

Lieutenant Simpson has stated to us your having put him under arrest for disobeying orders. As a court martial must, by order of Congress, consist of three captains, three lieutenants, and three captains of marines, and these cannot be had here, it is our desire that he may have a passage procured for him by the first opportunity to America, allowing him whatever may be necessary for his defence. As the consequences of an arrest in foreign countries are thus extremely troublesome, they should be well considered before they are made. If you are in possession of any resolution of Congress, giving the whole of ships of war when made prizes to the captors, we should be obliged to you for a copy of it. We should also be obliged to you for a particular account in whose hands the prizes made by you are, and in what forwardness is the sale of them. We have the honor to be, &c.

B. FRANKLIN,
ARTHUR LEE,
JOHN ADAMS.

THE COMMISSIONERS TO JOHN PAUL JONES.

Passy, June 3d, 1778.

Sir,

We have received sundry letters from Lieutenant Simpson, and sundry certificates from officers and others, concerning his behavior in general, and particularly upon that occasion in which he is charged with disobedience of

orders. Without giving or forming any decided opinion concerning his guilt or innocence of the crime laid to his charge, we may venture to say, that the certificates we have received are very favorable to his character, and at least afford reason to hope, that he did not mean to disobey his orders. Be this however as it may, we are constrained to say, that his confinement on board of any other ship than the Ranger, and much more his confinement in a prison on shore, appears to us to carry in it a degree of severity, which cannot be justified by reason or law. We therefore desire you would release Mr Simpson from his imprisonment, and permit him to go at large upon his parole to go to Nantes, there to take his passage to America by the first favorable opportunity, in order to take his trial by a court martial.

We request you to transmit to us as soon as possible, an account of what is due to Lieutenant Simpson, according to the ship's books, for wages.

An application has been made to us in behalf of Mr Andrew Fallen, one of the prisoners lately made by you, and his case represented with such circumstances as have induced us to request you to let Mr Fallen go where he will, after taking his parole in writing, that he will not communicate any intelligence, which may be prejudicial to the United States, that he will not take arms against them during the war, and that he will surrender himself prisoner of war, whenever called upon by Congress, or their Ministers at Paris. We are, Sir, &c.

B. FRANKLIN,
ARTHUR LEE,
JOHN ADAMS.

**THE COMMISSIONERS TO LIEUT. SIMPSON, OF THE
RANGER.**

Passy, June 3d, 1778.

Sir,

We have received several letters from you, and several certificates from officers and others, respecting your behavior in general, as well as particularly relative to the charge of disobedience of orders, for which you have been confined. It would be improper for us to give any opinion concerning this charge, which is to be determined only by a court martial. But we have requested Captain Jones to set you at liberty upon your parole to go to Nantes, there to take your passage to America by the first favorable opportunity, in order to take your trial by a court martial. ^[40]

We are, Sir, your humble servants,

B. FRANKLIN,
ARTHUR LEE,
JOHN ADAMS.

TO THE COMMITTEE OF FOREIGN AFFAIRS.

Passy, February 1st, 1779.

Gentlemen,

I had yesterday the honor of your favor of the 28th of October, enclosing a resolution of Congress, of the 22d of the same month, to which I shall give all the attention in my power. ^[41] I have much satisfaction in the reflection, that I have hitherto endeavored with much sincerity to conform to the spirit of it. What you recommend to me, viz. to communicate to the Ministers of other Courts such intelligence as I may receive, will not in future be so much in my power; but as far as I can, while I stay in Europe, I shall endeavor to comply. Indeed, it is a long time that we have had no intelligence to communicate. Three vessels we know have been taken, each of which had many letters, and two of them public despatches; one that sailed from Philadelphia the 4th of November, another that sailed from the same port the 24th, and another that sailed from Boston on the 20th. These letters and despatches were all sunk, and we fear that others are lost.

It would be agreeable to me, indeed, if I were able to throw any light on the subject of finances. As to a loan in Europe, all has been done that was in our power to this end, but without the desired effect. Taxation and economy comprehend all the resources that I can think of.

We expect the honor of a visit from the Marquis de Lafayette this morning, whom we shall receive with gratitude for his gallant and glorious exertions in one of the best causes in which a hero ever fought.

Be pleased to accept my thanks for your kind wishes for my happiness, and believe me to be your affectionate friend,

JOHN ADAMS.

TO SAMUEL ADAMS.

Passy, February 14th, 1779.

My Dear Sir,

The Marquis de Lafayette did me the honor of a visit yesterday, and delivered me your favor of the 25th of October. I am not sorry, as things have been ordered, that mine of May 24th did not reach you till the 24th of October, because, as the new arrangement^[42] was previously made, it cannot be said that I had any hand in accomplishing it. Yet I am glad the letter has arrived, because it will show that the new system is quite agreeable to me, that is, the appointment of a single Minister here. Believe me, Sir, it was become very necessary.

How Congress will dispose of me, I do not know. If it is intended that I shall return, this will be very agreeable to me; and I think that this is the most probable opinion, because Mr Deane's "Address" was on the 5th of December. Congress soon after resolved to enter on foreign affairs and go through them. The Alliance sailed on the 14th of January, and there is no resolution arrived here respecting me. I think, therefore, that it is my duty to

return, and that is my present determination; but whether I shall go to Amsterdam, and from thence to St Eustatia, or to Spain, and thence home, or in a French man-of-war to Martinique, or an American frigate to America, I have not decided. Some hint that I am to go to Holland, others to Spain. This last implies the removal of Mr Lee, which would give me much pain on many accounts. I think him a faithful man and able. Yet what the determination will be upon the complaint of Mr Deane, I cannot say. This is a subject which I cannot write or talk about; I would not feel such another sensation to be made a prince. I confess I expected the most dismal consequences from it, because I thought it would render business and confidence between us three totally impracticable; that it would destroy all confidence between this Court and us, and that it would startle Spain; that it would alienate many in Holland from us, and that it would encourage the Ministry in England and disconcert opposition so much, that they would even make another vigorous campaign, besides all the evils it would produce among you. But the arrival of Dr Franklin's commission has relieved me from many of these fears. This Court have confidence in him alone. But I think they were cautious, even of him, when he had two colleagues, to whom he was obliged to communicate everything, one of whom was upon as bad terms with him as with Mr Deane. I have had a kind of a task here, as Mr Lovell expresses himself; determined to be the partizan of neither, yet to be the friend of both, as far as the service would admit. I am fixed in these two opinions, that leaving the Doctor here alone is right, and that Mr Lee is a very honest and faithful man.

You say that France should be our polar star in case war should take place. I was, I confess, surprised at this expression. Was not war sufficiently declared in the King of England's speech, and in the answers of both Houses, and in the recall of his Ambassador? Has it not been sufficiently declared by actual hostilities in most parts of the world? I suspect there will never be any other declaration of war. Yet, there is in fact as complete a war as ever existed, and it will continue, for you may depend upon it, the King of France is immovably fixed in your support, and so are his Ministers. Every suspicion of a wavering disposition in this Court concerning the support of American independence is groundless, is ridiculous, is impossible. You may remember, that several years ago, several gentlemen were obliged to reason, to show that American independence was the

interest of France. Since my arrival in this Kingdom, I never yet found one man, nor heard of more than one, who doubted it. If the voice of popularity is anything, I assure you that this voice was never so unanimous in America in favor of our independence as it is here. It is so much so, that if the Court were to depart from its present system in this respect, it is my clear opinion it would make this nation very unhappy, and the Court too; but I again repeat, that the Court is as fixed as the nation. And this union of sentiment arises out of such principles in nature, as, without a miracle, cannot alter. Common sense in America supported independence; common sense in France supports the alliance, and will support it to the last. Nay, the common sense of Europe supports the common sense of France.

By the way, my regards to Mr Paine, and tell him, that I do not agree with him in his ideas about natural enemies. It is because England is the natural enemy of France, that America in her present situation is her natural friend; at least, this is one cause, although there are many others. Some of them are more glorious, for human nature.

France scarcely ever made a war before, that was popular in Europe. There is not a State, that I can hear of, but applauds her, and wishes her success. And in point of finance and naval strength, and in skill and bravery of officers, she seems to be superior to England. You may be surprised to hear me say naval strength, yet if you consider the wretched state of the British Navy, as to masts, yards, rigging, and men, you will not wonder, although their number of ships may be superior. I therefore think, that all is safe. We may have further trouble, and trials of our faith and patience. But trouble is to you and me familiar, and I begin to think it necessary for my health.

There is one thing in my letter to you exaggerated; the expenses of the Commissioners. I had been here but a short time, and wrote according to the best guess I could make, from what I had heard; but I now think I put it much too high, yet I cannot say exactly. ^[43]

February 20th. There is not the least appearance of the embarkation of troops for America, nor any intelligence of transports taken up. The national discontent is great, and tumults have arisen in Edinburgh and London. According to present appearances, they will have occasion for so many of their troops to keep their populace in order, as to be able to spare few for

America. Their proclamations are all alike from Burgoyne's to those of the Commissioners. The weaker they are, the more they puff.

I am, &c.

JOHN ADAMS.

TO COUNT DE VERGENNES.

Passy, February 16th, 1779.

Sir,

Last evening I had the honor of your letter of the 13th of this month, in answer to mine of the 11th. [\[44\]](#)

I thank your Excellency for the politeness with which you have agreed to my proposition, of a conference upon the subject of Mr Deane's "Address to the People of the United States."

At the time when my letter of the 11th was written and sent to your Excellency, there were three Commissioners here, representatives of Congress, between whom it appeared to me Mr Deane's Address had a tendency to destroy all confidence, as well as between your Excellency and them, for which reason I thought it my duty to endeavor, by a conference with your Excellency, to lessen those evils as far as should be in my power.

But within a few hours after my letter of the 11th was sent, the Aid-de-Camp of the Marquis de Lafayette arrived, with despatches from Congress to Dr Franklin, and from their Committee of Foreign Affairs to me, informing me of the new arrangement by which Dr Franklin is constituted Minister Plenipotentiary here, and I am restored to the character of a private citizen; by which, so wholly changed are the scene and the characters here, that I now think I have no right to do what, if I had continued in the

character of a Commissioner, I should have thought it my indispensable duty to do.

This masterly measure of Congress, which has my most hearty approbation, and of the necessity of which I was fully convinced before I had been two months in Europe, has taken away the possibilities of those dissensions, which I so much apprehended. I shall not, therefore, give your Excellency any further trouble, than to take an opportunity of paying my respects in order to take leave, and to assure you, that I shall leave this kingdom with the most entire confidence in his Majesty's benevolence to the United States, and inviolable adherence to the treaties between the two powers, with a similar confidence in the good disposition of his Majesty's Ministers of State and of this nation towards us, and with a heart impressed with gratitude for the many civilities which I have received, in the short space I have resided here, at Brest, in the city, and in the country, and particularly from your Excellency.

I have the honor to be, &c.

JOHN ADAMS.

TO THE MARQUIS DE LAFAYETTE.

Passy, February 21st, 1779.

My dear Marquis,

The conversation with which you honored me last evening, has induced me to give you the trouble of this letter upon the same subject.

It is certain that a loan of money is very much needed to redeem the redundancy of our paper bills, and without it, it is impossible to foresee what will be the consequence to their credit, and therefore every service, that may be rendered in order to obtain it from this kingdom, from Spain, or Holland, will be a most acceptable service.

But without some other exertions, even a loan perhaps would be but a temporary relief; with them a smaller loan might suffice. You know perfectly well, that the enemy in America are at present very weak, and in great distress in every part. They are weak in Canada, weak in Halifax, weak in Rhode Island, weak in New York, weak in the Floridas, and weak in every one of the West India Islands. A strong armament of ships of the line, with five thousand troops, directed against Halifax, Rhode Island, or New York, must infallibly succeed. So it must against the Floridas, so it must against Canada, or any one of the West India Islands.

You are very sensible, that in this state of weakness, the British possessions in America depend upon each other for reciprocal support. The troops and ships derive such supplies of provisions from Canada and Nova Scotia, that if these places or either of them were lost, it would be difficult, if not impossible, for the other to subsist. The West India Islands derive such supplies from the Floridas, that if they were lost the others could hardly subsist. Their fleets and armies in Canada, Halifax, Rhode Island, New York, and the Floridas, receive supplies of rum, sugar, molasses, &c. from the West India Islands, without which they could scarcely subsist. Every part of their possessions in America, both on the continent and in the islands, receives constant supplies from Europe, from England, Scotland, and Ireland, without which they must fall. You perceive, therefore, that their dominions in America at present form such a chain, that the links mutually support each other in such a manner, that if one or two were taken away, the whole, or at least the greater part, must fall. In this state of things then, the obvious policy is to send a strong squadron of ships of the line to co-operate with the Count d'Estaing and the American army, in some expedition directed against New York, Rhode Island, Halifax or perhaps all of them in course. Five or six thousand troops would be quite enough. Above all, it is indispensably necessary to keep a clear naval superiority, both on the coast of the continent, and in the West Islands. This together with French and American privateers would make such havoc among the enemy's transports, passing from one of their possessions to another, as must ruin their affairs. The French have a great advantage in carrying on this kind of war in America, at present. The British ships are badly manned and in bad repair. They cannot send them into the American seas, without the utmost terror for

their own coasts. And when they are in America, they have not such advantages for supplies of provisions, naval stores, &c. as the French.

The devastation, which was made among their ships of the line, frigates, transports, and traders, in the American seas the last summer, shows how much might be done, if a stronger force were sent there. As long as the enemy have possession of New York and Rhode Island, so long it will be necessary for us to keep up large armies, to watch their motions, and defend the country against them, which will oblige us to emit more paper, and still further to increase the depreciation. Now as long as they maintain the dominion of those seas, their troops will be protected by the cannon of their ships, and we could not dislodge them with an army, however large, at least we could not keep possession of those places. But if their force was captivated in those seas, as it might easily be by a sea force, co-operating with the land forces, we might reduce our army and innumerable other articles of expense. We need not emit any more paper, and that already out would depreciate no further. I should be happy to have further conversation with you, Sir, upon these subjects, or to explain anything by letter, which may be in my power.

With the highest sentiments of esteem and respect, I have the honor to be,
&c.

JOHN ADAMS.

COUNT DE VERGENNES TO JOHN ADAMS.

Translation.

Versailles, February 21st, 1779.

Sir,

I have received the letter, which you have done me the honor to write me on the 16th of this month. Although you are to be henceforth without a public character in France, be persuaded that the esteem and consideration, which you have justly acquired, are by no means diminished, and I flatter myself, Sir, that you will not deprive me of the pleasure of assuring you of it by word of mouth, and being at the same time the interpreter of the favorable sentiments with which the King honors you. They are the consequence of the particular satisfaction, which his Majesty has received from the wise conduct you have held during the whole time of your commission, as well as the zeal you have constantly displayed, both for the cause of your country, and for the support of the alliance which attaches it to his Majesty.

I have the honor to be, with the greatest respect, &c.

DE VERGENNES.

TO THE COUNT DE VERGENNES.

Passy, February 27th, 1779.

Sir,

I have received the letter, which your Excellency did me the honor to write me on the 21st of this month. This testimony from your Excellency of those indulgent sentiments, with which his Majesty is pleased to honor my sincere intentions, cannot fail to be preserved by me and my posterity as a most precious monument; and what is of infinitely more importance, it cannot fail to give great satisfaction to my country, to find that a servant of theirs, who has been honored with no small share of their confidence in the most dangerous of times, and most critical circumstances, has been so happy as not to forfeit the confidence of their illustrious ally.

I have the honor to be, &c.

JOHN ADAMS.

TO JOHN JAY, PRESIDENT OF CONGRESS.

Passy, February 27th, 1779.

Sir,

By the new arrangement, which was brought by the Marquis de Lafayette, I find myself restored to the character of a private citizen.

The appointment of a single Minister at the Court of Versailles was not unexpected to me, because I had not been two months in Europe before I was convinced of the policy, and indeed of the necessity, of such a measure. But I ever entertained hopes, that when the news of such an alteration should arrive, the path of my own duty would have been made plain to me

by the directions of Congress, either to return home or go elsewhere. But as no information that we have received from Congress has expressed their intentions concerning me, I am obliged to collect them by implication, according to the best of my understanding, and as the election of the new Minister Plenipotentiary was on the fourteenth of September, and the Alliance sailed from Boston the fourteenth of January, and in this space of four months no notice appears to have been taken of me, I think the only inference that can be made is, that Congress have no further service for me on this side the water, and that all my duties are on the other. I have accordingly given notice to his Excellency, M. de Sartine, and to his Excellency the Minister Plenipotentiary here, of my intentions to return, which I shall do by the first frigate that sails for any part of the United States, unless I should receive counter orders in the meantime. In a matter of so much uncertainty, I hope I shall not incur the disapprobation of Congress, even if I should not judge aright of their intentions, which it is my desire as well as my duty to observe, as far as I can know them.

By the papers enclosed with this, Congress will perceive the discontented and tumultuous state of the three kingdoms of England, Scotland, and Ireland, which is so great and so rapidly increasing, that the United States will have little to fear from reinforcements of their enemies the ensuing campaign. All their forces will be necessary to keep in order their own riotous populace, and to replace those which are daily consuming in the West Indies. There is, however, no prospect of their evacuating either New York or Rhode Island. The possession of those places is so indispensable for the preservation of their West India and other trade, as well as of their other dominions in America, that nothing but the last necessity will induce them to give them up.

The greatest source of danger and unhappiness to the States then probably will be a depreciating currency. The prospect of a loan in Europe, after every measure that has been or could be taken, I think it my duty to say frankly to Congress, is very unpromising. The causes of this are very obvious, and cannot be removed; the state of our country itself, and the course of exchange, would be sufficient to discourage such a loan, if there were no other obstruction, but there are many others. There are more borrowers in Europe than lenders, and the British loan itself will not be made this year at a less interest than seven and a half per cent.

I see no hope of relief, but from economy and taxation, and those I flatter myself will be found sufficient, if the people are once convinced of the necessity of them. When a people are contending not only for the greatest object, that any people ever had in view, but for security from the greatest evil that any nation ever had to dread, (for there is at this hour no medium between unlimited subjugation to Parliament and entire sovereignty) they must be destitute of sense as well as of virtue, if they are not willing to pay sufficient sums annually to defray the necessary expense of their defence in future, supported as they are by so powerful an ally, and by the prospect of others, against a kingdom already exhausted, without any ally at all, or a possibility of obtaining one. As this is the first time I have had the honor to address myself to Congress, since we received the news of your Excellency's appointment to the chair, you will please to accept of my congratulations on that event.

I have the honor to be, with the highest esteem, &c.

JOHN ADAMS.

TO JOHN JAY, PRESIDENT OF CONGRESS.

Passy, March 1st, 1779.

Sir,

My last letter to Congress was on the twentyseventh of last month; since which an account of the new loan is received from London, and as this may, perhaps, afford to Congress the clearest proof of the weakness of their enemies, it is of importance, that it should be transmitted to them. Some accounts say, that the loan is to be seven millions, others eight. The conditions of the loan are, in general, the established interest of three per cent, an annuity for three and three quarters per cent for twenty-nine years, and seven lottery tickets for every thousand pounds.

In one account the advantages are thus stated.

100 3 per cent,	£61 00 00
£3 15s. annuity for twentynine years, at twelve years' purchase,	45 00 00
Two fifths of a year's interest and annuity, gained by both beginning from the 5th of January,	
although the money is paid monthly, and not ended until December,	2 14 00
£3 premium of seven lottery tickets for each £1000, gives for each hundred,	2 2 00
For each £100 paid, there is received	£110 16 00

This statement for the first year is pretty accurate. Another account makes it ten and one quarter per cent for the first year. The subsequent years, however it will not be so much. Yet for all the subsequent years, during the term of the annuity, it will be six and three quarters per cent. Upon the whole, it is generally looked upon as good as seven and a half per cent. In a country where the highest interest, that is tolerated by the standing laws, is five per cent, this is a terrible symptom.

While this system has any credit among the money lenders in Holland, Switzerland, Geneva, &c. Congress will perceive, that there is little hope of procuring a private loan for the United States from any of those places. Whether any may be procured from any State, or Prince, time must discover.

I have the honor to be, &c.

JOHN ADAMS.

M. DE LAFAYETTE TO JOHN ADAMS.

Translation.

St Germain, April 9th, 1779.

Dear Sir,

I beg leave to apply to you, in an instance where I am much concerned. The case I shall lay before you, and recommend to your care. There is an officer in Paris, whom I wish to send over to America on board the Alliance, and who I know would be of service in the American army. For that reason, besides his recommendations, I have a great regard for him. I wish the gentleman may find a passage in the frigate. Dr Franklin cannot officially send an officer, but I beg you would take him along with you, as I take upon myself the charge of presenting him to Congress. All the marks of kindness I ever met with from them, and the knowledge which the strictest friendship has given me of General Washington's sentiments, make me as certain as possible, that my officer will meet with the best reception in Philadelphia and in the army, who know I am acquainted with what may be convenient to them.

It is with a great concern, that I hear of discontents between Captain Landais and his officers, and I flatter myself, that you will again establish harmony and concord among them. I will take the opportunity of this frigate to write over to my friends in America.

The articles alluded to in your letter from Passy, I have been very busy about, but I did not meet with great success till now, and what is done is not equal to what I could wish. It is true, our circumstances are rather narrow at this moment, and I believe, that the Ministers are willing to do what they think possible, or advantageous, but we do not always agree in opinion. I hope, however, America will have more and more occasions of knowing the true attachment of this nation for her.

With great impatience I wait for your answer, that I may send the officer to Nantes. I hope you will not refuse your patronage on this occasion, and I may answer Congress will have no objection to take a gentleman whom I send them. You will, my dear Sir, in settling his passage, much oblige your humble servant,

LAFAYETTE.

TO ARTHUR LEE.

L'Orient, June 9th, 1779

Dear Sir,

Your favors of June the 2d and 5th are now before me; that of the 29th of March I have answered, if I ever received it, for I have answered every one I have received from you, but not having my papers at hand cannot be particular. I thank you for the manuscript and the pamphlet.

I am happy to hear from you, and from all others, so agreeable a character of the Chevalier de la Luzerne, and M. Marbois, the last of whom I have had the pleasure to see.

I wish it was in my power to do more for Mr Ford, and to take him with me, but the frigate will be so crowded, I fear it will be impossible.

The declarations of the northern powers against the right of England to stop their merchant vessels, and arming to support their rights, are important events. The displacing of Mr Paine is a disagreeable and alarming one.

It is with no small astonishment, that I learn by your letter of the 5th, that by advices from America since your last to me, your enemies are determined to impeach your attachment to our country and her cause. Your request that I would give my opinion on that subject, from the knowledge I have had of your conduct, while we acted in commission together, can meet with no objection from me. But I hope I need not inform you, that my opinion upon this point is no secret at Versailles, Paris, Nantes, or elsewhere. Enclosed is a copy of a letter I did myself the honor to write to his Excellency the Count de Vergennes some time ago, which, for anything I know, is communicated to all the Court, but the answer shows that it was received. I had my reasons then for keeping it to myself, which exist now

no more. I would transcribe the whole correspondence if it was in my power, but I have not time, and it is sufficient to say, that it was conducted by his Excellency with the most obliging politeness. It is my duty now to furnish you with a copy, lest any accident may befall me, which is by no means improbable. I thought then, and am confirmed in that opinion more and more, that it was my duty to communicate my sentiments at Court, upon that very extraordinary occasion, and from regard to my own reputation, I am very glad you have given me an opportunity of furnishing you with evidence, that I did this part of my duty so far forth. The letter was written, sent to Versailles, and received by his Excellency before the arrival of the Marquis de Lafayette, his Aid-de-Camp, or Dr Winship; that is, before the news reached Passy of the new arrangement.^[45] But lest that letter should not be sufficient, I shall enclose another certificate, not without a heartfelt grief, that malice should have been so daring and so barbarous, as to make either such a letter or such a certificate from me either necessary or even pardonable.^[46] Your hint, that I must correct some things that are amiss, extorts from me an involuntary sigh. I shall be in a situation critical and difficult without example, my own character at stake from various quarters, and without anything to support me but truth and innocence, and you need not be informed, that these are not always sufficient. I have little expectation of doing good; God grant I may do no harm. I shall not designedly. But I suppose Congress intend to examine me as a witness, and I must tell the truth, the whole truth, and nothing but the truth, as far as I know it. If the task should end here, I should not be much embarrassed, but if they should proceed to demand of me opinions and judgments of men and things, as there is reason to expect they will, although I hope they will not, what will be the consequences? Upon the whole, truth must be my shield, and if the shafts of interested malice can pierce through this, they shall pierce me.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Braintree, August 3d, 1779.

Sir,

On the 27th of February, I had the honor of writing to Congress, informing them of my intention of returning home, in consequence of the commission which superseded mine. On the first of March, I had again the honor of writing some information concerning the unprecedented interest, which the British Government are obliged to give for the loan of money for the service of the present year. On the 8th of March, I took my leave of the American Minister, and left Paris for Nantes, in expectation of there meeting the Alliance, and sailing in her for America in a few weeks. Upon my arrival at Nantes, I learned the Alliance was yet at Brest, and so embarrassed with nearly forty prisoners, who were supposed to have been concerned in a conspiracy to carry her to England, and with other difficulties, that it was uncertain when she would be ready.

The agent at Nantes at this time receiving a letter from his Excellency, Dr Franklin, desiring him to consult me about the direction of the Alliance, I thought it would expedite the public service for me to make a journey to Brest, about two hundred miles, which I undertook accordingly, and arrived at that port without loss of time. There, after an attendance of some weeks, and much negotiation with the Commandant, Intendant, and Agent, all things were prepared for the frigate to sail for Nantes, with about one hundred British prisoners, to be exchanged for a like number of American prisoners, arrived there from England in a cartel. I returned to Nantes, and the Alliance in a few days arrived in the river, the prisoners were exchanged, about sixty enlisted in the Alliance, and the rest in the Poor Richard, Captain Jones.

After accommodating all the difficulties with the British prisoners, the American prisoners, the officers and crew of the Alliance, and supplying all their necessary wants, Captain Landais, having orders to sail for America, and everything ready to proceed to sea in a few days, received unexpected orders to proceed to L'Orient, and wait there for further orders. I had the honor of a letter at the same time from his Excellency, enclosing one from

the Minister of Marine, by which I learned, that the King had been graciously pleased to grant me a passage on board the frigate, which was to carry His Majesty's new Minister Plenipotentiary to the United States, that the frigate was at L'Orient, and that the Minister would be there in a few days. I went in the Alliance from Nantes to L'Orient, where after some time the frigate, the Sensible, arrived, but his Excellency, the Chevalier de la Luzerne, did not arrive until the 10th of June. On the 14th of June, and not before, I had the pleasure to be under sail, and on the 3d of August, arrived in Nantasket Roads.

I have entered into this detail of disappointments to justify myself for not returning sooner, and to shew that it was not my fault, that I was not at home in eight weeks from the first authentic information, that I had nothing further to do in France. There is nothing remaining for me to do but to settle my accounts with Congress; but as part of my accounts are in conjunction with my late colleagues, with whom I lived in the same house during my residence in Paris, I am not able to judge whether Congress will choose to receive my accounts, or to wait until the other Commissioners shall exhibit theirs, and have the whole together, under one view, so as to do equal justice to all. I am ready, however, to render all the account in my power, either jointly or separately, whenever Congress shall order it, and I shall wait their directions accordingly.

It is not in my power, having been so long from Paris, to give Congress any news of importance, except that the Brest fleet, under the Count d'Orvilliers, was at sea the beginning of June, that Admiral Arbuthnot was at Plymouth the 31st of May, and that there was a universal persuasion, arising from letters from Paris and London, that Spain had decided against the English. The Chevalier de la Luzerne will be able to give Congress satisfactory information upon this head.

I ought not to conclude this letter, without expressing my obligations to Captain Chavagne, and the other officers of the Sensible, for their civilities in the course of my passage home, and the pleasure I have had in the conversation of his Excellency, the new Minister Plenipotentiary from our august ally, and the Secretary to the embassy, Monsieur Marbois.

The Chevalier de la Luzerne is a Knight of the Order of St John of Jerusalem, of an ancient and noble family, connected by blood with many characters of principal name in the kingdom, a grandson of the celebrated Chancellor de la Moignon, a nephew of Monsieur Malesherbes, perhaps still more famous as first President of the Court of Aids and as a Minister of State, a brother to the Count de la Luzerne, and of the Bishop of Sangres, one of the three Dukes and Peers who had the honor to assist in the consecration of the King, a near relation of the Marcéhal de Broglie and the Count his brother, and of many other important personages in that country. Nor is his personal character less respectable than his connexions, as he is possessed of much useful information of all kinds, and particularly of the political system of Europe, obtained in his late embassy in Bavaria; and of the justest sentiments of the mutual interests of his country and ours, and of the utility to both of that alliance, which so happily unites them, and at the same time divested of all personal and party attachments and aversions. Congress and their constituents, I flatter myself, will have much satisfaction in his negotiations, as well as in those of the Secretary to the embassy, who was recently Secretary to the embassy in Bavaria, and who is a counsellor of the Parliament of Metz, a gentleman whose abilities, application, and disposition cannot fail to make him useful in the momentous office he sustains.

I have the honor to be, with great respect, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Braintree, August 4th, 1779.

Sir,

At the close of the service on which Congress have done me the honor to send me, it may not be amiss to submit a few remarks to their consideration

on the general state of affairs in Europe, as far as they relate to the interests of the United States. As the time approaches, when our relations with the most considerable States in Europe will multiply and assume a greater stability, they deserve the attention of Americans in general, but especially of those composing their supreme council.

France deserves the first place among those powers, with which our connexions will be the most intimate, and it is with pleasure I am able to assure Congress, that from the observations I have made during my residence in that Kingdom, I have the strongest reasons to believe, that their august ally, his Ministers, and nation, are possessed of the fullest persuasion of the justice of our cause, of the great importance of our independence to their interests, and the firmest resolution to preserve the faith of treaties inviolate, and to cultivate our friendship with sincerity and zeal. This is of the more consequence to us, as this power enjoys in Europe at this hour an influence, which it has not before experienced for many years.

Men are so sensible of a constant tendency in others to excesses, that a signal superiority of power never appears, without exciting jealousies and efforts to reduce it. Thus, when Spain, under Charles the Fifth and his successor, made herself dangerous, a great part of Europe united against her, assisted in severing the United Provinces from her, and by degrees greatly diminished her power. Thus, when France, under Lewis the Fourteenth, indulged the spirit of conquest too far, a great part of mankind united their forces against her, with such success as to involve her in a train of misfortunes, out of which she never emerged before the present reign. The English, in their turn, by means of their commerce and extensive settlements abroad, arose to a degree of opulence and naval power, which excited more extravagant passions in her own breast, and more tyrannical exertions of her influence, than appeared in either of the other cases. The consequence has been similar, but more remarkable. Europe seems to be more universally and sincerely united in the desire of reducing her, than they ever were in any former instance. This is the true cause why the French Court never made war with so universal a popularity among their own subjects, so general an approbation of other Courts, and such unanimous wishes among all nations for her success, as at this time.

The personal character of the King, his declared patronage of morals and economy, and the great strokes of wisdom, which have marked the commencement of his reign, the active spring which has been given to commerce by the division of the British empire, and our new connexions with his subjects; all these causes, together with the two treaties of peace, which have been lately signed under his auspices and his mediation, have given to this power a reputation, which the last reign had lost.

The first of these treaties has determined those controversies, which had for a long time divided Russia and the Porte, and the parties have been equally satisfied with the conditions of their reconciliation, a circumstance the more honorable for the French Ministry, and the Chevalier de St Priest, their Ambassador at Constantinople, as it is uncommon. The ancient confidence of the Porte in the Court of Versailles has revived, and the coolness, or rather enmity, which divided France and Russia for near twenty years, gives place to a friendship, which is at this time in all its fervor, and will probably be durable, as these powers have no interest to annoy each other, but, on the contrary, are able to assist each other in a manner the most essential.

The peace of Germany, signed at Teschin, the 13th of last May, has not equally satisfied the belligerent powers, who were on the one part the Emperor, and on the other, the King of Prussia and the Elector of Saxony his ally.

From the multitudes of writings, which have appeared before and during this war, in which the causes, the motives, and the rights of it are discussed, it appears, that in 1768, at the extinction of one of the branches of the House of Bavaria, which has been separated from its trunk for near five centuries, the House of Austria thought itself able, and priests and lawyers among their own subjects were complaisant enough to tell her, that she had a right to put herself in possession of the best part of the patrimony of the extinguished line.

The King of Prussia, to whose interest this augmentation of power would have been dangerous, has crowned an illustrious reign, by displaying all the resources of military genius and profound policy in opposition to it. While he contended in the field, France negotiated, and the work, begun by his arms, was completed by the cabinet of Versailles.

The Palatine House of Bavaria, the Duke of Deux Ponts, and particularly the Elector of Saxony, have obtained all they could reasonably demand, and the empire has preserved its balance of power in spite of its head. The King of Prussia had covered himself with glory, to which he put the finishing stroke, by not demanding any compensation for the expenses of the war. All parties have been satisfied except the Emperor, who has disordered his finances, ruined his Kingdom of Bohemia with immense fines, has not obtained any advantage over his adversary, and consequently has destroyed among his own troops the opinion they had of their superiority, and, in fine, has sustained a loss the most sensible for a young Prince just beginning to reign, the reputation of justice and moderation. It is the influence, the address, and ability of the French Minister, joined to the firmness of Russia, which have completed this work; and Lewis the Sixteenth has restored in Germany to the nation over which he reigns, that reputation which his grandfather had lost.

The merit of the Chevalier de la Luzerne, who was Ambassador in Bavaria during the transaction of this business, and that of M. Marbois, the Secretary to that embassy, in accomplishing an affair of such importance, which was rendered peculiarly delicate by the late family connexion between the Courts of Vienna and Versailles, was probably a motive for sending them now to America, a mission of no less importance and no less delicacy.

It is not probable, however, that they could have succeeded so soon, if England could have afforded subsidies to the Emperor. The Revolution in America, in which the French King has taken an earlier and a greater part than any other Sovereign in Europe, has operated so as to conciliate to him a consideration that is universal. The new Minister will give to Congress information the most precise in this respect, and touching the part which Spain is taking at this time, for which reason I shall refrain from entering into it, and content myself with observing, that all these considerations ought to induce us to cherish the alliance of France; and that every good citizen of the United States ought to endeavor to destroy the remains of those prejudices, which our ancient rulers have endeavored to inspire us with; that we have nothing to fear and much to hope from France, while we conduct ourselves with good sense and firmness, and that we cannot take too much pains to multiply the commercial relations, and strengthen the

political connexions between the two nations; provided always, that we preserve prudence and resolution enough to receive implicitly no advice whatever, but to judge always for ourselves, and to guard ourselves against those principles in government, and those manners, which are so opposite to our own Constitution and to our own characters, as a young people, called by Providence to the most honorable and important of all duties, that of forming establishments for a great nation and a new world.

In the opinion of some, the power with which we shall one day have a relation the most immediate, next to that of France, is Great Britain. But it ought to be considered, that this power loses every day her consideration, and runs towards her ruin. Her riches, in which her power consisted, she has lost with us, and never can regain. With us she has lost her Mediterranean trade, her African trade, her German and Holland trade, her ally, Portugal, her ally, Russia, and her natural ally, the House of Austria; at least, as being unable to protect these as she once did, she can obtain no succor from them. In short, one branch of commerce has been lopped off after another, and one political interest sacrificed after another. She resembles the melancholy spectacle of a great wide spreading tree, that has been girded at the root. Her endeavors to regain these advantages, will continually keep alive in her breast the most malevolent passions towards us. Her envy, her jealousy, and resentment, will never leave us, while we are what we must unavoidably be, her rivals in the fisheries, in various other branches of commerce, and even in naval power. If peace should unhappily be made, leaving Canada, Nova Scotia, or the Floridas, or any of them, in her hands, jealousies and controversies will be perpetually arising. The degree, therefore, of intercourse with this nation, which will ever again take place, may justly be considered as problematical, or rather the probability is, that it will never be so great as some persons imagine; moreover, I think that every citizen in the present circumstances, who respects his country, and the engagements she has taken, ought to abstain from the foresight of a return of friendship between us and the English, and act as if it never was to be.

But it is lawful to consider, that which will probably be formed between the Hollanders and us. The similitude of manners, of religion, and in some respects of constitution, the analogy between the means by which the two republics arrived at independency, but above all the attractions of commercial interest, will infallibly draw them together. This connexion will

not probably show itself, before a peace or a near prospect of peace. Too many motives of fear or interest place the Hollanders in a dependance on England, to suffer her to connect herself openly with us at present. Nevertheless, if the King of Prussia, could be induced to take us by the hand, his great influence in the United Provinces might contribute greatly to conciliate their friendship for us. Loans of money, and the operations of commercial agents or societies, will be the first threads of our connexions with this power. From the essays and inquiries of your Commissioners at Paris, it appears, that some money may be borrowed there, and from the success of several enterprises by the way of St Eustatia, it seems that the trade between the two countries is likely to increase, and possibly Congress may think it expedient to send a Minister there. If they should, it will be proper to give him a discretionary power to produce his commission or not, as he shall find it likely to succeed, to give him full powers and clear instructions concerning the borrowing of money; and the man himself above all should have consummate prudence, and a caution and discretion, that will be proof against every trial.

If Congress could find any means of paying the interest annually in Europe, commercial and pecuniary connexions would strengthen themselves from day to day, and if the fall of the credit of England should terminate in bankruptcy, the Seven United Provinces, having nothing to dissemble, would be zealous for a part of those rich benefits, which our commerce offers to the maritime powers, and by an early treaty with us secure those advantages, from which they have already discovered strong symptoms of a fear of being excluded by delays. It is scarcely necessary to observe to Congress, that Holland has lost her influence in Europe to such a degree, that there is little other regard for her remaining but that of a prodigal heir for a rich usurer, who lends him money at a high interest. The State which is poor and in debt has no political stability. Their army is very small, and their navy is less. The immense riches of individuals may possibly be in some future time the great misfortune of the nation, because the means of defence are not proportioned to the temptation which is held out for some necessitous, avaricious, and formidable neighbor to invade her.

The active commerce of Spain is very inconsiderable; of her passive commerce, we shall not fail to have a part; the vicinity of this power, her forces, her resources, ought to make us attentive to her conduct, but if we

may judge of the future by the past, I should hope we had nothing to fear from it. The genius and interest of the nation incline it to repose. She cannot determine upon war but in the last extremity, and even then she sighs for peace. She is not possessed of the spirit of conquest, and we have reason to congratulate ourselves, that we have her for the nearest and principal neighbor. Her conduct towards us at this time will perhaps appear equivocal and indecisive, her determinations appear to be solely the fruit of the negotiations of the Court of Versailles. But it ought to be considered, she has not had motives so pressing as those of France to take in hand our defence. Whether she has an eye upon the Floridas, or what other terms she may expect from Congress, they are no doubt better informed than I am. To their wisdom it must be submitted to give her satisfaction, if her terms are moderate, and her offers in proportion. This conduct may conciliate her affection and shorten delays, a point of great importance, as the present moment appears to be decisive.

Portugal, under the administration of the Marquis de Pombal, broke some of the shackles by which she was held to England. But the treaty, by which a permanent friendship is established between the Crowns of Spain and Portugal, was made in 1777, an event that the English deplore as the greatest evil, next to the irrecoverable loss of the colonies, arising from this war, because they will now no longer be able to play off Portugal against Spain, in order to draw away her attention as well as her forces, as in former times. But as Portugal has not known how to deliver herself entirely from the influence of England, we shall have little to hope from her; on the other hand, such is her internal weakness, that we have absolutely nothing to fear. We shall necessarily have commerce with her, but whether she will ever have the courage to sacrifice the friendship of England for the sake of it is uncertain.

It would be useless to consider that infinite number of little sovereignties into which Germany is divided, and develope all their political interests. This task is as much beyond my knowledge as it would be useless to Congress. They will have few relations friendly or hostile with this country, excepting in two branches of commerce, that of merchandise and that of soldiers. The latter, infamous and detestable as it is, has been established between a nation, once generous, humane, and brave, and certain princes, as avaricious of money as they are prodigal of the blood of their subjects; and

such is the scarcity of cash, and the avidity for it in Germany, and so little are the rights of humanity understood and respected, that sellers will probably be found as long as buyers. America will never be found in either class. The State of Germany, with which we may have commerce of an honorable kind, is the House of Austria, one of the most powerful in Europe. She possesses very few countries, however, near the sea. Ostend is the principal city, where she might have established a trade of some consequence, if the jealousy of the maritime Powers had not constantly opposed it. France, Spain, Holland, and England, have been all agreed in their opposition, and the treaty of Utrecht, ratified more than once by subsequent treaties, has so shackled this port, that it will be impossible to open a direct trade to it, without some new treaty, which possibly may not be very distant. England may possibly make a new treaty with Austria, and agree to privileges for this port, in order to draw away the advantages of the American trade from France and Spain; and in such a treaty Holland may possibly acquiesce, if not accede to it. The port of Trieste enjoys liberty without limits, and the Court of Vienna is anxious to make its commerce flourish. Situated as it is at the bottom of the Gulf of Trieste, the remotest part of the Gulf of Venice, tedious and difficult as the navigation of those seas is, we could make little use of it at any time, and none at all while this war continues.

This Court would seize with eagerness the advantages, that are presented to her by the independence of America, but an interest more powerful restrains her, and although she is certainly attentive to this revolution, there is reason to believe she will be one of the last powers to acknowledge our independence. She is so far from being rich, that she is destitute of the means of making war without subsidies, as is proved by the peace which has lately been made. She has occasion for the succors of France or of England to put in motion her numerous armies. She conceives easily, that the loss of the resources and credit of the English has disabled them to pay the enormous subsidies, which, in former times, they have poured into the Austrian coffers. She sees therefore with a secret mortification, that she shall be hereafter more at the mercy of France, who may choose her ally, and prefer at her pleasure either Austria or Prussia, while neither Vienna nor Berlin will be able, as in times past, to choose between Paris and London, since the latter has lost her past opulence and pecuniary resources. It is our

duty to remark these great changes in the system of mankind, which have already happened in consequence of the American war. The alienation of Portugal from England, the peace of Germany, and that between Petersburg and Constantinople, by all which events England has lost, and France gained, such a superiority of influence and power, are owing entirely to the blind division of that policy and wealth, which the English might have still enjoyed, from the objects of their true interests and honor, to the ruinous American war.

The Court of Berlin flatters itself, that the connexions which have heretofore so long united France and Prussia will renew themselves sooner or later. This system is more rational than that which subsists at this day. The king of Prussia may then wait without anxiety the consequences of the present revolution, because it tends to increase the resources of his natural ally. The jealousy between the Emperor and the King of Prussia, and that between the Houses of Bourbon and Austria, are a natural tie between France and Prussia. The rivalry between France and Great Britain is another motive, too natural and too permanent for the former to suffer the King of Prussia to be long the ally of the latter. One of the favorite projects of Prussia, that of rendering the port of Emden a place of flourishing trade, interests him most powerfully in our independence. Silesia, one of his best provinces, has already felt the influence of it, and, sensible of the force that empires derive from commerce, he is earnestly desirous to see it introduced between America and his States; which gives ground to believe, that as Austria will be one of the last so Prussia will be one of the first to acknowledge our independence; an opinion which is rendered more probable by the answer, which was given by the Baron de Schulenburg to Mr Arthur Lee, and the influence of the King of Prussia in the United Provinces, which is greater than that of any other Power, arising from his great military force, and the vicinity of his dominions. His near relation to the Stadtholder and the Prince of Brunswick, is an additional motive to cultivate his friendship. The Electorate of Saxony, with a fruitful soil, contains a numerous and industrious people, and most of the commerce between the east and the west of Europe passes through it. The fairs of Leipsic have drawn considerable advantages for these four years from our trade. This Power will see with pleasure the moment, which shall put the last hand to our independence. The rest of Germany, excepting Hamburgh

and Bremen, have no means of opening a direct commerce with us; with the latter we have no connexion at present; in the former all the commerce of Lower Germany is transacted; here we shall soon have occasion to establish an agent or consul.

Poland, depopulated by the war and a vicious government, reduced by a shameful treaty to two thirds of her ancient dominion, destitute of industry and manufactures, even of the first necessity, has no occasion for the productions of America. Dantzic sees her ancient prosperity diminish every day. There is, therefore, little probability of commerce, and less of any political connexion between that nation and us.

Russia, Sweden, and Denmark, comprehended under the denomination of the northern powers, have been thought by some to be interested in our return to the domination of Great Britain. Whether they consider themselves in this light or not, their late declarations against the right of England to interrupt their navigation, and their arming for the protection of their commerce on the ocean, and even in the English channel, are unequivocal proofs of their opinion concerning the right in our contest, and of their intentions not to interfere against us. It is very true, that the articles of commerce which they produce, are in many respects the same with those of America. Yet if we consider that we shall have occasion to purchase from them large quantities of hemp and sailcloth, and that our productions of timber, pitch, tar, and turpentine, are less profitable with us without bounties, than some other branches of labor, it is not probable that we shall lower the price of these articles in Europe so much as some conjecture, and consequently our increased demand upon those countries for several articles will be more than a compensation to them for the small loss they may sustain, by a trifling reduction in the price of those articles. It is not probable that the Courts of Petersburg, Stockholm, and Copenhagen have viewed with indifference the present revolution, if they have been apprehensive of being hurt by it in some respects, which however I think must have been a mistaken apprehension; yet the motive of humbling the pride of the English, who have endeavored to exercise their domination, even over the northern seas, and to render the Danish and Swedish flag dependent on theirs, has prevailed over all others, and they are considered in Europe as having given their testimony against the English in this war.

Italy, a country which declines every day from its ancient prosperity, offers few objects to our speculations. The privileges of the port of Leghorn, nevertheless, may render it useful to our ships, when our independence shall be acknowledged by Great Britain, if, as we once flattered ourselves, the Court of Vienna might receive an American Minister. We were equally in error respecting the Court of the Grand Duchy of Tuscany, where an Austrian prince reigns, who receives all his directions from Vienna, in such a manner that he will probably never receive any person in a public character, until the chief of his house has set him the example. The King of the two Sicilies is in the same dependence on the Court of Madrid, and we may depend upon it, he will conform himself to all it shall suggest to him. This prince has already ordered the ports of his dominions to be open to American vessels, public and private, and has ordered his Ambassador at Paris to apply to your Commissioners for a description of the American flag, that our vessels might be known, and receive no molestation upon their appearance in his harbors.

The Court of Rome, attached to ancient customs, would be one of the last to acknowledge our independence, if we were to solicit for it. But Congress will probably never send a Minister to his Holiness, who can do them no service, upon condition of receiving a Catholic Legate or Nuncio in return, or in other words, an ecclesiastical tyrant, which it is to be hoped the United States will be too wise ever to admit into their territories.

The States of the King of Sardinia are poor, and their commerce is very small. The little port of Villa Franca will probably see few American vessels, nor will there be any close relations, either commercial or political, between this prince and us.

The republic of Genoa is scarcely known at this day in Europe, but by those powers who borrow money. It is possible that some small sums might be obtained there, if Congress would fall upon means of insuring a punctual payment of interest in Europe.

Venice, heretofore so powerful, is reduced to a very inconsiderable commerce, and is in an entire state of decay.

Switzerland is another lender of money, but neither her position nor her commerce can occasion any near relation with us.

Whether there is anything in these remarks worth the trouble of reading, I shall submit to the wisdom of Congress, and subscribe myself, with the highest consideration, your most obedient and humble servant,

JOHN ADAMS.

TO JAMES LOVELL.

Braintree, August 13th, 1779.

My Dear Sir,

Since I have had opportunity to converse a little in this country, and to read a few gazettes, I find that questions have been agitated here in the newspapers, and in private circles, as well as in Congress, concerning his Excellency, the Count de Vergennes, and Mr Arthur Lee, which seem to make it necessary that I should send the enclosed copies.^[47] You can judge better than I whether it will be of any public utility to lay them before Congress. My first letter, and his Excellency's answer, I can see no objection to laying before Congress; but as the rest^[48] contain little else besides mutual compliments, perhaps it will be as well to conceal them. I submit the whole, however, to your discretion, and am, with much esteem, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Braintree, September 10th, 1779.

Sir,

Looking over the printed journals of the 15th of last April, I find in the report of the Committee appointed to take into consideration the foreign affairs of the United States, and also the conduct of the late and present Commissioners of these States, the two following articles.

1. "That it appears to them, that Dr Franklin is Plenipotentiary for these States at the Court of France; Dr Arthur Lee, Commissioner for the Court of Spain; Mr William Lee, Commissioner for the Courts of Vienna and Berlin; Mr Ralph Izard, Commissioner for the Court of Tuscany; that Mr John Adams was appointed one of the Commissioners at the Court of France, in the place of Mr Deane, who had been appointed a joint Commissioner with Dr Franklin and Dr Arthur Lee, but that the said commission of Mr Adams is superseded by the Plenipotentiary commission to Dr Franklin.

2. "That in the course of their examination and inquiry, they find many complaints against the said Commissioners, and the political and commercial agency of Mr Deane, which complaints, with the evidence in support thereof, are herewith delivered, and to which the Committee beg leave to refer."

The word "said" in the second article, refers to the Commissioners mentioned in the first, and as my name is among them, I learn from hence, that there were some complaints against me, and that the evidence in support of them was delivered to Congress by the Committee.

I therefore pray, that I may be favored with copies of those complaints, evidences, and the names of my accusers, and the witnesses against me, that I may take such measures as may be in my power to justify myself to Congress.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Boston, September 23d, 1779.

Sir,

I had yesterday the honor of your letter of the 7th of this month. I thank you, Sir, for your obliging congratulations on my return to my family and country.

The reason why my letters of the 27th of February, and the 1st of March, arrived so late was, that they were delivered at the time of their dates to gentlemen then bound to the seaports, who expected to sail directly for America, but were disappointed of passages, until the vessels sailed under the convoy of the *Sensible*.

I have not my letter book here, but I do not remember that they contained anything of much consequence, so that I suppose the inconvenience of their late arrival was not much.

You will be pleased to make my most respectful compliments to the members of Congress, and believe me, with great esteem, &c.

JOHN ADAMS.

TO JAMES LOVELL.

Braintree, October 17th, 1779.

My Dear Sir,

What shall I say to your favors of the 27th and 28th of September, which came by the last post? The unanimity of my election surprises me, as much as the delicacy, importance, and danger of the trust distress me. The appointment of Mr Dana to be Secretary pleases me more than my own to

be Minister, Commissioner, Negotiator, call it what you will. I have communicated to him your letters in confidence, and all other material intelligence I had, and hope he will not decline, but you know the peculiarities of his situation, and if he should refuse, I hope you will not force your name out of nomination again. I did not suppose that such characters would be willing to go as Secretaries, because I did not know your plan, otherwise I should not have mentioned Mr Jennings to Mr Gerry for one to Dr Franklin. Your mastery of the language, and your indefatigability, would make you infinitely useful in any of these departments.

I rejoice that you produced my letter to the Count de Vergennes and his answer before the choice, because it contained a testimony in favor of Mr Lee, which was his due.^[49] I am very much affected at his recall, because I know his merit, and, therefore, I am glad I was not placed in his stead, for suspicions would have arisen, and reflections would have been cast upon me, as having favored his removal in order to make room, which I certainly did not. I am infinitely obliged to you for those letters, and for that received the post before last, but I really tremble for your health. Let me entreat you, for the sake of our country, to take care of it. If I was to apply myself as you do, I should soon go to study politics in another sphere. Yet I am so selfish as to beg the continuance of your favors to me, and I pledge myself to you, I will not be in debt any more than may be made by the intrinsic difference in the value of the letters, which will be unavoidable.

I thank you for the extract from Mr Izard's letter. I am not a little surprised at its contents. It was written, I see, to his friend, and I suppose intended in confidence. I am fully persuaded he did not intend, that the whole should have been laid before Congress.^[50] I utterly deny that I ever used to him any such language, as the indecent paragraph that closes what he says about me. Indeed, that is manifestly his own inference, and in his own words, from what he says he had heard me say, and he draws the same from what Dr Franklin and Mr Deane had said upon the same subject. I further deny that I ever *threatened* him with the displeasure of Congress, for writing his opinion concerning these articles to Congress, or for suggesting them to the Commissioners. But to enter into all the conversations that have passed between Mr Izard and me respecting those articles, and many other points in order to give a full and fair representation of those conversations, would

fill a small volume. Yet there never was any angry or rude conversation between him and me, that I can recollect. I lived with him on good terms, visited him and he me, dined with his family, and his family with me, and I ever told him, and repeated it often, that I should be always obliged to him for his advice, opinions, and sentiments upon any American subject, and that I should always give it its due weight, although I did not think myself bound to follow it any further than it seemed to me to be just. As Congress have declined giving me the charges against me by their authority, and have, upon the whole, acquitted me with so much splendor, it would look like a littleness of soul in me to make myself anxious, or give them any further trouble about it. And as I have in general so good an opinion of Mr Izard's attachment to his country, and of his honor, I shall not think myself bound to take any further notice of this fruit of his inexperience in public life, this peevish ebullition of the rashness of his temper. I have written a few other observations to Mr Gerry on the same subject. You and he will compare these with them for your private satisfaction, but be sure that they are not exposed where they will do harm to the public, to Mr Izard, or me, unnecessarily.

If I should go abroad, cannot you lend me twenty or thirty complete sets of the journals? They are much wanted in Europe. A set of them is a genteel present, and perhaps would do me and the public more service than you are aware of. If Congress, or some Committee would order it, I should be very glad.

I am, &c.

JOHN ADAMS.

TO SAMUEL HUNTINGTON, PRESIDENT OF CONGRESS.

Braintree, October 19th, 1779.

Sir,

I had in Paris an opportunity of procuring information concerning the British whale fishery on the coast of Brazil, which it is proper to communicate to Congress, that if any advantage can be made of it the opportunity may not be lost.

The last year and the year before the English carried on this fishery to very great advantage, off the river Plate in South America, in the latitude of 35° south, and from thence to 40°, just on the edge of soundings, off and on, as the sailors express it, and about longitude 65° from London. They had about seventeen vessels in this fishery, which all sailed from London in the months of September and October. All the officers and men Americans from Nantucket and Cape Cod, two or three from Rhode Island, and one from Long Island. Four or five of these vessels went to Greenland, to which place they sail yearly, the last of February or the beginning of March.

The year before last, there was published in the English newspapers, a letter from the Lords of the Admiralty to Dennis de Bredt, in Coleman Street, informing him, that a convoy should be appointed to the Brazil fleet. But this I had certain information was a forgery, calculated merely to deceive American privateers, and no convoy actually went or was appointed, either last year or the year before, although the imposture was repeated both times, and will no doubt be renewed this.

For the capture or destruction of a fishery so wholly defenceless, not one of the vessels having any arms, a single frigate, or indeed a privateer of four and twenty guns, would be sufficient. The beginning of December would be the best time to proceed from Boston or Philadelphia, because the frigate would then find the whaling vessels nearly loaded. The cargoes of bone and oil are very valuable, and at least four hundred and fifty of the best kind of seamen would be taken out of the hands of the English, and might be gained into the American service. Most of the officers and men wish well to this country, and would gladly be in its service, if they could be delivered from that they are engaged in. Whenever the English men of war or privateers, have taken an American vessel, they have given to all the whalers found among the crew, by order of government, their choice, either to go on board a man of war and fight against their country, or into the whale fishery. Such numbers have chosen the latter, as have made up the crews of seventeen vessels.

I thought it my duty to communicate this, that if so profitable a branch of commerce, and so valuable a nursery of seamen, can be taken from the English, it may be done. I prevailed with my colleagues last year to represent these facts to his Excellency, M. de Sartine, but it appears that his Majesty's service would not admit of any enterprise from France in consequence of it. Since my return I have represented them to the Council of this State, but whether anything can be done by them, after the disaster at Penobscot, I doubt. If Congress should not deem it consistent with the public service to send a frigate upon this service, nothing will be lost but the trouble of this letter.

I have the honor to congratulate your Excellency on your advancement to the chair, and to subscribe myself with great respect, &c.

JOHN ADAMS.

TO SAMUEL HUNTINGTON, PRESIDENT OF CONGRESS.

Braintree, October 20th, 1779.

Sir,

M. Schweighauser of Nantes, who is a native of Switzerland, observing me as I was one day at his house looking with some attention upon a stamp of the heroic deed of William Tell, asked me to take a few of them to America, as a present from him, which I agreed to do with pleasure. He accordingly sent on board the frigate a box containing, as he told me, one stamp for each State, neatly framed and glazed, which he desired me to present to Congress, as a small token of his respect. The box has never been opened, but I hope the pictures are safe, and with permission of Congress I will deliver it to the Navy Board in Boston, to be by them transmitted to the delegates from the several States, or to their order.

I have the honor to be, with great respect, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Braintree, October 21st, 1779.

Sir,

So many advantages might be derived to the United States in the conduct of the war, in furnishing the army and navy, in augmenting the value, or at least in preventing the further depreciation of their currency, in lowering the prices of goods, in supplying the wants of the people, and in preventing murmurs and discontents, that I have ever thought it of very great importance, in some way or other, to procure convoys to their trade, to and from the West India Islands, and Europe.

France and Spain have such advantages of England in carrying on the war in the American seas, and would receive such assistance from our commerce, privateers, and growing navy, that I have ever thought it a main principle of their policy to maintain a constant and decided superiority of naval power in the West Indies, and upon the coasts of this continent. I would, therefore, with due deference to the superior wisdom of Congress, beg leave to submit to their consideration, whether it would not be expedient for them, either by a direct representation from themselves to the French and Spanish Courts, or by instructions to their Plenipotentiary Ministers, to convince those Courts, that their true interest lies in adopting this plan. It is certainly their interest, reasoning upon French and Spanish principles simply, to conduct this war in such a manner as has a tendency in the shortest time, and with the least expense, to diminish the power of their enemies, and increase their own. Now I would submit it to Congress whether it may not be easily demonstrated, that these ends may be obtained the most easily in this way. A representation from Congress, either directly or by instructions to their Ministers, showing what assistance in provisions, artists, materials, vessels of war, privateers, land armies, or in any other

way, France and Spain might depend upon receiving from these States, either for money or as the exertions of an ally, would have great weight.

Much has been already said to the French Ministry upon these subjects, and not wholly without effect; yet much more may be said to greater advantage, and perhaps to better purpose, for they are extremely well disposed to do what can be made to appear to them for the advantage of the common cause.

I have the honor to enclose some papers on this subject. One is a letter from the Commissioners to his Excellency the Count de Vergennes, which he received the beginning of January last,^[51] the other is a letter from me to the Marquis de Lafayette^[52] in February, with his answer.

I have the honor to be, &c.

JOHN ADAMS.

TO HENRY LAURENS.

Braintree, October 25th, 1779.

My Dear Sir,

Your favor of the 4th of this month gave me great pleasure, but I am afraid that you and some others of my friends felt more for me in the awkward situation you mention than I did for myself, though I cannot say that I was wholly insensible. I could compare it to nothing, but Shakspeare's idea of Ariel, wedged in the middle of a rifted oak, for I was sufficiently sensible, that it was owing to an unhappy division in Congress, and pains enough were taken to inform me, that one side were for sending me to Spain, and the other to Holland, so that I was flattered to find that neither side had any decisive objection against trusting me, and that the apparent question was only *where*.

That I was sent without the least solicitation of mine, directly or indirectly, is certainly true; and I had such formidable ideas of the sea and of British men of war, such diffidence in my own qualifications to do service in that way, and such uncertainty of the reception I should meet, that I had little inclination to adventure. That I went against my interest is most undoubtedly so, for I never yet served the public without losing by it. I was not, however, as you suppose, kept unemployed. I had business enough to do, as I could easily convince you. There is a great field of business there, and I could easily show you that I did my share of it. There is so much to do, and so much difficulty to do it well, that I am rejoiced to find a gentleman of such abilities, principles, and activity as Colonel Laurens undoubtedly is, without a compliment, appointed to assist in it.^[53] I most sincerely hope for his friendship, and an entire harmony with him, for which reason I should be very happy in his company in the passage, or in an interview with him as soon as possible in Europe. He will be in a delicate situation, but not so much so as I was; and plain sense, honest intentions, and common civility will, I think, be sufficient to secure him, and do much good.

Your kind compliments on my safe return and most honorable re-election are very obliging. I have received no commission, nor instructions, nor any particular information of the plan; but from the advice and information from you and several other of my friends at Philadelphia and here, I shall make no hesitation to say, that, notwithstanding the delicacy and danger of this commission, I suppose I shall accept it without delay and trust events to Heaven, as I have been long used to do.

The convulsions at Philadelphia are very affecting and alarming, but not entirely unexpected to me. The state of parties, and the nature of their government, have a long time given me disagreeable apprehensions. But I hope they will find some remedy. Methods will be found to feed the army, but I know of none to clothe it without convoys to trade, which Congress, I think, will do well to undertake, and persuade France and Spain to undertake as soon as possible. Your packets for your friends in Europe will give me pleasure, and shall be forwarded with care and despatch.

With great truth and regard, I am, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Braintree, November 4th, 1779.

Sir,

I had yesterday the honor of receiving your letter of the 20th of October, enclosed with two commissions, appointing me Minister Plenipotentiary from the United States, to negotiate peace and commerce with Great Britain, together with instructions for my government in the execution of these commissions, copies of instructions to the Ministers Plenipotentiary at Versailles and Madrid, and two acts of Congress of the 4th and 15th of October.

Peace is an object of such vast importance, the interests to be adjusted in the negotiations to obtain it are so complicated and so delicate, and the difficulty of giving even general satisfaction is so great, that I feel myself more distressed at the prospect of executing the trust, than at the thought of leaving my country, and again encountering the dangers of the seas and of enemies. Yet, when I reflect on the general voice in my favor, and the high honor that is done me by this appointment, I feel the warmest sentiments of gratitude to Congress, and shall make no hesitation to accept it, and devote myself without reserve or loss of time to the discharge of it. My success, however, may depend, in a very great degree, on the intelligence and advices that I may receive from time to time from Congress, and on the punctuality with which several articles in my instructions may be kept secret. It shall be my most earnest endeavor to transmit to Congress the most constant and exact information in my power of whatever may occur, and to conceal those instructions, which depend in any measure on my judgment. And I hope I need not suggest to Congress the necessity of communicating to me, as early as possible, their commands from time to time, and of keeping all the discretionary articles an impenetrable secret, a

suggestion, however, that the constitution of that sovereignty, which I have the honor to represent, might excuse.

As the frigate has been some time waiting, I shall embark in eight or ten days at furthest. Your Excellency will please to present my most dutiful respects to Congress, and accept my thanks for the polite and obliging manner in which you have communicated their commands.

I have the honor to be, &c.

JOHN ADAMS.

INSTRUCTIONS FOR A TREATY OF PEACE WITH GREAT BRITAIN.

[\[54\]](#)

Sir,

You will herewith receive a commission, giving you full power to negotiate a treaty of peace with Great Britain, in doing which you will conform to the following information and instructions.

1. The United States are sincerely desirous of peace, and wish by every means, consistent with their dignity and safety, to spare the further effusion of blood. They have, therefore, by your commission and these instructions, labored to remove the obstacles to that event, before the enemy have evidenced their disposition for it. But as the great object of the present defensive war, on the part of the allies, is to establish the independence of the United States, and as any treaty whereby this end cannot be obtained must be only ostensible and illusory, you are, therefore, to make it a preliminary article to any negotiation, that Great Britain shall agree to treat with the United States, as sovereign, free, and independent.

2. You shall take especial care also, that the independence of the said States be effectually assured and confirmed by the treaty or treaties of peace, according to the form and effect of the treaty of alliance with His Most

Christian Majesty. And you shall not agree to such treaty or treaties, unless the same be thereby so assured and confirmed.

3. The boundaries of these States are as follows, viz. These States are bounded north, by a line to be drawn from the northwest angle of Nova Scotia along the highlands, which divide those rivers which empty themselves into the river St Lawrence, from those which fall into the Atlantic ocean, to the northwesternmost head of Connecticut river; thence down along the middle of that river to the fortyfifth degree of north latitude; thence due west in the latitude fortyfive degrees north from the equator to the northwesternmost side of the river St Lawrence or Cadaraqui; thence straight to the south end of Nepissing; and thence straight to the source of the river Mississippi; west, by a line to be drawn along the middle of the river Mississippi from its source to where the said line shall intersect the thirtyfirst degree of north latitude; south, by a line to be drawn due east, from the termination of the line last mentioned in the latitude of thirtyone degrees north from the equator to the middle of the river Appalachicola, or Catahouchi; thence along the middle thereof to its junction with the Flint river; thence straight to the head of St Mary's river; and thence down along the middle of St Mary's river to the Atlantic ocean; and east, by a line to be drawn along the middle of St John's river from its source to its mouth in the Bay of Fundy, comprehending all islands within twenty leagues of any part of the shores of the United States, and lying between lines to be drawn due east from the points where the aforesaid boundaries between Nova Scotia on the one part, and East Florida on the other part, shall respectively touch the Bay of Fundy and the Atlantic ocean. You are, therefore, strongly to contend that the whole of the said countries and islands lying within the boundaries aforesaid, and every citadel, fort, post, place, harbor, and road to them belonging, be absolutely evacuated by the land and sea forces of his Britannic Majesty, and yielded to the powers of the States to which they respectively belong, in such situation as they may be at the termination of the war. But, notwithstanding the clear right of these States, and the importance of the object, yet they are so much influenced by the dictates of religion and humanity, and so desirous of complying with the earnest request of their allies, that if the line to be drawn from the mouth of the lake Nepissing to the head of the Mississippi cannot be obtained without continuing the war for that purpose, you are hereby empowered to agree to

some other line between that point and the river Mississippi; provided the same shall in no part thereof be to the southward of latitude fortyfive degrees north. And in like manner, if the eastern boundary above described cannot be obtained, you are hereby empowered to agree, that the same shall be afterwards adjusted, by commissioners to be duly appointed for that purpose, according to such line as shall be by them settled and agreed on, as the boundary between that part of the State of Massachusetts Bay, formerly called the province of Maine, and the colony of Nova Scotia, agreeably to their respective rights. And you may also consent, that the enemy shall destroy such fortifications as they may have erected.

3. Although it is of the utmost importance to the peace and commerce of the United States that Canada and Nova Scotia should be ceded, and more particularly that their equal common right to the fisheries should be guarantied to them, yet a desire of terminating the war has induced us not to make the acquisition of these objects an ultimatum on the present occasion.

5. You are empowered to agree to a cessation of hostilities during the negotiation, provided our ally shall consent to the same, and provided it shall be stipulated that all the forces of the enemy shall be immediately withdrawn from the United States.

6. In all other matters not abovementioned, you are to govern yourself by the alliance between His Most Christian Majesty and these States, by the advice of our allies, by your knowledge of our interests, and by your own discretion, in which we repose the fullest confidence.

INSTRUCTIONS FOR A TREATY OF COMMERCE WITH GREAT BRITAIN.

Sir,

You will herewith receive a commission, giving you full power to negotiate a treaty of commerce with Great Britain, in doing which, you will consider yourself bound by the following information and instructions.

1. You will govern yourself principally by the treaty of commerce with His Most Christian Majesty, and as, on the one hand, you shall grant no privilege to Great Britain not granted by that treaty to France, so, on the other, you shall not consent to any peculiar restrictions or limitations whatever in favor of Great Britain.

2. In order that you may be the better able to act with propriety on this occasion, it is necessary for you to know, that we have determined, 1st, that the common right of fishing shall in no case be given up; 2dly, that it is essential to the welfare of all these United States that the inhabitants thereof, at the expiration of the war, should continue to enjoy the free and undisturbed exercise of their common right to fish on the Banks of Newfoundland, and the other fishing banks and seas of North America, preserving inviolate the treaties between France and the said States; 3dly, that application shall be made to His Most Christian Majesty to agree to some article or articles for the better securing to these States a share in the said fisheries; 4thly, that if, after a treaty of peace with Great Britain, she shall molest the citizens or inhabitants of any of the United States, in taking fish on the banks and places hereinafter described, such molestation, being in our opinion a direct violation and breach of the peace, shall be a common cause of the said States, and the force of the union be exerted to obtain redress for the parties injured; and 5thly, that our faith be pledged to the several States, that, without their unanimous consent, no treaty of commerce shall be entered into, nor any trade or commerce carried on with Great Britain, without the explicit stipulation hereinafter mentioned. You are therefore not to consent to any treaty of commerce with Great Britain without an explicit stipulation on her part, not to molest or disturb the inhabitants of the United States of America in taking fish on the Banks of Newfoundland and other fisheries in the American seas anywhere, excepting within the distance of three leagues of the shores of the territories remaining to Great Britain at the close of the war, if a nearer distance cannot be obtained by negotiation. And in the negotiation you are to exert your most strenuous endeavors to obtain a nearer distance to the gulf of St Lawrence, and particularly along the shores of Nova Scotia, as to which latter we are desirous that even the shores may be occasionally used for the purpose of carrying on the fisheries by the inhabitants of these States.

In all matters you are to govern yourself by your own discretion, as shall be most for the interest of these States, taking care that the said treaty be founded on principles of equality and reciprocity, so as to conduce to the mutual advantage of both nations, but not to the exclusion of others.

TO THE PRESIDENT OF CONGRESS.

Braintree, November 7th, 1779.

Sir,

I have the honor to enclose to Congress a copy of the letter book of the Commissioners at the Court of Versailles, during the time I had the honor to be one of them. As the letter book was kept by me, and almost wholly in my hand writing, the Minister Plenipotentiary consented, that I should bring it home with me, leaving him a copy, which was done.

As there may be many things in it which Congress may have occasion to know, I have prevailed with Mr Thaxter to copy it. I shall submit to the consideration of Congress, whether he ought to have any allowance for this service, and how much. As Mr Thaxter will accompany me to Europe, in the character of my private Secretary, if Congress think proper to allow him anything for these copies, I can pay him in Europe if it is thought proper.

I chose to mention Mr Thaxter's going with me to Congress, because jealousies have arisen heretofore concerning private Secretaries. Mr Thaxter is known to Congress, and I think I can safely confide in his fidelity, diligence, and discretion, and from the experience I have had in Europe I am fully convinced, that it is my duty to take with me some one of this character.

I have the honor to be, with great respect, &c.

JOHN ADAMS.

TO B. FRANKLIN.

Ferrol, December 8th, 1779.

Sir,

I have the honor to inform your Excellency, that, Congress having judged it proper to appoint me to a new mission in Europe, I embarked on the 13th of November, at the instance of the Chevalier de la Luzerne and M. Gerard, on board the same frigate, that carried me to America. Soon after we got to sea, a formidable leak in the ship discovered itself, so as to oblige us to keep two pumps constantly going by night and day, which induced the captain to think it necessary to put into this place, where we have just now cast anchor. Whether I shall go to Paris by land or wait for the frigate is uncertain; I believe the former, as the latter might detain me four or five weeks. I have despatches for your Excellency from Congress, which I shall carry with me, and newspapers. These latter contain little remarkable save the evacuation of Rhode Island by the enemy, and the Count d'Estaing's progress in Georgia, in co-operation with General Lincoln, which was in a fair course of success.

I hope the Confederacy, which sailed from Philadelphia three or four weeks before us, with M. Gerard and Mr Jay, who is appointed Minister Plenipotentiary for Spain, has happily arrived, and made it unnecessary for me to enlarge upon the general state of affairs in America, which were upon the whole in a favorable train. I hope to have the honor of saluting you at Passy in a few weeks, and am, with great respect, Sir, your most obedient humble servant,

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Ferrol, December 11th, 1779.

Sir,

I have the honor to inform Congress, that on the 13th of November I embarked on board the French frigate, la Sensible, and on the 14th came on board Mr Francis Dana, the Secretary to my commission, when we fell down to King's Roads, and on the 15th we sailed for France.

A leak was soon discovered in the ship, which obliged us to ply the pumps; as it seemed a steady leak, it gave little alarm at first, but continuing to increase to such a degree as to make two pumps constantly necessary night and day, obliging the passengers to take their turns in common with the ship's people, the captain judged it necessary to make the first port he could find. Accordingly, on the 7th of December, we happily discovered Cape Finisterre, and on the 8th arrived in the magnificent Spanish port of Ferrol, where we found a squadron of French ships of the line, the officers of which think we were very happy in making this port, as the frigate, since she has been in this harbor, is found to make seven or eight feet of water an hour.

The advice of all the gentlemen here is to make the best of my way to Paris by land, as it is the opinion of many, that the frigate will be condemned, but if not, she certainly will not be ready to sail again from this port in less than four or five weeks.

This is unfortunate to me, because, by all the information I can obtain, travelling in this kingdom is attended with many difficulties and delays, as well as a very great expense, there being no regular posts as in France, and no possibility of passing over the mountainous part of this country in carriages.

I find there has been no engagement in the European seas between the English and the combined fleets of France and Spain, as was reported in America. There has been an epidemic sickness on board the French fleet, which caused it to return rather sooner than was intended. There are twentyfive Spanish ships of the line in Brest harbor with the French. It is

reported that M. du Chaffault is appointed commander in chief of the French fleet, and that the Count d'Orvilliers has retired.

Captain Jones has done another brilliant action, by taking a fortyfour gun ship, after an obstinate engagement, which he carried into the Texel, but I cannot learn the particulars with much certainty or exactness.

I have been treated with the utmost attention and politeness since my arrival in this place, both by the Spanish and French officers, particularly by the Spanish Lieutenant General of Marine, Don Joseph St Vincent, who is commander in chief of the marine, by M. de Sade, the French *Chef d'Escadré*, and by the French consul and vice consul, who have all obligingly offered me every assistance in their power.

I shall endeavor to inform Congress of every step of my progress, as I may find opportunity. I have heard nothing as yet, which makes it probable to me, that I shall have anything to do openly and directly, in pursuance of my commission very speedily. There is a confused rumor here of a mediation of Russia and Holland, but I am persuaded without foundation. It seems to be much more certain, that the English continue in their old ill humor and insolent language, notwithstanding their impotence grows every day more apparent.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Corunna, December 16th, 1779.

Sir,

By the opportunity of a small vessel accidentally in this harbor, bound to Newburyport, I have the honor to inform Congress that I have been

detained by violent rains, and several accidents, in Ferrol until yesterday, when I set out with my family for this place, and arrived last evening without any accident. I awaited immediately on the Governor of the province, and on the Governor of the town, and received many civilities from both, and particularly from his Excellency the Governor of the province of Galicia, an assurance that he was not only disposed personally to render me every hospitality and assistance in his power, but that he had received express orders from his Court, to treat all Americans who should arrive here like their best friends. These personages were very inquisitive about American affairs, particularly the progress of our arms, and the operations of the Count d'Estaing, and more particularly still about the appointment of a Minister Plenipotentiary to the Court of Madrid. They requested his name, character, nativity, age, whether he was a member of Congress, and whether he had been President, with many other particulars.

To all these questions I made the best answers in my power, and with regard to his Excellency, the Minister Plenipotentiary at the Court of Madrid, I gave them the most exact information, and such a respectable character as the high offices he has sustained, and his own personal merit require. It is the prevailing opinion here, that the Court of Madrid is well disposed to enter into a treaty with the United States, and that the Minister from Congress will be immediately received, American independence acknowledged, and a treaty concluded. The frigate *la Sensible* is found to be in so bad a condition, that I am advised by everybody to go to France by land. The season, the roads, the accommodations for travelling are so unfavorable, that it is not expected I can get to Paris in less than thirty days. But if I were to wait for the frigate, it would probably be much longer. I am determined, therefore, to make the best of my way by land. And it is possible that this journey may prove of some service to the public, although it will be tedious and expensive to me, at least, I hope the public will sustain no loss by it.

There are six battalions of Irish troops in Spain, in three regiments, several of whose officers have visited me to assure me of their regard to the United States. I have been this afternoon to the Tower de Fer to see the Island of Cezarga, which was rendered famous in the course of the last summer by being appointed the rendezvous of the French and Spanish fleets. The French fleet arrived at this Island on the 9th of June last, but were not

joined by the Spanish fleet from Ferrol, till some time in July, nor by the fleet from Cadiz till much later, so that the combined fleets were not able to sail for the English Channel, until the 30th of July. To prevent a similar inconvenience another campaign, there are about twentyfive Spanish ships of the line now in Brest, which are to winter there, and to be ready to sail with the French fleets the approaching summer, at the first opening of the season.

God grant them success and triumph, although no man wishes for peace more sincerely than I, or would take more pleasure, or think himself more highly honored in being instrumental in bringing it about, yet, I confess, I see no prospect or hope of it, at least before the end of another summer. America will be amused with rumors of peace, and Europe too, but the English are not yet in a temper for it.

The Court of Russia has lately changed its Ambassador at the Court of London, and sometime in the month of October, M. Simolin, the new Minister Plenipotentiary from the Court of Petersburg to the Court of London, passed through France in his way to England, and resided three weeks in Paris. From this circumstance, a report has been spread in Europe, that the Court of Russia is about to undertake the office of mediator between the belligerent powers. But from conversation with several persons of distinction since my arrival in Spain, particularly with the Count de Sade, the Chef d'Escadré, commanding the French men of war now in Ferrol, I am persuaded, that if Russia has any thoughts of a mediation, the independence of the United States will be insisted upon by her as a preliminary, and Great Britain will feel much more reluctance to agree to this, than to the cession of Gibraltar, which it is said Spain absolutely insists upon.

I have the honor to be, &c.

JOHN ADAMS.

TO THE GOVERNOR OF CORUNNA.

Corunna, December 18th, 1779.

Mr Adams presents his compliments to the Governor of Corunna, and informs him, according to his desire expressed last evening, that the names of the persons for whom he requests a passport from his Excellency, the Governor of this Province, are as follows.

John Adams, a Minister Plenipotentiary from the United States of America.

Francis Dana, Secretary to Mr Adams's commission, a member of Congress, and a member of the Council of Massachusetts Bay.

John Thaxter, private Secretary to Mr Adams.

John Quincy Adams, a son of Mr Adams, about twelve years of age.

Charles Adams, another son of Mr Adams, nearly ten years of age.

Jeremiah Allen of Boston, in Massachusetts, a private gentleman accidentally in company; he is a merchant travelling with the view of establishing a private commerce in Spain, as well as France.

Samuel Cooper Johonnot, ten or eleven years of age, a grandson of a particular friend of Mr Adams in Boston, going to Paris for an education in the University there.

Joseph Stevens, a servant of Mr Adams.

John William Christian Frieke, a servant of Mr Dana.

Andrew Desmia, a servant of Mr Allen.

Mr Adams requests a passport for all these persons to go to Madrid, and from thence to Bilboa, and from thence to Bayonne, in their way to Paris; with liberty at the same time to go directly to Bayonne by the nearest road, without going to Madrid, or to Bilboa; as it is uncertain whether Mr Adams will have the time to gratify his inclination with the sight of those cities.

M. DE SARTINE TO JOHN ADAMS.

Translation.

Versailles, December 31st, 1779.

Sir,

I have received the letter, which you did me the honor to write to me on the 6th of October last.

I was well persuaded, that M. de Chavagne^[55] would endeavor to procure for you everything in his power to render your passage agreeable. This was conformable to the instructions I had given him respecting the intentions of the King.

I learn with pleasure, that, being again charged with an important mission by Congress, you will be able to profit by the frigate Sensible a second time in your voyage to France.

I have the honor to be, &c.

DE SARTINE.

TO THE PRESIDENT OF CONGRESS.

Bilboa, January 16th, 1780.

Sir,

I have the honor to inform Congress, that last night, and not before, I arrived at this place.

At Ferrol and Corunna I was advised by all the friends of America, to undertake a journey by land. The consul of France and M. Lagoanere, a

gentleman who has acted for some time as the American agent at Corunna, obligingly offered me all the assistance in their power, and accordingly used their utmost diligence to procure me the necessary mules and carriages, for the transportation of the small number of persons in company with me, and the small quantity of baggage we found it indispensably necessary to take with us, having left more than two thirds of what we had with us to take the chance of a passage by sea to France. From the 8th of December, when we arrived at Ferrol, to the 26th of the same month, when we set off from Corunna, we were detained by the violent rains, and the impossibility of getting accommodations for travelling. All our beds and provisions we were obliged to carry with us. We travelled through the ancient kingdoms of Galicia, Leon, Old Castile, and Biscay, and although we made the best of our way without loss of time, we found it impossible to go more than eight leagues a day, and sometimes not more than four. The roads and inns are inconvenient to a degree that I should blush to describe, and the pain we suffered in a cold season of the year for want of fire, in a country where there are no chimnies, gave us all such violent colds, that I was under great apprehensions of our being seized with fevers.

As we were so near Madrid, within about forty leagues, I balanced some time in my own mind, whether to go to that fine city, but considering that this would lengthen our journey near a hundred leagues, the severe season of the year, and above all the political situation that I might be in, my country not being yet acknowledged as a sovereign State by any formal act of that Court, it being known, that another gentleman had a commission for that Court, and he being expected soon to arrive, I thought it upon the whole the least hazardous to the public interest to avoid that route.

It may be of some use to my countrymen to transmit a few observations upon the country I have passed through, because it appears to me that a commerce extremely advantageous to both countries may be opened between us and Spain, as soon as our independence shall be acknowledged by that power, at least as soon as we shall obtain the great object of all our wishes, peace.

The province of Galicia is one of the largest in Spain, and said to be one of the best peopled. Corunna is in effect the principal city, although St Jago, in respect to its patron Saint, or more probably to the Archbishop who resides

there, is in name the capital. This province, one of those whereof the ancient Crown of Castile was formed, is washed by the ocean for more than seventy leagues from Ribadeo, on the frontiers of Asturias, to the mouth of the river Minks, which separates it from Portugal. This coast, which is divided by Cape Finisterre, is provided on both sides of the Cape with ports equally safe and convenient, which nature seems to have prepared around this Cape, an object oftentimes so necessary to be made by navigators, both at their departure from Europe, and at their return, as so many asylums both from the apprehensions and the consequences of storms. The most known of these ports are Ribadeo, Ferrol, Corunna, and Camarinas, to the eastward of Cape Finisterre; Corubios, Muros, Pontevidia, and Vigo to the westward; all proper to receive vessels of the first rate, especially Ferrol and Vigo; the first, the most considerable department of the marine of Spain, is embellished with everything that art and the treasures, profusely spent upon it for thirty years past, could add to its happy situation. Vigo, represented to be one of the most beautiful ports in the world, is another department of the marine, more extensive and proper, for such an establishment than Ferrol itself. Besides these ports, there are a multitude of harbors and bays round Cape Finisterre, which afford a safe and convenient shelter to merchant vessels. With all these advantages for foreign commerce, this province has very little but what is passive. It receives from abroad some objects of daily consumption, some of luxury, some of convenience, and some even of the first necessity. At present it offers little for exportation to foreign countries. The Sardiné of its coast, the famous fish which it furnishes to all Spain, the cattle which it fattens for the provision of Madrid, and a few coarse linens which are its only manufacture, and are well esteemed, are the objects of its active commerce, and form its balance with the other provinces. The wine and the grain, the chief productions of its lands, seldom suffice for its consumption, and never go beyond it.

The liberty of commerce with the Windward Islands, granted by the Court within a few years, and the particular establishment of —— opened the ports of that part of the new world to this province; and although without manufactures herself, or any of those productions proper for America, she renders to foreign hands the product of those which she receives from them and carries thither. In this circulation of so many treasures, she enriches herself with parts that she detaches from the whole.

The civil government of this province is formed by a superior tribunal called the *Audience*, to which an appeal lies from all the subaltern jurisdictions, public and private. This Court hears and determines, as sovereign and without appeal, all civil affairs of a less value than a thousand ducats, or three thousand livres. Appeals in those which exceed that value are carried to the Chancery of Valladolid, or to the Council of Castile. Although justice is gratis on the part of the judges, who are paid by the government, it is said to be not less costly, tedious, and vexatious. It may not be useless to observe that the Criminal Chambers, whose decrees extend to the punishment of death, and are executed without any application to the King or any other authority, is composed only of three judges, and these three are the youngest of the whole tribunal, and this order is generally followed in Spain in the composition of the criminal tribunals, although no one pretends to conjecture the motive of so singular a reverse of the rational order of things. The administration of the royal police belongs also to the Audience, and forms the third chamber into which this tribunal is divided.

All the military authority, and the government of the troops in this department, are in the hands of the Captain General of the province. There is not any one under him who has even the title of commandant. But in case of his death or absence, he is succeeded by the general officer, the most ancient in the province. To this title of Captain General is added, commonly, that of President of the Audience, a prerogative which, by uniting in his hands the civil authority to all that of his place, gives a power the most absolute and unlimited.

The inspection general, and all the economy of the affairs of the King in the province, belong to the Intendant. The different branches of the public revenue are all administered by officers appointed by the King, as in the rest of the kingdom, and there are no Farmers-General as in France. Their product is about twenty-six millions of reals, or six millions five hundred thousand livres, the expense of collection being deducted. The expenses of the administration, including the maintenance of three regiments of infantry scattered about in different places, do not exceed two millions five hundred thousand livres. The surplus goes into the dry docks, arsenals, and fund of fortifications, to the support of which this sum is far from being sufficient. Such is in general the government, military, political, and civil of this province, and nearly of all the others, except Biscay, Guipuscoa, and Alaba.

There is not in this province any particular jurisdiction of commerce, but there is a tribunal, under the name of the Judge Considerator of Commerce, which takes cognizance of all their causes, civil and criminal, except the case of contraband. At this day, the Judge Considerator of Strangers is the governor of the province himself, and the appeals from his judgment are carried directly to the Council of War, which is said to be a precious privilege, by the form and brevity of procedure compared with the expensive and insupportable delays of the ordinary jurisdiction.

I cannot but think that if some measures could be taken to convince the Court, that it is their interest to take off the vast duties with which commerce is overloaded in this port, fifteen per cent being to be paid upon all commodities exported and upon all imported, and if the rigid prohibitions of tobacco could be relaxed or repealed, several of the productions of America would find a good market here, and a commerce be opened that would put a new face upon this province, and be profitable to America too. The conveniency of such a number of excellent ports would be a vast advantage, which Bilboa cannot have, as her harbor is neither safe nor convenient, besides its being so much further down the stormy, turbulent Gulf of Biscay; yet Biscay, which is commonly used to comprehend Biscay proper, the principal city of which is Bilboa, although Orduna is the capital; Guipuscoa, the capital of which is St Sebastian, and Alaba, the capital of which is Vittoria, three free provinces, whose laws the Kings of Spain have hitherto been sworn to observe inviolate, have attracted almost the whole of the American trade, because the King has no custom house or officers here, and there are no duties to be paid.

It may seem surprising to hear of free provinces in Spain, but such is the fact, that the high and independent spirit of the people, so essentially different from the other provinces, that a traveller perceives it even in their countenances, their dress, their air, and their ordinary manner of speech, has induced the Spanish nation and her kings to respect the ancient liberties of these people so far, that each monarch at his accession to the throne takes an oath to observe the laws of Biscay. The government here is therefore diametrically opposite to that of Galicia, and the other provinces. The King of Spain has never assumed any higher title than Lord of Biscay. He has no troops of any sort in the lordship, nor is there any standing array, instead of which every man is obliged to serve in the militia. The King has no custom

house officers, nor other revenue officers, nor any other officers whatsoever in the lordship except a corregidor, and lately a commissary of marine. This last is considered as an encroachment and a grievance, and the authority of the corregidor is very small, as there lies an appeal from his judgment to another tribunal, that of the two deputy generals, who are biennially elected by the people. Few of the grandees of Spain have any considerable estates here. The Duke of Medina Coeli, and the Duke of Berwick, have some lands here of no great value. The lands, generally, belong to the inhabitants and possessors, who hold them of no lord but the King of Spain, who is Lord of Biscay.

There is a Board of Trade here, which is annually instituted by the merchants of the place, partly by lot and partly by election, which decides all controversies arising in trade, and all the affairs of strangers. They have never admitted any foreign consul to reside here, although it has been solicited by Holland, England, and France.

It is not at all surprising, that a constitution in its nature so favorable to commerce, should have succeeded.

In travelling through the provinces of Leon and Castile, and observing the numerous flocks of sheep, with the most beautiful fleeces of wool in the world, I could not but wish that some communication might be opened, by which the United States of America might be furnished with this necessary article from this country. There are few of our articles of exportation but might be sent to the Spanish market to advantage, rice, pitch, tar, turpentine, tobacco, wheat, flour, ship timber, masts, yards, bowsprits, and salt fish might be supplied to Spain, and at an advantage, and in return, she might furnish us wine, oil, fruits, some silks, some linens, perhaps, and with any quantity of wool, which is now exported to foreign countries for manufacture, and might as well be sent to us, but above all with silver and gold.

It must be the work of time and a free intercourse between the two nations, and a future negotiation to ripen these hints into a plan that may be beneficial to both. The system of revenue, which it is dangerous and difficult to alter in Spain, as well as in all other countries of Europe, will be the principal objection. I have collected together with some difficulty a few

gazettes, which I have the honor to transmit to Congress, from which all the news may be collected that I have been able to learn. Congress will easily perceive the eagerness with which the belligerent powers are bent on war, without manifesting the least disposition for peace, and most of all, Great Britain, whose ostentatious display of trifling successes, and whose weak exultation shows, that nothing can divert her from her furious course. But she is exhausting and sinking her forces every day, without gaining any lasting or solid advantage, and she has reason to fear, from the combined fleets of France and Spain, under such enterprising, experienced, and approved officers, as d'Estaing and du Chaffault, the entire ruin of her commerce and navy in the course of a campaign or two more.

I have the honor to be, &c.

JOHN ADAMS.

TO THE COUNT DE VERGENNES.

Paris, February 12, 1780.

Sir,

Having obtained permission from your Excellency yesterday, when I did myself the honor to wait on you at Versailles, to write on the subject of my mission, I have now the honor to acquaint you, that on the 29th day of September last the Congress of the United States of America did me the honor to elect me their Plenipotentiary to negotiate a peace with Great Britain, and also to negotiate a treaty of commerce with that kingdom, and Mr Francis Dana, member of Congress, and of the Council of Massachusetts Bay, Secretary to both commissions.

As I was not at Congress when this transaction took place, I am not able to inform your Excellency very particularly of the rise and progress of it. But from conversation with gentlemen at Boston, who were members of

Congress, and from private letters, I learned in general, that it was not the result of any sudden deliberation, or the fruit of any particular event of the war, prosperous or adverse, but a measure that has been more than a year under consideration, and finally agreed to on this principle, that as it was uncertain at what time the belligerent powers might be disposed to treat of peace, which could not be concluded without a Minister from the United States, it would save a great deal of time for this power to have a Minister in Europe fully authorised to treat, and in concert with Ministers from the other powers at war, conclude a peace with great Britain, and a treaty of commerce consistent with that already made with His Most Christian Majesty, and such others as might be made with other powers. I am persuaded it is the intention of my constituents and of all America, and I am sure it is my own determination, to take no steps of consequence in pursuance of my commissions, without consulting his Majesty's Ministers. And as various conjectures have been, and may be made concerning the nature of my appointment and powers, and as it may be expected by some, that I should take some measures for announcing these to the public, or at least to the Court of London, I beg the favor of your Excellency's opinion and advice upon these questions.

1. Whether, in the present state of things, it is prudent in me to acquaint the British Ministry that I am arrived here, and that I shall be ready to treat, whenever the belligerent powers shall be inclined to treat?
2. Whether it is prudent in me to publish in any manner, more than the journals of Congress may have already done, the nature of my mission?
3. Or whether to remain on the reserve, as I have hitherto done since my arrival in Europe?

If any propositions should be made to me directly or indirectly from the British Ministry, I shall not fail to communicate them without loss of time to your Excellency, and I beg the favor of your Excellency, as I am the only person in Europe who has authority to treat of peace, that if any propositions on the part of Great Britain should be made to his Majesty's Ministers, that they may be communicated to me, at least as far as they may relate to the interest of the United States.

Although I am not confined by commissions, nor instructions, nor by any intimations from Congress to reside in any one place in Europe more than another, yet my own inclinations as well as those of the public would be most gratified, and the public service most promoted, by my residing here. I must, therefore, request his Majesty's protection and permission to reside in this kingdom for some time, with or without assuming any public character, as your Excellency may think most advisable.

I have the honor to be, &c.

JOHN ADAMS.

TO M. DE SARTINE.

Paris, February 13th, 1780.

Sir,

It was not until my arrival at Passy, that I had the honor of your Excellency's letter of the 31st of December last.

When his Majesty's intentions of granting me a passage to America were communicated to me, I had little expectation of returning in the same frigate; but the Congress having honored me with a fresh mission to Europe, their Excellencies, the late and present Ministers from his Majesty to the United States, concurred in a proposal to Congress, and a requisition to the commander of the frigate, to afford me a passage in her voyage home, which Captain Chavagne agreed to with particular marks of politeness to me and Mr Dana, and the others who accompanied me.

I have again to express to your Excellency the obligations I am under to the captain, and all the officers of the *Sensible*, for their goodness to me and mine. But it is more particularly my duty to express again my thanks to his Majesty, for this fresh favor, to M. Gerard and the Chevalier de la Luzerne, who procured it for me, and to your Excellency, for your approbation of it.

I have the honor to be, &c.

JOHN ADAMS.

COUNT DE VERGENNES TO JOHN ADAMS.

Translation.

Versailles, February 15th, 1780.

Sir,

I have received the letter, which you did me the honor to write me on the 12th of this month. I think before I reply to the different points on which you consult me, that it is proper to wait for the arrival of M. Gerard, because he is probably the bearer of your instructions, and will certainly be able to make me better acquainted with the nature and extent of your commission. But in the mean time, I am of opinion, that it will be prudent to conceal your eventual character, and above all to take the necessary precautions, that the object of your commission may remain unknown to the Court of London. Besides, Sir, you may be assured, that his Majesty sees you with pleasure in his dominions, that you will constantly enjoy his protection, and the prerogatives of the law of nations. For my own part, Sir, I shall be eager to give you proofs of my confidence, as well as of the sentiments with which I have the honor to be, &c.

DE VERGENNES.

TO THE PRESIDENT OF CONGRESS.

Paris, February 15th, 1780.

Sir,

I have the honor to inform Congress, that on the 9th of this month, and not before, I had the good fortune to arrive in this city, from Ferrol (where I arrived on the 8th of December) with Mr Dana, Mr Thaxter, and the rest of the company in tolerable health, after a journey of near five hundred leagues, in the dead of winter, through bad roads, and worse accommodations of every kind. We lost no time more than was indispensably necessary to restore our health, which was several times affected, and in great danger; yet we were more than twice as long in making the journey by land, as we had been in crossing the Atlantic ocean.

The next morning after our arrival at Paris, Mr Dana and myself went out to Passy, and spent the day with his Excellency Dr Franklin, who did us the honor the next day to accompany us to Versailles, where we had the honor to wait on their Excellencies the Count de Vergennes, M. de Sartine, and the Count Maurepas, with each of whom we had the honor of a short conference, upon the state of public affairs. It is sufficient for me to say in general, that I never heard the French Ministry so frank, so explicit, so decided, as each of these gentlemen was in the course of this conversation, in his declarations to pursue the war with vigor, and to afford effectual aid to the United States. I learned with great satisfaction, that they are sending, under convoy, clothing and arms for fifteen thousand men to America, that seventeen ships of the line were already gone to the West Indies, under M. de Guichen, and that five or six more at least are to follow, in addition to ten or twelve they have already there. I asked permission of the Count de Vergennes to write to him on the subject of my mission, which he cheerfully and politely agreed to. I have accordingly written to his Excellency, and shall forward copies of my letter and his answer, as soon as it may be safe to do it.

The English are to borrow twelve millions this year, and it is said, that the loan is filled up. They have thrown a sop to Ireland, but have not appeased her rage. They give out exactly such threats as they did last year, and every other year, of terrible preparations. But Congress knows perfectly well how these measures have been accomplished. They will not be more fully

executed the next year than the last, and if France and Spain should throw more of their force, especially by sea, into America the next year, America will have no essential injury to fear.

I have learned since my arrival at Paris, with the highest pleasure, the arrival of M. Gerard, Mr Jay, and Mr Carmichael, at Cadiz, for whose safety we had been under great apprehensions. I have now very solid hopes, that a treaty will soon be concluded with Spain, hopes which everything that I saw and heard seemed to favor.

The Alliance frigate, now under the command of Captain Jones, with Captain Cunningham on board, is arrived at Corunna, where she is to be careened, after which she is to return to L'Orient, and from thence to go to America, as I am informed by Dr Franklin.

Mr Auther Lee, and Mr Izard, are still in Paris, under many difficulties in procuring a passage home. Mr William Lee is at Brussels. Mr Izard has been to Holland, to obtain a passage from thence, but unfortunately missed his opportunity and returned disappointed.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, February 17th, 1780.

Sir,

It is necessary, that I should inform Congress in what manner I have been able to procure money to defray my expenses in my long journey, through the greatest part of Spain and France to this city.

On my arrival at Ferrol, I was offered the loan of money by the French consul, M. de Tournelle, who, at the same time told me, there was a gentleman at Corunna, M. Michael Lagoanere, who had heretofore acted as an American agent at that place, and who would be very happy to supply me. On my arrival at Corunna, M. Lagoanere did me the honor of a visit, and offered me every assistance in cash, otherwise telling me at the same time, he had some money in his hands, which he supposed belonged to the United States, being part of the proceeds of some prizes heretofore made by Captain Cunningham. That this money, however, had been attached in his hands by some Spanish merchant, who had commenced a lawsuit against Captain Cunningham. I accordingly received three thousand dollars for myself and Mr Dana, and a letter of credit on the house of Cabarous at Bayonne, for as much more as I should have occasion for. On our arrival at Bayonne, Mr Dana and I received of that house fifty louis d'ors, and a bill of exchange on another house of the same name and family at Bordeaux for the like sums, our expenses having exceeded all our computations at Corunna, as our journey was necessarily much longer than we expected, on account of the uncommon bad weather and bad roads. This bill was paid upon sight. So that, upon the whole, we have received the amount of seventeen thousand four hundred livres, all on account of M. Lagoanere of Corunna. Of this sum, Mr Dana has received the amount of four thousand nine hundred and seventyone livres and fifteen sols, and I have received twelve thousand four hundred and twentyeight livres and five sols, for which sums we desire to be respectively charged in the treasury books of Congress.

As this money is expended, if M. Lagoanere should draw upon us for it, all the authority we have to draw upon his Excellency the Minister here will not enable us to pay it, and if M. Lagoanere should be so happy as to avoid the attachment and leave us to account with Congress for this money, the small sum we are empowered to receive from his Excellency will go a very little way in discharging our expenses. We must therefore pray, that Congress would forward us authority to draw upon his Excellency for the amount of our salaries annually, which, without all doubt, will be paid.

I have the honor to be, with the highest respect, &c.

JOHN ADAMS.

TO THE MARQUIS DE LAFAYETTE.

Paris, February 18th, 1780.

My Dear General,

You know extremely well the skill of our enemies in forging false news, and their artifice in circulating it, not only through the various parts of Europe, but in the United States of America, to keep up the spirits of their friends and depress those of their adversaries. It is their annual custom in the winter to send abroad large cargoes of these lies, and they meet with a success in making them believed, that is really astonishing.

Since my arrival here, I find they have been this winter at their old game again, and have circulated reports here, in Holland, and other parts of Europe, that they have made new contracts with other petty Princes in Germany, by which, together with those made before, they will be able to draw seven thousand fresh troops from that country to serve in America. That by appeasing the troubles in Ireland, they shall be able to avail themselves even of the military associations in that kingdom, by depending upon them for the defence of the country, and to draw near ten thousand men from thence for the service in America. That they have concluded a treaty with the Court of Petersburg, by which Russia is to furnish them with twelve ships of the line and twenty thousand men, which they say is of the more importance, on account of the intimate connexion between Russia and Denmark, as the latter will be likely by this means to be drawn into the war, with their numerous fleet of fortyfive ships of the line. The greatest part of these tales are false. I know very well what is said of Russia is so contrary to all that I have seen and heard of the good understanding between Versailles and Russia, that I have no doubt of its falsehood. But as I am very lately arrived, and, consequently, have not opportunity to examine these reports to the bottom, I beg the favor of you to inform me, with all the exactness possible, how much truth there is in them, if any at all.

You are very sensible that it is of the utmost importance, that Congress should have the exactest information of these things, and that you and I

cannot render a more useful service to our country at present, than by collecting such intelligence with precision, and transmitting it without delay. Knowing the pleasure you take in serving the United States in every way in your power, I thought I could beg this favor of you with propriety, and that you would believe me always your friend and servant,

JOHN ADAMS.

**TO M. GENET, FIRST SECRETARY FOR THE
DEPARTMENT OF FOREIGN AFFAIRS.**

Paris, February 18th, 1780.

Dear Sir,

Whether it is, that the art of political lying is better understood in England than in any other country, or whether it is more practised there than elsewhere, or whether it is accidental that they have more success in making their fictions gain credit in the world, I know not. But it is certain, that every winter since the commencement of the present war with America, and indeed for some years before, they sent out large quantities of this manufacture over all Europe, and throughout all America, and what is astonishing is, that they should still find numbers in every country ready to take them off their hands.

Since my arrival in this city, I find they have been this winter at their old trade, and have spread reports here and in Holland, and in various other parts of Europe, and no doubt they have found means to propagate them in America too, tending to keep up the spirits of their friends, and to sink those of their opponents. Such as, that they have made new contracts with several German Princes, by which they are to obtain seven thousand men to serve in America; that they have so skilfully appeased the troubles in Ireland, that they shall ever be able to take advantage of the military associations there, by depending upon them for the defence of the kingdom, while they draw

from thence ten thousand regular troops for the service in America; that they have even concluded a treaty with Russia, by which the Empress is to furnish them with twelve ships of the line and twenty thousand men, as some say, and twenty ship of the line and twelve thousand men as others relate. This they say is of the greater moment, because of an intimate connexion, I know not of what nature it is, between Russia and Denmark, by which the latter will be likely to be drawn into the war against the House of Bourbon and America; and Denmark, they say, has fortyfive ships of the line.

I know very well that the greatest part of these reports is false; and particularly what is said of Russia is so contrary to all those reports, which I have heard for these twelve months past of the harmony between Versailles and Petersburg, that I give no credit to it at all, but I find that all these reports make impressions on some minds, and among the rest some Americans.

I therefore beg the favor of you to inform me of the exact truth in all these matters, that I may take the earliest opportunity of transmitting the intelligence to Congress, where it is of importance it should be known.

I was much mortified when I was at Versailles the other day, that I could not have the honor of paying my respects to you, but I was so connected with other gentlemen, who were obliged to return to dinner, that I could not; but I shall take the first opportunity I can get to wait on you, and assure you that I am, with great respect, &c.

JOHN ADAMS.

M. DE LAFAYETTE TO JOHN ADAMS.

Paris, February 19th, 1780.

Dear Sir,

As I came but this morning from Versailles, it was not in my power sooner to answer the letter you have honored me with, and this duty I now perform with the more pleasure, as it is of some importance to the interests of America. Since the first day, when I had the happiness of making myself and of being considered in the world as an American, I have always observed, that among the many ways of attacking our liberties, and among the most ungenerous ones, misrepresentations have ever been the first weapons on which the British nation has the most depended.

I am glad it is in my power generally to assure you, that the many reports propagated by them and alluded to in your letter are not founded upon truth. New contracts with petty princes in Germany have not, I believe, taken place, and if any such merchandise were sent to America, it would at most consist of a few recruits. The troubles in Ireland, if there is the least common sense among the first patriots of that country, are not I hope at an end, and it seems they now begin to raise our expectations. The Russian troops, so much talked of in their gazettes, I take to be mere recruits for those thirty thousand Russians, that Mr Rivington had three years ago ordered to embark for America.

Those intelligences, my dear Sir, must be counteracted by letters to our friends in America. But as the respect, which we owe to the free citizens of the United States, makes it a point of duty never to deceive them, and as the most candid frankness must ever distinguish our side of the question from the course of tyranny and falsehood, I intend paying tomorrow morning a visit to the Minister of Foreign Affairs, and from him get such minute intelligence as shall answer your purpose.

With the most sincere regard, I have the honor to be, &c.

LAFAYETTE.

P. S. On my return from Versailles, my dear Sir, where I will settle the affairs of arms that I have undertaken, I will impart to you a project privately relating to me, that is not inconsistent with my sentiments for our country, America.

L.

TO THE PRESIDENT OF CONGRESS.

Paris, February 19th, 1780.

Sir,

Enclosed are copies of former letters to Congress, and I shall continue to transmit copies, until I learn that some have arrived, for which reason I must request the favor that his Excellency the President, or some committee, may be desired to acknowledge the receipt of letters, so that I may know as soon as may be, what letters have arrived, and which have been less fortunate.

The art of making and spreading false news to answer political purposes is not peculiar to Great Britain, but yet she seems to possess this art, and the talent of giving to her fictions the colors of probability beyond other nations; at least, she seems to have more success in making her impostures believed than any other. It is her annual practice in the winter to fabricate and export large quantities of this merchandise to all parts of Europe and America, and she finds more customers to take them off her hands than she ought, considering how illicit the traffic is.

This winter her emissaries have been more assiduous than ever in propagating reports, that they have entered into new engagements with several other petty principalities in Germany, by which they shall hire seven thousand men, for the service of the next campaign in America. That by compromising with Ireland, they shall be able to take advantage even of the military associations in that kingdom, and draw from them a large number of regular troops for the service in America, depending on the volunteer militia, or associators for the defence of the country; that they have made a treaty with Russia, whereby that power has engaged to furnish them with twelve ships of the line and twenty thousand troops, as some say, and twenty ships of the line and twelve thousand troops, according to others. This alliance they say too is of the more consequence, on account of some connexion between Russia and Denmark, who, it is insinuated, will follow

Russia into the war, and Denmark they add has fortyfive ships of the line, not manned it is true, but England they say can man them.

These tales one would think are so extravagant and absurd, that they would not find a believer in the world. Yet there are persons, who believe them in all nations of Europe, particularly in Holland, and there is no doubt the same song will be sung in America, and many will listen to it. There is nothing further from the truth; they will find the utmost difficulty to draw from Germany troops enough to repair the breaches in the German troops made in America the last year; the same with regard to Ireland. And as to what is said of Russia, there is not even a color of truth in it, but on the contrary, the same good understanding continues between Versailles and Petersburg, which subsisted last winter, spring, and summer. As to Denmark, I have no reason to think that she is disposed to assist Great Britain, but on the contrary that she has armed to defend herself at sea against Great Britain; but if it were otherwise, to what purpose would her ships of the line be unmanned, when Great Britain cannot man the ships of the line she already has.

France seems determined to pursue the naval war with vigor and decision in the American seas. M. de Guichen sailed the beginning of January with seventeen or eighteen ships of the line. Seven more are now preparing at Brest with all possible expedition, supposed to be for America. Those, if they all happily join the twelve ships left there by the Count d'Estaing, will make a fleet of six and thirty ships of the line. And the Court seems determined to maintain the superiority in the American seas. This will give scope to our privateers to weaken and distress the enemies of their country, while they are enriching themselves.

There is no news of Admiral Rodney; from whence I conclude he is gone to the West Indies.

The English have derived such a flush of spirits from their late successes, which are mostly however of the negative kind, that they talk in a style very different from that of peace. There are two reflections, which the English cannot bear, one is that of losing the domination of the colonies as indispensable to the support of their naval superiority over France and Spain, or either of them, in possession of a powerful fleet at the peace.

Their maxim is to make themselves terrible at sea to all nations, and they are convinced that if they make a peace leaving America independent, and France and Spain powerful at sea, they shall never again be terrible to any maritime power. These reasons convince me, that Great Britain will hazard all rather than make peace at present. Thompson's "Britannia," which expresses the feelings as well as the sentiments of every Briton, is so much to the present purpose, that I hope I shall be pardoned for referring to it, even in a letter to Congress.

I have the honor to be, with the highest esteem, &c.

JOHN ADAMS.

TO THE COUNT DE VERGENNES.

Paris, February 19th, 1780.

Sir,

I have received the letter, which your Excellency did me the honor to write me on the 15th of this month, and lest I should not have explained sufficiently in my letter of the 12th the nature and extent of my commissions, I have now the honor to enclose attested copies of both, as well as of that to Mr Dana.

With regard to my instructions, I presume your Excellency will not judge it proper, that I should communicate them any further than to assure you, as I do in the fullest manner, that they contain nothing inconsistent with the letter or spirit of the treaty between his Majesty and the United States, or the most perfect friendship between France and America, but, on the contrary, the clearest orders to cultivate both. I have hitherto conducted according to your advice, having never communicated to any person since my arrival in Europe the nature of my mission, excepting to your Excellency and Dr Franklin, to whom it was indeed communicated by a

resolution of Congress, and to him in confidence. I shall continue to conceal, as far as may depend upon me, my actual character, but I ought to observe to your Excellency, that my appointment was as notorious in America as that of Mr Jay, or Dr Franklin, before my departure. So it is probably already known to the Court of London, although they have not regular evidence of it. I mention this, lest some persons might charge me with publishing what I certainly did not publish.

I thank your Excellency for the assurances of his Majesty's protection and of your confidence, which it shall be my study and endeavor at all times to deserve.

I have the honor to be, &c.

JOHN ADAMS.

M. GENET TO JOHN ADAMS.

Translation.

Versailles, February 20th, 1780.

Sir,

You have been afraid to trouble the Count de Vergennes, and you have done me the honor of addressing yourself to me, in order to know what you are to think of several rumors, which the English have endeavored to spread. I am infinitely flattered by the mark of confidence, which you have been pleased to give me, but I have thought myself obliged to lay the letter before the Minister. He has directed me to assure you, that on every occasion he will be very happy that you should address yourself directly to him, and that you will always find him ready to satisfy your inquiries.

He has remarked, as well as yourself, the address which our enemies use to circulate false reports, and to make Europe believe that the Americans are making advances to them, in order to treat of an arrangement with them. The Count de Vergennes is likewise persuaded of the contrary, as he is assured that no new treaty has been negotiated with the Princes of Germany, and that no levies are making there, but for the sake of filling up the old ones. He does not think that the news of the treaty with Russia, nor that which relates to the Court of Denmark, are better founded. He told me that I might do myself the honor to write you, that all those rumors are false, and that you run no risk in presenting them as such to the persons, on whom you think they have made some impression, both in Europe and America.

I am extremely anxious to have the honor to see you, and congratulate you on your happy return. As I but seldom go to Paris, I wish your business may permit you to do me the honor to call at my house and accept of a family dinner.

I have the honor to be, &c.

GENET.

TO THE PRESIDENT OF CONGRESS.

Paris, February 20th, 1780.

Sir,

Since my arrival in Europe, I have had the mortification to see in the public papers a series of little successes, which our enemies have had in the prosecution of the war. The first was a very exaggerated account in the English Court Gazette, of their successes against the Spaniards in South America. The next was the history of the repulse of General Lincoln and the Count d'Estaing at Savannah, and the raising of the siege at that post. These were soon followed by the capture of the Spanish fleet of transport ships by

Rodney's squadron, and the advantage gained by that Admiral over the Spanish ships of war, after a most gallant resistance, however, off Gibraltar.

These small triumphs, although chiefly of the defensive and negative kind, and a poor compensation for the blood and the millions they are annually wasting, are, however, sufficient to cheer the spirits of the British populace, and to banish from the minds of the Ministry all thoughts of peace upon reasonable terms; for the English in the present war act upon a maxim diametrically opposite to that of the Romans, and never think of peace upon any event fortunate to them, but are anxious for it under every great adversity.

A report of my appointment having also been carried to England by the cartels from Boston, and being spread in Europe by various other ways, by passengers in the Committee, by French passengers in the *Sensible*, of whom there were a great number who had heard of it in all companies in America, and by many private letters, and the English ministerial writers having made use of this as evidence of a drooping spirit in America in order to favor their loan of money, I thought it my best policy to communicate my appointment and powers to the French Court, and ask their advice, as our good allies, how to proceed in the present emergency. I accordingly wrote to his Excellency, the Count de Vergennes, the letter of the 12th of February, a copy of which is enclosed; and received his answer of the 15th, a copy of which is enclosed; to which I replied in a letter of the 19th, a copy of which is also enclosed. When I shall receive his Excellency's answer, I shall do myself the honor to enclose that.

If there is anything in these letters of mine, which is not conformable to the views and sentiments of Congress, I wish to be instructed in it, or if Congress should not concur with his Excellency the Count, I shall obey their orders with the utmost punctuality and alacrity. I have ever understood, that Congress were first advised to the measure of appointing a Minister to negotiate peace, by the French Minister then at Philadelphia, in the name of the Count de Vergennes. However this may have been, it cannot be improper to have some one in Europe empowered to think and treat of peace, which some time or other must come.

Since my last, which was of yesterday's date, I have had opportunity to make more particular inquiries concerning the pretended treaty with Russia, and am informed, that the English Ministry did, not long since, make a formal application by their Ambassador to the Empress of Russia for a body of troops and a number of ships; but that the application was opposed with great spirit and ability in the Russian Council, particularly by the Minister for foreign affairs, and rejected in council with great unanimity, and that the harmony between Versailles and Petersburg remains as perfect as when I left France.

I have the honor to be, with very great respect, &c.

JOHN ADAMS.

**TO JOHN JAY, MINISTER PLENIPOTENTIARY AT
MADRID.**

Paris, February 22d, 1780.

Dear Sir,

I most sincerely congratulate you on your happy arrival in Europe, which must be the more agreeable to you, for the terrible voyages you have had. Every good American in Europe, I believe, suffered a great anxiety from the length of time that passed between the day when it was known, that the Confederacy sailed, and the time when the news arrived of your being in Cadiz. I, too, have had my hairbreadth escapes, and, after my arrival, a very tedious journey in the worst season of the year by land. Happy, however, shall we be, if all our hazards and fatigues should contribute to lay the foundation of a free and prosperous people.

I hope no accident or disagreeable circumstance has happened to your family, to whom I shall be obliged to you to present my respects. From what I saw and heard in Spain, from the strong assurances I received of the

good will of the Court and nation, and from the great attention and respect, that were paid me by officers of government of the highest rank in the provinces through which I passed, I am persuaded you will meet with the most distinguished reception, and I hope will soon have the honor and satisfaction of concluding a treaty with Spain. You will have the advantage of more frequent and speedy intelligence from home, than we can have here, at least you will have it in your power. There are vessels oftener arriving from America at Bilboa and Cadiz, I think, than in France. Many of these vessels come from Boston and Newburyport, perhaps the most of them. So that by directing your correspondents to send their letters that way, you will have them much sooner than we can commonly obtain them; and by transmitting yours to Messrs Gardoqui & Co. at Bilboa, and Mr Montgomery, or some other, at Cadiz, your despatches will go more speedily, and more safely than ours, for we find it almost impossible to get a letter across the Bay of Biscay from France in a merchant vessel, there are so many privateers in the route; the danger of whom is avoided chiefly by vessels from Bilboa keeping near the coast, and running into harbor in case of danger, and wholly by those from Cadiz. You will excuse my mentioning to you this channel of intelligence, which might not possibly have occurred to you, and my wishing to make some advantage of it to myself, by asking the favor of your correspondence, and that you will impart to me the advices you may receive through it.

We have nothing new here at present, but what you have had before. Pray what think you of peace? It seems to be the will of Heaven, that the English should have success enough to lead them on to final destruction. They are quite intoxicated with their late advantages, although a poor compensation for what they cost.

My respects to Mr Carmichael, and believe me to be, with respect and esteem, Sir, your most obedient humble servant,

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, February 23d, 1780.

Sir,

Having been informed this morning by the Marquis de Lafayette, of another opportunity for America, I have the honor to enclose to Congress triplicates of former letters, and copies of some other letters, which I have written and received lately. I have also packed up all the newspapers and pamphlets I can obtain. The *Mercure de France* is a weekly publication of very ancient origin, and is become lately very interesting to America, because those political intelligences and speculations, which were formerly published in another pamphlet, under the title of *Affaires de l'Angleterre et de l'Amérique* are now published in this, the other having been dropped. The *Courrier de l'Europe* has the most extensive circulation of any gazette, although supposed to be rather too much under the influence of the British Ministry sometimes; the *Gazette de France* is published by authority here, and has a great reputation for integrity; in the *Gazette de la Hague* the English find means to publish many false reports. These papers and pamphlets, together with one or two English papers, for which I shall subscribe as soon as possible, I shall do myself the honor to transmit to Congress constantly as they come out. From these, Congress will be able to collect from time to time all the public news of Europe.

I have the honor to be, with the greatest respect, &c.

JOHN ADAMS.

TO SAMUEL ADAMS.

Paris, February 23d, 1780.

Dear Sir,

You will see by the public papers, that your Committee of Correspondence is making greater progress in the world, and doing greater things in the political world, than the electrical rod ever did in the physical; Ireland and England have adopted it, but mean plagiaries as they are, they do not acknowledge who was the inventor of it. Mr Lee and Mr Izard will go with this letter in the Alliance, and probably go to Boston. They will be able to inform you of everything of a public nature much better than I can do, as I have scarcely had opportunity to look about me as yet. They will give you few hopes of peace, at least very speedily.

The associations of counties and committees of correspondence in England, are very ominous to our old acquaintances the refugees, as they attack unmerited pensions in the first place. But they must do greater things than distressing these gentry; they must necessarily produce great commotions in the nation. The speeches at these meetings go great lengths, some of them openly justifying and applauding the Americans, and others even applauding France and Spain for stepping in to our assistance. The Court here seems determined more than ever to pursue the war with vigor, especially by sea, and above all in the American seas. They have already sent seventeen ships of the line under M. de Guichen, to reinforce M. de la Motte Piquet, and seven others are preparing at Brest. They are sending out clothing and arms for fifteen thousand men for our army, and seem confident, that the next campaign will be better than the last. I hope the spirit of privateering among us will increase, because I think this is the way in which we can do the most service to the common cause. I hope you will be so good as to inform me of what passes, particularly what progress the Convention makes in the constitution.^[56] I assure you it is more comfortable making constitutions in the dead of winter at Cambridge or Boston, than sailing in a leaky ship, or climbing on foot, or upon mules, over the mountains of Galicia, and the Pyrenees.

Believe me your friend and servant,

JOHN ADAMS.

TO GENERAL JAMES WARREN.

Paris, February 23d, 1780.

Dear Sir,

The French Court seems to be now every day more and more convinced of the good policy, and indeed the necessity of prosecuting the war with vigor in the American seas. They have been, and are making great preparations accordingly, and are determined to maintain a clear superiority.

M. de la Motte Piquet has with him the Hannibal, the Magnifique, the Diadème, the Dauphin Royal, the Artisane, the Réfléchi, and the Vengeur, and if M. de Grace has joined him from the Chesapeake Bay, the Robuste, the Fendant, and the Sphinx; in all ten ships of the line. M. de Guichen has gone to join him with the Couronne, eighty guns, the Triumphant, eighty; the Palmier, the Victoire, the Destin, the Conquérant, the Citoyen, the Intrépide, the Hercule, and the Souverain, all of seventyfour; the Jason, the Actionnaire, the Caton, the Julien, the Solitaire, the St Michael, and the Triton, all of sixtyfour; the frigates, the Medea, Courageuse, Gentille, and the Charmante, all of thirtytwo. He had above a hundred sail of vessels under his convoy, and the regiment of Touraine and Enghien, of more than thirteen hundred men each, and the second battalions of Royal Corntois, and of Walsh, of seven hundred men each, making in the whole more than four thousand troops. Besides these, there are seven more preparing at Brest to sail.

M. Gerard, Mr Jay, and Mr Carmichael are arrived at Cadiz in a French frigate, the Confederacy having been dismasted, and driven to Martinique. The Alliance carries this with Mr Lee and Mr Izard, who will no doubt be treated with all respect at Boston.

Notwithstanding the commotions in England and Ireland, the success of Provost at Savannah, and of Rodney off Gibraltar, and even the silly story of Omoa, in South America, is enough to embolden the Ministry to go on with a debt of two hundred millions, already contracted, to borrow twelve or fourteen millions a year, in the beginning of a war with France and Spain, each having a greater navy than they ever had, each discovering a greater fighting spirit than they ever did before, and obliging the English to

purchase every advantage at a dear rate. The premiums and bounties, that they are obliged to give to raise men, both for the service by sea and land, and the interest of money they borrow, are greater than were ever given in any former wars, even in the last year of the last war. This cannot always last, nor indeed long. Yet I do not expect to see peace very soon.

Pray write me as often as possible, and send the newspapers to me.

Your friend and servant,

JOHN ADAMS.

COUNT DE VERGENNES TO JOHN ADAMS.

Translation.

Versailles, February 24th, 1780.

Sir,

I have received the letter, which you have done me the honor to write me the 19th of this month. Your full powers, of which you have been pleased to send me a copy, are perfectly conformable to what M. Gerard has written to me about them, and they leave us nothing to wish for, as to the form or matter. I think there will be no inconveniency in informing the public of the principal object of your mission, I mean the future pacification. It will be announced in the Gazette of France, when it will mention your presentation to the King and royal family, and you will be at liberty to give your eventual character a greater publicity, by having it published in the Dutch papers. I could only wish, that you would be so kind as to communicate the article to me before you transmit it. With regard to the full powers, which authorise you to negotiate a treaty of commerce with the Court of London, I think it will be prudent not to communicate them to any body whatever, and to take every necessary precaution, that the British Ministry may not have a

premature knowledge of them. You will no doubt easily feel the motives, which induce me to advise you to take this precaution, and it would be needless to explain them.

With regard to your instructions, Sir, I am satisfied that they have for their certain and invariable basis, the treaties subsisting between the King and the United States. M. Gerard has assured the King of it, in the most positive manner, and his Majesty does more justice to the uprightness of Congress, and to the stability of the sentiments which they have hitherto manifested, than to have ever entertained, or to entertain, the least doubt on this subject. This way of thinking will convince you, Sir, that we have no need of seeing your instructions, to appreciate properly the principles and dispositions of Congress towards Great Britain.

I have the honor to be, &c.

DE VERGENNES.

TO THE COUNT DE VERGENNES.

Paris, February 25th, 1780.

Sir,

I had last evening the honor of your Excellency's letter of yesterday's date, and shall conform myself to your advice.

I shall esteem myself highly honored by a presentation to the King and royal family, and shall wait your Excellency's directions concerning the time of it, and shall not think myself at liberty to make any publication of my powers to treat of peace, until it shall have been announced in the Gazette. After which, I shall transmit to your Excellency any paragraph, which may be thought proper to publish in the gazettes of Holland, and take your advice upon it, before it is sent. My other powers shall be concealed,

according to your advice, and I shall have the honor to pay my respects to your Excellency very soon at Versailles.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, February 25th, 1780.

Sir,

Since my letter of the 20th, I have received another letter from his Excellency the Count de Vergennes, dated the 24th of February, which I answered this day. Copies of both letters are enclosed.

I have also the honor to enclose a gazette, and an application from Mr Comyn, of Marseilles, to be a consul for the ports of Provence and Languedoc. I know nothing of this gentleman but what he says of himself.

By the enclosed gazette, as well as by many others, Congress will see of what wonderful efficacy in pulling down tyranny a committee of correspondence is likely to be. Ireland has done great things by means of it, England is attempting great things with it, after the example of the Americans, who invented it, and first taught its use. Yet all does not seem to produce the proper gratitude on the minds of the English towards their benefactors. However, the glory of the invention is as certainly ours, as that of electrical rods, Hadley's quadrant, or inoculation for the smallpox.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, February 27th, 1780.

Sir,

There are so many gentlemen of rank going out to America, that there can be no doubt Congress will be fully informed of the state of public affairs.

Mr Lee, Mr Izard, the Marquis de Lafayette, Mr Wharton, and many others, are going by different vessels. Besides these, Monsieur de l'Etombe, who is appointed Consul General of France for the northern district of America, as M. Holker for the middle, (I have not yet learned who for the southern,) will go soon.

There is an armament preparing with the greatest expedition at Brest, which is to be commanded by M. de Ternay, and to consist of eight or ten ships of the line and frigates, six of the line and several frigates, as it is said, (perhaps it is not yet certain nor determined exactly how many of either,) with several thousand men; all numbers are mentioned from six to ten thousand men, under the General officers de Rochambeau and Jaucourt. Whether this force is destined to the continent or the West Indies, time will discover; at present, it ought not to be known. On the other hand, I see by a paragraph in a London paper of the 16th of this month, that the Thunderer, Torbay, Ramilies, Royal Oak, Triumph, and Egmont, are ordered for the West Indies, under Captain Walsingham; the Southampton, St Albans, and Winchelsea, which were talked of to go with him, are found unfit for service, and in so bad a condition as to be ordered to be paid off. Thus the French are likely to be drawn into the American seas in sufficient force, where they have great advantages in carrying on the war. It is much to be wished, that the Spaniards could be drawn into the same field of battle, for Gibraltar must be taken in America if ever.

There are some persons, however, who think that the English will avenge the French, the Spaniards, and above all the Americans, upon one another, and it is certain that parties in England are working up to a crisis. The petitions of the counties, their numerous committees of correspondence, their hints of associations, have most certainly alarmed the King and his Ministers to so great a degree, that for some time their conduct was

equivocal, giving hopes at times to the people, that the Crown would favor the desired reformation in the expenditure of money. But upon the news of Rodney's successes they grew bolder, and determined to exert all the authority of the Crown to suppress the meetings of the people. Accordingly the cry of faction, sedition, and rebellion, was set up in Parliament by the majority, and the King was advised to dismiss those lieutenants of counties, who had favored the meetings of the people, advice which he has certainly taken. This is a decisive measure. It will either discourage and suppress those meetings, petitions, correspondence, and associations altogether, or it will give them greater force.

By a debate in the House of Commons on the 14th of this month, one would think that the nation was nearly on the brink of a civil war. Yet, I confess, I cannot think that there are any characters at present in whom the nation have sufficient confidence, to venture themselves any lengths under their guidance, and I believe that this spirited conduct of the King will defeat the measures of the counties, unless, indeed, in the course of the next campaign, his arms, especially by sea, should meet with any signal defeat, which would perhaps reanimate the people. But supposing the people go on and succeed so far as to effect a change in the Ministry, the question is, whether this would be an advantage to us or our allies? I am myself very far from being convinced that it would.

There are none of the principal leaders of the people, who avow any fixed principle, that we can depend upon. None that avow a design of acknowledging our independence, or even of making peace.

By letters, which I have received from Brussels and Holland, since my arrival, I am told that the late desperate step of the English in seizing the Dutch ships has made a great change in the minds of the people there, and the government too in our favor; even the Prince declares he has been deceived by the English, and that he will promote unlimited convoys; that an American Minister is much wished for, who, although he might not yet be publicly received, would be able to do as much good as if he was; that money might be borrowed there by such a Minister directly sent by Congress, applying directly to solid Dutch houses. I hope every hour to hear of Mr Laurens' arrival.

I have subscribed for the English papers, but have not yet received any, which I am sorry for, because I can get none to enclose. As fast as they come to me I will send them. I have the honor to enclose another *Mercure de France*.

I have the honor to be, &c.

JOHN ADAMS.

TO DR COOPER OF BOSTON.

Paris, February 28th, 1780.

Dear Sir,

This will be delivered to you by the Marquis, your friend. Your grandson is well and very contented. He has seen the world, to be sure, such a part of it, that none of the rest can ever be superlatively disagreeable to him hereafter. [\[57\]](#)

Instead of wishing and hoping for peace, my dear countrymen must qualify themselves for war, and learn the value of liberty by the dearness of its purchase. The foundations of lasting prosperity are laid in great military talents and virtues. Every sigh for peace, until it can be obtained with honor, is unmanly. If our enemies can be obstinate and desperate in a wicked and disgraceful cause, surely we can be determined and persevering in the most just, the most honorable, and the most glorious cause, that was ever undertaken by men.

I am, with great affection, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, February 29th, 1780.

Sir,

I have this moment received a letter from M. Genet, who is one of the first Secretaries in the office of Foreign Affairs, and who has the care of publishing all things relative to America, and has already translated the constitutions of New York, New Jersey, Pennsylvania, Maryland, Virginia, and South Carolina, requesting me to assist him in procuring those of Georgia, North Carolina, Connecticut, Rhode Island, Massachusetts Bay, and New Hampshire.

There is so great a curiosity through all Europe to see our new constitutions, and those already published in the languages of Europe have done us so much honor, that I thought I should be excusable in making a direct request to Congress for their assistance in procuring those, which M. Genet still desires.

Those of Rhode Island and Connecticut, being according to their ancient charters, M. Genet has already; those of Massachusetts and New Hampshire, whenever they shall be formed and established, will be easily obtained. But those of North Carolina and Georgia, I could not obtain when I was at Boston, and these are therefore the ones which M. Genet wants at present, and which I have ventured to beg the aid of Congress to procure.

I have the honor to enclose the gazette of the day, in which Congress will see the news from England and Holland.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 3d, 1780.

Sir,

The news of the day is, that Rodney has gone with his whole fleet to the West Indies, that Du Chaffault is to command the French fleet in America, and the Count d'Estaing in the channel; that a large force is to go to America, either to the Islands or to the Continent, both of ships and troops in two divisions; that the last letters from Holland breathe a spirit somewhat warlike, and indeed the English have treated them with so much indignity and contempt as well as injustice, that one would think it was not always to be borne.

It is not agreeable to my principles, nor to my feelings, to injure the character even of an enemy at war; but it is often possible to draw important inferences from the true known character of a commander of the forces of an enemy. It is therefore my duty to mention, that Rodney is reported to be a man of dissipation and prodigality, a great spendthrift, and virulent against us; that he has often declared, that if he had a command in America, his mode to humiliate and subdue us should be, to burn every town and every house, that he could come at upon the seacoast.

That such a plan of military execution will be sooner or later adopted by the Court of London, I have not the least doubt, from their known principles, tempers, characters, and past conduct, provided it should ever be in their power to attempt it in the whole or in part. And if this is the disposition and system of their Admiral Rodney, the appointment of him raises a presumption, that they have given him express orders to this purpose at this time. An uncommon coincidence of favorable circumstances has thrown the whole Caracas fleet into his hands, and given a victory, although pretty dearly paid for, over a much inferior fleet of Spanish men of war. If he is therefore a man of such levity as is represented, and so malicious against us, and has such malignant orders from his Court, and goes to America flushed and giddy with success, we may expect he will do mischief if he can, and we ought to be upon our guard.

My business is peace, but I think of nothing but war. While our enemies think of nothing else, we ought not to think more of peace than to be ready to treat of it, as soon as it shall be put into the hearts of our foes to be

willing for it. Americans must be soldiers, they must war by sea and land, they have no other security.

I have the honor to enclose the gazette of the day, and to be with much respect, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 4th, 1780.

Sir,

I have the honor to enclose the *Mercure de France* of this day, which contains among other interesting intelligence Admiral Rodney's narration, after his good fortune on the 8th of January last in meeting the Spanish Caracas fleet, which sailed from St Sebastian the 1st of January, under convoy of seven armed vessels belonging to the Caracas company. The Guipuscoa, of sixtyfour guns, and five hundred and fifty men; the San Carlos, of thirtytwo guns, and two hundred men; the San Raphael, of thirty guns, and one hundred and fiftyfive men; the Santa Theresa, of twentyeight guns, and one hundred and fifty men; the Corbetta San Firmin, of sixteen guns, and sixty men; these armed vessels were all taken, and the Guipuscoa was christened Prince William, in honor of his royal highness, in whose presence she was taken and given to one of the English captains, as a better ship than his former one, the Bienfaisant.

The merchant vessels under this convoy are the Nostra Senora de l'Ores, the San Francisco, the Conception, the San Nicholas, the Jeronimo, the Divina Providentia, the San Gibilan, the San Pactora, the San Lauren, the Bellona, and the Esperanza, all loaded with flour and corn. The Cervidada de Merica, loaded with provisions for the navy, the Amisted, the San Michael, loaded with anchors and cables, and the Bilboa, loaded with tobacco. Those

with provisions for the navy, and that with tobacco, were sent to England under convoy of the America and the Pearl, and those with corn and flour were carried into Gibraltar.

This fleet seems to have been met at sea by the Admiral by perfect accident, of which the English do not appear to have had the least hope, nor the Spaniards the smallest fear. It must therefore be allowed to be one instance of the good fortune of the English Ministry and their Admiral, or rather as it is reported, of the King and his Admiral.

Their good fortune, however, did not end here, for eight days afterwards, on the 16th of January, they fell in with Don Juan de Langura, with eleven vessels of the line, who being so much inferior, could not hope for a victory. He fought the English, however, upon the retreat with so much bravery, skill, and success, that they were able to take only three of his ships. The Phoenix, of eighty guns, and the Princessa, and Diligent, of seventyfour, were taken, and the San Domingo blown up. The S. Genero, the S. Justo, and the Monarcha, having separated before the battle, and the S. Julian, the S. Eugenio, the S. Augustine, and S. Lorenzo, having since arrived in Cadiz, although in a bad condition.

Thus the English have been permitted, against probabilities and appearances, to throw succor into Gibraltar, and perhaps Mahon, to give a little fresh confidence to the Ministry, and make a few bonfires for the populace, but have added very little to their riches or their power. In the meantime, Rodney must have been retarded by these lucky accidents, in his course to the West Indies, and given opportunity to the Count de Guichen to arrive before him in the West Indies, and prevent the reconquest of the Grenadas, and perhaps do more, but of this Congress will be informed sooner than I.

These successes have not suppressed the independent spirit of Ireland, which is going on in a regular train, deliberating upon bills for the independence of the judges, the habeas corpus, the restriction, of subsidies, and discipline of their troops, and they seem determined to throw off all the authority of the British Parliament; nor that of the Committees of Correspondence and petitioners in the counties of England, which threaten associations, and, as the Ministry themselves say, sedition, faction, tumults,

and rebellion; nor provided a fleet for the British channel for the ensuing summer, nor assuaged the serious resentment of Holland, for the piracies committed in violation of the faith of treaties, as well as the laws of nature and nations, upon their commerce. As it is most interesting to us to know the forces to be employed in America, by which word I comprehend the West India Islands, as well as the coasts of the Continent, all these being connected together in such a manner as to make but one whole, I beg leave to lay before Congress in one view, the French force that is intended to be in that service.

There are actually at Cape François, the *Touant* of eightyfour guns, the *Robuste*, and the *Fendant*, of seventyfour, the *Sphinx* of sixtyfour, and the *Amphion* of fifty, in all five. At Martinique, the *Admirable*, the *Magnifique*, the *Dauphin Royal*, and the *Diadème*, of seventyfour; the *Réfléchi*, the *Vengeur*, the *Artisane*, of sixtyfour, and the *Fiers* of fifty. In all eight, making in the whole thirteen ships of the line, reckoning as such two fiftys. If the Count de Guichen should happily arrive, he has seventeen, which will amount to the number of thirty, besides frigates. Six others are preparing at Brest with all possible expedition, under the command of M. de Ternay. The *Duc de Burgone* of eighty guns, the *Neptune* of seventyfour, M. Destouches; the *Magnanime* of seventyfour, M. de Vaudreuil; the *Eveille* of sixtyfour, M. de Trobuiand; the *Jason* of sixtyfour, M. de Marigny. With this fleet the troops are to be embarked, and there are many conjectures, that it is intended for North America. The *Languedoc*, the *Cæsar*, the *Provence*, and the *Fantasque*, of the fleet of the Count d'Estaing, are careened and refitted, and the *Royal Louis* of one hundred and ten guns, the *Northumberland*, and the *Astrea* are to be launched immediately.

In the course of my peregrinations, at Brest, L'Orient, and Ferrol, I have had an opportunity to see most of these ships, and to be on board many of them, and one would think there was force enough to protect us, and quiet our fears, but the battle is not always to the strong, and we must wait patiently for time to decide events.

I have the honor to be, &c.

JOHN ADAMS.

TO SAMUEL ADAMS.

Paris, March 4th, 1780.

Dear Sir,

This will be delivered to you by Mr Izard, who goes out in the Alliance with Mr Lee, Mr Wharton, Mr Brown, and others. He will wait on you of course, and will be able to give you good information concerning the intentions of the English, and their military preparations by sea and land, and those of the French and Spaniards, at the same time. He will also give his opinion very freely concerning American and other characters here, as well as measures.

In many things his opinions may be just, but in some and those not a few, I am sure they are wrong. The great principle, in which I have differed from him, is this, in the mode of treating with this Court. He has been always of opinion, that it was good policy and necessary to hold a high language to this Court; to represent to them the danger of our being subdued, if they did not do this and the other thing for us, in order to obtain money and other aids from them. He is confident they would not have dared to refuse anything.

Although no man in America, or in the world, was earlier convinced than I was, that it was the interest of France and Spain to support the independence of America, and that they would support it, and that no man is more sensible than I am of the necessity they are under to support us, yet I am not, nor ever was, of opinion, that we could with truth or with good policy assume the style of menace, and threaten them with returning again to Great Britain, and joining against France and Spain, even telling them that we should be subdued, because I never believed this myself, and the Court here would not have believed it from us. The Court have many difficulties to manage, as well as we, and it is delicate and hazardous to push things in this country. Things are not to be negotiated here as they are with the people of America, even with the tories in America, or as with the people of England. There is a frankness, however, that ought to be used with the Ministry, and a candor with which the truth may be and has been

communicated, but there is a harshness, that would not fail to ruin, in my opinion, the fairest negotiation in this country.

We are anxious to hear from you, having nothing since the beginning of December, and very little since we left you.

Your friend and servant,

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 8th, 1780.

Sir,

Yesterday I went to Court, in company with the American Minister Plenipotentiary, and had the honor to be presented to the King, by the Secretary of State for Foreign Affairs, after which, I had the honor to go round with all the foreign Ambassadors, and make a visit to the Queen, the King's brothers, sister, aunts, and daughters, which are all the branches of the royal family, and to be presented to each of them in turn, and after them to the Count de Maurepas.

After these ceremonies were over, we were all invited to dine with the Count de Vergennes.

As ceremonies of this kind are so much attended to in this and all other countries of Europe, and have often such important effects, it is proper that Congress should have information of them.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 8th, 1780.

Sir,

I have the honor to enclose to Congress the gazettes of France, of the Hague, and Amsterdam, of the 1st, 3d, and 4th of this month. They contain all the news, which makes the subject of conversation at this time, except that M. du Chaffault is to command in the West Indies, and the Count d'Estaing in the Channel, which, although it is not announced by the Court, seems to be very generally believed in the world.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 10th, 1780.

Sir,

Enclosed are the *Courrier de l'Europe*, of the 3d, and the *Gazette de France* of this day. The House of Lords and the House of Commons are voting thanks to Admiral Rodney for his good fortune, for they all seem to confess, that his brilliant successes were not owing to more skill, valor, or vigilance than others have shown, but merely to his good luck, which, by a report that spreads and gains credit today, did not end with his advantage over Langara, and his safe departure from Gibraltar. It is said that two French ships of the line and several frigates with transports, bound to the Isle of

France, in the East Indies, have been doomed to fall in his way, and be taken.

Whether this is true or not, he has done enough it seems to be in a fair way of paying his creditors some part of their demands for money, which he has gambled away, and which they had despaired of ever receiving. This run of good luck, however, could never have happened to the gambler, if the game had been played otherwise by the opposite party; if France and Spain, instead of keeping immense fleets in Europe with nothing to do, or employed in blocking up Gibraltar, which is a trifle, if taken in comparison of other objects in view, had but employed but a fourth part of them in the American seas, where they had, and still have, the enemies in their power, Rodney's creditors had still been in despair, together with the British government and nation.

I would not desire a better proof, that the English are in the power of their enemies in the American world, than the list of the prizes printed in the *Courrier de l'Europe*, as condemned by N. Cushing, Judge of Admiralty for the middle district of Massachusetts Bay. I am very glad to see this method taken of publishing to the world the success of our privateers, because it will in time show our allies where our strength lies, and the weakness of our enemies.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 12th, 1780.

Sir,

It is an observation made some years ago by a great writer of this nation, de Mably, that the project of being sole master of the sea, and of commanding

all the commerce, is not less chimerical nor less ruinous, than that of universal monarchy on land, and it is to be wished, for the happiness of Europe, that the English may be convinced of this truth, before they shall learn it by their own experience. France has already repeated several times, that it was necessary to establish an equilibrium, a balance of power at sea, and she has not yet convinced anybody, because she is the dominant power, and because they suspect her to desire the abasement of the English, only that she may domineer the more surely on the Continent. But if England abuses her power, and would exercise a kind of tyranny over commerce, presently all the States that have vessels and sailors, astonished that they had not before believed France, will join themselves to her in avenging her injuries.

The present conjuncture of affairs resembles so exactly the case here put, that it seems to be a literal fulfilment of a prophecy.

A domination upon the sea is so much the more dangerous to other maritime powers and commercial nations, as it is more difficult to form alliances and combine forces at sea than at land. For which reason it is essential, that the sovereign of every commercial State should make his nation's flag respected in all the seas, and by all the nations of the world. The English have ever acted upon this principle, in supporting the honor of their own flag, but of late years have grown less and less attentive to it, as it respects the honor of other flags. Not content with making their flag respectable, they have grown more and more ambitious of making it terrible. Unwilling to do as they would be done by, and to treat other commercial nations as they have insisted upon being treated by them, they have grown continually more and more haughty, turbulent, and insolent upon the seas, and are now never satisfied until they have made all other nations see, that they despise them upon that element. It is said by the Baron de Bielfield, that piracies and robberies at sea are so odious, so atrocious, and so destructive to the interest of all the European nations, that everything is permitted to repress them. Providence has not granted to any people an exclusive empire upon the seas. To aim at setting up a master there, to prescribe laws to other free nations, is an outrage to all Europe.

I have quoted these authorities, because they contain the true principle, upon which as I have ever conceived, the English began this war, and upon

which they will assuredly continue it, as long as they can get men and money, which will be as long as they have success. They contain also the true principles of France, Spain, and Holland, and all the powers of Europe. The outrages committed upon the Dutch commerce, and the insults offered to their flag, ought to be, and are, alarming to all the maritime powers. The late successes of the English will have no tendency to allay the fears of these powers; on the contrary they will increase the alarm, by showing the precarious situation they will all be in if England should finally succeed, which some of them may perhaps apprehend from the late brilliant fortune of Admiral Rodney.

One cannot but be struck with the rapid series of fortunate incidents for the English, which have been published here in about the course of three months, that I have been in Europe. The little affair of Omoa began it, the repulse at Savannah succeeded, with all its consequences, the Curraçoa fleet was next, Langara's fleet soon followed; Gibraltar was relieved; Don Gaston's squadron was dispersed by a storm; and Admiral Rodney had opportunity to get safe out of Gibraltar. The French East India fleet brings up the rear. There is hardly in history such a series of events, that no human wisdom could provide against or foresee. Yet after all, the advantages gained are by no means decisive, although no doubt it will raise the ambition of the English, and in some degree damp the ardor of their enemies.

It must not have this effect however upon America. Let the maritime powers fare as they will, we must be free, and I trust in God we shall be so, whatever be their fate. The events of war are uncertain at sea, more than even by land; but America has resources for the final defence of her liberty, which Britain will never be able to exhaust, though she should exhaust France and Spain, and it may not impossibly be our hard fate, but it will be our unfading glory finally to turn the scale of the war, to humble the pride, which is so terrible to the commercial nations of Europe, and to produce a balance of power on the seas. To this end Americans must be soldiers and seamen.

It is proper, however, to keep constantly in sight, the power against which we have to contend; the English have in all the ports of England, in a condition for actual service, or at least given out and reported to be so,

twenty ships of the line. In the course of the spring and the month of June, eight others which are now repairing, and three new ones in the course of the year. The whole squadron for the Channel will be thirtyone. The squadron of Arbuthnot, at New York, consists of five. That of Jarvis at the Western Islands is two, including the Dublin, which was detached from Admiral Rodney, and is now in bad condition at Lisbon. One only at Jamaica, for the Lion is too far ruined to be counted. The fleet at the other islands, joined by the Hector, detached from Rodney, the Triumph and the Intrepid, lately sailed from England, are nineteen, seven of which at least are in too bad a condition for actual service. That of India, including two which serve for convoys, consists of ten, two of which however are returning to be repaired or condemned; the Lenox is a guard ship in Ireland.

Rodney entered Gibraltar with four Spanish ships of the line, the Phœnix of eighty guns, the Monarca, the Princessa, and the Diligente of seventy, besides the Guipuscoa, now the Prince William, of sixtyfive, which he took with the convoy on the 8th of January. He entered, also, with the Shrewsbury of seventyfour, which joined him from Lisbon. His squadron must therefore have consisted of twentyfour ships of the line. If he left the Panther and another at Gibraltar, he must have gone out with twentytwo.

Whether he has gone with the whole fleet to the West Indies, or whether with part of it, and what part, is yet undetermined by the public.

France and Spain, however, have a vast superiority still remaining, which, if it should be ably managed, will easily humble the English; but if it should be unwisely managed, or continue to be as unfortunate as it has been from the moment of the Count d'Estaing's sailing from Toulon, it will even in this case last long enough to consume and exhaust their enemies.

I have the honor to enclose the *Mercure de France*, of the 11th of March, the Hague Gazette of the 6th, and 8th, the Amsterdam Gazette of the 7th, and the Leyden of the 7th.

I have the honor to be, &c.

JOHN ADAMS.

TO EDMUND JENNINGS. [\[58\]](#)

Paris, March 12th, 1780.

Dear Sir,

I have to acknowledge the receipt of three excellent letters, one of the 1st, the others of the 5th and 8th of March. I thank you for the copy of your letter to the pensioner, and for your dialogue between York and Chatham.

It is undoubtedly the duty of every commercial nation, to make their flag respected in all the seas, and by all the nations, not by insulting and injuring all others, like Great Britain, but by doing justice to all others, and by insisting upon justice from them. But how is Holland to obtain justice from the English, who take a manifest pleasure and pride in showing her and all Europe, that they despise her? Holland seems to be as corrupted and unprincipled as Great Britain, but there is one great difference between them. Great Britain has a terrible naval force, Holland has next to none. Great Britain has courage and confidence in her power, Holland has none. I do not mean that the Dutch are destitute of personal courage, but national courage is a very different thing.

The curious doctrine of a constitutional impossibility of acknowledging our independence is well exposed in your dialogue. I suppose the idea was taken from Lord Chatham's dying speech, when he conjured up the ghost of the Princess Sophia of Hanover, to whose posterity, being Protestants, the act of settlement had consecrated the succession of the crown and its authority over all parts of the dominions. This was a masterly stroke of oratory, to be sure, and shows, that my Lord Chatham in his last moments had not lost the knowledge of the prejudices in the character of the English nation, nor the arts of popularity. But a more manifest address to the passions and prejudices of the populace, without the least attention to the justice or policy of the principle, never fell from a popular orator, ancient or modern. Could my Lord Chatham contend, that the heirs of the Princess Sophia of Hanover, provided they should be Protestants, had the throne and its prerogatives entailed upon them, to everlasting ages, over all parts of the British dominions, let them do what they would? Govern without Parliament, by laws without law, dismiss judges without fault, suspend

laws, in short do everything that the Stewarts did, and ten times more, yet so long as they were Protestants, could there be no resistance to their will, and no forfeiture of their right to govern? I said this was a figure of rhetoric, employed by his Lordship *ad captandum vulgus*. I believe so still, but I believe he meant it also *ad captandum regem*, and that he thought, by throwing out this idea, that he was not for acknowledging our independence, the King, who at that time was distressed for a Minister able in conducting a war, would call him into the Ministry. I ever lamented this black spot in a very bright character. I do not remember anything in his Lordship's conduct, which seemed to me so suspicious to have proceeded from a perverted heart as this flight. Allowance, however, ought to be made; perhaps he was misunderstood, and would have explained himself fairly if he had lived.

I have not seen the pamphlet entitled *Facts*, nor that by Lloyd, nor the *Examen*. I should be glad to see all of them. I find a difficulty in getting pamphlets from England, but I shall have a channel to obtain them by and by. I went to Mr Grant's as soon as I received yours of the 8th. Mr Grant the father was out, and no other in the house knew anything of your letter, or maps, or other things. I will speak to the father the first opportunity. Mr Lee is gone to L'Orient.

What think you of luck? Had any gambler ever so much as Rodney. One of our tories in Boston, or half way whigs, told me once, God loves that little island of Old England, and the people that live upon it. I suppose he would say now, God loves Rodney. I do not draw the same conclusion from the successes, that the island or the hero have had. Who can be persuaded to believe, that he loves so degenerate and profligate a race? I think it more probable, that heaven has permitted this series of good fortune to attend the wicked, that the righteous Americans may reflect in time, and place their confidence in their own patience, fortitude, perseverance, political wisdom, and military talents, under the protection and blessing of his providence.

There are those who believe, that if France and Spain had not interposed, America would have been crushed. There are in other parts of Europe, I am told, a greater number who believe, that if it had not been for the interposition of France and Spain, American independence would have been acknowledged by Great Britain a year or two ago. I believe neither the one

nor the other. I know the deep roots of American independence on one side of the water, and I know the deep roots of the aversion to it on the other. If it was rational to suppose, that the English should succeed in their design, and endeavor to destroy the fleets and naval power of France and Spain, which they are determined to do if they can, what would be the consequence? There are long lists of French and Spanish ships of the line yet to be destroyed, which would cost the English several campaigns and a long roll of millions, and after this they may send sixty thousand men to America, if they can get them, and what then? Why, the glory of baffling, exhausting, beating, and taking them, will finally be that of the American yeomanry, whose numbers have increased every year since this war began, as I learnt with certainty in my late visit home, and will increase every year, in spite of all the art, malice, skill, valor, and activity of the English and all their allies. I hope, however, that the capricious goddess will bestow some of her favors upon France and Spain, and a very few of them would do the work. If Rodney's fortune should convince Spain, that she is attacking the bull by the horns, and France and Spain, that the true system for conducting this war, is by keeping just force enough in the Channel to protect their coasts and their trade, and by sending all the rest of their ships into the American seas, it will be the best fortune for the allies they ever had.

I long to learn Mr Jay's success at Madrid, and Mr Laurens' arrival in Holland, where I will go to see him some time in the summer or autumn.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 14th, 1780.

Sir,

By a letter from London of the 3d of this month, received since my former of this day's date, I learn that the friends of the Ministry were in hopes every hour to hear that Clinton, who embarked seven thousand effective men, (though they are said to be ten) in the latter end of December, is in possession of Charleston. The detachment consisted of the light infantry and grenadiers of the seventh, twentythird, thirtythird, fortysecond, sixtythird, and sixtyfourth British regiments, a legion of horse, yagers, four battalions of Hessian grenadiers; the New York volunteers, Ferguson's corps; one Hessian regiment, and a detachment of the seventyfirst British regiment. Many are of opinion that a part of this army was intended for the Windward Islands, and that they embarked and sailed the 26th of December, and was much hurt by a storm after sailing. Two thousand, under Lord Cornwallis, were said to be intended for the Chesapeake, to burn two or three men of war in James river, and to serve as a division to the other five, going against Charleston.

The friends of the Administration are not in spirits about the picture of affairs in America and the West Indies. They fear the French will have a superiority there, from whence some late accounts are arrived of vast sickness and disorder on board the English ships. The naval war will, to appearance, be removed for the next summer to that quarter. Rodney was to sail with four ships only to the West Indies; and Walsingham will not take more than that number as a convoy to about one hundred West Indiamen, which were to sail about the 20th of this month, and more ships of war would probably conduct this fleet off the land, and it was probable in the New York and Quebec trade about fifty vessels more would sail about the same time. That there was no talk of any troops or ships going to New York or Quebec. That there was a rumor that Wallace would have a small squadron, and carry four or five thousand men out, but this was not believed. That the Ministry had been hard pressed in several parliamentary questions lately; that their party was losing ground daily; that the county petitions for reformation were a heavy weight upon them; that it was likely there would be serious disturbances, if reforms do not take place; that the committees for each county have already appointed three deputies to meet and act for the whole, which is the beginning of a Congress, and will probably be soon called by that name; that it was hard to determine whether these movements at home, or the proceedings in Ireland, chagrin the

Ministry most; that the sovereignty of England over Ireland will not be of many month's duration; that the armed associations in the latter amount to sixtyfour thousand men, who seem determined to free themselves from every restriction that has been laid on them; that their Parliament is about putting an end to all appeals to England; to render the judges independent of the crown, they at present holding their offices *durante bene placito*, and not *quamdiu se bene gesserunt*, as in England; to have a habeas corpus act; to repeal Poyning's law, which enacts that all bills shall originate in the council and not in the commons; to confine the new supplies to the appointment of new duties only; to give bounties on their own manufactures, and to have a mutiny bill, which last goes immediately to the grand point of jurisdiction.

That, however, notwithstanding all the present appearances against Great Britain, and the certainty of America's succeeding to her wish, there are not among even those, who are called patriots in Parliament, many who possess directly a wish for American independence; that Lords Camden, Effingham, Coventry, and the Bishop of St Asaph are clearly and distinctly for it; Sir G. Saville, and but a few others in the House of Commons; that the rest of the patriots are for sovereignty; America to give up the French alliance, make up a federal alliance with England, by which no doubt they mean an alliance offensive and defensive, &c.

It is surely unnecessary for me to make any observations upon the absurdity of these provisos, so injurious to the honor of our country, and so destructive of her most essential rights and interests. By a letter of the 7th, a vessel with two hundred Hessians or Yagers on board has arrived at St Ives, in Cornwall. She sailed with the expedition from New York, the 26th of December, and a few days after received much damage in a storm, which it is thought separated and dispersed the fleet. This gives us great spirits and sanguine hopes for Charleston. I have the honor to enclose several newspapers, and, with much respect, to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March, 14th, 1780.

Sir,

I have taken some pains to inform myself what number of regular troops the enemy have in the three kingdoms, because we may form some judgment from this, whether they will be able to send any, and what reinforcements to North America or the West Indies. I am assured, that they have not more than four thousand regular troops in Ireland, and these chiefly horse. It is not to be expected then, I think, that they can spare any of these. There is too much danger even of popular commotions in England, Scotland, and Ireland, to spare many of these, if they were perfectly safe, or thought themselves so from French and Spanish invasions. I have, however, written to obtain more exact and authentic information, which I will not fail to transmit as early as possible.

I have received an account at length, both by the Gazette Extraordinary, and by letter from London, that Admiral Digby is returned with the fleet and Spanish prizes from Gibraltar, and brought in with him the *Protée*, a French sixtyfour gun ship, and three small store ships, part of a fleet bound from L'Orient to the East Indies. The sixtyfour gun ship had about sixtythree thousand pounds in cash on board. This fleet was unlucky enough to fall in with Digby on the 23d of February. Rodney sailed from Gibraltar on the 14th, and parted with Digby on the 18th, taking only four ships of the line with him to the West Indies. A like number will probably go under Walsingham about the 20th or 25th of this month, with the fleet to the West Indies. It is said in letters from London, that by every appearance, there are no more troops going to North America, and that it looks as if the Ministry mean not to continue the American war, but to let it dwindle and die away. If this should be the case, it is to be hoped that the Americans and their allies will not let it dwindle, but put it to death at a blow.

The Marquis de Lafayette, and his brother the Viscount de Noailles, a young noble officer, who is worthy of his family, and of the relation he bears to the Marquis, who I hope will be the bearer of this letter, will be

able to say more upon this head. At present the King and his General are the only persons, who ought to know the secret.

I have the honor to be, &c.

JOHN ADAMS.

TO JAMES LOVELL.

Paris, March 16th, 1780.

Dear Sir,

I have received, since my arrival here, your favor of the 16th of November, 1779. I shall take proper notice of your remarks upon the 13th and 19th articles of the treaty. They are both of them of importance, and, as to the last, I wish for an instruction upon it, because there is no doubt to be made, that whenever a serious negotiation shall be commenced, great pains will be taken for the banished, although little attention is paid to them now. I learned yesterday, that they have received no payment of their pensions these eighteen months. The delay is colored with a pretence of waiting for some funds for Quebec, which have been stopped by the interruption of that trade. They are still bitter, as I am told, and are firmly persuaded, that America cannot hold out six months longer.

You assure me, that I shall not be without the orders and credit, which I mentioned in a letter of mine. I thank you for this assurance, which is conceived in such strong terms, that one would think you did not expect any opposition to it; at least, an effectual opposition. I wish there may not be, but I am not without conjectures, I will not call them suspicions, upon this head. Denying them, however, would be virtually recalling me and Mr Dana, and in a manner the most humiliating and disgraceful. Indeed, I do not know how we should get away from our creditors. You know what sort of minds cannot bear a brother near the throne; and so fair, so just, so

economical a method, would not escape minds of so much penetration, as a refusal to lend money without orders. I am not sure, however, that the measure would be hazarded in the present circumstances, by persons by whom I have been treated politely enough since my return.

I should be glad to know what the Board of Treasury have done with my accounts; whether they have passed upon them; or whether there are any objections to them, and what they are. I do not know but I was indiscreet in sending all my original vouchers, because, if any of them should be lost, I might be puzzled to explain some things. However, I know by a letter from Mr Gerry, that they were received, and I presume they will be preserved.

I wish to know your private opinion, whether Congress will continue Mr Dana and me here, at so much expense, with so little prospect of having anything to do for a long time; an uncertain time, however; or, whether they will revoke our powers, and recall us; or what they will do with us. A situation so idle and inactive is not agreeable to my genius; yet I can submit to it as well as any man, if it be thought necessary for the public good. I will do all the service I can, by transmitting intelligence, and in every other way.

You must have observed, that in all my public letters, and, indeed, in a great measure in my private ones, I have cautiously avoided giving accounts of the state of our affairs in France. I had many reasons for this caution. In general, I was sure it would do no good, and I doubted the propriety of stating facts, and remarking upon characters, without giving notice of it to the persons concerned, and transmitting the evidence. There is no end of conceiving jealousies; but, I am sure, that officers of government, especially foreign Ministers, ought not to attack and accuse one another upon jealousies, nor without full proof; nor then, without notifying the party to answer for himself.

Thus much let me say, however, that the present plan of having a distinct Minister in Spain, another in Holland, and another to treat with Great Britain, and having Secretaries independent of Ministers, is a good one. I pray you to stand by it with the utmost firmness, if it should be attacked or undermined. If you revoke the powers of a separate Minister to treat with the King of Great Britain, you ought to revoke the former powers of treating with all the Courts of Europe, which were given to the

Commissioners at Passy; for, under these, authority will be claimed of treating with the English, if my powers are revoked. The powers of treating with all other Courts ought to be separated from the mission.

Your friend, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 18th, 1780.

Sir,

We have this moment the news of the arrival of the convoy from St Domingo, with sixty sail of merchant vessels, which is a great event for this country.

It is also reported, that ten sail of Spanish ships of the line, with ten battalions of land forces have sailed, and their destination is supposed to be North America.

The armament preparing at Brest, is thus described in one of the public papers. The Count du Chaffault de Besné, Lieutenant General of the naval forces in France, has taken leave of the King, being presented to his Majesty by M. de Sartine. The report runs, that orders have been sent on the 29th of February, for the officers who are at Paris to join their regiments upon the coasts by the 15th of March, and that eight regiments are to embark under the Count de Rochambeau. These regiments are that of *Anhalt*, whereof the Marquis de Bergen is Colonel in second; *Auvergne*, Colonel Commandant, the Viscount de Lavel; *Bourbonnois*, Colonel Commandant, the Marquis de Laval, and in second, the Viscount de Rochambeau; *Neustrie*, Colonel Commandant, the Count de Guibert, and in second, the Viscount le Veneur; *Romergne*, Colonel Commandant, the Viscount de Custine, and in second, the Marquis du Ludec; *Royal Corse*,

Colonel Commandant, the Marquis du Luc, and in second, the Count of Ponteves; *Royal Deux Ponts*, Colonel Commandant, the Count aux Ponts; *Saintongé*, Colonel Commandant, the Viscount de Beranger, and in second, the Marquis de Themines. It is asserted, that there will be added a detachment of artillery, and that the Baron de Viomenil, the Count de Chastellux, and the Count de Witgenstein will embark with these troops, and that the Duc de Lazun will have the command of a body of twelve hundred volunteers, and be joined to the armament under the Count de Rochambeau. All these troops, as it is believed, will embark at Brest, and go out under the convoy of the Count du Chaffault de Besné.

They add, that he will have more than thirtyseven ships of the line under his command, destined for an expedition, whereof the genuine object is yet unknown. Many other regiments have also orders to march down nearer to those upon the seacoast, and there are many vessels taken upon freight for the service of the King, in the different ports of the kingdom. The freight at Havre is thirty livres a ton, on condition that the owner furnish his vessel for twelve months. They say the Prince de Condé will go and command upon the coast of Brittany with the Count de Vaux.

By a letter I just now received from Holland, I am told that the grand business is done between the northern powers on a footing very convenient for Holland, as it must compel the English to cease interrupting the trade of the neutral powers. This would be more beneficial to France and Spain than to Holland, by facilitating the acquisition of ship timber, hemp, and all other things for the supply of their arsenals of the marine. A principal branch of the British policy has ever been, to prevent the growth of the navies of their enemies, by intercepting their supplies.

What gives further countenance to this letter, and the reports to the same purpose, which have been sometime circulated, is an article in the *Mercure de France*, enclosed. They talk of an alliance between Sweden, Denmark, Russia, Prussia, and the United Province, for maintaining the honor of the flags of these powers. Congress will see also another paragraph from London, which favors this idea. That the Baron de Nolker, Envoy Extraordinary from Sweden, had declared that if the convoy of his nation was not released forthwith, with an indemnification for expenses and losses, he had orders to quit the Court of London in twenty four hours.

Some other paragraphs seem to show the Dutch in earnest about equipping a respectable naval force of fiftytwo vessels.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 19th, 1780.

Sir,

Enclosed is a paper of the 10th of March, which was accidentally omitted to be enclosed in the season of it.

There are two articles of intelligence, which ought not to escape our observation, because they have relation to the armament equipping at Brest, although I do not suppose them of much consequence. The first is of a small squadron of frigates, which is said to have sailed from Portsmouth on the 28th of February, in consequence of orders sent from the Admiralty on the 22d, under the command of Captain Marshall, who is on board the Emerald, of thirtytwo guns. The others are the Hussar of thirtytwo, the Surprise of twentyeight, the Squirrel, and Heart of Oak of twenty; the sloops, the Beaver's prize of fourteen, the Wolf, and the Wasp of eight, with the cutters, the Nimble and the Griffin. It is thought, that this little squadron is gone to make a cruise on the coast of France, to hinder the transports assembled in different ports from going out, or even to destroy them, if that shall be found to be possible. There is not, however, much to be dreaded from this squadron so near the neighborhood of Brest.

The other paragraph discovers the marks of more ingenuity and less truth. It is taken from the English papers, that Captain Jarvis, in the Foudroyant of eighty guns, who has been out upon a cruise, with a small division in the mouth of the Channel, has returned to Plymouth and gone to Court, to be

himself the bearer to Government of despatches of great importance, from the Court of France to Congress, found on board a sloop, which on her passage to Philadelphia fell into his hands. It is asserted, that these despatches contain an ample detail of the operations concerted between the Court of Versailles and Dr Franklin, among which the most probable is, the project of attacking Halifax, which is to be made by a body of troops from New England, and by a detachment of French troops very considerable by sea and land.

This moment a letter from London of the 10th of March informs me, that a packet boat is arrived from Jamaica, which sailed the 29th of January, with accounts, that Fort Omoa is again in possession of Spain. That an English man-of-war has taken a Spanish ship-of-war, bound to South America with stores. She was pierced for sixtyfour, but earned only fiftytwo guns. The Jamaica fleet sailed on the 24th of January, convoyed slightly, with two fiftys and two frigates, about forty merchantmen in all. Nothing yet from America, but it is generally believed, that a storm has separated and dispersed Clinton's fleet, intended for the Southern expedition.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 20th, 1780

Sir,

I have at length received a parcel of English papers, which I have the honor to enclose with this to Congress. They are the General Advertiser, and the Morning Post, both of which I shall for the future be able to transmit regularly every week. Congress will see that these papers are of opposite parties, one being manifestly devoted to the Court and the Ministry, and the

majority, the other to the opposition, the committees, the associations, and petitions; between both I hope Congress will be informed of the true facts.

There is the appearance of a piquancy and keenness in the temper of the opposite parties, by their writings and paragraphs in these papers, that looks like the commencement of a serious quarrel.

By the violence of the manner in which such characters as Keppel, Howe, Burgoyne, Richmond, Shelburne, Rockingham, &c. are treated, it should seem, that the Ministry were exasperated to a greater degree of rancor than ever, and that they were thoroughly alarmed and determined to throw the last die. Time and the events of war will decide what will be the consequences of these heated passions.

By a conversation this morning with the Viscount de Noailles, I am led to fear, that the fleet from Brest will not be able to put to sea before the 10th of April. This will be about the time the Marquis de Lafayette will arrive in America. He sailed from Rochelle the 13th of this month.

I have the honor to be, &c.

JOHN ADAMS.

TO THE COUNT DE VERGENNES.

Paris, March 21st, 1780.

Sir,

In the letter, which you did me the honor to write me on the 24th of February, your Excellency proposed, that the principal object of my mission should be inserted in the Gazette of France, when it should make mention of my presentation to the King and all the royal family.

In the answer to this letter, which I had the honor to write on the 25th of February, I informed your Excellency, that I should not think myself at liberty to make any publication of my powers to treat of peace, until they should have been announced in the Gazette. It was on the 7th of March, that I had the honor to be presented to the King and Royal Family, but no notice has been taken of it in the Gazette of France. Whether the omission is accidental, or whether it is owing to any alteration in your Excellency's sentiments, I am not able to determine.

Your Excellency will excuse the trouble I give you on this occasion, as it arises wholly from a desire to be able at all times, to render an account to my sovereign of the motives and reasons of my own conduct.

I have the honor to be, &c.

JOHN ADAMS.

TO WILLIAM LEE.

Paris, March 21st, 1780.

Dear Sir,

I have just received your favor from Brussels of the 17th of this month, and I thank you for this instance of your attention to me.

Considering the state of Ireland, and the spirit that seems to be rising in England, which has already attained such a height, as to baffle the Minister, and the East India Company, and to carry many votes in the House of Commons, almost to a balance with him, and even some against him, I should not be at all surprised, if terms, such as you mention, should be offered to America; nor should I be surprised if another rumor, which was propagated at the Palais Royal this day, should prove true, that a great change is made or to be made in the Ministry, and that the Lords Shelburne and Rockingham, Burke, &c. are in. Yet I have no proper accounts of either.

Whatever may be my powers or instructions, or whether I have any or not, I am very much obliged to you for your sentiments on such a proposition as a truce for America, supposing it should be made. Your arguments are of great weight, and will undoubtedly be attended to by every one, whoever he may be, who shall be called to give an opinion upon such a great question. You will not expect me at present to give, if it is proper for me even to form, any decided opinion upon it. Yet thus much I may venture to say, that having had so long an experience of the policy of our enemies, I am persuaded, from the whole of it, if they propose a truce, it will not be with an expectation or desire, that America should accept it, but merely to try one experiment more to deceive, divide, and seduce, in order to govern.

You observe, that the heads of some well intentioned, though visionary Americans, run much upon a truce. I have seen and heard enough to be long since convinced, that the Americans in Europe are by no means an adequate representation of those on the other side of the water. They neither feel, nor reason like them in general. I should, therefore, upon all occasions hear their arguments with attention, weigh them with care, but be sure never to follow them, when I knew them to differ from the body of their countrymen at home.

You say the Dutch are disturbed. Do you wonder at it? They have been kicked by the English, as no reasonable man would kick a dog. They have been whipped by them, as no sober postillion would whip a hackney coach horse. Can they submit to all this, upon any principle, which would not oblige them to submit, if the English were to bombard Amsterdam, or cut away their dikes?

I wish I knew the name of the principal confidant and director of the Prince, whom you mention.

I am very anxious to hear of the arrival of Mr Laurens, but suspect you will learn it first. Mr Dana returns his respects to you.

I thank you, Sir, for your offers of service; nothing can oblige me more than to communicate to me any intelligence of the designs of our enemies, in politics or war, and their real and pretended forces by sea and land. Pray what is the foundation of the story of a quintuple alliance between Holland, Sweden, Russia, Prussia, and Denmark?

I am, Sir, with great esteem, your humble servant,

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 23d, 1780.

Sir,

I have the honor to enclose the English papers of the 11th, 13th, and 14th of March, the *Courrier de l'Europe*, and the Hague, Leyden, and Amsterdam Gazettes. We are in hourly expectation of great news from Holland, Ireland, England, Spain, and above all from America, and the West Indies. I have not had a letter from America since I left it, except one from my family of the 10th of December, and, indeed, although several vessels have arrived, I can hear of no letters or news.

By the English papers Congress will perceive the violent fermentation in England, which has arisen to such a height as to produce a Congress in fact, and it will soon be so in name. The proceedings in the House of Commons on the 14th, which were terminated by a resolution of the committee of the whole house, to abolish the Board of Trade and Plantations, carried against the Ministry after a very long and warm debate, by a majority of eight voices, is not only the most extraordinary vote, which has passed in the present reign, but it tends to very extensive consequences.

I believe it is very true, that this Board has been the true cause of the quarrel of Great Britain against the Colonies, and therefore may be considered as an object of national resentment, but a resentment of this kind alone would not probably have produced this effect.

Whether it is the near approach of an election, that has intimidated the members of the House of Commons, or whether committees, petitions, associations, and Congress have alarmed them, or whether the nation is

convinced, that America is indeed lost forever, and consequently the Board of Trade would be useless, I do not know. Be this as it may, the English nation, and even the Irish and Scotch nations, and all parts of the world will draw this inference from it, that even in the opinion of the House of Commons America is lost. The free and virtuous citizens of America, and even the slavish and vicious, if there are any still remaining of this character, under the denomination of tories, must be convinced by this vote, passed in the hey-day of their joy for the successes of Admiral Rodney's fleet, that the House of Commons despaired of ever regaining America. The nations subject to the House of Bourbon cannot fail to put the same interpretation upon this transaction.

Holland and all the northern powers, with the Empress of Russia at their head, who are all greatly irritated against England for their late violences against the innocent commerce of neutral powers, will draw the same consequences. The politicians of Great Britain are too enlightened in the history of nations, and the rise and progress of causes and effects in the political world, not to see, that all these bodies of people will, in consequence of this vote, consider the Colonies given up as lost by the House of Commons, and they are too well instructed, not to know the important consequences that follow, from having such points as those thus settled among the nations. I cannot, therefore, but consider this vote, and the other respecting the Secretary of State for the American Department, which arose almost to a balance, as a decided declaration of the sense of the nation. The first consequence of it probably will be one further attempt, by offering some specious terms, which they know we cannot in justice, in honor, in conscience, accept, to deceive, seduce, and divide America, throw all into confusion there, and by this means gaining an opportunity to govern. There is nothing more astonishing than the inconsistencies of the patriots in England. Those, who are most violent against the Ministry, are not for making peace with France and Spain, but they would wish to allure America into a separate peace, and persuade her to join them against the House of Bourbon. One would think it impossible, that one man of sense in the world could seriously believe, that we could thus basely violate our truth, thus unreasonably quarrel with our best friends, thus madly attach ourselves to our belligerent enemies. But thus it is.

Sir George Saville threw out in the House, that he wished to carry home to his constituents the news of an accommodation with America, and Mr David Hartley has given notice of his intentions to make a motion relative to us. But I confess I have no expectations. Mr Hartley's motions and speeches have never made any great fortune in the House, nor been much attended to; from whence I conclude, if the present great leaders, even of opposition in the House, were seriously disposed to do anything towards a pacification, which we could attend to, they would not suffer Mr Hartley to have the honor of making the motion.

The heads of many people run upon a truce with America, and Mr Hartley's motion may tend this way; but a truce with America cannot be made without a peace with France and Spain, and would America accept of such a truce? Give Great Britain time to encroach and fortify upon all our frontiers? To send enemies into the States, and sow the seeds of discord? To rise out of her present exhausted condition? Suffer France and Spain to relax? Wait for alterations by the death of Princes, or the changes in the characters of Princes, or Ministers in Europe? I ask these questions, that Congress may give me instructions, if necessary. At present I do not believe my powers are sufficient to agree to a truce, if it was proposed; nor do I believe it would be for our interests or safety to agree to it, if I had. I do not mean, however, to give any decided opinion upon such a great question, in this hasty letter; I am open to conviction, and shall obey the instructions of Congress, with the most perfect respect.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 24th, 1780.

Sir,

Mr Burke's bill not being as yet public, we are not yet informed of the items of it. But as it already appears, that it strikes at the Department of Secretary of State for America, and at the Board of Trade, there seems to be little reason to doubt that it goes further, and strikes at the American Board of Commissioners, at all the American Judges of Admiralty, Governors of Provinces, Secretaries, and Custom House Officers of all denominations. At least, if this should not be found to be a part of the bill, there are stronger reasons, if possible, for abolishing this whole system of iniquity, together with all the pensions granted to the refugees from America, than even for taking away the Board of Trade. And from several late paragraphs in the papers, and from Mr Fox's severe observations in the House of Commons upon Governor Hutchinson, calling him in substance the "firebrand that lighted up all the fire between the two countries," it seems pretty clear, that it is in contemplation to take away all these salaries and pensions.

If such a measure should take place, exiled as these persons are from the country, which gave them birth, but which they have most ungratefully endeavored to enslave, they will become melancholy monuments of divine vengeance against such unnatural and impious behavior. Nevertheless, as these persons are numerous, and have some friends in England as well as in America, where they had once much property, there is a probability, I think, that whenever or wherever negotiations for peace may be commenced, they and their estates now almost universally confiscated, will not be forgotten. But much pains and art will be employed to stipulate for them in the treaty, both a restoration of their property, and a right to return as citizens of the States to which they formerly belonged. It is very possible, however, that before the treaty shall be made, or even negotiations commenced, these gentlemen will become so unpopular and odious, that the people of England would be pleased with their sufferings and punishment. But it is most probable, that the Court will not abandon them very easily.

I should, therefore, be very happy to have the explicit instructions of Congress upon this head, whether I am to agree, in any case whatsoever, to an article which shall admit of their return, or the restoration of their forfeited estates. There are sentiments of humanity and forgiveness which plead on one side, there are reasons of state and political motives, among which the danger of admitting such mischievous persons as citizens, is not the least considerable, which argue on the other.

I shall obey the instructions of Congress with the utmost pleasure, or if, for any reasons they choose to leave it at discretion, if I ever should have the opportunity, I shall determine it without listening to any passions of my own of compassion or resentment, according to my best judgment of the public good. There is another point of very great importance, which I am persuaded will be aimed at by the English Ministers, I am sure it will by the people of England, whenever times of peace shall be talked of. For facilitating the return of commerce, they will wish to have it stipulated by the treaty, that the subjects of Great Britain shall have the rights of citizens in America, and the citizens of the United States the rights of subjects in the British dominions. Some of the consequences of such an agreement to them and to us are obvious and very important, but they are so numerous, that it is difficult to determine whether so great a question should be left to my determination. If, however, contrary to my inclinations, it should fall to my lot to decide it without instructions, it shall be decided according to my conscience, and the best lights I have.

I have the honor to be, &c.,

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 24th, 1780.

Sir,

It has been observed in former letters, that there is scarcely an example of such a series of fortunate incidents as that which happened to Rodney's fleet, and it may be proper to dilate a little upon some of these incidents, to show that the enthusiastic applause, which is given him by the Court, the Lords, the Commons, and the city of London, is no otherwise merited than by the boldness of his enterprise; unless simple good fortune is merit.

It must be allowed, that it was a desperate plan in the Minister to order him out on the design to succor Gibraltar, and it was a desperate resolution in him to undertake it; because he had to expect to meet with the whole Spanish squadron at Cadiz, and that it would follow him, which was in fact the case.

Don Gaston sailed from Brest the 13th of January in search of Admiral Rodney, with twenty Spanish ships of the line, with four French ships of the line, the Glorieux, the Burgundy, the Zodiac, and the Scipio, with the frigate, the Nereis, under the Chef d'Escadre, the Chevalier de Bausset. If the four and twenty ships of the line had joined Don Langara's squadron, there is scarce a possibility of doubt, after the brave defence made by him, with such inferior force, that Rodney's fleet would have been totally ruined, and consequently Gibraltar reduced to extremities. But this was not to happen. The next day after Don Gaston sailed from Brest, he met with a terrible storm, which separated his fleet. Two of his Spanish ships arrived at Cadiz the 31st of January, the Serious and the Atlant, each of seventy guns. The third of February there arrived twelve others. The Rayo, commanded by Don Gaston, and the St Louis, both of eighty guns, the Velasco, the St Francis de Paule, the S. Isabella, the S. Joachim, the St Peter, the St Damase, the Arrogant, and the Warrior, all of seventy, the Mink of fiftysix, and the frigates, the Assumption and the Emerald, with the French division under the Chevalier de Bousset, excepting the Scipio, commanded by the Baron de Durfort, which did not arrive until the 17th of February, after having cruised ten or twelve days off St Vincent, which had been appointed as the place of rendezvous and reunion, in case of separation. The Guardian Angel, of seventy guns, which was also separated from the squadron, did not arrive till several days after Don Gaston at Cadiz, having suffered very much, as well as all the other vessels, in their masts and rigging, by the bad weather, and especially by the violent gale of wind, which they met with on the 1st of February, near the Cape of St Vincent. Of the five remaining Spanish vessels, four went into Ferrol, the St Vincent Ferries, of eighty guns, commanded by Don d'Acre, Lieutenant General; the St Charles, of eighty; the Vengeur, of seventy, and the Septentrion, of sixty; the fifth, named the St Joseph, of seventy, by Don Orsorno, Chef d'Escadre, returned to Brest dismasted. This separation and dispersion of the fleet and of its principal officers exposed Langara, and made Rodney's fortune; and the

necessity these vessels were in of reparation, gave liberty to the English fleet to put to sea from Gibraltar and regain the Atlantic Ocean, on the 13th of February, to the number of twentytwo ships of the line, including those of Rodney, Digby, and Ross, and four of the vessels taken from the Spaniards, and three frigates, with twelve merchant ships under their convoy, leaving at Gibraltar, the Edgar, of seventyfour, the Panther, of sixty, which has been there a long time, and the Guipuscoa, of sixtyfour guns, taken from the Spaniards on the 8th of January, with twentyfour merchant vessels under her convoy.

There has been much conversation for several days, concerning a Spanish armament preparing at Cadiz, and letters from Carthagenas say, that the regiment of infantry, called the Flankers' regiment, which has been in garrison in that city, has been completed by orders from the Court of Naples, and on the 1st of March, the first battalion marched for Cadiz, and on the 4th of March, the second battalion. It is said that this regiment is to embark with several others, which from different garrisons have arrived at the same place for America, in all parts of which, according to appearances, the English will have enough to do to maintain their ground this ensuing campaign.

In Ireland, on the 22d of February, an assembly of the gentlemen, clergy, and freeholders of the city of Dublin, resolved unanimously, that the advantages obtained in commerce are neither complete nor solidly established; that the sense of the nation is, that the Irish Parliament alone, in concert with the sovereign, can give to the laws already obtained of the Prince their obligatory force; that what has been done ought not to be considered as anything more than a great beginning; and that the general hope was, that the end of the session would be as advantageous to the political constitution of the country, as the commencement of it had been favorable to commerce; that the fathers of the country are particularly requested and instructed to obtain a declaratory act, which may preserve forever the free and independent state of Ireland, and by introducing some necessary modifications of Poyning's law, to prevent in future all controversy between the King and the Parliament of Ireland, concerning fundamental laws.

These instructions were given by the sheriffs to the representatives of Dublin, who answered that they were convinced, that no foreign legislative power whatsoever had any right, or ought to arrogate to itself any authority over their nation, and without injuring the legal and known authority, which his Majesty has a right to exercise over this kingdom in a manner conformable to the laws, they would neglect nothing to obtain an act, which should take away every unjust restriction, and which should tend to assure the constitutional independence of the kingdom. This is said to be the general sense of the whole kingdom, so that it may truly be said, that the British empire is crumbling to pieces like a rope of sand, insomuch, that if the war should continue, I shall not be at all surprised if even Scotland should become discontented with the Union, and the disputes between the Ministry and the East India Company should terminate in the independence of Asia; nay, it would be no miracle if the West India Islands should request the protection of France and Spain, or the United States. I will take the first opportunity to write upon the subject of Lord North's loan, which, together with the other ways and means, amounts to the amazing sum of £20,674,000 sterling.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 26th, 1780.

Sir,

On the 2d day of March the news of the royal consent to the bill, which the British Parliament has passed for granting to Ireland a free commerce with the American Colonies, the West Indies, and the Coast of Africa, was celebrated in Dublin by public rejoicings; the guns of the Lark were discharged, the garrison made a *feu de joie*, the castle and other public

buildings were illuminated, as well as some private houses. The government were probably encouraged to these demonstrations of joy, by the motion, which was made the day before, that is, the 1st of March, by Mr Dennis Doly in the House of Commons, for an address of thanks to the King, to which both parties unanimously consented, not excepting the principal patriots, such as Mr Ogle, Mr Hussy Burgh, and Mr Grattan.

The address contains an assurance of their attachment to the royal person and government of the King; a profession of gratitude for his Majesty's uninterrupted attention to the interest of Ireland, and for the happy alteration, which the wisdom of his councils, and the liberal sentiments of the British Parliament have effected in the situation of their affairs. They express a double satisfaction for the benefits, which have been granted them, because they appear to them to be an efficacious remedy for the poverty of that country, and because they furnish an unquestionable proof of that fraternal affection, which they think they have a right to expect from Great Britain, and which they will constantly endeavor to cultivate and augment to the most perfect degree of mutual confidence. They profess the sincerest pleasure in finding that the ties, which have ever united the two kingdoms, have been bound faster than ever, by the conduct of their fellow subjects, and they assure his Majesty, that on their part, they will never fail to make the greatest efforts for the maintenance of that close connexion between the two kingdoms, which they firmly believe to be inseparable from their happiness and prosperity.

The next day the House of Peers, even at the motion of the Duke of Leinster, followed the example of the House of Commons. Their address is in substance the same, with this addition, that the benefits received afford a remedy proportioned to their distress, and that they will discountenance with all their power all attempts, that deluded men might make to excite ill founded apprehensions in the people, and to turn their attention to the commerce, which has been granted them in a manner so extensive.

To these additions, however, there was an opposition, and finally a protest, signed by Lord Carrisford, the Earls of Charlemont and Arran, and the Viscounts Powerscourt and Mountmorris, and by the proxies of the Earl Moira, and the Lords Eyre and Irnham.

The Duke of Leinster, however, has brought upon his reputation by this motion suspicions all over Europe, that he has been gained by the King, which a little time and his future conduct will either dissipate or confirm.

The next day Parliament adjourned to the 11th of April. Congress will be able to put a just interpretation upon these addresses, by the account I gave in my last, of the instructions of the city of Dublin to their representatives, and their answer, as well as by those of the county of Dublin, which remain to be communicated. On the 7th of March, there was held at Kilmainham, an assembly of the freeholders of the county of Dublin, when the following instructions to their representatives were agreed on.

"We, your constituents, desiring to acknowledge as we ought, the advantages our commerce will derive from the particular attention, which his Majesty has given it, from the integrity of our Parliament, the firmness of our countrymen, and the justice, which the English nation begins to render us, we declare to you, that what follows is the principal cause of our joy upon this occasion. It appears to us, that the desire of monopolising commerce was the only motive, which could make England imagine that she had a right to usurp a legitimate authority over this kingdom, and from the moment when she renounced this monopoly, she has taken away the principal obstacle, which opposed our liberty, and consequently the British nation will not continue to itself an arbitrary power, from which she can derive nothing but reducing this kingdom to slavery. We desire to know, moreover, whether the united efforts of the Parliament and people of Ireland ought to confine themselves, so as to leave this island in a state of dependence and submission to laws, to which the nation has never consented, to laws dictated by a Parliament, in which she has no representatives? Let it not be said, that this power attributed to the English Parliament is chimerical. We may see the proofs of it even in the repeal of several of the acts and in this, that several persons declare, however falsely, that this power is founded upon law. Having an equal right to political liberty and to commerce, but deprived of both; and nevertheless content to be restored to the enjoyment of a free commerce alone; will it not appear, that we absolutely give up the former? This idea would be absurd. It is then our duty to declare to the universe, that we are of right a free nation, not to be subjected to any laws, but such as are made by the King and Parliament of Ireland.

"Desirous of nothing so much as to live always in good intelligence with the British nation, on account of the union of the two Crowns, our instructions are, that you shall make the greatest efforts to obtain an act, which shall establish forever the independence of the legislative power of Ireland. We wish, moreover, that you would endeavor to qualify Poyning's law, by taking away from the privy council the legislative power. In accomplishing these important objects, you will acquire honor to yourselves, and give satisfaction to the nation.

"It is not to be doubted, that you will also fall upon some plan of economy, by making savings, which are become necessary to increase the revenue of the Crown, and improve the commerce of the nation."

It seems now very plain, that the Irish nation aspires to an independence of Great Britain the most unlimited, and acknowledges no other connexion with her but that of affection and a subjection to the same King. The troops already raised by associations amount to between sixty and seventy thousand men, which are to be forthwith augmented by ten thousand more, who are to be formed of countrymen; each officer is to furnish four, who will be clothed and paid out of the funds, that each regiment will establish for this purpose. The principal objects of these armed associations are said to be, a free and unlimited commerce to all parts of the world, except only the East Indies. The repeal of Poyning's law, passed under Henry the Seventh, and another under George the First, which restrains the legislative authority of the Irish Parliament, with an express clause, that the Parliament of Ireland ought, and shall be forever and wholly exempt from all kind of control and dependence of the British Parliament, in all cases whatsoever. That students shall no longer be obliged to go to the Temple in London, and other seminaries in England to study law. But, in future, they shall study in the University of Dublin, under proper professors, and shall be admitted to the bar in Ireland by the Lord Chancellor and the other judges, after a proper examination; the judges to be natives, except the Chancellor; the bishops also to be natives.

In the meantime, the slightest circumstances may blow up the flames of war between the two kingdoms, which would have been done some weeks ago, if the regular officers of the King's troops had not given way to the Dublin volunteers.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 29th, 1780.

Sir,

I think it my duty to lay before Congress what may occur in Holland, relative to the present war, at least until the arrival of Mr Laurens, whose presence is much desired there. Many appearances make it probable, that the grasping and vindictive temper of the English will compel the Republic into the war. If they do take a part, it is very certain it will be against England. As plunder and revenge are the present ruling passions of the English, it is probable, that a war with Holland is rather wished for than otherwise, because the Ministry and their principal supporters seem to have no idea, that it is possible to make things worse, and all the plunder they can get will be so much clear gain. The Dutch are so much alarmed and aroused, that it is very certain the Prince finds it necessary to give out, that he has been deceived by the English, that he has changed his sentiments, and that he will promote with all his influence unlimited convoys. It is certain, that they are fitting their men-of-war with a great deal of activity, and it is confidently affirmed, that they have made a treaty with Russia and Sweden, who are to make a common cause. The States of the Province of Friesland have come to a resolution, that it was certain Byland was not the aggressor, but that Fielding had not hesitated to make use of force to visit the Dutch ships under convoy, to stop those that were loaded with hemp, and to insult the flag of the Republic. That this proceeding shows, that the complaisance hitherto shown to England, in depriving the ships loaded with masts and ship timber of the protection of the State, in leaving them to sail alone and without convoy, has had no effects, and consequently the States judge, that a similar condescension ought no longer to take place, but, on

the contrary, all merchandise whatsoever, which the treaties do not expressly declare to be contraband, ought, without the least difficulty, to be admitted under convoy, and enjoy the protection of the State, and to this effect, His Most Serene Highness ought to be requested to give orders to the commanders of the men of war, and of the squadron of the Republic, to protect, as heretofore, all merchandise.

This resolution was taken the 29th day of February, and laid before the States-General, who, after debating upon it, determined to require the deputies of the other Provinces to obtain, as soon as possible, the decision of their Provinces upon the same subject. These two Provinces, Holland and Friesland, have already decided for unlimited convoys.

Sir Joseph Yorke, on the 21st of March instant, laid before their High Mightinesses another Memorial, insisting on the aid which he had demanded before, upon condition, in case of refusal, that his master would, after three months consider all treaties between the two countries as null, and in which he contends, that the protection afforded to Captain Jones, whom he calls a pirate, in the Texel and in Amsterdam, was a violation of the treaties.

In order more clearly to comprehend the dispute between Great Britain and the States-General, it may not be amiss to observe, that by the marine treaty between the two powers, concluded at the Hague in 1667, all the subjects and inhabitants of the United Provinces may, with all safety and freedom, sail and traffic in all the kingdoms, countries, and estates, which are, or shall be in peace, amity, or neutrality with the States-General, without any hinderance or molestation from the ships of war, gallies, frigates, barques, or other vessels belonging to the King of Great Britain, or any of his subjects, upon occasion or account of any war, which may hereafter happen between the King of Great Britain and the above said kingdoms, countries, and estates, or any of them, which are, or shall be, in peace, amity, or neutrality with the States-General; and this freedom of navigation and commerce shall extend to all sorts of merchandise, excepting contraband goods. That this term of contraband goods, is to be understood to comprehend all sorts of fire arms, their appurtenances, and all other utensils of war called in French, "*servans à l'usage de la guerre*," and that under this head of contraband goods, these following shall not be comprehended;

corn, wheat, or other grain, pulse, oils, wine, salt, or generally anything that belongs to the nourishment or sustenance of life, but they shall remain free, as likewise all other merchandise and commodities not comprehended in the foregoing article, and the transportation of them shall be permitted even into places at enmity with Great Britain, except such places are besieged, blocked up, or invested. Masts, yards, ship timber, and hemp, the articles now in dispute, are not contraband by this treaty, or by the law of nations. Yet Great Britain, in the hours of her insolence and madness, which are not yet at an end, makes no scruple to seize, condemn, and confiscate them. She pretends, that as the Dutch refuse to her the aid she demands by treaty, she has a right to seize upon masts, timber, and hemp, which are not prohibited by treaty. Not to enter into the inquiry, whether the present case is such, as by the treaties obliges the Dutch to furnish her aid, but admitting for argument's sake it is so, yet the consequences will not follow. It would only follow, that Great Britain was absolved from the obligation of the treaty, not by any means that she is discharged from the obligations of the law of nations.

I have the honor to be, with great respect, &c.

JOHN ADAMS.

COUNT DE VERGENNES TO JOHN ADAMS.

Translation.

Versailles, March 30th, 1780.

Sir,

I have received the letter, which you did me the honor to write on the 21st instant. I remember very well to have said to you, that your presentation should be inserted in the Gazette of France; but, from the information I have since obtained, it seems that the presentations, whether of

Ambassadors or Ministers Plenipotentiary, are not thus announced in our Gazette, and it would have the appearance of affectation to insert yours. As a substitute, I will have it mentioned, if you wish, in the *Mercure de France*, and you can take measures to have the notice repeated in the foreign gazettes.

I have the honor to be, &c.

DE VERGENNES.

P. S. I enclose a draft of an article, which I propose to send to the *Mercure de France*. It will not be sent till I learn your opinion of it.

"Mr Adams, whom the Congress of the United States has designated to assist at the conferences for a peace, when that event shall take place, arrived here some time ago, and has had the honor to be presented to the King and the royal family."

TO THE COUNT DE VERGENNES.

Paris, March 30th, 1780.

Sir,

I have the honor of your Excellency's letter of this day, in answer to mine of the 21st of this month. Until the receipt of it, I had taken it for granted, that the presentation of every Ambassador was regularly inserted in the Gazette of France, and until very lately, several days since the date of my letter to your Excellency of the 21st of this month, I had supposed, that the presentation of Ministers Plenipotentiary was constantly inserted likewise.

The information your Excellency has given me, that the presentation of neither Ambassadors nor Ministers Plenipotentiary have ever been inserted, has perfectly satisfied me, and I doubt not will equally satisfy my

countrymen, who have heretofore been under the same mistake with myself.

I approve very much of your Excellency's proposition of inserting my presentation in the Mercury of France, and shall take measures to have it repeated in the foreign gazettes.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 30th, 1780.

Sir,

I have the honor to enclose to Congress copies of certain letters, which I have had the honor to write to the Count de Vergennes, and of others, which I have received from him.

It seems that the presentations of the American Commissioners and Ministers Plenipotentiary have not been inserted in the Gazette, which occasioned some uneasiness in the minds of some of our countrymen, as they thought it a neglect of us, and a distinction between our sovereign and others. The enclosed letters will explain this matter, and show, that no distinction has been made between the representatives of the United States and those of other powers.

I ought to confess to Congress, that the delicacy of the Count de Vergennes about communicating my powers is not perfectly consonant to my manner of thinking, and if I had followed my own judgment I should have pursued a bolder plan by communicating, immediately after my arrival, to Lord George Germain, my full powers to treat both of peace and commerce; but I hope Congress will approve of my communicating first to this Court my

destination and asking their advice, and then pursuing it, because I think no doubt can be made, that it is my duty to conduct my negotiations at present in concert with our ally, as I have hitherto done.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, March 30th, 1780.

Sir,

There is an anecdote, which causes a great speculation at present, because it is supposed to show the tendency of things in Ireland, and what is to be expected by Great Britain, if the Ministry should oppose themselves to the wishes of the Irish nation. On the 23d of February, three bodies of volunteers, those of Dublin, commanded by Colonel John Allen, those of the Liberties, commanded by Sir Edward Newingham, and another body, commanded by Mr Taylor, assembled at the Exchange, from whence they made a long march in a circuit of four miles, accompanied with other volunteers on horseback, to the Park, the avenues of which were guarded by five other corps of volunteers.

There they went through the manœuvres and firings, with as much celerity and precision as any regular troops. They were there reviewed by the Duke of Leinster, as General and Commander-in-Chief, accompanied with four Aids-de-Camps, and they all rendered to this nobleman military honors almost equal to those which are rendered to a King.

Returning from the review, the volunteers met in Barrack street a detachment of the royal troops marching to the castle. These required, that the volunteers should turn out of the way, and endeavored to break their ranks; but the volunteers, with their bayonets fixed and charged, stood their

ground and discovered such a resolution, that the commanding officer of the King's troops ordered them to halt, and desired to speak with the Duke of Leinster. They entered into a conference. The regular troops pretended they had a right to the pavements, as the troops of the King. The volunteers, thought they had a right to keep it, as free citizens, voluntarily armed for the defence of their country, and consequently superior to mere mercenaries. They supported these arguments by preparations for battle, the people declared themselves in favor of the volunteers, by collecting together a sufficient quantity of stones, to overwhelm the troops, who at last gave way, in order to avoid a scene of blood. The next day the volunteers sent to the Viceroy an excuse, but couched in terms, which justified their conduct as necessary to maintain the liberty, independence, and dignity of the nation. I have seen so much of the spirit of the King's troops, in several contests between them and the citizens of Boston, as to know very well what all this means. The volunteers must have great confidence in their own strength, and the King's troops equal diffidence of theirs, before an altercation of this kind could terminate in this manner.

I have the honor to be, &c.

JOHN ADAMS.

TO ARTHUR LEE, AT L'ORIENT.

Paris, March 31st, 1780.

Dear Sir,

I have received yours of the 26th, and that of the 15th of this month. I enclose a copy of the letter you desire.

M. Garnier is gone into the country, and I have not seen him since I arrived here. Mr Izard, however, has seen him, and will give you a satisfactory account of what he says.

If I were to apply to the other gentleman, you know what would be the consequence. It would fly very soon to, you know where, and I should have only the credit of meddling unnecessarily with disputes, which I have kept out of as much I could, and which it is certainly now the public interest, and consequently my duty, to keep out of as much I can. I had, therefore, rather be excused. The gentleman himself would probably give you the same answer to a letter from you directly to him, as he would give to me, unless I should use arts with him; which would be unworthy of you, as well as of me, and which I cannot use with anybody.

I shall have enough to do, to steer my little bark among the rocks and shoals. I shall have perplexities enough of my own, which I cannot avoid, and dangers too. These I shall meet with a steady mind, and perhaps none of them will be greater than that, which I think my duty, of avoiding things that do not belong to me.

Scarcely ever any Minister executed a commission for making a peace, without ruining his own reputation, in a free government. No Minister that ever existed, had a more difficult and dangerous peace to make than I have.

The gentleman you mention has hitherto been very still, but he has been well received, by all that I have learnt.

Adieu,

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, April 3d, 1780.

Sir,

The Prince of Orange, Stadtholder, is not only supposed to have ambitious views of allying his family to that of Great Britain, but is very much

influenced by the Duke of Brunswick, who is a field marshal, and commander in chief of the Dutch land forces, who is also a brother of Prince Ferdinand. The Duke is not upon the best terms with his family, because they think he is too much attached to the House of Austria. By this double attraction of England on one side, and their old friends the House of Austria on the other, it is not very surprising that His Most Serene Highness is drawn a little aside from the line of the American cause, which is now so closely connected, and likely to be more so, with the House of Bourbon. Hence it is said, that the Count de Byland is to be honorably acquitted by the court martial, and hence the embarrassments the Dutch are under, in their wishes to resent like men the unparalleled injuries, that have been done them by the English. There is, however, so much spirit in the United Provinces, as to oblige the Prince to put on the appearance of resentment at the insults offered to his flag, and to oblige the British Minister to assume the tone of menace, in order to work upon the fears of the people, whose property is so exposed as to make them dread a war with any nation whatever.

Congress will, however, be able to judge of what is doing in Holland by the following proceedings. A petition was presented to their High Mightinesses on the 25th of February, for the equipment of fiftytwo ships of war, in the following terms.

"Your High Mightinesses having thought proper by your resolution of the 17th of this month, which came to us the 22d, to require us to present to your High Mightinesses, without influencing, however, in anything the deliberations of the confederates, a petition for the sum of two million six hundred and twenty thousand five hundred and ninetyeight florins, to assist towards the one half of the necessary expense for an extraordinary equipment of fiftytwo vessels of war and frigates, which are to be put in a condition of service by the first of May, as well as of other articles more fully particularised in the report contained in the resolution of your High Mightinesses, and in the estimate enclosed with it, which we flatter ourselves were made with all possible accuracy, while the funds necessary for the half of the equipment abovementioned, will be found in the produce of certain duties.

"We have been the more zealous not to delay giving satisfaction to the requisition of your High Mightinesses, as we consider the said plan, as tending to accomplish what has been for so many years represented and advised, as well by His Serene Highness as by us, in general petitions addressed successively to your High Mightinesses, as well as to the confederates, that is to say, to put the Republic in a more respectable state of defence, by augmenting her marine and troops, an object upon which it has been again insisted in the petition of the current year, which employed such reasons and such urgent motives to this purpose, that expressions now fail us for adding anything to what has been already said; and persuaded, moreover, as we are, that the circumstances and facts, such of them as have passed in a manner so remarkable, render useless and superfluous all further reasonings, in such sort, that all these details being already perfectly understood, as well by your High Mightinesses as by the confederates, we think we may depend upon this knowledge, in expectation of the definitive resolutions of your High Mightinesses, equally salutary and unanimous, and the effect of which will be to prevent and ward off the new misfortunes, which may threaten the Republic; assured, moreover, and persuaded, that the serious intention of the confederates is to accomplish the equipment proposed with all that depends upon it, and that to this end, their High Mightinesses will be pleased, not only to give their consent to the petition of two millions six hundred and twenty thousand five hundred and ninetyeight florins, formed by the present, but also, what is more important, to furnish as soon as possible their quota to the general treasury, by which means the colleges of the Admiralty, whose duty it is to attend to the equipments, may be possessed of the means necessary to this operation at convenient periods; which will be thought more indispensably necessary, on casting an eye on the reasons more amply alleged in the report of the colleges of the Admiralty, and expressed in the resolution of your High Mightinesses, the 17th of February, to which we refer."

MEMORIAL.

On the twentyfirst of March, 1780, Sir Joseph Yorke, the British Ambassador, presented a Memorial to their High Mightinesses, of the following tenor.

"High and Mighty Lords,

"The King, my Master, has always cultivated the friendship of your High Mightinesses, and has always considered the alliance, which has so long subsisted between the two nations, as founded upon the wisest principles, and as essential to their mutual prosperity. The principal objects of this alliance, which stands upon the immovable basis of a common interest, are the safety and prosperity of the two States, the maintenance of the public tranquillity, and the preservation of that just balance so often disturbed by the ambitious policy of the House of Bourbon. When the Court of Versailles, in direct violation of the public faith, and of the common rights of sovereigns, had broken the peace, by a league made with the rebel subjects of his Majesty, avowed and declared formally by the Marquis de Noailles; when, by immense preparations, France manifested her designs of annihilating the maritime power of England, the King expected that your High Mightinesses, too enlightened not to see, that the safety of the Republic is closely connected with that of Great Britain, would have been zealous to come to his assistance. One of the first cares of his Majesty was, to inform your High Mightinesses of all the circumstances of this unjust war; and in the critical situation in which the King found himself he did not forget the interests of his ancient allies; but, on the contrary, has shown the most sincere desire to favor the commerce and the free navigation of the Republic, as much as the safety of his people could permit. He even desisted a long time from demanding the succors stipulated by the treaties, fulfilling thus his own engagements, without insisting on the accomplishment of those of your High Mightinesses. The demand was never made, until after the united forces of France and Spain showed themselves ready to fall upon England, and there attempt a descent by the assistance of a formidable fleet. Although frustrated in this enterprise, the enemies of the King meditate still the same project; and it is by the express order of his Majesty, that the undersigned renews, at this time, in a manner the most formal, the demand of the succors stipulated by different treaties, and particularly by that of the year 1716.

"Hitherto your High Mightinesses have been silent upon an article so essential; at the same time, you have insisted on a forced construction

of the treaty of commerce of the year 1674, against the abuse of which Great Britain has protested at all times. This interpretation cannot be reconciled to the clear and precise stipulations of the secret article of the treaty of peace of the same year. An article of a treaty of commerce cannot annul an article so essential of a treaty of peace, and both are expressly comprehended in the principal treaty of alliance of 1678, by which your High Mightinesses are obliged to furnish to his Majesty the succors, which he now demands. You are too just and too wise not to feel, that all the engagements between powers ought to be mutually and reciprocally observed, and although contracted in different periods, they oblige equally the contracting parties. This incontestible principle applies itself here with so much the more force, as the treaty of 1716 renews all the anterior engagements between the Crown of England and the Republic, and incorporates them, as it were, together.

"Moreover, the subscriber had orders to declare to your High Mightinesses, that he was ready to enter into conferences with you, to regulate in an amicable manner all which might be necessary to avoid misunderstandings, and prevent every disagreeable occurrence, by concerting measures equitable and advantageous for the respective subjects.

"This friendly offer was refused, in a manner as unexpected as it was extraordinary and unusual among friendly powers; and without taking notice of repeated representations, both public and secret, upon the subject of convoys, your High Mightinesses have not only granted convoys for different kinds of naval stores, but you have moreover expressly resolved, that a certain number of vessels of war should be held ready to convoy in the sequel naval stores of every species, destined for the ports of France; and this at a time when the subjects of the Republic enjoyed by the force of treaties, a freedom and an extent of commerce and of navigation far beyond that, which the law of nations allows to neutral powers. This resolution, and the orders given to Admiral Byland, to oppose himself by force to the visits of merchant ships, have given place to the incident, which the friendship of the King would have greatly desired to have prevented; but it is notorious, that this Admiral, in consequence of his instructions, first fired upon the sloops bearing the English flag, which were sent to make the visit

in the manner prescribed by the treaty of 1674. It was then a manifest aggression, a direct violation of the same treaty, which your High Mightinesses seem to look upon as the most sacred of all. His Majesty has made beforehand repeated representations of the necessity and justice of this visit, practised in all similar circumstances, and fully authorised by this treaty. They were informed in London, that there were in the Texel a great number of vessels loaded with naval stores, and particularly with masts and large ship timber, ready to set sail for France immediately after, or under, a Dutch convoy. The event has but too fully proved the truth of these informations, since some of these vessels have been found even under this convoy. The greatest number have escaped, and have carried to France the most efficacious succors, of which she stood in the greatest necessity.

"At the same time your High Mightinesses thus aided the enemy of the King, by favoring the transportation of these succors, you imposed a heavy penalty upon the subjects of the Republic, to restrain them from carrying victuals to Gibraltar, although this place was comprehended in the general warranty of all the British possessions in Europe, and although at that time Spain had vexed the commerce of the Republic, in a manner the most outrageous and unexampled.

"It is not only on these occasions, that the conduct of your High Mightinesses towards the King, and towards the enemy of his Majesty, forms a most striking contrast in the eyes of all the impartial world. No one is ignorant of that, which passed in the too well known affair of Paul Jones. The asylum granted to this pirate was directly contrary to the treaty of Breda, of 1667, and even to the proclamation of your High Mightinesses of 1776. Further, although your High Mightinesses have kept, and still keep a silence the most absolute, with regard to the just demands of his Majesty, you have been forward, at the simple request of the King's enemies, to assure them of an absolute and unconditional neutrality, without any exception of the ancient engagements of the Republic, founded upon the most solemn treaties. Nevertheless the King would still persuade himself, that all which has passed ought to be attributed less to the disposition of your High Mightinesses, than to artifices of his enemies, who, after having excited discord among the members of the State, seek alternately by

menaces and by promises to animate them against their natural ally. His Majesty cannot believe, that your High Mightinesses have taken the resolution to abandon a system, which the Republic has pursued for more than a century, with so much success and so much glory.

"But if such was the resolution of your High Mightinesses, if you were determined to forsake the alliance with Great Britain, in refusing to fulfil the engagements of it, there would arise from this resolution a new order of things. The King would perceive such an alteration with a sensible regret; but the consequences, which would follow from it, would be necessary and unavoidable. If by an act of your High Mightinesses, the Republic should cease to be the ally of Great Britain, the relations between the two nations will be totally changed, and they will no longer have any other ties or relation than those, which subsist between nations neutral and friendly. Every treaty being reciprocal, if your High Mightinesses will not fulfil your engagements, the consequence will be, that those of his Majesty will cease to be obligatory. It is in pursuance of these incontestible principles, that his Majesty has ordered the subscriber to declare to your High Mightinesses, in a manner the most friendly, but at the same time the most serious, that, if contrary to his just expectations, your High Mightinesses do not give him, within the term of three weeks, to be computed from the day of presentation of this memorial, a satisfactory answer, touching the succors demanded eight months ago, his Majesty, considering this conduct as a departure from the alliance on the part of your High Mightinesses, will no longer consider the United Provinces in any other light than that of other neutral powers not privileged by treaties, and consequently will, without further delay, suspend conditionally, and until further orders, in regard to their subjects, all the particular stipulations of the treaties between the two nations, particularly those of the treaty of 1674, and will hold himself simply bound by the general principles of the law of nations, which ought to serve as rules between powers neutral and not privileged.

JOSEPH YORKE."

On the 24th of March, the States-General made the following answer to Sir Joseph Yorke.

"That their High Mightinesses had resolved to represent to his Britannic Majesty by the Count de Wolderen, their Envoy Extraordinary, that having seen by the memorial of the Ambassador, dated the 21st of March, that his Majesty fixed a term of three weeks to have a satisfactory answer touching the succors demanded, their High Mightinesses wished to satisfy, as soon as possible, the desires of his Britannic Majesty, by giving him a positive answer; but they foresaw, that the form of government inherent in the constitution of the Republic would not permit them to complete their answer in the time specified, as the memorial of the Ambassador, having become an object of the deliberations of the representative Provinces, it was necessary to wait the resolution of the several States, the Assemblies of which were now sitting, or about to sit; that their High Mightinesses assured themselves, that his Majesty, considering these reasons, would not persist rigorously in the time fixed, to the end, that their High Mightinesses might have that of forming in a manner conformable to the constitution of the Republic (in which their High Mightinesses had not a right to make any alteration) an answer to the memorial of the Ambassador, their High Mightinesses promising to neglect nothing for accelerating, as much as possible, the deliberations upon the subject, and they pray the Ambassador to support these representations, with his good offices, with the King, his master."

Sir Joseph Yorke, after reading this answer, replied, that whatever might be his desire to satisfy the inclinations of their High Mightinesses, the orders of the King, his master, would not permit him upon this occasion; that, however, he doubted not, that they would be equally satisfied by the representations with which their High Mightinesses had charged the Count de Wolderen at the Court of London.

I have the honor to be, with great respect, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, April 3d, 1780.

Sir,

The fermentation in England has already distressed the administration and overawed some of the members of the House of Commons, but there is room to suspect, that this is chiefly to be attributed to the approach of an election. The petitions are very far from being universal, and the congress of the sub-committees is not yet numerous.

At a meeting of these from York, Surry, Middlesex, Sussex, Gloucester, Hertford, Kent, Huntington, Dorset, Bucks, Chester, Devon, and Essex, from the cities of London, Westminster, Gloucester, and the towns of Newcastle and Nottingham, holden at the St Albans tavern, and afterwards by adjournment at the great room in King Street, St James, on the 11th, 14th, 15th, 17th, 18th, and 20th days of March, 1780, the Reverend Christopher Wyvill in the chair, a memorial was agreed on, containing reasons for a plan of association.

They affirm that there is a despotic system, and they date the commencement of it nearly from the beginning of the present reign, and they say that they have arrived at the crisis, which the wisest of the political writers marked for the downfall of British liberty, when the legislative body shall become as corrupt as the executive, they should have said more corrupt, because that is undoubtedly the fact at present, as well as the case stated by Montesquieu.

They say, that by the unhappy war with America, begotten in the first instance of this despotic system, and nursed with a view of giving completion to it, the fatal influence of the Crown has been armed with more ample means for enslaving Parliament, while the nation has visibly sunk almost into beggary. Never did any country experience so sudden a reverse from prosperity to depression. They state the fall of rents, the accumulation of taxes, and the stagnation of all credit. They then run a long course of reasoning, to show the utility, importance, and necessity, of the several things they recommended to the people of England, which are all comprehended in a few propositions.

1st. They recommend perseverance in the petitions, and an association in support of them.

2dly. A new law for taking the suffrages of the people at elections, to prevent expense and influence.

3dly. To adopt, as part of their general associations, the following propositions.

I. That an examination be made into all the branches of the receipt, expenditure, and mode of keeping and passing accounts of public money.

II. One hundred, at least, of additional members of counties in the House of Commons.

III. That the members of the House of Commons be *annually elected*.

IV. That it is recommended to all voters to support, at the next election, such candidates as shall, by signing the association or otherwise, satisfy them that they will support these regulations in Parliament.

In the Middlesex committee, at the Masons' tavern, March 24th, this circular letter and the memorial it contained were unanimously approved, and their members in the general Congress thanked. In the Westminster committee, King's Arms tavern, Palace yard, March 15th, 1780, it was resolved, "that by the resolution of the general meeting, directing this committee to prepare a plan of association on legal and constitutional grounds, to support the laudable reform, and such other measures as may conduce to restore the freedom of Parliament, this committee conceive themselves bound to enter into the consideration of every question tending to establish the independency of Parliament on a solid and durable basis. That the duration of Parliament, and the state of the representatives of the people, are questions immediately under this description; that a sub-committee, consisting of seven persons, be appointed to inquire into the state of the representation of the nation and make a report." On the 20th of March, the sub-committee reported. The report is dated the 19th. "That new Parliaments to be holden once in every year were the ancient usage, and declared to be the hereditary and indefeasible right of the people of England; that the 6th of William and Mary is the first, which attempts to appoint the time of the continuance of Parliament to be for the term of three

years, though the same act recognises the ancient laws and statutes of this kingdom, by which annual Parliaments were confirmed, and declares that frequent and new Parliaments tend very much to the happy union and good agreement of the King and people; that by the 1st of George the First, the Parliament then chosen for three years, (by acquiescence of the people to the act of William and Mary, on the faith of its declaring, that from henceforth, no Parliament whatsoever, that shall at any time hereafter be called, assembled, or held, shall have any continuance for longer than three years only at the furthest,) did pass an act to prolong its continuance to seven years; that temporary considerations are stated in the preamble to the act, as the principal motives for the act itself, that the 6th of William and Mary is worded as if declaratory of what was conceived, however falsely, to have been the constitution of the country; but that the septennial act assumes a power of altering the duration of Parliament at pleasure; that these alterations in the constitution of Parliament were made without communication with the constituent body of the people, and have been continued without the sanction of their approbation; that the septennial bill was strongly opposed in Parliament, and a direct infringement on the constitution, and a flagrant breach of trust towards the constituent body; that it was supported almost entirely on the principle of expediency; that the voice of the people appeared strongly against it, in many respectable petitions to Parliament on the occasion, and that a constitutional protest was entered by the Peers, stating, that frequent Parliaments were the fundamental constitution of the kingdom; that the House of Commons ought to be chosen by the people, and when continued for a longer time than they were chosen for, they were then chosen by the Parliament and not by the people; that they conceived the bill, so far from preventing corruption, would rather increase it, for the longer a Parliament was to last, the more valuable to corrupt ones would be the purchase, and that all the reasons which had been given for long Parliaments might be given for making them perpetual, which would be an absolute subversion of the third estate; that various motions were afterwards made and strongly supported for a repeal of the septennial act, particularly a motion for annual Parliaments in 1774, which was lost only by a majority of thirtytwo; that the city of London and other respectable bodies continued to instruct their representatives to prosecute this object in the most vigorous manner, as essentially necessary to the independency and integrity of Parliament, the

rights of the people, and the prosperity of their country; that by the 8th of Henry Sixth, the Parliament, then elected by the commonality at large, passed an act to disfranchise the greater part of their constituents, by limiting the right of election of Knights of the Shire to persons having free lands, or tenants, to the value of forty shillings by the year, at the least, which restriction has ever since continued; that many towns and boroughs, formerly entitled for their repute and reputation, to send members to Parliament, have since fallen into decay, yet continue to have a representation equal to the most opulent counties and cities, while other towns and places, which have risen into consideration, and become populous and wealthy, have no representatives in Parliament; that the number of the inhabitants of England and Wales is above five millions; that of these, twelve hundred thousand are supposed capable of voting, as the constitution stood before the restrictive act above quoted; that not more than two hundred and fourteen thousand are at present permitted to vote; that out of these, one hundred and thirty thousand freeholders elect ninetytwo members for fiftytwo counties; fortythree thousand citizens, freemen and others, elect fiftytwo members for twentythree cities and two universities, and fortyone thousand electors choose three hundred and sixtynine members for one hundred and ninetytwo towns and boroughs; that fifty of these members are returned by three hundred and forty electors; and a number scarcely above six thousand, being a majority of the voters of one hundred and twentynine of the boroughs, return two hundred and fiftyseven representatives, which is a majority of the whole English House of Commons, and the efficient representation of above five millions of people; that many of these boroughs are immediately under the influence of the Crown, as the cinque ports; many of them are private property, affording hereditary seats, as those under burgage, tenure, and some of them almost without houses or inhabitants, as Galton, Newtown, and Old Sarum; that considering the representation with reference to property, many counties return representatives out of all proportion to what they contribute to the public revenue; that Cornwall pays to land tax and subsidy, sixteen parts out of five hundred and thirty, and sends fortyfour members to Parliament, while Middlesex pays not less in proportion than two hundred and fiftysix, and sends eight members; so that the inequality of the representation of this country, with regard to property, is still greater than when estimated according to the numbers of its inhabitants." The Westminster committee

after considering this report, Mr Fox in the chair, came to the following resolutions.

"1. That annual Parliaments are the undoubted right of the people of England, and that the act which prolonged their duration was subversive of the constitution, and a violation on the part of the representatives, of the sacred trust reposed in them by their constituents.

"2. That the present state of the representation of this country is inadequate to the object, and a departure from the first principles of the constitution.

"3. That thanks be given to the sub-committee for their very intelligent report.

"4. That copies of it be sent to the several committees of the counties, cities, and boroughs of the kingdom."

I have been thus particular in stating the proceedings of these committees, because it must be an advantage for Congress to have them all in view, and to see the whole of the foundation that is laid. They are some of the most important proceedings of the present reign; they are the commencement of a new sovereignty in opposition to the old. If there is virtue or good sense in the nation, these machines will discover it and set it in motion, and provided the war continues, it will prevail; but if there is neither virtue or sense remaining, or not enough of these to produce the desired effect, it will probably be the last national effort made in favor of liberty, and despotism will range at large.

If the King would make peace now, he would dissipate all these combinations in England, Ireland, and Holland, as well as prevent the treaty with Spain, (which I believe is in a good way, from a letter which I lately saw from Mr Carmichael,) from giving advantages, to Spain, and disadvantages to England, which can never be altered. But if he continues the war long, if he should have signal successes, these may dispel the storms in England and Ireland; but if he should be unsuccessful, the new sovereignty will probably prevail against him, after involving the three kingdoms in confusion and blood.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, April 4th, 1780.

Sir,

There is an anecdote from Malaga, which ought to be mentioned to Congress, because, it cannot fail to have serious consequences.

The Swedish frigate, the Illerim, of thirtyfour guns, commanded by Captain Ankerloo, on the 28th of February, at half after eight o'clock at night met an English privateer belonging to Minorca, of twentyeight guns. The Swedish Captain, after hailing the privateer, let her continue her course, and went on quietly his own; about half an hour after the privateer returning, ranged herself astern of the frigate, and unexpectedly discharged both his broadsides, loaded with langrage, which killed three sailors, broke the thigh and the right leg of the Captain, wounded the Lieutenant and some people of the crew. Ankerloo, who in the evening had been obliged by a violent gale of wind to draw in his guns and shut up his ports, not finding himself prepared for battle, his officers took immediate measures, with the utmost alertness, for repulsing the privateer, which did in fact at last receive one broadside from the frigate; but, upon the whole, she escaped in the night, by the force of sails and of oars. After this perfidy on the part of the English, Ankerloo would have entered Marseilles for the sake of dressing his wounds, but having met with contrary winds and bad weather for three days, he put into Malaga, where he went ashore to the house of the Swedish consul, where he is since dead of his wounds.

I have the honor to be, with the greatest respect, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, April 6th, 1780.

Sir,

It may be necessary to transmit the decree of Sir James Mariott, against the Dutch ship *la Sybellina Hillegonda*, in order fully to comprehend the proceedings, which I have sent before. The decree is this.

"The fact in this case is, a Dutch ship loaded with naval stores, for a port in France, under the convoy of not less than five men-of-war, and the commander of these men-of-war, not measuring his conduct by the line of the treaty, resists, fires upon the boat of the English Commodore, and forbids the execution of the treaty. The English Commodore returns the fire. The Dutch Admiral fires again, and strikes; so that the fact is to be adjusted, and it is of such a nature as has never before happened in the history of this nation. It falls unfortunately to my share, to decide upon these facts and their consequences.

"It is, nevertheless, a consolation, that although the judge of this court may decide, in the first instance, there is still a superior tribunal, in the last resort. This court ought to judge of the case of the treaty, since, in virtue of a special commission, under the great seal of the kingdom, the judges of the courts of admiralty are authorised and required to take cognizance of, and proceed judicially in all manner of captures, seizures, prizes, and reprisals, and decide upon them according to the course of the admiralty and the law of nations.

"The claimant disdains to found his right in any other way than upon the treaty. My idea is, that all the marine treaties, which subsist between two friendly powers, form but one code of laws, one great confederation, one indivisible union. They are, if it is lawful to make use of these sacred words, the Bible, the Book, or the Testament of the social contract between the nations, to be maintained inviolably, as a system, whereof we cannot break one part without dissolving the whole.

"The Dutch subjects have, in virtue of the treaty, particular privileges, superior to those of every other country, but they may overleap the bounds of these privileges, and from that time they ought to be weighed in the balance, like other neutral nations. To be found under a convoy is not, in itself, an infraction of the treaty, but the conduct of this convoy is to be considered.

"The fifth article of the treaty of 1674 is reciprocal. 'If any ship, belonging to the subjects of his Majesty of Great Britain, shall in open sea, or elsewhere, out of the dominions of the said States, meet any ships of war of the Lords the States, or privateers belonging to their subjects, the said ships of the Lords the States, or of their subjects, shall keep at a convenient distance, and only send out their boat, with two or three men only, to go on board such ships or vessels of the subjects of his Majesty, in order that the passport, or sea-brief, concerning the property thereof, according to the form hereunder annexed, may be produced to them, by the captain or master of such ship or vessel, belonging to the subjects of his Majesty; and the said ships, so producing the same, shall freely pass; and it shall not be lawful to molest, search, detain, or force such ship from her intended voyage. And the subjects of the Lords the States shall enjoy in all things, the same liberty and immunity, they in like manner showing their passport, or sea-brief, made out according to the form prescribed at the foot of this treaty.'

"The sixth article is, 'If any ship or vessel, belonging to the English or other subjects of Great Britain, shall be met making into any port belonging to an enemy of the Lords the States, or, on the other side, if any ship belonging to the United Provinces of the Netherlands, or other subjects of the Lords the States, shall be met in her way, making into any port under the obedience of the enemies of his said Majesty, such ships shall show, not only a passport, or sea-brief, according to the form hereunder subscribed, wherewith she is to be furnished, but also her certificate or cocket, containing the particulars of the goods on board, in the usual form, by the officers of the customs of that port, from whence she came; whereby it may be known whether she is laden with any of the goods prohibited by the third article of this treaty.'

"Such are the terms of this treaty, which this court will not declare to be now in force; but one of the parties may renounce it; and it would be from

that time, so far forth, a good cause of annulling it. It could not ever have been the intention of the contracting parties, that the merchant ships of the subjects of the States should become the transport vessels for the service of the King of France, nor that the men-of-war of the States should serve as a convoy to them. It is impossible to form an idea more unworthy of the sovereignty of the States. The idea of granting a convoy to all Dutch ships destined for the port of an enemy is offensive, and still more aggravating, when accompanied with resistance, or orders to resist, when they go so far as to reject *ipso facto* all the ordinary ways of public justice, and to set at nought the articles, which had been established to prevent the consequences of the intervention of neutrals, as parties in a war, by public acts; articles which stipulate a legal procedure for discussing all the points in controversy, before the courts of admiralty reciprocally; and in case the parties should not be satisfied, they ought to be finally heard by their respective sovereigns in council. Such is the tenor of the twelfth article of the treaty of 1674.

"In the present state of the cause, this court will not say, nevertheless, that the States have annulled the treaty; because the orders of Admiral Byland have not appeared, and his conduct may be disavowed by the States; but even the granting of a convoy, and above all of a squadron, is essentially offensive, since the Dutch subjects are already sufficiently armed by the treaty, and by the methods of redress prescribed, which are the same with all maritime nations. The party complaining follows the ship and the papers, which she has on board, into the jurisdiction of the place and country where he is carried, as the subject, who in the nature of things and proceedings, can only of necessity be judged there, where the original proofs exist; the judges specially constituted, for the decision of prizes, both in the first instance and in the last resort, are, by common consent, charged to hear and determine all national differences between powers who are friends and allies, like the Council of Amphyctions in ancient Greece. But seamen do not well comprehend this language. They speak roughly, like the mouths of their cannons. If this vessel had fired upon the boat, and any one had thereby lost his life, I think I should not have hesitated to condemn her upon general principles. Neither Admiral Byland, nor his instructions, are before me. I know not how to give a sentence against him or his vessels; nevertheless, he ought not to have fired upon the boat of Commodore

Fielding; but he was bound to send to him his boat, and to propose an interview and an amicable conference. He might have made him a visit, which he immediately would have returned; and all the captains of the Dutch merchant ships might have been ordered on board the English Commodore, to produce their passports and cockets. The effect of his resistance is thus the cause, that, although I do not declare the treaty null generally, nevertheless, in retaliation to these vessels taken in time of resistance, I ought to declare the ship forfeited of its privilege, and foreclosed of the treaty, by the act of M. Byland. There was certainly never any vessel under convoy without instructions, at least in her course, and without signals. If the claimants had not withheld them, it would have appeared, whether the Dutch Admiral ought, or ought not to have escorted these ships even into the ports of France, which would have aggravated the offence against the treaty. A convoy of a single ship, destined for the States, destined for the Colonies of the States, or loaded generally with innocent commodities, is, in itself, inoffensive; because, in these times, there are in all the seas little pirates, furnished with all sorts of commissions, American, French, Spanish, and English; but a squadron of a line of battle ships, and which appears force [?] even to the treaty, which they claim the benefit of, is a serious affair. To engage in hostilities is not the way of protecting commerce; and those who have solicited the States to grant such a convoy, were rather factious Americans, or intriguing French politicians, than solid, sensible Dutchmen, true and real friends of their country. There is certainly among them a number of worthy people, who can never desire to become, in fact, a Province, under the obedience of the King of France, or his resident Minister.

"The case of the Swedish convoy is not applicable to this case. That convoy had not made any resistance. The ships entered the Downs by the bad weather, and were there taken without their convoy, which came to anchor near them. This was represented, and the course of justice was followed. The ship's papers were produced directly in this court, the requisites were done, and the causes finally discussed according to the style of the admiralty, *velo levato*; no time was lost, either in contesting the justice or demanding right; and the captains of the ships returned contented with their vessels after they had been paid the freight, as well as the expense; and the naval stores, which they had on board, were purchased by the government,

by virtue of powers granted to the Council of the Royal Marine, by act of Parliament, in conformity to acts of Parliament in former wars.

"The question, whether the hemp and flax are contraband, is clear. Both of them have been adjudged such on all former occasions, when the quantity has been considerable, and particularly, when they are not of the produce of the country of the party which carries them. The flax is as necessary for sails, as the hemp for cordage; and if this court has once ordered that flax should be sold to the Commissioners of the navy, it was because it was of little value, and in very small quantity. I am sorry to learn, that the Navy Board makes any difficulty upon this subject. The iron on board was only for ballast."

I cannot go through with the whole of this decree for want of time; but the following curious and convenient doctrine ought not to be omitted.

"That, which in the natural or intellectual world is called quality, is not relative. Good and evil are relative. Everything is what it is, and acquires its denomination from comparison, degree, manner, quality, place, time, person, fault, &c. &c. These relations constitute the metaphysical essence of every complex idea in the human understanding. Hence that source, without end, of disputes, the glory of the bar, and of the schools of philosophy.

"Grotius and Bynkershoeck agree, and who is there that will deny, that necessity gives a right to make ourselves masters of everything, without the seizure of which a nation cannot defend herself? As in relation to want, if the enemy, on one part, is in want of stores, the want to intercept them on the other is equal. And in relation to blockades, every port of the enemy is blocked relative to a neutral vessel loaded with stores, which is seized, and, by consequence, blocked, or hindered to go there. It imports little, that whether the blockade be made across the narrows at Dover, or off the harbor at Brest, or L'Orient. If you are taken, you are blocked. Great Britain, by her insular situation, blocks naturally all the ports of Spain and France. She has a right to avail herself of this situation, as a gift of Providence.

"In fine, it is necessary to observe, that the claimants, founding themselves upon the privilege of the treaty, have not a single paper on board to prove the property of the cargo, in which respect all are defective. The sentence

then, is, that, under the circumstances of this case, the claim of privilege is rejected, and that the Dutch master be enjoined to produce his sailing orders, and certificates and cockets from the Custom House of the port from whence the ship sailed, according to the stipulations of the sixth article of the treaty of 1674. The hemp and flax are condemned as contraband on board of this ship, and the owners of the iron are held to prove their property."

I have the honor to be, with the greatest respect, Sir, your most obedient and most humble servant,

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, April 7th, 1780.

Sir,

There are several articles of intelligence today, which are connected with the subject of my letter of yesterday. One is from the Hague, the 2d of April. "Thursday night last two couriers from Petersburg arrived here, alighted at the hotel of the Prince Gallitzen, the Envoy Extraordinary of her Majesty the Empress of all the Russias to the States-General. One of the couriers set off immediately for London, to the Russian Minister who resides there. The Prince Gallitzen having been in conference the next day with the President of the Assembly of their High Mightinesses, relative to the said despatches, this Minister sent back, the next night after his arrival, the same courier. From that time the report runs, that the object of these despatches was to communicate to the Republic the measures taken by Russia, with some of the northern powers, for ensuring respectively the safety of the navigation and commerce of their subjects, and to invite the States-General to enter into the same arrangements."

The other is from Constantinople, the 14th of February. "The privateers continue to vex the neutral ships in the seas of the Grand Seignior, by visiting and stopping them wherever they find them, and even without any discretion, at the entry of the ports and under the guns of our fortresses. The French frigate, the Gracieuse, which lay at anchor in the road of Cyprus, having learned that an English privateer had brought into the port of this island a French prize, sent to her some boats armed to retake her, which they could not accomplish, however, without having some men killed on both sides. The English consul having carried his complaints to the government of the Island, of a violation of the laws of nations and demanded assistance, he was so well succored, that the French were obliged to abandon the prize, and all of their nation who were in the island came very near being massacred by the Turks. As the Porte has also been informed, that on the other hand the ship Smyrna, of Rotterdam, has run a risk of undergoing the same fate with the ship of Captain Kinder, of Amsterdam, and perhaps to suffer treatment still harder, and in sight of the city of Smyrna; she has not only resolved to send new orders to all the commandants, to enjoin them very seriously to observe a neutrality the most exact, by fulfilling their duty, but she has also testified her sensibility in regard to all these depredations to the Ambassadors of the Courts of France and England, by sending to them last Saturday a representation in writing, purporting, that as the Porte had not failed to observe, during the war between France and England, an exact and perfect neutrality to facilitate their commerce upon an equal footing, and to afford to their ships all possible safety in her seas, it was natural that she should, and ought to expect, that the two powers would answer her conduct with a sincere friendship. That at the news of the first differences arisen between the two kingdoms, there were conferences held with their Ambassadors, in which it was agreed upon an equal footing; that the rules of the sea should not be violated, and that they should be, on the contrary, exactly observed and respected. That in consequence of this agreement, the Porte had not neglected anything to fulfil of fortresses and castles in the empire, to protect the ships of war and merchant-men against every attack, and not to suffer that any hostilities should be commenced in the ports of the Grand Seignior, and under the cannon and in sight of his fortresses.

"But in spite of all these measures, these powers had not taken care to observe them, which was the cause that no nation could now navigate freely and safely; that even to this time, the Porte had not received the least answer on the subject of a regulation of neutrality, which had been formed upon the footing of that which had been established during former wars between Christian powers, and of which communication had been made to the said Ambassadors, with a view to put a stop to the intolerable irregularities which had taken place in his seas, and to the end to prevent in consequence continual complaints and representations. That the Porte was informed foreign privateers held his ports blocked up, and forced the ships which entered into them or went out, without even excepting the Turkish vessels, to submit to their unjust visits and searches.

"That such a conduct, being contrary to the honor of the empire, the Porte ought to determine, as soon as possible, and communicate to the belligerent powers a good regulation, to the end, to procure by that means repose, to his subjects, whom Providence had confided to his care, and to this end it was necessary, that the Ambassadors of these two powers should be advertised to request their Courts, in the first place, to send, as soon as possible, to the captains and officers of ships armed for war, or privateers, precise orders, and as some time must pass before they can receive such orders, the Porte hopes that the gentlemen, the Ambassadors, will be so good in the meantime, as to order the captains and officers to suspend their operations, and abstain from all acts of hostility.

"And as, in consequence of the ancient regulations, every time that any vessels of war or armed ships come into the seas of the Grand Seignior, the foreign Ministers were held to give notice to the Porte of the object of their expedition or voyage, of their destination, and of the time they were to stay, it could not but be regarded as unreasonable, and entirely contrary to the reciprocal friendship, if these formalities should not be observed, the Porte, considering it as one of its principal duties, to employ all possible means to procure the tranquillity of its merchants, to protect their possessions against all force and injustice, as also to grant its protection to the subjects of the belligerent powers, and those of other powers who are equally good friends of this empire."

The Porte finishes, by giving notice to the Ambassadors, that the Capitan Pacha was ordered to oppose himself in a friendly manner to the enterprises of those, who should pursue the ancient proceedings, and to protect the merchants and the ships of all nations, who carry on commerce in the countries of this empire, whose sovereigns live in friendship with the Porte.

A third is a letter from Petersburg, 7th of March. "The rencounter which the Dutch convoy, on going out of the Texel the later end of December, under the command of Admiral Byland, had with the English squadron under Commodore Fielding, as well as the violent and hostile manner in which they made prize of this convoy, have occasioned here the greatest astonishment, and it is very much desired to know the consequences of this measure, which is generally considered as very offensive to the Republic of the United Provinces, and derogatory both to the treaties subsisting between the two nations, to the law of nations, and to the respect which ought to take place between two free and independent powers."

But that which is thought more extraordinary still, is, that the Court of London should have ordered a step so violent and insulting at a time when, having to maintain a war so dangerous as that against France, Spain, and the United States of America, her situation must appear not less anxious than dangerous, which this Court itself seems to acknowledge, by representing as she has done, that not finding herself in a condition to oppose the dangerous designs of the House of Bourbon, which, if you believe her, threaten the safety of all Europe, she believed herself consequently to have cause to demand succors here, as well as from the Republic of the United Provinces. However this may be, it is nevertheless notorious, that the solicitations of England have produced no effect here, which has given no small satisfaction to those, who consider in their proper point of light the designs and the conduct of this power, since the commencement of this war against the liberty of commerce and the navigation of free and independent powers, by means of which people in general seem so much the more pleased with the present resolution taken by her Majesty the Empress of all the Russias, relative to the said solicitation, as well as with the system of neutrality, which she has adopted, because without this wise measure there is no doubt but Great Britain would have pushed much further the irregularity of her proceedings.

The English, who are here, exert themselves as much as they can to justify and even to praise this proceeding of their nation towards the said convoy, but in vain have they attempted to induce the public to adopt this error, by advancing boldly, that the Court of Russia approves the violence, which they have exercised in this rencounter. No man believes them, since in fact it is impossible that the Empress can approve an action so diametrically opposite to the tenor of treaties, to the law of nations, as well as to the dignity of a sovereign and independent power, the injustice of which is so notorious, that if it had been committed with similar circumstances upon the Russian flag, the Princess herself would have been the first to have condemned it. Thus the reports, which the English propagate here, of the approbation given to these proceedings, imply so much the more of a manifest contradiction to the sentiments and manner of thinking of the Empress and her Ministers, that it is well known, that from the beginning of the present troubles, the Court of Russia has made representations and complaints against that of London, for the violent and arbitrary manner of acting, which this last has indulged herself in, against the navigation and commerce of neutral powers, from whence it has resulted, that other nations, in imitation of this proceeding, have embarrassed business more and more, until there exists no safety for any, which causes the greatest embarrassment to merchants and the freighters of ships.

I ought to add to this letter, that the English emissaries, who propagate false news everywhere and about everything, having circulated a report, that the Porte was discontented with the peace made with Russia, the Grand Seignior thought it necessary to order the interpreter of the Court to declare to all foreign Ministers, that the Sultan and all his Ministers had every reason to be very well satisfied with the accommodation with the Empress of Russia, and that he was determined to maintain religiously all the articles contained in that treaty. All these things tend to show, that the state of Europe continues the same, and that England, instead of getting an ally, is likely to have a combination of all maritime powers to bring her to reason.

I have the honor to be, &c.

JOHN ADAMS.

**TO WILLIAM CARMICHAEL, SECRETARY OF THE
AMERICAN EMBASSY AT MADRID.**

Paris, April 8th, 1780.

Sir,

I have this moment the honor of your letter from Madrid of the 29th of February, as I suppose, although the month is not mentioned. I thank you, Sir, for commencing a correspondence, which I have for some time wished to begin. I wrote to Mr Jay at Madrid, on the 22d of February, and wish to know if he has received the letter. It is certainly proper, that those who are intrusted abroad should maintain a correspondence and cultivate a good understanding with each other, because, although their departments are in some respects separate, yet in others they are intimately connected. From all that I heard in Spain, I expected, that you would meet with an agreeable reception at Madrid; and I am much pleased to learn from you, that I was not mistaken.

I have sometimes wondered at the slowness of Spain in making a treaty with us; but, when I reflected upon a certain secret article, my surprise ceased. We are already bound in a treaty to her, but she is not bound to us. It would be ungenerous in her, however, to hold us long in this situation. The treaty, notwithstanding all that has been justly said of the advantages to us, is not less advantageous to our allies. The single article, that binds us to exclude all armed vessels of the enemies, in all future wars, from our ports, is worth more millions to them than this war will cost; nay, it will be a severer loss to Great Britain, than all that she has spent in it. Whether Great Britain has considered this or not I do not know; but she will some time or other discover it, and feel the inconvenience of it.

You ask for news from America. A vessel from Baltimore is arrived at Bordeaux, but not a single letter to Dr Franklin or me. She brings two or three Baltimore newspapers, one as late as the 15th of February. There has been a hard winter, deep snows, uncommon frosts, frozen over from

Connecticut to Long Island, and from New Jersey to Staten Island. Lord Sterling went over to Staten Island with a party on the ice, burnt a few vessels and a guard house, took a few prisoners, and brought off a few deserters. Some New Jersey people went over at the same time, and plundered without mercy. Finding the communication open with New York, which had been supposed to be obstructed by the ice, he returned. An article from a Fishkill paper says, that Clinton and Cornwallis sailed the 26th of December, with seven thousand men, for the West Indies, but that the storm, which happened soon after their departure, was supposed to have done him mischief. A ship, brig, and schooner were lost in the storm on Cape Cod, unknown who or whence, all perished. Congress had recommended to all the States to regulate prices at twenty for one, which, by the speculations in the papers, was not well liked. Governor Johnson is a delegate for Maryland, General Ward for Massachusetts, in the room of Mr Dana, (who desires me to return you his compliments and respects.) The other delegates as last year. This is all the news I can recollect, having seen the papers only a few minutes in a large company.

The general state of affairs appears very well. I see no probability of England's obtaining an ally; on the contrary, there are many symptoms of an approaching combination of the maritime powers, to protect neutral ships from searches and insults. Ireland is in the full career of independence. England seems determined to force Holland into a war against her, that she may have an opportunity to plunder her.

The correspondences and associations in England distress the Ministry very much; and, if the war continues and they should not be very successful, it seems likely, that they would save us the trouble of despatching them. I wish, however, that France and Spain were more convinced of the advantages they have in America and the West Indies. The more ships they send into those seas, the more they will force England to send there; and the more she sends there, the weaker she is in Europe, and the less she is dreaded and respected. Holland, Ireland, the opposition in England, and the other maritime powers all feel a confidence rising in proportion to the diminution of the British naval force in Europe, besides the innumerable advantages the French and Spaniards have, in supporting the war in the American seas over the English, which they have not in Europe; but I am apprehensive of being tedious. My compliments to Mr Jay and his family.

I am, with much respect, your most obedient and humble servant,

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, April 8th, 1780.

Sir,

It will not be disagreeable to Congress to see a list of the naval losses of the English, since the commencement of the war.

Taken by the Americans and the French.

	Guns.		Guns.
Active,	82	Experiment,	50
Fox, 1st,	20	Montreal,	32
Fox, 2d,	20	Alert, cutter,	14
Lively,	20	Ceres,	18
Hellena,	16	Countess of	42
schooner,		Scarborough,	
Ardent,	64	Liverpool,	28
Thorn,	16	Unicorn	20
Drake,	20	Ariel,	16
Minerva,	32	Folstone, cutter,	6
Serapis,	44	Holderness, destroyed,	4

Lost, or cast away.

	Guns.		Guns.
Somerset,	64	Mermaid,	28
Arethusa,	32	Glasgow, burnt,	20
Speedwell,	14	Vestal,	20
Acteon,	32	Mercury,	20

Repulse,	32	Quebec, blown up,	32
Viper,	16	Grampus,	
Success,	24	Tortoise,	
Pomona,	18	Leviathan.	

Burnt, sunk, or otherwise destroyed, to prevent their falling into the Hands of their Enemies.

	Guns.		Guns.
Augusta,	64	Cerberus,	28
Lark,	14	Syren,	28
Juno,	32	King Fisher,	14
Flora,	32	Falcon,	18
Orpheus,	32	Essex,	64

Making a total number of fortysix vessels.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, April 10th, 1780.

Sir,

There are several miscellaneous articles of intelligence, which ought to be mentioned to Congress.

One from Copenhagen, of the 25th of March. "The Count de Lucchese, Minister of the King of the Two Sicilies, and charged at the same time with the affairs of the Court of Madrid, has received orders to declare to ours, that the King of Spain had it in contemplation to make arrangements relative to merchant ships of neutral powers, and with which we should

have cause to be very well pleased. However this may be, we have not any news that the Danish ships detained, to the number of twenty, at Cadiz and Malaga, have been as yet released, which is a great damage to those who are interested in those vessels.

"There is arrived in this city a courier coming from St Petersburg, who has also passed through Stockholm, who after having delivered his despatches to the Envoy Extraordinary of her Majesty, the Empress of all the Russias, at this Court, immediately continued his journey for Hamburg."

Another is from Madrid, the 13th of March. "It is said that our Court will soon publish a new regulation relative to the Dutch navigation. In the meantime, they have released two ships of this nation, viz. the Griffin and the Zandam, which were detained at Algeziras.

"The register ships destined for the Havana and Vera Cruz, which are ready at Cadiz, are to sail immediately; these ships will be convoyed by twelve ships of the line and two frigates, as far as the Canary Islands. It is assured, that there will be embarked on board of this fleet, twelve thousand men, who are to be transported to America under the command of Don Victa de Nava, Lieutenant General. The last letters from the Havana import, that there were in that port fourteen ships of the line, as well as four thousand men ready to embark for an expedition, the object of which is yet unknown. Two of our cruisers have entered Barcelona with five very rich prizes, among which, one had on board eighteen thousand guineas, destined for Mahon."

Another from Paris. "Letters from Malta of the 11th of February inform, that the King's frigate, the Syracuse, commanded by M. Clavel, off Candia, has taken the English cutter, the Buck, of twentyfour guns, twelve swivels, and two hundred and three men, commanded by Captain George Flagg, and that the bad condition to which the engagement had reduced her, had induced him to sink her."

Another from Francfort, of the 1st of April. "They write from Hesse, that they continued to raise many recruits, and that there were at Ziagenham six hundred and eight volunteers, who were to set off in a little time with eleven hundred and twenty men for America."

Another from Amsterdam, of the 6th of March. "We learn from Dort, that they expected there the English vessels destined to transport the German troops for the service of England, which were still at Nimeguen; and they write from the Hague, that General Faucet had arrived there a few days since."

Another from London, of the 31st of March. "The despatches, which the Court has last received from Sir Joseph Yorke, excite the particular attention of the Ministry. Although the contents of them have not yet been made public, it is said, nevertheless, that in consequence of the memorial, presented on the 21st to the States-General by the British Minister, their High Mightinesses have taken the *Pre-avis*, relative to the succors demanded by Great Britain, which, although conceived in very moderate terms, contains, nevertheless, a refusal to furnish the succors demanded. The Republic, as it is pretended, founding its inability to comply with this demand principally upon the non-existence of the case of invasion of the British States, as a case, which alone could lay them under obligation to accede to the requisition of the King of England, the Count de Welderen, Envoy Extraordinary of the States-General, has been on the 29th in conference with Lord Stormont, and communicated to him the *Pre-avis* of their High Mightinesses, relative to the requisition of his Britannic Majesty, upon the subject of which the States-General will soon take a formal resolution. It is reported also, that his Excellency has likewise imparted to our Ministry the sentence of a court martial, which has adjudged, that Count Byland was not the aggressor in the affair of the seizure of the Dutch ships by Commodore Fielding. However, it is asserted, that the Court of St James has declared afresh, "That if the States-General refuse to furnish to England the succors demanded in virtue of the treaties, she will give orders to search, without distinction, all Dutch ships under convoy and without convoy, and that all the merchandises and effects destined for the French and Spaniards, which shall be found loaded on board of these vessels, shall be seized and confiscated; adding, that it is neither just nor reasonable, that the Republic should be excused, on her part, from the observation of the treaties, while England should be held on hers to fulfil the conditions, and that thus, in consequence of her former declaration, the Republic should be no more considered but on the footing of other neutral powers.'

"They say, moreover, that the reasons alleged by their High Mightinesses in justification of their refusal to acquiesce in the demand of England, are of a nature to convince our Ministry, that such an acquiescence would produce consequences equally hurtful to the respective interests of the two powers in the present conjuncture.

"We are assured, that each man of the crews of the squadron of Commodore Fielding, will receive more than nine pounds sterling, for his share of the proceeds of the captures made of the Dutch convoy, and that there will be two hundred pounds sterling paid to the King's ships at Spithead, for their part of the prizes which they have made.

"The Court has received, within a few days, a great number of despatches from its Ministers at foreign Courts, the contents of which have given occasion to several cabinet councils. Those of Sir Joseph Yorke have excited a particular attention.

"The officers of all the vessels of war destined for sea, have received orders to repair on board as soon as possible, and be ready to sail on the first notice. The officers of the regiments of regular troops, and of the militia, must also join their respective corps without delay, that they may be ready to march by the middle of April. The forces will encamp nearly in the same place as last year; and there will be some detached corps ready to join the different camps according to circumstances."

I have the honor to be, with the greatest respect and esteem, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, April 10th, 1780.

Sir,

The *Memoire* of the Prince Gallitzen, Envoy Extraordinary from the Empress of all the Russias to the States-General, presented the third of this month, is of too much importance to the United States of America, and their allies, to be omitted to be sent to Congress. It is of the following tenor.

"High and Mighty Lords,

"The undersigned, Envoy Extraordinary of her Majesty, the Empress of all the Russias, has the honor to communicate a copy of the declaration, which the Empress, his Sovereign, has made to the powers actually at war. Your High Mightinesses may regard this communication, as a particular mark of the attention of the Empress to the Republic, equally interested in the reasons which have given birth to this declaration.

"He has, moreover, orders to declare, in the name of her Imperial Majesty, that how much soever she may desire, on the one hand, to maintain during the present war the strictest neutrality, she will, nevertheless maintain, by means the most efficacious, the honor of the Russian flag, and the safety of her commerce, and the navigation of her subjects, and will not suffer that any injury should be done to it by any of the belligerent powers. That to avoid, on this occasion, all misunderstanding or false interpretation, she has thought it her duty to specify in her declaration the terms of a free commerce, and of that which is called contraband; that if the definition is founded upon notions the most simple, the most clear, and the most determinate by the law of nature, that of the latter is taken by her literally from the treaty of commerce of Russia with Great Britain; that by this she proves incontestably her good faith, and her impartiality towards both parties; that she thinks, consequently, that she ought to expect, that the other commercial powers will be earnest to accede to her manner of thinking relative to the neutrality.

"In pursuance of these two views, her Majesty has charged the subscriber to invite your High Mightinesses to make a common cause with her; insomuch, that this union may serve to protect commerce and navigation, observing at the same time the most exact neutrality, and to communicate to you the measures which she has taken in consequence.

Similar invitations have been already made to the Courts of Copenhagen, Stockholm, and Lisbon, to the end, that by the common cares of all neutral maritime powers, a neutral system, founded on justice, and which, by its real utility, may serve as a rule for future ages, may be established and made legal in favor of the commercial navigation of neutral nations. The subscriber makes no doubt, that your High Mightinesses will take into consideration the invitation of her Imperial Majesty, and concur in making, without delay, a declaration to the belligerent powers, founded upon the same principles with those of the Empress, his sovereign, by explaining your sentiments at the same time upon the subject of the protection of your commerce, of your navigation, and of the nature of contraband goods, conformably to the terms of your particular treaties with other nations. Moreover, the subscriber has the honor to assure your High Mightinesses, that if, for establishing solidly a system, equally glorious and advantageous to the prosperity of navigation in general, you will commence a negotiation with the neutral powers abovementioned, to the end to establish a particular convention upon this subject, the Empress, his sovereign, will be ready to engage in it.

"Your High Mightinesses will readily perceive the necessity of coming to a resolution upon subjects equally important and advantageous to humanity in general.

"The subscriber requests the favor, that your High Mightinesses would furnish him with a speedy answer.

GALLITZEN."

DECLARATION

Of her Majesty, the Empress of Russia, made to the Courts of Versailles, Madrid, and London, mentioned in the foregoing Memorial.

"The Empress of all the Russias has manifested so visibly the sentiments of justice, equity, and moderation, which animate her, and has given, during the whole course of the war maintained against the Ottoman Porte, such convincing proofs of her attention to the rights of neutrality, and the freedom of commerce in general, that, in this respect, she may appeal to the testimony of all Europe. This conduct, as well as the scrupulous exactness with which she has observed the rules of neutrality during the Course of this war, has given her room to hope, that her subjects would peaceably enjoy the fruits of their industry, and the advantages, which belong to all neutral nations. Experience has, however, taught her the contrary, since neither these considerations, nor the regard due to what the law of nations in general prescribes, have been able to hinder the subjects of her Majesty from being oftentimes troubled in their navigation, or interrupted or retarded in their commerce, by the subjects of the belligerent powers. These interruptions having come upon business in general, and that of Russia in particular, are of a nature to awaken the attention of all the neutral nations, and oblige her Majesty, the Empress, to seek to deliver herself from them by all means suitable to her dignity and the well being of her subjects.

"But before she shall put them in execution, being filled with a sincere desire to prevent all subsequent acts of violence, she has thought that it was consistent with her equity to lay open to all Europe the principles, which will govern her, and which are indispensable to prevent all misunderstanding, as well as all which might give occasion to it. To this she has determined herself with so much the more confidence, as these principles are drawn from the primitive law of nations, and adopted by all nations, which the belligerent powers themselves cannot enervate, at least not without violating the laws of neutrality, and contemning the fundamental rules which they themselves have adopted, in divers treaties and alliances now existing.

"ARTICLE I. That all neutral vessels ought to navigate freely from one port to another, as well as upon the coasts of the powers now at war.

"ARTICLE II. That the effects belonging to the subjects of the belligerent powers shall be free in neutral ships, excepting always contraband goods.

"ARTICLE III. That her Imperial Majesty, in consequence of the limits above fixed, will adhere strictly to that which is stipulated by the tenth and eleventh articles of her treaty of commerce with Great Britain, concerning the manner in which she ought to conduct towards all the belligerent powers.

"ARTICLE IV. That as to what concerns a port blocked up, we ought not in truth to consider as such any but those, which are found so well shut up by a fixed and sufficient number of vessels belonging to the power which attacks it, that one cannot attempt to enter into such port without evident danger.

"ARTICLE V. That these principles above laid down ought to serve as a rule in all proceedings, whenever there is a question concerning the legality of prizes.

"From these considerations, her Imperial Majesty makes no difficulty to declare, that wishing to insure the execution of that, which is herein before declared, to maintain at the same time the honor of her flag, as well as the safety of the commerce of her States, and also to protect the navigation of her subjects against all those whom it may concern, she has given orders that a considerable portion of her maritime forces shall be put to sea, with no other intention than to insure the observation of the most exact and the most strict neutrality, which her Majesty proposes to keep as long as she shall not see herself absolutely forced to depart from that system of moderation and of perfect neutrality, which she has adopted; in such sort, that it will not be but in the last extremity, that her fleet will exercise her final orders to go wherever the necessity and the circumstances may require.

"It is then by assuring the belligerent powers in the most solemn manner, and with all that rectitude and sincerity, which form the distinguishing character of her Imperial Majesty, that she declares to them that she proposes to herself no other thing, than to convince them of the sentiments of equity with which she is animated, as well as of the tendency of her salutary views towards the well being of all nations in general, and particularly of those now at war, and that consequently her Imperial Majesty will provide her Admiralty as well as her Generals with

instructions relative to this system, extracted from the code of nations, and which they have so often taken for rules in their treaties."

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, April 11th, 1780.

Sir,

The counties in England, which have agreed to petitions upon the expenditure of public money, the influence of the Crown, and the corruption of Parliament, are these.

York,	December	3d,	1779,
Dorset,	"	27th,	"
Middlesex,	January	7th,	1780,
Chester,	"	13th,	"
Hertford,	"	17th,	"
Sussex,	"	20th,	"
Huntington,	"	20th,	"
Surry,	"	21st,	"
Cumberland,	"	22d,	"
Bedford,	"	24th,	"
Essex,	"	24th,	"
Gloucester,	"	25th,	"
Somerset,	"	25th,	"
Wilts,	"	25th,	"
Devon,	"	28th,	"
Norfolk,	"	29th,	"
Berks,	"	31st,	"
Bucks,	February	26th,	"
Nottingham,	"	28th,	"
Kent,	March	4th,	"
Northumberland,	"	8th,	"
Hereford,	"	11th,	"
Suffolk,	"	14th,	"
Cambridge,	"	25th,	"
Derby,	"	30th,	"

In all, twentyfive counties.

The first meeting of the delegates was March the 11th, 1780. The cities and towns, which have agreed upon similar petitions, are London, Westminster, York, Bristol, Cambridge, Nottingham, Newcastle, Reading, and Bridgewater.

The counties, which have not yet agreed upon petitions, are Westmoreland, Durham, Lancaster, Salop, Stafford, Lincoln, Leicester, Warwick, Oxford, Worcester, Cornwall, and Rutland. Hants agreed on a petition, but appointed no committee, and Northampton agreed to instruct their members on the points of the petition.

This account takes no notice of the twelve Welsh counties; these, however, are small.

The counties, which have already petitioned, it seems, therefore, are a vast majority of the kingdom in numbers as well as property and understanding; and the meeting of their committees may be reasonably considered as a more equitable and adequate representation of the people of England, than the House of Commons.

Amidst all the addresses, instructions, petitions, associations, and resolutions, I never found one that dared to expose the true cause of their miseries, and to propose a remedy, until the association of the county of York appeared, which was agreed to by the committee of sixtyone, to be recommended to the general meeting of the county of York, held the 28th of March, 1780.

They declare their unanimous assent,

1st. To the economical reform requested by the petitions of the people.

2dly. To the proposition for obtaining a more equal representation of the people in Parliament, by the addition of at least one hundred Knights, to be chosen in a due proportion by the several counties of Great Britain.

3dly. To the proposition for the members of the House of Commons to be elected, to serve in Parliament for a term not exceeding three years.

But the most important resolution of all was also unanimous, "That it is the opinion of this meeting, that the prosecution of an offensive war in America is most evidently a measure, which, by employing our great and enormously expensive military operations against the inhabitants of that country, prevents this from exerting its united, vigorous, and firm efforts against the powers of France and Spain, and has no other effect upon America, than to continue, and thereby to increase the enmity, which has so long and so fatally subsisted between the arms of both, can be productive of no good whatever, but by preventing conciliation, threatens the accomplishment of the ruin of the British Empire."

This meeting, which is said to have been the largest ever known, and perfectly unanimous, gave power to the committee of association to call the

county together when they should judge proper.

After all, even this committee does not appear to see the true interest of the country, the necessity of peace. Peace alone can save them. They are for leaving America, which is a great thing; but it does not appear but that they are still for continuing the war with our allies.

An article of the 4th of April says, that commotions are reported to have arisen in the County of York, many of the inhabitants of which have peremptorily refused to pay the taxes.

Congress will observe by the paragraphs in the Morning Post of April the 1st, that they seem to be in England totally ignorant of the designs of the Empress of Russia, and of the other neutral powers.

The paper of April the 3d contains Major General Campbell's and Lieutenant Colonel Dickson's account of the surrender of the port of Baton Rouge, &c. with about five hundred regular troops prisoners of war, to Don Bernado de Galvez, the 21st of September.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, April 14th, 1780.

Sir,

Everything which tends to show the probability of a general association of the maritime powers, against the violences at sea, which the English have practised, and which other nations, after their example, have begun, and which tends to prove the justice, the wisdom, and the humanity of such an association, is worthy of observation. For my own part, I think, that the

abolition of the whole doctrine of contraband would be for the peace and happiness of mankind; and I doubt not, as human reason advances, and men come to be more sensible of the benefits of peace, and less enthusiastic for the savage glories of war, all neutral nations will be allowed, by universal consent, to carry what goods they please in their own ships, provided they are not bound to places actually invested by an enemy.

Constantinople, March the 3d. "The Porte having received the disagreeable news, that three xebecs from Malta had seized upon a large Turkish ship with a rich cargo of coffee, rice, hemp, and other productions, this advice has accelerated the departure of two men-of-war and four gallies, which will go before the fleet of the Grand Admiral, to cruise in the Archipelago, and protect the navigation of the European nations against the vexations of the French and English."

Copenhagen, March the 28th. "Captain Zagel, the courier of her Majesty, the Empress of all the Russias, is returned to Petersburgh, accompanied by Captain Socolousky, Secretary of the Russian Consul in the Sound. They are very busy here in equipping the vessels of war, the Wagrie, of sixtyfour guns, the Infodstretten, of sixtyfour, and the frigate Combord, of thirtyfour."

London, April the 4th. "There are lately arrived here interesting despatches to government from Sir Joseph Yorke, which contain some further explanations of the dispositions of the Republic, in consequence of the last Memorial presented to their High Mightinesses by that Minister, and the resolution to protect the commerce of their subjects. However this may be, there are actually in the ports of this kingdom fifty Dutch vessels seized by our ships of war, because they were found loaded with naval stores for our enemies; and, already the most of their cargoes have been adjudged good prizes. These articles being considered as contraband, and their transportation to an enemy contrary to treaties subsisting between the Republic and England."

Hague, April the 9th. "We learn, that the States of the Province of Overysse have sent to the Assembly of their High Mightinesses their instructions, relative to the two Memorials presented by Sir Joseph Yorke, the 28th of July, and the 26th of November, of the last year, the first purporting a demand of succors stipulated by the treaty of 1678, and the

second demanding an immediate and categorical answer. The contents of the instructions are, 'That their Noble Mightinesses, after having maturely reflected upon all which concerns the matter in question, especially upon the treaties existing between the kingdom and the Republics, as well as the obligations, which the two nations had mutually laid themselves under, and also in particular, upon the present situation in which this republic now stands in several points respecting her own preservation, the maintenance of her rights and possessions, and respecting the powers actually at war, judge, that the two Memorials presented by Sir Joseph Yorke may and ought to be answered in the following manner. That all the principles alleged, and the circumstances at this time existing, oblige their High Mightinesses more than ever to watch carefully their own preservation and defence, to use every effort to ward off all further dangerous consequences, and to this end, to request his Majesty not to take it in ill part, if in the critical situation of affairs, in which the least diminution of their forces might be dangerous, their High Mightinesses think themselves lawfully authorised to refuse the succors demanded by his Majesty, although these succors, considering certain engagements, the pretended application of which it would be useless at this time to search into, may be judged indispensable by his Majesty, in the firm confidence, that, in the circumstances in which their High Mightinesses find themselves, his Majesty, not disapproving, of their conduct, will desist, not only from demanding their assistance, but on the contrary, as a proof of the affection of which his Majesty had so often given them assurances, will permit them invariably to pursue that neutrality, which from the beginning of the present troubles they have adopted.'

"It is asserted, that on the Memorial presented by the Prince Gallitzen, Envoy Extraordinary of the Empress of Russia, their High Mightinesses have provisionally concluded, 'That having taken the said Memorial into consideration, the deputies of the respective Provinces have sent copies of it, as well as of the papers annexed to it, to be communicated to their Assemblies, praying them to procure, as soon as possible, the resolutions of the States, their constituents.'

"In the meantime, since the said Memorial has been made public, it is given out, that the convention between the Courts of Petersburg, Stockholm, and Copenhagen, will in a little time be confirmed, and that Denmark will

procure, on certain conditions, five or six thousand seamen for this Republic.

"We learn that the answer of his Britannic Majesty to the representations which the Count de Walderen, Minister of the States-General at the Court of London, has been charged by their High Mightinesses to make to the British Government, relative to a prolongation of the term of three weeks, prescribed in the last Memorial of Sir Joseph Yorke, for giving him a definitive answer, &c. arrived the 31st of last month, and is found to be in the negative, the King insisting on an answer by the time fixed, which will expire next Tuesday.

"They give out, that the cities of Dantzic, Lubec, Bremen, Hamburgh, &c. will adopt, as well as most of the northern powers, the party of neutrality, and that, if England persists in the practice of visiting, stopping, and searching neutral vessels, Denmark is resolved to exclude English vessels from the Sound."

To judge of things the most impartially, no man can doubt, that proceedings so violent, and so contrary to the natural rights of nations, will make the neutral powers *feel* how much it imports them to set bounds to the intolerable excesses, to which their vessels, sailing under the faith of treaties, are daily exposed by the ships of one party in the present war.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, April 15th, 1780.

Sir,

There is an article from Hamburgh which deserves attention; it is this.

"The neutrality of the powers of the north is decided. They have profited of the divisions, which have arisen between England and North America, by selling to the former, timber, cordage, hemp, and tar, which she formerly drew from her Colonies. The occasions, which the enemies of Great Britain have also had for these articles, have established a competition, which has procured great advantages to the commerce of the north. They have everywhere taken measures to protect it."

In vain has England sought assistance from that quarter; her conduct has irrevocably deprived her of it.

Leghorn, 22d of March. "We learn from Naples, that the King has purchased of the Order of Malta two vessels, to increase the marine of that kingdom. His Majesty is attentively engaged in the care of forming officers for this department. The young gentry, whom he has sent to serve on board of the squadrons of the belligerent powers, have all of them distinguished themselves; and those who remain at Naples, under the direction of the Chevalier Aston, have discovered equal zeal, intelligence, and good will, for the service of the marine."

Madrid, 25th of March. "Our squadrons, they write from Cadiz the 16th of this month, will put to sea without delay. Transport ships are taken up on freight with great activity, and all the troops are arrived. The following is an exact state of the armament.

"The complete regiments of the King, Guadalajara, Arragon, Soria, and the second regiment of Catalonia; in all ten battalions, making six thousand and six hundred men.

"The squadron of D. Solano; the St Louis, of eighty guns, the St Augustine, the Orient, the Gaillard, the Arrogant, all of seventy guns, and the Rule of sixty guns.

"The squadron of D. Tomaseo; the St Nicholas, of eighty guns, the Eugene, the Damase, the St Janizer, the St Francis, the Assisse, and the Warrior, all of seventy guns.

"The first squadron takes in provisions for five months, and the second for four months and a half. They fill up the regiments, which are destined for the expedition, with soldiers from the regiment of Hibernia.

"The beautiful wools of Segovia have not been always employed within the kingdom, because the love of labor has not been predominant; but since the establishment of the royal patriotic society, industry has recovered its activity. D. Laurent Ortiz de Paz has established spinneries of wool in that city, and in St Ildephonso, and other places. His Majesty has assigned rewards for men and women, who shall distinguish themselves in this kind of labor. This measure cannot fail to establish the royal manufacture of fine cloth, which the Marquis of Enseñada had already erected at Segovia, and which had fallen into decay with the favor of that Minister."

There are in some of the papers hints of a plan of pacification, which is said to come from the Rockingham party. The substance of it is as follows.

"Let us open our eyes! The hope of subjecting America is a chimera. Nothing but clemency can ever open a way for a reconciliation with its inhabitants. To show that we wish it sincerely let us give up Nova Scotia, that dry, uninhabitable, and languishing colony, which produces nothing. Let us also permit the Canadians to institute a form of government, which may be agreeable to themselves, and let the independence of North America become the object of our support. Sooner or later it will be unavoidable, that America should separate herself from us, and I should be very glad that a permanent system of alliance should take place between them and their mother country, before our ancient colonies shall be united to France, by ties too strict to be relaxed. I am persuaded, that neither Nova Scotia nor Canada will remain long under the government of England; and it is to be feared, that in contending for them we shall still further embroil affairs. Nova Scotia is not worth the trouble of keeping it, and it will require continual succors. Canada will occasion us more expense than it will bring us in profit, and will never become flourishing under an European government; at least unless the whole country should be recovered. We deceive ourselves if we imagine, that by emancipating the Americans we shall lose our American islands. We hold these by the strongest of all ties, which is, that of their own interest. North America will not seek to make conquests so long as it shall be divided into distinct States, and under a republican form of government; and it is probable, that several centuries will pass away before she will change the form of her administrations. Commerce will return into England, and into our islands, without any other motive than that which actuates all the commercial nations of the earth. If

we were now disembarassed of the objects of dispute, concerning which Spain discovers so many pretensions, and if we could content ourselves with a superiority at sea, all that would result from it would be, that our trade to the Levant would increase, we should become more respectable, and we should see ourselves more in a condition to maintain our quarrels, and protect our rich possessions, without hazarding a bankruptcy by expenses, which we cannot sustain. Our maritime power will always be sufficient to protect our islands. Our naval forces will never want anything so long as we shall have divers markets, where our vessels may go. The northern powers of Europe, and the northern States of America, will be competitors to serve us, so long as we preserve the superiority upon the sea, and while, by means of our manufacturers, we can pay for them, or make an advantageous exchange, with the one and the other. We have as good a right to things, which we can purchase in divers foreign markets, as if the things were the productions of our own establishments.

"Are France and Spain in want of warlike stores? Are they not as well supplied with them as we are? And do they not make Sweden rather incline to their side, by means of their commerce with that country for these articles? Is it probable that they can ever shut up from us the ports of America, of Russia, of Denmark, and of Sweden, while it is the interest of these States to furnish us? It is necessary, then, to resolve to demand peace by the means which offer themselves, and which are not only able to obtain it, but may still be preserved, and in which there is no appearance that we shall be disturbed, if, at least, at all times we preserve our marine upon a respectable footing; and, if we do not, we ever subject ourselves to be restrained upon the article of the number of ships, and in the places where we shall employ them. In that case we shall not perceive that Gibraltar or Minorca is wanting to us. We shall always be ready to meet our enemies in those parts where our safety, security, and riches lie, and which nature points out to us as our proper element. Surrounded on all sides by the sea, there is one half of the nation whose inhabitants understand navigation, from their infancy, and they are disposed to become seamen because they are almost educated with the sea. But whenever we shall engage ourselves in the wars of the continent, we shall never draw from them any solid advantages. Where are the trophies so dearly purchased of King William and Marlborough? And where is the benefit of the two last wars? The

balance of power will not remain long in our hands, although we have engaged the annual produce of an innumerable quantity of taxes.

"In America we have destroyed the balance, which held our colonies in dependence. We ought not, then, to lose the opportunity of binding the interests of the United States with ours by some amicable convention, which will assure us of their attachment, and deliver us from the cruel necessity of continuing the war with our own children. It is by this means we may preserve for a long time our insular property, and enjoy still a superiority at sea."

Paris, April 11th 1780. "The Ambassador of Russia has notified, within a few days past, to our Court, that it was the intention of his sovereign that the commerce of the subjects of her empire should not be troubled, and that under no pretence should their vessels be stopped by those of the belligerent powers, and that she is arming to defend her flag, and protect it from insults. This declaration was to be made at the same time to the Courts of Madrid and London. It is asserted, that it is the first fruit of a treaty of commerce, which Russia has concluded with us, and of a confederation which she has entered into with the other northern powers, and in which they wish to engage Holland and Portugal. We are very inquisitive to learn how this notification will be received by the Court of St James."

The English ministerial gazettes propagate a report, that there was arrived in Europe a deputy of Congress to offer peace to Great Britain. Those of the opposition assert, that this deputy who is in fact arrived, will do nothing but in concert with France, when it shall please England to propose a negotiation of peace.

The following article is published in the English papers, to excite the people against the opposition.

"If the Marquis of Rockingham should come again into the administration, his first operation would most probably be, to declare America independent. This would, nevertheless, be a fatal resolution, which, instead of giving us peace, would throw that event still farther off. A proof so striking of our pusillanimity would raise still higher the hopes and the pride of the House of Bourbon. France would demand that we should restore to them Canada, Cape Breton, and Nova Scotia, as well as the islands which were taken from

her the last war. Nothing less would be necessary for Spain than the restitution of Gibraltar and Jamaica. But it cannot but be supposed, that the Marquis of Rockingham is too much attached to his head to expose it to danger by so shameful a dismemberment of our empire. He would then make us continue the war with the disadvantage of not being able any longer to rein in the Americans, who would assist everywhere their allies by land and by sea. But every Englishman of good sense sees to what disasters this plan of conduct would lead us. The ambition of this Marquis and of his party is not to triumph over rebels, and the natural enemies of England; it is to humble his King and ruin his country."

I have the honor to be, &c.

JOHN ADAMS.

TO M. DE SARTINE.

Paris, April 16th, 1780.

Sir,

I have received the two letters, which your Excellency did me the honor to write to me, on the 5th and on the 12th of this month.

I do not mean to give your Excellency the trouble of answering these letters of mine, which contain extracts of letters from abroad, or simply news. This would be giving your Excellency too much trouble, and taking up too much time. Indeed, I think it will very probably be often, if not always unnecessary, because your Excellency's information must be, beyond all comparison, earlier, more exact, and more particular than mine; yet, as it is possible that sometimes a circumstance of importance may escape one channel of intelligence, and yet pass in another, I thought it to be my duty sometimes to send your Excellency an extract. In this view, I now have the

honor to send your Excellency another extract from a letter of the 6th of this month; but I pray your Excellency not to take the trouble to answer it.

I have the honor to be, &c.

JOHN ADAMS.

END OF THE FOURTH VOLUME.

FOOTNOTES:

[1] See these letters above, pp. 218, 238.

[2] The following are the extracts of the letters alluded to in this place.

EXTRACT OF A LETTER FROM JOHN JAY TO THE PRESIDENT OF CONGRESS.

Madrid, April 25th, 1781.

The letters herewith enclosed from Dr Franklin were left open for my perusal; the short stay of my courier at Paris not allowing time for copies to be made of the information conveyed in and with it.

I perceive that Dr Franklin desires to retire; this circumstance calls upon me to assure Congress, that I have reason to be perfectly satisfied with his conduct towards me, and that I have received from him all the aid and attention I could wish or expect. His character is very high here, and I really believe, that the respectability he enjoys throughout Europe has been of general use to our cause and country.

JOHN JAY.

EXTRACT OF A LETTER FROM JOHN JAY.

Madrid, April 21st, 1781.

By the letter from Dr Franklin, herewith enclosed, and which he was so obliging as to leave open for my perusal, I find he has requested permission to retire, on account of his age, infirmities, &c. How far his health may be impaired I know not. The letters I have received from him bear no marks of age, and there is an acuteness and sententious brevity in them, which do not indicate an understanding injured by years. I have many reasons to think our country much indebted to him, and I confess it would mortify my pride as an American, if his constituents should be the only people to whom his character is known, and that should deny to his merit and services the testimony given them by other nations. Justice demands of me to assure you, that his reputation and respectability are acknowledged, and have weight here, and that I have received from him all that uniform attention and aid, which were due to the importance of the affairs committed to me.

The affectionate mention he makes of his only descendant, on whom the support of his name and family will devolve, is extremely amiable, and flows in a delicate manner from that virtuous sensibility, by which nature kindly extends the benefits of parental affection, to a period beyond the limits of our lives. This is an affectionate subject, and minds susceptible of the finer sensations are insensibly led at least to wish that the feelings of an ancient patriot, going, in the evening of a long life early devoted to the public, to enjoy repose in the bosom of philosophic retirement, may be gratified by seeing some little sparks of the affection of his country rest on the only support of his age and hope of his family. Such are the effusions of my heart on this occasion, and I pour them into yours, from a persuasion, that they will meet with a hospitable reception from congenial emotions.

JOHN JAY.

COLONEL JOHN LAURENS TO B. FRANKLIN.

Leagues W. of Ortegá, June 9th, 1781.

Sir,

I snatch a moment to pay my last respects to your Excellency, and to mention a matter, which has occurred to me since my being on board. I have frequently reflected upon the mention, which your Excellency has made of retiring from your present important station, and have never varied the opinion, which I took the liberty of giving you once at the Count de Vergennes', viz. that the best arrangement would be to give your Excellency an active, intelligent Secretary of the Embassy, who might relieve you from the drudgery of office; and that your country should not be deprived of the advantages of your wisdom and influence. The difficulty hitherto has been to find a person properly qualified. The advantages, which your grandson derives from his knowledge of the language, and manners of the people, and his having been so long in your office, and with your Excellency, are very great. The prejudices, which have been entertained against him, may be removed by a personal introduction to Congress, especially if it is combined with rendering a popular service. I take the liberty of proposing to your Excellency, therefore, if you can spare Mr Franklin for the purpose, to commit to his care the second remittance of money, and to hasten his departure with that, and as much of the public supplies of clothing, &c. as may be ready to accompany it. I am persuaded, that in public bodies, the want of a personal acquaintance is a great objection to appointing a man to any important office.

The Engageante's boat demands my letter. I have written in the greatest haste upon a subject, which I hope your Excellency will turn to public utility.

I am, &c.

JOHN LAURENS.

[3] The sense is broken here, owing to the omission of three lines in cypher, the key to which could not be found.

[4] Copy of the Fourth Article of his Majesty's instructions to Richard Oswald, for his government in treating with the Commissioners of the Thirteen United Colonies of America for a truce or peace, the said instructions being dated the 31st day of July, 1782, viz.

"4th Article. In case you find the American Commissioners are not at liberty to treat on any terms short of independence, you are to declare to them, that you

have authority to make that concession. Our ardent wish for peace, disposing us to purchase it at the price of acceding to the complete independence of the Thirteen Colonies, namely, New Hampshire, Massachusetts Bay, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, the Three lower Counties on the Delaware, Maryland, Virginia, North Carolina, South Carolina, and Georgia, in North America."

[5] This refers to Mr Oswald's commission, which will be found in the Correspondence of the Commissioners for negotiating peace.

[6] This was not merely to pay a balance, but an excess on account of contingencies. *Note by Mr Livingston.*

[7] These articles will be found in the Correspondence of the Commissioners.

[8] The papers alluded to in this letter will be found in the Correspondence of the Commissioners for negotiating peace.

[9] *Copy of a Passport given to the Ship Washington, to carry over the Preliminary Articles.*

GEORGE the Third, by the Grace of God, King of Great Britain, France, and Ireland, Defender of the Faith, and so forth. To all Admirals, Vice Admirals, Captains, Commanders of our ships of war, or privateers, Governors of our forts and castles, customhouse comptrollers, searchers, &c., to all and singular our officers, and military and loving subjects whom it may concern, greeting. Our will and pleasure is, and we do hereby strictly charge and require you, as we do likewise pray and desire the officers and ministers of all Princes and States, in amity with us, to permit and suffer the vessel called the Washington, commanded by Mr Joshua Barney, belonging to the United States of North America, to sail from either of the ports of France, to any port or place in North America, without any let, hinderance, or molestation whatsoever; but on the contrary, affording the said vessel all such aid and assistance as may be necessary.

Given at our Court of St James, the tenth day of December; 1782, in the 23d year of our reign. By his Majesty's command.

T. TOWNSHEND.

[10] See this letter in Volume III. p. 106.

[11] This refers to a letter, which has been already printed under a wrong date. See above, p. 21.

[12] Mr Jefferson did not go, as was here expected. See his reasons in his *Memoir, Correspondence, &c.* Vol. I. p. 41.

[13] This treaty is printed in the public *Journals of Congress*, Vol. IV. p. 241, under the date of July 29th, 1783.

[14] *March 7th, 1783.* "Resolved, that the salaries of the Ministers and other officers of the United States in Europe be estimated in future in dollars, at the rate of four shillings and sixpence sterling per dollar.

"That they be paid in bills of exchange upon France or Holland, at the rate of five livres five sous turnois per dollar, without regard to the variations, which may be occasioned by the course of exchange."

[15] The original of this singular paper is not preserved, and the translation is here given, as found in Dr Franklin's public correspondence.

[16] The Court of Denmark. See the letter referred to, p. 74 of this volume.

[17] See the Proposition about privateering, p. 67 of this volume.

[18] See the Swedish Ambassador's letter, p. 112.

[19] See p. 112.

[20] See M. de Rosenchrone's letter, and the other papers here mentioned, p. 115 et seqq.

[21] See p. 96.

[22] See above, p. 95.

[23] See other letters from Mr Jay respecting Dr Franklin, above, pp. 8, 9.

[24] For further information on this subject, and particularly for an account of the part taken by Dr Franklin in the negotiation before he was joined by Mr Jay and Mr Adams, see the *North American Review* for January, 1830, p. 15 et seqq.

[25] See p. 135 of this volume.

[26] See p. 88.

[27] p. 112.

[28] p. 158.

[29] Mr Morris was a Secretary in the Department of Foreign Affairs.

[30] The letters from G. F. Crocco, see pp. 135 and 176.

[31] See this Treaty at large in the public *Journals of Congress*, Vol. IV. p. 639.

[32] See these letters, pp. 223, 224, 225.

[33] Deane did not arrive in Paris till the first week in July.

[34] This matter was not cleared up till 1794, when Gouverneur Morris was American Minister in Paris. By application to the government he procured a copy of the receipt of the person, who received the million of francs on the tenth of June, 1776. It proved to be Beaumarchais, as Dr Franklin had conjectured. See *Pitkin's History of the United States*, Vol. I. p. 422.

[35] A letter to Mr Barclay, written in France, see p. 218.

[36] In another letter, which Mr Adams afterwards wrote to Mr Samuel Adams, he says the account of the Commissioners' expenses here given is "exaggerated," and "put much too high," owing to his having been but a short time in Paris, and

not being accurately informed on the subject. See this letter hereafter, dated February 14th, 1779, in the present volume.

By a letter from Mr Arthur Lee, dated May 9th, 1778, containing a transcript from the banker's books, it appears, that from December, 1776, to March, 1778, a period of fifteen months, Silas Deane received on his private account, \$20,926; Arthur Lee, \$12,749; and Dr Franklin, \$12,214. See *Arthur Lee's Correspondence*, Vol. II. p. 159, where the above sums are stated in livres, and they are here reduced to dollars by the rule practised at that time, of allowing five livres and eight sols to the dollar. The fractions are omitted in the reduction. It must be observed, that the above payments are not a specification of the amounts actually received for the period in question, because the Commissioners may have had other expenses for which they afterwards drew on the banker, but these sums may serve as a tolerably correct indication of their expenses, and were probably intended as such by Mr Lee. At this time no fixed salary was allowed, but Congress resolved that all expenses should be paid, and that such an additional compensation should be granted, as might afterwards be deemed expedient by Congress.

On the 1st of June, 1778, Mr Lee wrote to Congress; "I am of opinion, with our colleague, Mr Adams, that it would be better for the public, that the appointment of your public Ministers were fixed, instead of being left at large, and their expenses indefinite. From experience, I find the expense of living in that character cannot well be less than three thousand pounds sterling a year, (\$13,333) which I believe is as little as is allowed to any public Minister beyond the rank of consul." *Arthur Lee's Correspondence*, Vol. II. p. 165.

The original mode of paying Ministers abroad continued, however, till October 4th, 1779, when Congress,

Resolved, That each of the Ministers Plenipotentiary, be allowed at the rate of two thousand five hundred pounds sterling (\$11,111) per annum; and each of their Secretaries at the rate of one thousand pounds sterling (\$4,444) per annum, in full for their services and expenses respectively.

"That the salary of each of the said officers be computed from the time of leaving his place of abode to enter on the duties of his office, and be continued three months after notice of his recall." *Secret Journals*, Vol. II. p. 272.

The salaries continued fixed at the above sums during the remainder of the revolution, and till May 7th, 1784, when the salary of Ministers was reduced to \$9000, and that of Secretaries to \$3000 per annum.

[37] Dr Franklin expresses this opinion very strongly on several occasions; and after he was appointed Minister Plenipotentiary, with the duties of commercial agent attached to his office, he repeatedly solicited Congress to separate these duties, and to leave him in charge only of those branches of business, which pertained to him in the character of Minister. See *Franklin's Correspondence*, Vol. III. pp. 90, 108, 119, 131.

[38] The capture of Burgoyne was the immediate cause of the treaty of alliance between France and the United States.

[39] This alludes to a clause in the 10th Article of the Treaty of Amity and Commerce between France and the United States.

[40] See a letter from Paul Jones on this subject in the Commissioners' Correspondence, Vol. I. p. 399.

[41] See the proceedings of Congress on Foreign Affairs, October 22d, 1778, in the Secret Journals, Vol. II. p. 107.

[42] Dissolving the commission in Paris, and appointing Dr Franklin Minister Plenipotentiary.

[43] See the statement here referred to, in a letter dated May 21st, 1778, p. 245, of the present volume.

[44] These letters relate to Silas Deane and Arthur Lee, and may be found in Arthur Lee's Correspondence, Vol. II, pp. 224, 227.

[45] See this letter in Arthur Lee's Correspondence, Vol. II. p. 224.

[46] See as above, p. 249.

[47] See these letters in Arthur Lee's Correspondence, Vol. II. pp. 224, 227.

[48] See the present volume, under the dates of February 16th, 1779, p. 294; February 21st, p. 298; February 27th, p. 299.

[49] See these letters in Arthur Lee's Correspondence, Vol. II. pp. 224, 227.

[50] See Izard's Correspondence, Vol. II. p. 434.

[51] See the Correspondence of the Commissioners in France, Vol. I. p. 500.

[52] See above, p. 295. The answer of M. de Lafayette is missing.

[53] This alludes to the appointment of Colonel John Laurens to be Secretary to the Minister Plenipotentiary in France. *Secret Journals*, Vol. II. p. 261. It does not appear that Colonel Laurens accepted the appointment. He was the son of Henry Laurens, to whom this letter from Mr Adams is addressed.

[54] These instructions, and those for a treaty of commerce which follow were agreed to unanimously in Congress on the 14th of August, nearly six weeks before the Minister was chosen. They were drawn up by Gouverneur Morris.

[55] These instructions, and those for a treaty of commerce which follow were agreed to unanimously in Congress on the 14th of August, nearly six weeks before the Minister was chosen. They were drawn up by Gouverneur Morris.

[56] Convention of Massachusetts, of which Mr Adams had been chosen a member soon after his return from France.

[57] Alluding to the journey through the north of Spain.

[58] Mr Jennings was an American, and although he resided in London during the war, he was a warm friend to the cause of his country.

Transcriber's note:

Variations in spelling, punctuation and hyphenation have been retained except in obvious cases of typographical error.

On page 39 the blank areas remain as they are in the original:

"upon the property, real or personal, within the same township or place, since the first day of which was in the year of our Lord 177 , and the same accounts and estimates to be transmitted to the Commissioners without delay."

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